

THE FALL OF THE HOUSE OF CONSTANTINE (C. 330-363 A.D.)

GEORGE WOULDHUYSEN

ALL SOULS COLLEGE

Thesis submitted for the degree of Doctor of Philosophy

Faculty of History, University of Oxford

Trinity Term, 2017

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SHORT ABSTRACT

This thesis is a revisionist account of the political history of the Roman Empire, from the later years of Constantine to the eve of Rome's disastrous invasion of Persia. It is a study of the reigns and governments of Constantius II, Constans, and Julian: of what they hoped to do and what they actually succeeded in doing. Necessarily, it is also the story of the men who staffed their administrations and led their armies, and of how emperors interacted with their servants. It is an attempt to probe the limits of what Roman rulers might achieve and understand the nature of the constraints under which they laboured: a study of political action and the context of political action. It is based on a comprehensive re-examination of the source material for the period: on the detailed work of re-dating, of re-categorising, and of critical analysis. At its simplest, its argument is very simple indeed: these three decades and their political history have been misunderstood. Constantius II and Constans were much more capable, much more interesting rulers than their caricatures in the sources, and cooperated successfully for their decade of diarchy. The terrible crisis which engulfed the Roman world after 350, reveals (paradoxically) not the instability and unpopularity of Flavian rule, but its success, the degree to which it had become the framework of empire. Julian was not merely a rather less starry figure than he would have us believe: he was an indifferent general and incompetent administrator. When, at last, supreme power was dropped into his lap, his reign saw the empire slide into chaos. This is the story of the fall of the House of Constantine, as it has not quite been told before.

THE FALL OF THE HOUSE OF CONSTANTINE (C. 330-363 A.D.)

LONG ABSTRACT

This thesis is a study of the political history of the Roman Empire from c. 330 to 363, perhaps the most misunderstood three decades of the fourth century. It is the story of the remarkable, dysfunctional, family which ruled that empire, of the men who served them, and of how they interacted. It is a study of political action – what emperors and others were trying to do and how and when they succeeded or failed – and the context for that political action. So, while it has something to say about the structure of the state, the contradictions of imperial Christianity, and the paradoxes of official *paideia*, it is not (unlike much recent work) primarily concerned with them. Equally, while many of the characters are familiar (even famous), the roles they play are occasionally rather unexpected. It is based on a systematic and critical review of the surviving source material. Systematic, because there is much of great importance in texts, on parchment, papyrus, or stone, which are not within the traditional territory of the era's political history (Ammianus, Libanius, Julian). Critical, because even those familiar sources have often been treated with rather too much reverence. It tries always to balance the more expansive claims of these established narratives, with close attention to minutiae: to who held which office, or received which law, or came from which two-horse town. Where possible, it takes the form of a thickly-described analytical narrative, because much which is obscure or has been misunderstood can be clarified when events assume their proper relation to one another. Yet, it tries not to shirk issues of broader interpretation, aiming to probe the limits of what emperors could achieve and what the real constraints on their power were – to ask questions about the possibilities, as well as the actualities, of political action. Its style tends to the dispassionate and the ironic, because sentiment and sincerity are at the root of much confusion in the study of the period. The result is a fundamentally revisionist account of the later emperors of the House of Constantine.

Chapter I is a reconsideration of the sons of the first Christian emperor, an attempt to excavate them from the opprobrium of posterity and understand them on their own terms. This is

fundamentally a constructive endeavour, but it starts with some demolition, for one of the main impediments to seeing them clearly is a set of modern ideas about how they came to power. An imaginary Constantine of the historiography, a man always scheming, the master of events, has encouraged attempts to divine in the fragmentary and uncertain evidence a clear and coherent plan for the succession. With that disposed of, it becomes possible to trace the chaotic and unplanned fashion in which they took over Constantine's empire – itself a remarkable event, the first time that an emperor who had inherited power from his father was succeeded by his sons. The 'great massacre' at Constantinople and the civil war between Constantine II and Constans, which cast such a shadow on their reigns, were not products of some Flavian pathology which required brothers and cousins to hate each other. They arose out of the fact that Constantine had said that only his kinsmen might succeed him, but neglected to specify which of them in particular, or how (or if) they were to share the Roman world.

This sense that much in the period was provisional, that Constantius and Constans were working out how to rule, guides what follows: an attempt to penetrate behind the veil of polemic (ancient and modern) and understand them as they were. To do this, the chapter relies as much as possible on contemporary evidence for them, some of it re-dated or reinterpreted, and it pays particular attention to the men around these child emperors who had grown up. The imperial brothers were much more interesting, much less hopeless figures than the lugubrious narrative of tradition would suggest and it is far from obvious that the abuse heaped on them has done anything but obscure their histories. Constantius II emerges as a ruler of real, if unshowy, virtues, dull echoes of which are found in those sources which portray him as a suspicious and easily-led emperor. His brother Constans is shown to be the victim of a highly successful (and not disinterested) campaign to blacken his reputation, one which has almost totally obscured the real issues with which his government grappled. The 340s saw the imperial brothers, relying on very different men, govern in very different ways and confront very different challenges. Yet, for the most part they successfully cooperated, evincing a cordial (if never warm) regard for one another.

That vision of the brothers and their rule shapes Chapter II, a study of the turbulent years from 350-355. If Constans was not the monster of later polemic, then the question of his overthrow is thrown open, for the air of inevitability which hangs around Magnentius' coup in conventional accounts becomes thin indeed. A reconstruction that does not presuppose its conclusion shows Constans to have been the victim of a conspiracy at court, one which attracted only very hesitant support. This upheaval showed (paradoxically) not the instability and unpopularity of Flavian rule, but its success, the degree to which it had become the framework of empire and Magnentius spent most of his short and unhappy reign trying to be as like Constans as he reasonably could. In civil war, Constantius proved himself a careful statesman and able general, outwitting and outfighting two formidable opponents. In victory, he was remarkably, even unwisely, magnanimous. The crises and coups which marked the mid-350s had their origins not in Constantius' fevered paranoia, but in his attempts to conciliate western elites, to work with the supporters of Constans and Magnentius (there were some uncomfortable overlaps) and use them to rule his newly acquired empire. His reputation as suspicious and vengeful has drained the era of much of its interest, turned politics into a dull polarity of an all-knowing emperor and his unfortunate victims. In reality, the period shows that even an experienced emperor, recently victorious, was vulnerable to manipulation and imperfect information, more conspired against than conspiring. Constantius had triumphed, but that hardly meant he was all-powerful.

We leave Constantius, unchallenged but not untroubled master of the Roman world, to take up the thread of Julian's story. With a juster estimate of his cousin, what he had achieved, and how he worked, the career of the last pagan emperor, dominated as it was by interaction with Constantius, can be put in its proper context. Julian requires a change of focus, for the sheer mass of ancient evidence for him threatens to overpower any study of him. Chapter III analyses a cross-section of this material, accounts of his career down to the year 361, and shows that both their intellectual architecture and many specific details which they offer have their origins in Julian's frantic self-justification in the midst of civil war. What we have is not only Julian's side of the story, but Julian's side of the story formulated when he had the greatest possible incentive to dissemble: what it says

needs to be read with a sharply critical eye. Chapter IV sets out to do that, unpicking the history of Julian's career in Gaul, then and ever after the basis of his reputation. Stripped of transparent apologetic in his favour, the Caesar emerges as an indifferent general and incompetent bureaucrat, who blundered his way into taking the credit for victories won by others. The only thing for which he showed a real talent was falling out with the generals and administrators whom Constantius sent him. In spite of that, throughout Julian's rather stormy career in Gaul, the Augustus proved remarkably tolerant of his idiosyncrasies: patient and eager to teach him patience.

This very different history of Julian's career in Gaul raises as many questions as it answers. Crucially, it opens afresh the story of what really happened when he made his undignified scramble further up the imperial heap in 360. Most accounts of the relationship between the imperial cousins, rooted in what Julian himself claimed about it, assume that the jealous Constantius was always searching for a way to undermine his Caesar. It was (we are told) inevitable that, one way or another, they would fall out and Julian would face an awful choice between disloyalty and dishonour. Yet, none of that appears to be true. Chapter V thus sets out to analyse Julian's usurpation as it has not quite been analysed before. It shows that he, not Constantius, managed to create a crisis and that he used that crisis to have a few troops in a small town raise him on an unsteady shield. Julian had chosen his moment with care and had probably been plotting something for some time – the government of Constantius was quite unprepared for what happened. Not the least sign of that was the emperor's willingness to negotiate with Julian, to try and arrive at some acceptable compromise that would allow them both to save face. Julian had little interest in that and while his cousin watched the Persian armies massing on the eastern frontier, the new Augustus launched his forces towards Constantinople. As winter closed in in 361, Julian (who had unwisely revealed his paganism to the world) found himself penned up in the Balkans, as Constantius and his army began to make the long march from the Euphrates to the Bosphorus. His defeat seemed certain.

Disease, however, had other ideas. Constantius died as he led his legions back – his last act was to designate Julian his successor. Chapter VI examines the consequences of that momentous decision. Julian's reign, like his rise, has been analysed through the prism of what he and his

supporters claimed he was trying to achieve: it was presented and is understood as a brisk and high-minded era of reform and *renovatio*. This is a misunderstanding. As he began to reign, Julian's path in government had its origins in the unsteady footholds of his route to power. He began by purging the men who had run his cousin's regime – he was thorough. Much of this upheaval in the state was justified by a rhetoric of 'reform', and it was merely a rhetoric, explanation trailing in the wake of policy. In place of all those who had been sacked (or worse), Julian recruited a uniformly pagan administration – conversion was often the price of official survival. He set this government to supervise a pagan restoration which saw much of the east descend into chaos, a chaos which (when its victims were Christian) Julian actively encouraged. His reign was indeed an era full of possibilities – few of them were happy.

To Katie

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TABLE OF CONTENTS

ACKNOWLEDGEMENTS	1
CONVENTIONS AND ABBREVIATIONS	4
INTRODUCTION	8
I – EAST AND WEST	21
Revolutions, 337-340	21
<i>The Definition of Dynasty</i>	23
<i>Massacre</i>	31
<i>An Imperial Occasion</i>	39
<i>Civil War</i>	42
East	46
<i>New Men</i>	47
<i>Eastern War</i>	64
West	72
<i>Aristocrats in Government</i>	74
<i>War and Western Christianity</i>	85
<i>An Intellectual at Court</i>	89
<i>Approaching 350</i>	96
The Roman Empire at Mid-Century	100
II – FIERCE CIVIL STRIFE	105
Magnentius	109
Civil War	121
The Flavians Return to the West	142
Constantius Maximus Augustus	159
III – PROLEGOMENA TO JULIAN	162
Milan, 355	162
Approaching Julian	166

Imperial Histories	176
A Julianic Inheritance	187
A Way Forward?	196
IV – A NEW CAESAR	198
Mission?	199
Mission Accomplished?	209
356	210
357	218
<i>Taxes</i>	227
Conclusions	234
V – REVOLT AND ITS CONSEQUENCES	235
One Night in Paris	236
Negotiations	247
Civil War	258
A Pagan Emperor	264
VI – EMPIRE OF THE APOSTATE	266
Constantinople	266
Approaching Julian's Reign	267
An Assault on the Governing Class?	271
<i>The Purges</i>	271
' <i>Reform</i> '	277
Julian's Government	284
To the Brink?	291
The Eve of Battle	299
CONCLUSION	301
LIST OF WORKS CONSULTED	304

CONVENTIONS AND ABBREVIATIONS

Conventions:

Unless specified, all dates are *anno Domini*.

All translations are my own.

Technical terms and titles in Latin have been italicised, unless they are familiar in scholarly English: so praetorian prefect, but *comes Orientis*.

Abbreviations:

For full details of works listed here, see the *List of Works Consulted*.

<i>AE</i>	<i>L'Année épigraphique</i>
	References are given by year and inscription number.
<i>AM</i>	Ammianus Marcellinus, <i>Res gestae</i>
<i>Athanasius</i>	The bishop of Alexandria
<i>AA</i>	<i>Apologia contra Arianos</i>
<i>AC</i>	<i>Apologia ad Constantium</i>
<i>AFS</i>	<i>Apologia de fuga sua</i>
<i>DS</i>	<i>De synodis</i>
<i>HA</i>	<i>Historia Arianorum</i>
<i>AV</i>	Sextus Aurelius Victor, <i>Historia abbreviata</i>
<i>BA</i>	<i>The Barrington Atlas of the Greek and Roman World</i> – Talbert, 2000
<i>BAV</i>	Bibliotheca Apostolica Vaticana
<i>BGU</i>	<i>Berliner griechische Urkunden</i>
<i>BL</i>	<i>Die Briefe des Libanius</i> – Seeck, 1906a
<i>Chron. 354</i>	<i>Chronograph of 354</i>
	In the absence of other information, this refers to the list of prefects of the city of Rome (pp. 65-69 of Mommsen's edition).
<i>CIL</i>	<i>Corpus inscriptionum Latinarum</i>
	References are given by volume and inscription number.
<i>CLRE</i>	Bagnall <i>et al.</i> , <i>Consuls of the Later Roman Empire</i>

<i>CJ</i>	<i>Codex Justinianus</i>
<i>CC</i>	<i>Consularia Constantinopolitana</i>
<i>CTh</i>	<i>Codex Theodosianus</i>
	Some laws (or their dates) are cited with a superscript ‘s’ (<i>e.g.</i> <i>CTh</i> VI.1.2 ^s or 355 ^s) to signal that I accept the emended date proposed by Seeck, 1919.
<i>Epitome</i>	<i>Epitome de Caesaribus</i>
Eusebius,	
<i>HE</i>	<i>Historia Ecclesiastica</i>
<i>LC</i>	<i>Laus Constantini</i>
<i>VC</i>	<i>Vita Constantini</i>
Eunapius,	
<i>VS</i>	<i>Vitae sophistarum</i>
<i>ELG</i>	<i>Excerpta de legationibus gentium</i>
<i>ES</i>	<i>Excerpta de sententiis</i>
FM,	Firmicus Maternus
<i>DE</i>	<i>De errore profanarum religionum</i>
<i>Math.</i>	<i>Mathesis</i>
GN	Gregory (of Nazianzus)
	Orations 4 and 5 (his invectives on the death of Julian) are cited simply by number and sub-division, <i>e.g.</i> 4.11, 5.9; other works have slightly fuller references (<i>Or.</i> 7.3 <i>e.g.</i>).
<i>ICUR n.s.</i>	<i>Inscriptiones Christianae urbis Romae, nova series</i>
<i>IGLS</i>	<i>Inscriptions Grecques et Latines de la Syrie</i>
<i>IL Tun.</i>	<i>Inscriptions Latines de la Tunisie</i>
<i>ILS</i>	<i>Inscriptiones Latinae Selectae</i>
	Inscriptions are cited by volume, fascicle (if appropriate) and then number.
<i>Inscr. Aqu.</i>	<i>Inscriptiones Aquileiae</i>
Jerome,	
<i>Chron.</i>	<i>Chronicon</i>

References are given by the page number in Helm's second edition and the letter he attaches to the event or events.

Julian	The emperor Julian
CG	<i>Contra Galilaeos</i>
EA	<i>Epistula ad senatum populumque Atheniensem</i>
ELF	<i>Epistulae, leges, fragmenta varia</i> – ed. J. Bidez, F. Cumont.
ET	<i>Epistula ad Themistium</i>
Or.	<i>Orationes.</i>
Lactantius,	
DI	<i>Institutiones Divinae</i>
DMP	<i>De mortibus persecutorum</i>
LSA	<i>Last Statues of Antiquity Database</i> – http://laststatues.classics.ox.ac.uk/
	References are given by LSA number.
Libanius	The Antiochene sophist
	References to his work are abbreviated <i>Or.</i> for the speeches, <i>Ep.</i> for the letters; these are both numbered as in the edition of Förster.
OCI	<i>Origo Constantini imperatoris</i>
P. Amh.	<i>The Amherst Papyri</i>
P. Ammon.	<i>The Archive of Ammon Scholasticus of Panopolis</i>
P. Harr.	<i>The Rendel Harris Papyri of Woodbrooke College, Birmingham.</i>
P. Kell.	<i>Papyri from Kellis</i>
P. Oxy.	<i>The Oxyrhynchus Papyri</i>
P. Princ.	<i>Papyri in the Princeton University Collections</i>
P. Würz.	<i>Mitteilungen aus der Würzburger Papyrussammlung</i>
Pan. Lat.	<i>Panegyrici Latini</i>
PCBE	<i>Prosopographie Chrétienne du Bas-Empire</i>
	I – Africa – Mandouze, 1982
	IV – Gaul – Pietri, Heijmans, 2013
PLRE	<i>The Prosopography of the Later Roman Empire</i> – Jones, Martindale, Morris, 1971

References are given by the name (and number) under which an individual is listed.

PPo Praefectus/i praetorio

RIC *Roman Imperial Coinage*

Suda The *Suda*.

Each entry is cited by (Greek) letter and the number assigned to it in Adler's edition.

SupIt *Supplementa Italica*.

Syringes *Inscriptions grecques et latines des tombeaux des rois ou Syringes à Thèbes* – Baillet, 1926

TLL *Thesaurus Linguae Latinae*

References are given *sub verbo*, with volume, fascicle, column, and line numbers in brackets.

Urkunden *Urkunden zur Geschichte des arianischen Streites*

INTRODUCTION

Sextus Aurelius Victor had a problem. As the year A.D. 360 dragged on, he was in Sirmium in Illyricum, putting the finishing touches to his *Historia*.¹ Born in Africa to a poor and ignorant father (he averred), Victor had nevertheless received a good education.² His career is shadowy, but his work betrays real interest in and knowledge of legal *arcana* and a fierce belief in the power of eloquence – he may well have been an advocate.³ He had spent time at Rome and knew the city, male prostitutes to institutions of higher learning, well: his account of the gory aftermath of Nepotian's revolt suggests he was there during the civil war.⁴ In the later 350s, he had fallen into the orbit of the powerful bureaucrat Anatolius, praetorian prefect of Illyricum, perhaps when the latter visited Italy in 356.⁵ Anatolius had some literary pretensions (of which we catch a fleeting reflection in Libanius' letters) and a bright young man of solid Latinity was a good catch for a Greek-speaking Phoenician feeling his way into western office. It was, presumably, the standard arrangement: patronage for praise. Victor had risen in the world through his culture and he was proud that he had so risen: his history would cement his reputation as a rising star in the literary firmament.⁶ Lurking (as it now does) in the long shadow of Ammianus, the sophistication of Victor's work can be obscured, but he had done research, had read Greek sources, had put real effort into cultivating a Sallustian style.⁷ In some ways, his is a *Historia* of startling ambition: the first attempt for centuries to write imperial Rome's story in Latin and to tell the reader what it meant.⁸

That ambition was Victor's problem, for one aspect of it, one startling and original characteristic of his work, was that he covered contemporary history. Most historians concluded their narrative before the accession of the reigning emperor – to do otherwise was to risk the possibility of punishment or the appearance of flattery. Victor, however, picked his way over the 23 years of

¹ AM 21.10.6. For the date: AV 42.20 (*pace* Nixon, 1991, 42.17 need not suggest a date of 361 – Julian had (Eunapius, *ELG* 1) captured royal barbarians unmentioned by Ammianus).

² AV 20.5.

³ Law: AV 16.11, 24.6 *e.g.* Eloquence: 8.7.

⁴ AV 14.3; 28.7. Nepotian, below, 122-3.

⁵ AV 13.6; Libanius, *Ep.* 492.6.

⁶ AV 20.5.

⁷ AV 42.22. La Penna, 2004/5. Mueller, 1998/9.

⁸ *e.g.* AV 11.13.

Constantius II's reign, through the bloody crisis of the succession, through the fires of civil war, all the way to emperor's tenth consulship (360). In doing this, his timing was spectacularly awful. In that year, as winter turned to spring, the Caesar Julian had been made Augustus by his troops at Paris – Constantius, war threatening on the eastern frontier, was (habitually) not amused. As the year crept on, negotiations continued, but the empire appeared dangerously close to another bout of civil strife. If war came, it would come first to the Balkans: sides would have to be chosen. Worse (for Victor), Anatolius had just died, replaced as prefect by Florentius, a man quite innocent of any literary inclinations, but an old comrade of Constantius and foe of Julian.⁹ Writing contemporary history had suddenly become a rather risky occupation and Victor had just lost a powerful protector, sympathetic to what he was trying to do. It might seem as though the safe course would have been for him to lard his prologue and conclusion with praise of Constantius and vituperation for Julian, so that if a beady-eyed Florentius were to read it, he would be satiated. But then, if Julian, an emperor who noisily advertised an interest in 'culture', did descend on the Balkans and discovered a *littérateur* who had criticised him...

It is this contemporary pressure which makes Victor's account of the ruling dynasty so fascinating. He was writing at a time of great, perhaps lethal, uncertainty, as the last two men of the second Flavian dynasty eyed each other warily, and he had to calibrate what he said with extraordinary care. What he offers is subtle, complex, and rich in implication. He starts with Claudius Gothicus, ancestor (some said) of the imperial family, whose heroic self-sacrifice against the Goths had given him the only uncontroversially glorious reign of the third century. Victor duly advertised his virtues and his connection to the reigning emperors.¹⁰ Next, Constantius I received brief but respectful coverage, though Victor could not help but condemn his lack of education.¹¹ Prologue past, our historian settled in to a detailed portrait of Constantine. Victor's account of the thick-necked man from Niš is fundamentally ambivalent, mischievously suggesting that he was almost fit for worship

⁹ AM 21.6.5.

¹⁰ AV 34, esp. 6-7.

¹¹ AV 39.26; 40.12.

as a god, that his vices appeared worse because he was so great.¹² He emphasised his importance, averred that his ‘victories, laws, and clement rule’ had ‘practically re-founded’ the city of Rome.¹³ Yet, Victor’s Constantine is not merely constructive – he is an unstable, even violent force in politics, ‘his huge and powerful spirit was driven even from his boyhood by a passion to rule’.¹⁴ His ambition and his generosity both spurred him on and limited what he could achieve: they were heroic defects.¹⁵ There is something gargantuan about Victor’s Constantine, occupying ‘his huge mind by founding a city and establishing cults’, and giants are pretty sinister, seen close-to.¹⁶ The historian summed up his judgement with a complex allusion: at the end of the Republic (with a nod to Tacitus) ‘in almost the 722nd year of the city, the custom arose at Rome of obeying one man absolutely’, while in 324 (for the first time since) the ‘state was governed by the will of one man’.¹⁷ The implication was that Constantine was a new Augustus – for power he had sacrificed everything; he had achieved the height of all mortal ambition and in his ambition he had saved and regenerated the Roman People. One could praise or blame him, but he had changed the shape of history: just as for Tacitus there was a before and after Augustus, so for Victor there was a before and after Constantine.

From there, history slumped into the reigns of his sons. Victor’s account is brisk: their unhappy fates were prophesied by heavenly signs, their reigns soon disfigured by the slaughter of kinsmen – they feuded and in feuding they damaged Rome.¹⁸ Constans was awful, riddled with vice and arrogance – overthrown and killed, not unjustifiably.¹⁹ For his brother Constantius, however, Victor offered qualified praise.²⁰ A glance at what the historian says about his emperor appears to strike a real balance: he offers not insipid panegyric, but real admiration tempered with, guaranteed by, criticism. Yet, throughout his work, Victor turns aside from the period he is ostensibly covering to comment sharply on the Roman world in his own day. The *actuarii*, he says, are venal and hateful, contemporary taxation is unsustainable, the *agentes in rebus* are plundering the populace: the Roman

¹² 41.20-21.

¹³ 41.17.

¹⁴ 40.2.

¹⁵ 40.15, 41.3.

¹⁶ 41.12.

¹⁷ AV 1.1, 41.10. cf. Baldwin, 1993, 82-3.

¹⁸ 41.7, 14, 22, 39.29.

¹⁹ 41.23-4.

²⁰ 42.21-25 e.g. Nixon, 1991, 121-4 takes this rather too seriously.

state is gorging itself on the marrow of the provinces.²¹ When the historian outlines these wrongs, he never even hints that Constantius has anything to do with them: the imperial name is carefully segregated from *nostra tempora*. Yet, Victor closes his work with a denunciation of the emperor's servants, the black spot defiling his reign: 'as nothing is more outstanding than the emperor himself, so nothing is more savage than most of his servants'.²² The point, though camouflaged, is clear: Constantius is responsible for the evils Victor has carefully outlined. His true attitude to the situation in 360 is concealed in a complex tangle of allusions at the end of his work. There, Julian is cast as a new Caesar, sent to the *partes* of Gaul where 'he quickly subjugated those wild nations and captured their famous kings'.²³ Constantius, compared first to those deeply ambivalent figures Tiberius and Galerius, is then typed as a second Pompey, granting kings to foreign nations.²⁴ One perhaps did not need Victor's knowledge of Roman history to see where that idea might lead. The low dishonest decades under the sons of Constantine were drawing to a close – a new and invigorating era was at hand. Julian, at least, appreciated the effort: when he found Victor at Sirmium, his reward was a bronze statue and the governorship of *Pannonia secunda*.²⁵

What is striking about this tale of the second Flavian family, framed as the squalls of civil war began to beat around the Roman world, is how closely it mirrors the shape of modern accounts. Claudius and Constantius I have bit-parts in late-Roman history, subsumed as they are in those historiographical edifices: the 'Crisis of the Third Century' and the Tetrarchy. Constantine's history is on a vastly grander scale, the energy devoted to understanding him enormous and the bibliography a torrent – the richness, the contradictions, the problems of the evidence invite, even demand investigation. Since the Barnesian earthquake of the 1980s, scholarly effort has been unrelenting and anyone investigating Constantine is swiftly buried by a landslide of interpretation.²⁶ Yet, in Victorine fashion, for all the attention devoted to him, it would be wrong to say that anything like a consensus about the first Christian emperor has come into existence. The Constantine of Barnes:

²¹ 33.13, 39.32, 44-5.

²² 42.24-5.

²³ 42.17.

²⁴ 42.21.

²⁵ AM 21.10.6.

²⁶ See esp. Barnes, 1981, 1982.

... a political genius of the highest order, to whom events presented no obstacle, as they have so often for less able leaders, but rather a launching pad for continual successes.²⁷

a very late antique emperor, whose eyes were everywhere and whose forethought was boundless, bears little relation to Lenski's portrait of a ruler engaged in the endless give-and-take of petition and response.²⁸ Debates about Constantine seem more and more to be turning into debates about the late-Roman world, filtered through him: as the lens of interpretation has widened, the image it offers has become murkier and murkier. That is perhaps because, as Victor saw, it is impossible to imagine late antiquity without Constantine: he marks a swerve in Roman history, one of those points where something changed and so through which anything might be analysed. He continues to defy verbal definition and explain himself.

His sons, in contrast, lurk in their father's shadow, little studied and little appreciated – the undistinguished occupants of the throne in the long slouch of empire between Constantine and Julian.²⁹ Part of the problem is the extraordinary solipsism of the sources. Take the 340s: we can tell the story of the decade as seen by Libanius, a fraught and fast moving tale of the junior academic's quest for tenure, where events – riots between factions of Christians at Constantinople *e.g.* – intrude only when they tell us something about whether he got his professorship or not.³⁰ We can look at the period as the tale of Athanasius' unfaltering defence of 'Nicene' orthodoxy, outwitting and outlasting opponents who were (we are assured) Manicheans, Jews, and dissolute placemen. We learn much about life in the provinces from the single-minded quests of an army officer (Fl. Abinnaeus) and a lawyer from Panopolis (Ammon) to get what they saw as their property back.³¹ The sophist Himerius might give us a portrait of the empire as viewed from the Athens of the 340s, but equally his speeches, fragmentary and often obscure, may come from the later-fourth century.³²

²⁷ Barnes, 2011, 173.

²⁸ Lenski, 2016.

²⁹ For basic details, see *PLRE* 'Constantinus 3', 'Constantius 8', 'Constans 3'. Callu, 1992a, 39-68 surveys some of the legal, prosopographical, and numismatic evidence for the period. There is now a narrative overview in Maraval, 2013.

³⁰ Libanius, *Or.* 1.44-5.

³¹ For Abinnaeus, see Bell, *et al.*, 1962 with the important corrective of Barnes, 1985b. For Ammon see the publications of his archive, with Minnen, 2002 and the penetrating study of Humfress, 2006.

³² See the edition of A. Colonna for the speeches and fragments. Barnes, 1987 constructs about the latest possible chronology for his works (synthesis on 224); there are reasons to be sceptical of it. Penella, 2007,

It is difficult to weave these very different threads into any kind of coherent garment. That is perhaps why they have tended to attract denunciations which are more pungent than detailed. The unhappy triumvirate incited Gibbon to one of his most withering put-downs, when (uncharacteristically) he praised Athanasius, whose ‘superiority of character and abilities ... would have qualified him, far better than the degenerate sons of Constantine, for the government of a great monarchy’.³³ It is not quite the case that the only essay devoted to Constantine II (r. 337-340) is two pages long and deals with the suppression of his memory *post mortem*, but it is uncomfortably close to the truth.³⁴ Constans (r. 337-350) steps just a little into the light, cast as the victor in a brutal civil war with his older brother, as the man who supplied a definitive riposte when Constantius II asked Athanasius ‘you and whose army?’ one time too many, but above all playing the part of a failure, who died hunted and alone, in flight from the forces of Magnentius.³⁵ His fall has shrouded his reign in a pall of ineptitude and historians have found it hard to avoid interpreting everything about him through the lens of 350: he was ‘wholly discredited’, ‘not a popular and widely respected ruler’; with his ‘ruthless and tyrannical manner’, he was so weak that he could have been destroyed at any time; he was a political bankrupt and extremely unpopular, a man who ‘probably deserved to be overthrown’.³⁶ He was a failed emperor because he was ousted and he was ousted because he was a failed emperor. In these accounts, he is not so very different to the chaotic and debauched figure whom Victor had described. Constans and his brother Constantius loathed each other, split the Roman world into hostile camps, mixing personal antagonism with theological difference and creating ‘a state of more or less permanent hostility’, nearly going to war over Athanasius.³⁷

The features of Constantius II (r. 337-361), the brother of whom we know the most, are easier to discern – they do not make for a pleasant sight. He was sufficiently unpopular in his lifetime

provides a sensible discussion of almost all aspects of his career and work; 3-4 he argues (*contra* Barnes) that Himerius was indeed resident in Athens for much of the 340s, a trip to Constantinople notwithstanding.

³³ Gibbon, 1781, 796. *cf.* Barnes, 1993, 102.

³⁴ Cahn, 1987.

³⁵ There are some fine studies of his coinage: Bruun, 1987; Kraft, 1978-85.

³⁶ Drinkwater, 2000, 131-6; Barnes, 1993, 101; Šašel, 1971, 205.

³⁷ Callu, 1992a, 55-6; Drinkwater, 2007, 200. *cf.* Leedom, 1978, 142-3; Vogler, 1979, 34; Salway, 2008, 300-301, 305; Barnes, 1999, *passim e.g.* 63, 69; Frakes, 2012, 100.

that an entire book has been written about the ways in which he was traduced.³⁸ Even his successes have a harsh and unforgiving tinge to them – he was proverbially victorious in civil war.³⁹ Few modern historians have departed from the almost uniform view of the ancient sources that he was (by turns) suspicious, timid, murderous, incompetent, easily-led, and tyrannical. Constantius was ‘timid and suspicious’, a ‘capricious despot’ with a ‘court of sycophants’, the ‘most suspicious and insecure of Christian emperors’ with a ‘fickle and suspicious nature’, ‘whose engagements with the Persians’ were ‘unsuccessful’.⁴⁰ He was from the very beginning of his reign a ruthless, even merciless foe of his own family.⁴¹ As in Victor, the ‘infamous informers’ and ‘corrupt eunuch[s]’ of an emperor ‘too much the warden of his own devotion’ loom large.⁴² Opinion has perhaps softened just a little in recent decades, but Constantine’s longest-lived son remains at best the ‘limited and much-maligned man’ whom Peter Brown once tantalisingly evoked.⁴³ In 1992, when H.C. Teitler optimistically pronounced that ‘scholarly opinion of Constantius has never been so unanimously benevolent as today’, the statement prefaced a piece suggesting that the emperor was perhaps not quite so stupid as Ammianus implied.⁴⁴ The bar for ‘rehabilitation’ is low.⁴⁵ Constantius’ relationship with those enthusiastic self-publicists, Athanasius and Julian, continues to take centre-stage in the study of him – not to his advantage. Painstaking investigation, the work of decades of revision, has gradually deconstructed the bishop of Alexandria’s tale of a heretical tyrant, surrounded by courtly bishops and passionate declaimers, forcing his will on the Church.⁴⁶ The Constantius of theological controversy appears now much more reasonable, if occasionally prone to (understandable) frustration, much more in harmony with the mood of eastern bishops: much more typical, in other words. Yet the story still

³⁸ The fine study by Flower, 2013; Humphries, 1997 was an important forerunner.

³⁹ AM 21.16.15.

⁴⁰ Jones, 1964, 116; Athanassiadi, 1981, 46; Bowersock, 1978, 27; Cameron, 2011, 693; Drinkwater, 1983, 357; Elm, 2012, 272.

⁴¹ Burgess, 2008 (with feeling).

⁴² Harries, 2012b, 304; AV 42.23.

⁴³ Brown, 1971, 89. *cf.* Leedom, 1978, and Pietri, 1989’s sympathetic essay.

⁴⁴ Teitler, 1992, 118.

⁴⁵ In a series of pieces (2001a, 2001b, 2007), Henck has presented other sides to Constantius. It says a lot about the emperor that the revelations that he was educated, patronised intellectuals, constructed buildings, and had a better relationship than Julian with the Antiochenes are (rightly) regarded by the author as revisionist.

⁴⁶ *cf.* Gibbon, 1776, 581. For revised accounts of Constantius’ dealings with the church, one might cite (*inter plurima alia*) Klein, 1977, Hanson (R.P.C.), 1987, Brennecke, 1988, Barnes, 1993, and Gwynn, 2007.

ends in failure: the consensus he pursued proved ephemeral, his theological position was renounced, his reputation stained by heresy.

In his dealings with Julian, there has been no similar revision. Constantius remains the dull foil to his starry cousin: incompetent, suspicious, unhelpful, even obstructive, jealous and willing to act on his jealousy. He lurks at the margins of the voluminous literature on the last pagan emperor, a sinister figure on whom the light never quite falls. Julian, more closely resembling his hated uncle Constantine than he would have cared to admit, offers fantastically rich, apparently personable material for the historian and, like him, he has attracted sustained and sophisticated scholarly attention. Argument about him is far from stilted: controversy seethes around his philosophical originality, relationship to traditional pagan cult, and attitude to Christianity. Yet where fundamental things about Constantine provoke sharp disagreement, the outlines of Julian's story are (more or less) settled. Plucked from the decent obscurity of a learned university, he was dispatched to Gaul to rule an evil-tempered army and exhausted provinces. There, he proved a success, as surprising to himself as anyone else: those old Roman virtues, energy, probity, courage, were much in evidence. His is a hopeful story, a burst of light after the grim and unforgiving tale of his cousins. This success provoked envy and while Julian won glorious victories on Gallic battlefields, Constantius and his court of sycophants connived and plotted to do him harm. Eventually, they pushed their schemes too far and the Caesar (to his surprise, but not entirely against his will) found himself proclaimed Augustus by the discontented soldiery. Civil war was then inevitable, for the implacable Constantius would never negotiate in good faith. Almost providentially, he died before the confrontation could begin in earnest and Julian found himself, as Victor had hoped, ruler of the Roman world. His brief reign was a bold period of hope, of experimentation, of reform – a welcome change in both style and substance from his predecessor. If, at the sharp end of Julian's pagan restoration, there were a few instances of a rather overheated local enthusiasm, they were certainly regrettable, but the worst excesses were merely rhetorical: the sarcasm of the *Misopogon* stung, but an emperor could do things more violent than lecture to compel obedience to his religious views. If the Persian sequel to his

Rhineland adventures was a little disappointing, then it still demonstrated his many virtues in full. Julian's reign has a slightly romantic tinge, a sense of possibility cut off, of what might have been.

The modern history of the second Flavian family is, as it was for Victor, a play in three acts: an ambiguous and intriguing introduction, centred on Constantine; an interminable middle section, poorly lit and ineptly staged, as too many unlikeable characters kill each other; and a heroic and fast-paced *dénouement*, as Julian's engaging vigour draws the audience in. Its plot is heavily weighted to the beginning and the end, as those utterly different (yet unnervingly similar) emperors grip our attention and excite our interest. Like Victor's work, it is in many ways a bold and schematic history: an imperial story, not only in that it is about emperors, but in the sense that judgements about them, about their personalities or abilities, are the engine room of historical explanation. A sense of who Julian was shapes our understanding of what he was doing, just as a very different estimate of Constantius' proclivities tells us why he suffered what he did. In turn, the emperors characterise the history of their times, so that their nature sometimes seems to permeate everything around them: as though the fact that Constantius and Constantine could not agree about Athanasius had everyone's teeth on edge for the entire 340s.

This thesis seeks to do something different. Its chronological focus is atypical, so it starts not with Constantine's rise to power (a tale which terminates abruptly in 324, when he had thirteen years left on the throne) but with the murky dynastic politics of his later reign and traces events down to 363, as Julian began to move his columns out of Antioch. The territory over which it ranges is diverse and the problems of conception, of material, and of interpretation it confronts are unusually varied, so its approach varies too: emphasis is laid now on the acts, now on the adherents of the emperors involved. The subjects it pursues are idiosyncratic, so there is rather less here about the travails of Athanasius or the thought-world of the emperor Julian than might be expected and rather more about Firmicus Maternus and the supporters of Magnentius. The Flavians themselves are still at the centre of its story, but it tries to avoid reasoning from them to an explanation of what was happening and instead seeks to build a portrait of their actions and the context of their actions from minutiae. For that reason, evidence is taken where it can be found – beggars cannot be choosers and

the historian of the 340s is pretty impoverished – so traditional divisions are enthusiastically transgressed, papyri rubbing shoulders in the footnotes with the *patres* and *leges datae* with *Res gestae*. It has few theoretical lodestars, unless a sense that politics is characterised more by chaos, indecision, and confusion than order, resolution, and clarity is a matter of theory, not disposition, or a feeling that emperors shaped events rather less often than they hoped can be formalised. Yet, for all these caveats, this thesis seeks to offer something of real significance, a comprehensive reinterpretation of 30 years of late-Roman history: a new history of the neo-Flavian dynasty.

Chapter I is a reconsideration of the sons of Constantine, an attempt to excavate them from the opprobrium of posterity and understand them on their own terms. This is fundamentally a constructive endeavour, but it starts with some demolition, for one of the main impediments to seeing them clearly is a set of modern ideas about how they came to power. An imaginary Constantine of the historiography, a man always scheming, the master of events, has encouraged attempts to divine in the fragmentary and uncertain evidence a clear and coherent plan for the succession. With that disposed of, it becomes possible to trace the chaotic and unplanned fashion in which they took over Constantine's empire – itself a remarkable event, the first time that an emperor who had inherited power from his father was succeeded by his sons. The 'great massacre' at Constantinople and the civil war between Constantine II and Constans, which cast such a shadow on their reigns, were not products of some Flavian pathology which required brothers and cousins to hate each other. They arose out of the fact that Constantine had said that only his kinsmen might succeed him, but neglected to specify which of them in particular, or how (or if) they were to share the Roman world. This sense that much in the period was provisional, that Constantius and Constans were working out how to rule, guides what follows: an attempt to penetrate behind the veil of polemic (ancient and modern) and understand them as they were. To do this, the chapter relies as much as possible on contemporary evidence for them, some of it re-dated or reinterpreted, and it pays particular attention to the men around these child emperors who had grown up. The imperial brothers were much more interesting, much less hopeless figures than the lugubrious narrative of tradition would suggest: the abuse heaped on them has done little but obscure their histories. Constantius II emerges as a ruler of real, if

unshowy, virtues, dull echoes of which are found in all those stories of a suspicious and easily-led emperor. His brother Constans is shown to be the victim of a highly successful (and not disinterested) campaign to blacken his reputation, one which has almost totally obscured the real issues with which his government grappled. The 340s saw the imperial brothers, relying on very different men, govern in very different ways and confront very different challenges. Yet, for the most part they successfully cooperated, evincing a cordial (if never warm) regard for one another.

That vision of the brothers and their rule shapes Chapter II, a study of the turbulent years from 350-355. If Constans was not the monster of later polemic, then the question of his overthrow is thrown open, for the air of inevitability which hangs around Magnentius' coup in conventional accounts becomes thin indeed. A reconstruction that does not presuppose its conclusion shows Constans to have been the victim of a conspiracy at court, one which attracted only very hesitant support. This upheaval showed (paradoxically) not the instability and unpopularity of Flavian rule, but its success, the degree to which it had become the framework of empire and Magnentius spent most of his short and unhappy reign trying to be as like Constans as he reasonably could. In civil war, Constantius proved himself a careful statesman and able general, outwitting and outfighting two formidable opponents. In victory, he was remarkably, even unwisely, magnanimous. The crises and coups which marked the mid-350s had their origins not in Constantius' fevered paranoia, but in his attempts to conciliate western elites, to work with the supporters of Constans and Magnentius (there were some uncomfortable overlaps) and use them to rule his newly acquired empire. His reputation as suspicious and vengeful has drained the era of much of its interest, turned politics into a dull polarity of an all-knowing emperor and his unfortunate victims. In reality, the period shows that even an experienced emperor, recently victorious, was vulnerable to manipulation and imperfect information, more conspired against than conspiring. Constantius had triumphed, but that hardly meant he was all-powerful.

We leave Constantius, unchallenged but not untroubled master of the Roman world, to take up the thread of Julian's story. With a juster estimate of his cousin, what he had achieved, and how he worked, the career of the last pagan emperor, dominated as it was by interaction with Constantius,

can be put in its proper context. Julian requires a change of focus, for the sheer mass of ancient evidence for him threatens to overpower any study of him. Chapter III analyses a cross-section of this material, accounts of his career down to the year 361, and shows that both their intellectual architecture and many specific details which they offer have their origins in Julian's frantic self-justification in the midst of civil war. What we have is not only Julian's side of the story, but Julian's side of the story formulated when he had the greatest possible incentive to dissemble: what it says needs to be read with a sharply critical eye. Chapter IV sets out to do that, unpicking the history of Julian's career in Gaul, then and ever after the basis of his reputation. Stripped of transparent apologetic in his favour, the Caesar emerges as an indifferent general and incompetent bureaucrat, who blundered his way into taking the credit for victories won by others. The only thing for which he showed a real talent was falling out with the generals and administrators whom Constantius sent him. In spite of that, throughout Julian's rather stormy career in Gaul, the Augustus proved remarkably tolerant of his idiosyncrasies: patient and eager to teach him patience.

This very different history of Julian's career in Gaul raises as many questions as it answers. Crucially, it opens afresh the story of what really happened when he made his undignified scramble further up the imperial heap in 360. Most accounts of the relationship between the imperial cousins, rooted in what Julian himself claimed about it, assume that the jealous Constantius was always searching for a way to undermine his Caesar. It was (we are told) inevitable that, one way or another, they would fall out and Julian would face an awful choice between disloyalty and dishonour. Yet, none of that appears to be true. Chapter V thus sets out to analyse Julian's usurpation as it has not quite been analysed before. It shows that he, not Constantius, managed to create a crisis and that he used that crisis to have a few troops in a small town raise him on an unsteady shield. Julian had chosen his moment with care and had probably been plotting something for some time – the government of Constantius was quite unprepared for what happened. Not the least sign of that was the emperor's willingness to negotiate with Julian, to try and arrive at some acceptable compromise that would allow them both to save face. Julian had little interest in that and while his cousin watched the Persian armies massing on the eastern frontier, the new Augustus launched his forces towards

Constantinople. As winter closed in in 361, Julian (who had unwisely revealed his paganism to the world) found himself penned up in the Balkans, as Constantius and his army began to make the long march from the Euphrates to the Bosphorus. His defeat seemed certain.

Disease, however, had other ideas. Constantius died as he led his legions back – his last act was to designate Julian his successor. Chapter VI examines the consequences of that momentous decision. Julian's reign, like his rise, has been analysed through the prism of what he and his supporters claimed he was trying to achieve: it was presented and is understood as a brisk and high-minded era of reform and *renovatio*. This is a misunderstanding. As he began to reign, Julian's path in government had its origins in the unsteady footholds of his route to power. He began by purging the men who had run his cousin's regime – he was thorough. Much of this upheaval in the state was justified by a rhetoric of 'reform', and it was merely a rhetoric, explanation trailing in the wake of policy. In place of all those who had been sacked (or worse), Julian recruited a uniformly pagan administration – conversion was often the price of official survival. He set this government to supervise a pagan restoration which saw much of the east descend into chaos, a chaos which (when its victims were Christian) Julian actively encouraged. His reign was indeed an era full of possibilities – few of them were happy.

The history of Constantine's empire after Constantine turns out to be very different and much more interesting than that old play in three acts – this thesis seeks to describe it. Though much has been included, much has had to be left out. It is (one hopes) not too exaggerated to say that the result resembles one of those vast mosaics from some late-Roman villa, only portions of which survive, just as the process of writing it has often felt rather like the painstaking work of uncovering individual *tesserae*. Those little fragments have been built up into discrete scenes – the courtly world of Constans, or Julian's programme of 'reform' – each fresh in its conception and execution. Gaps separate these little *vignettes* from one another, but enough of the original survives to give some sense of the whole. I hope it is an arresting image.

I

EAST AND WEST, 337-350

Revolutions, 337-340

Nicomedia marked the stages of Constantine's career. In 305, he stood on a hill outside the tetrarchic capital, and watched as Diocletian proclaimed Severus and Maximinus Daia Caesars, the prelude to twenty years of turmoil in the state.¹ In 324, he came there to receive the surrender of Licinius, his last surviving rival, and arrive at long last at the apex of sole rule.² So, it was in some ways fitting that in 337 he went there to die.³ He had fallen ill in Constantinople at Easter (the third of April that year).⁴ The atmosphere was already morbid: Constantine had recently dedicated his own mausoleum and had taken in his regular lectures to the court to ruminating on what awaited men after death.⁵ A long-haired star, a comet which portended evil to kingdoms, had been seen.⁶ Despite this, or perhaps because of it, preparations for war with Persia were far advanced.⁷ The Caesar Constantius was stationed at Antioch, waiting for his father and the start of the campaign season; he had been in the east for some time already, fortifying cities on the frontier.⁸ In the Persian borderlands an abbot called Aphrahat looked forward to an epochal clash between the empires.⁹ Constantine had prepared a tent to serve as his church in the field, collected some bishops to accompany him, and the campaign was to have something of the character of a religious war.¹⁰ He had proclaimed his nephew Hannibalianus 'king of kings and of the Pontic peoples', a redolent title, and it was suggested that he would rule Armenia and surrounding nations.¹¹ Coins were minted in his name at Constantinople, a personification of the river Euphrates on their reverse, and he had been married to Constantine's

¹ Lactantius, *DMP* 19.1-4.

² Zosimus 2.28.1.

³ Burgess, 1999a (refuting Woods, 1997); Fowden, 1994.

⁴ Eusebius, *VC* 4.60.5-61.1.

⁵ *ibid.*, 4.60.1-3, 55.1-3. Mango, 1990.

⁶ *AV* 41.16; *cf.* Williams, 1871, 27.

⁷ Eusebius, *VC* 4.56.1-2.

⁸ Zonaras 13.4.28; *AM* 18.9.1. *pace* Burgess, 1999b, 275-282, how a *locus disputatus* in a large number of interrelated Syriac texts proves Ammianus wrong on the date of these activities is lost on me: no single source provides the name and date he settles on.

⁹ Barnes, 1985a.

¹⁰ Chapter-heading for Eusebius, *VC* 4.56. Barnes, 1985a. *pace* Smith, 2016, Ch. II, that the war was not designed to help Persian Christians does not mean it was not a religious war..

¹¹ *OCI* 35; *Epitome* 41.20. *cf.* *AM* 17.5.2 and 19.2.11.

daughter, Constantina.¹² A late (but not always unreliable) source says he had been sent to Caesarea in Cappadocia, the obvious point from which to invade Armenia, and thence Iran.¹³ The implication was that Constantine was planning nothing less than the wholesale conquest of Persia and the installation of one of his relatives as Shahanshah: the creation of a branch of the Flavian dynasty which would rule the east. Persian ambassadors arrived at Constantinople, but they were angrily rebuffed.¹⁴ There was to be war.

The emperor went to the hot springs at Soteropolis and then proceeded to Helenopolis, the city which he had founded in honour of his mother.¹⁵ There, he spent considerable time in a chapel of the martyrs, in prayer and contemplation; he was getting sicker, and sicker.¹⁶ He just about made it to Nicomedia, where he took up residence in an imperial villa – a setting in which it was easier to stage-manage his last moments.¹⁷ Ever the consummate performer, Constantine told his bishops of how he had wished to be baptised in the river Jordan, of how he had longed for this moment, and now desired to be received into the number of God's people.¹⁸ Eusebius, the bishop of Nicomedia and foe of Athanasius, once described by Constantine as 'a confederate of tyrannical cruelty', was only too happy to oblige.¹⁹ The city was stuffed with troops for the coming campaign – it was the starting point of any journey to Antioch and forces had mustered there.²⁰ Clad in gleaming white, on a white couch, a colourful renunciation of imperial power, he received deputations of senior officers, urging them not to wish him a longer life.²¹ The Apostles held that sins after baptism were inexpiable, and Lactantius had made clear that a just man could not kill nor order killing: how, then, could a baptised emperor govern?²² Constantine confined himself to making disposition of his property, and on

¹² *RIC* VII, 584, plate 19 (no. 100); *OCI* 35.

¹³ *Chronicon Paschale* s.a. 335.

¹⁴ Chapter-heading for Eusebius, *VC* 4.57; Libanius, *Or.* 59.71-2; Festus 26.

¹⁵ Zonaras 13.4.25; Eusebius, *VC* 4.61.1. Eusebius says he proceeded to the baths 'of his city', but there is no reason he could not mean by this baths across the strait, *contra* Burgess, 1999b, 223.

¹⁶ Eusebius, *VC* 4.61.1-2.

¹⁷ Burgess, 1999a, 157-8.

¹⁸ Eusebius, *VC* 4.62.1-3.

¹⁹ *Urkunden* 27.9; Jerome, *Chron.* 234a.

²⁰ Eusebius, *VC* 4.63.2, 65.1-2; *Itinerarium burdigalense* 572-581.

²¹ Eusebius, *VC* 4.63.2.

²² Hebrews 10.26; Lactantius, *DI* 6.20.15-19.

Pentecost, exactly 50 days after he had fallen sick, at about noon, the man who had dominated the Roman world finally expired.²³ His first legacy was chaos in the state.

The Definition of Dynasty

For the three years which followed Constantine's death, the empire was convulsed by massacre, civil strife, and foreign war. Events tend to be treated separately: dynastic slaughter in Constantinople, the slow-burn of conflict on the eastern frontier, and a short, nasty war between Constantine II and Constans. It is easy to see why historians have segregated the episodes, treated them as discrete crises, connected with one another but only in the abstract. The period is one of fearsome obscurity and the sources are exiguous and partisan: our only contemporary witness, the latter chapters of Eusebius' *Vita Constantini*, obviously distorts events after Constantine's death, producing out of thin air an orderly and pre-ordained succession.²⁴ The Persian war, starting as it did a quarter-century of conflict and culminating in the inglorious surrender of Nisibis, was swiftly buried in polemic.²⁵ The massacre at Constantinople was central to the indictment which that unholy alliance, Julian and Athanasius, made against Constantius II – no one should look for cool objectivity in the patriarch and the apostate, especially when it comes to their least favourite emperor.²⁶ The war between Constantine II and Constans has left only a trace in our sources, and we can do little more than state that they fought and Constans won.²⁷ In each case, when the layers of polemic are peeled back, one finds that there is hardly anything left to analyse at all: the story was the way that men shaped it, more than what had happened. Yet all three were aspects of one crisis, a crisis of dynasty which had its origins in the murky politics of Constantine's last years. The issue, like any fundamental political question, was deceptively simple. Constantine's regime had nourished the idea that the Roman Empire was the perpetual inheritance of the Flavian family.²⁸ That meant, obviously,

²³ Eusebius, VC 4.63.3-64.2.

²⁴ Eusebius, VC 4.68. On the work's complex genesis and nature, see Barnes, 1989b.

²⁵ Fowden, 1994, 151-3.

²⁶ Athanasius, HA 69.1; Julian, EA 3.270c-d.

²⁷ Zonaras 13.5.7-14 is the fullest account.

²⁸ e.g. Pan. Lat. 6.2.4, 5, 4.2, 7.2.2, 7.2, 12.26.5.

that it would pass to the next generation of men called Flavius, and that must have seemed like an answer to the question of the succession, something which had always hung heavily over the empire.²⁹ It was not, for it raised a further question to which there was no simple answer: what was that family?

In the panegyric of Nazarius or the poems of Optatian the answer seemed clear enough.³⁰ Constantine, that Romulean star, sat at the dynasty's heart, the link between its glorious past, Claudius and Constantius, and its hopeful future, his sons. Yet, there was an inherent instability in this circumscribed family, for Constantine and his sons were not the only Flavians of imperial ancestry. Constantius had had six children by his second wife Theodora, the daughter of Maximian: three boys and three girls.³¹ If Constantine had a hereditary right to rule, surely they did as well? In fact, given that their mother an emperor's daughter, while Constantine's was, whatever her precise origin, certainly not so lofty, did they not have a superior claim?³² Such doubts evidently nagged at Constantine, and in the panegyrics and poems which celebrate his rule, his half-siblings are buried in silence: 'the empire which belonged to them was preserved surely and without reproach for Constantine and his sons **alone**'.³³ For much of his reign, the brothers were pushed to the margins, not exactly un-persons, but kept far from the centres of power, initially at Toulouse, a cultured city which was safely distant from armies and administration, where they resided 'in a sort of exile'.³⁴ Iulius Constantius later lived at Corinth, in refuge from his 'wicked stepmother' (Helena); he may also have spent time in Etruria, for his first son Gallus was born there.³⁵ His brother, Flavius Dalmatius, seems to have stayed in Gaul, where his sons – the 'fatal names of kings' – were educated at Narbonne.³⁶ Their sisters had a greater, if rather less happy, role to play in Constantine's schemes.

²⁹ cf. Lactantius, *DI* 1.1.14.

³⁰ *Pan. Lat.* 4.2.5, 3.5, 5.5-7, 14.1-6, esp. 36.1-2. Optatian, *Carm.* 5.27-35, 8.27-33, 9.24-7, 31-4, 10 (*versus intextus*) 10.29.

³¹ Barnes, 1982, 37.

³² Barnes, 2011, 30-38, with reference to those unfortunate enough to oppose him. Woods, 2015, 927-8 is based on an idea of whom Constantius *should* have married.

³³ Eusebius, *HE* 10.9.9.

³⁴ Ausonius, *Professores* 16.10-11. *pace e.g.* Burgess, 2008, 8 both brothers were clearly there.

³⁵ Libanius, *Or.* 14.29-30; *AM* 14.11.27.

³⁶ Ausonius, *Professores* 17.9-10. Another brother (*PLRE* 'Hannibalianus 1') is a cipher; he may have died young.

Constantia married Licinius in 313 – the seal of the alliance between the two emperors.³⁷ Anastasia married a man called Bassianus, whom Constantine had at one stage proposed to make Caesar.³⁸ Like most of Constantine's male in-laws, both husbands met unfortunate ends, and it was not clear what role their widows were to play in Constantine's empire – Licinius' son, Constantine's nephew, was also executed at some stage after his father's defeat.³⁹ Throughout the 310s and 320s, a parallel Flavian family dwelt in the twilight – a dangerous thing in a dynastic state, especially when (after the death of Crispus) Constantine's sons were children.⁴⁰

Yet, in the 330s, Constantine began to find a place in his regime for his relatives. The details of their return to favour are obscure, but we can mark its significant points. His half-brothers were consuls in 333 and 335.⁴¹ They had been rehabilitated at some stage before that, though precisely when is not clear – the death of Helena in the later 320s was perhaps a turning point.⁴² His sister Eutropia had probably married Virius Nepotianus, who was consul in 336: another index of the rise of the siblings.⁴³ By the late 330s, they appear to have been resident in Constantinople and Zosimus has a garbled passage about how Constantine's half-brothers and nephews wore purple robes adorned with gold and were appointed *nobilissimi* (the traditional title of Caesars).⁴⁴ Some of them had certainly received high honours: Iulius Constantius was a *patricius*, the title and his relationship to Constantine broadcast throughout the empire in the dating clauses prefixed to every official document.⁴⁵ At Constantinople, there were baths named after Anastasia and in Palestine a city named for Constantia.⁴⁶ Those who had associated with them when they were in exile were summoned to Constantinople and richly rewarded.⁴⁷ There was more than mere favour on offer, though – there was the prospect of power. At some point in the 330s, Constantine made his nephew Dalmatius *censor*, an

³⁷ Lactantius, *DMP* 43.2, 45.1.

³⁸ *OCI* 14.

³⁹ Eutropius 10.6.3; Jerome *Chron.* 231d.

⁴⁰ On their dates of birth see Barnes, 1982, 44-5.

⁴¹ *CLRE*, 200-201, 204-5.

⁴² Barnes, 1981, 251, suggests 326 for the return to favour, as does (for different reasons) Wiemer, 1994, 516-518. There is no explicit evidence of when Helena died: Barnes, 1982, 9 suggests before 328; *PLRE* 'Helena 3', opts for c. 330; Burgess, 1999b, 204, for 329.

⁴³ *PLRE* 'Eutropia 2'; *CLRE* 206-207.

⁴⁴ Julian, *ET* 259b; Zosimus 2.39.2.

⁴⁵ *CLRE*, 204-5 (such formulae were official: *CLRE*, 26).

⁴⁶ *Notitia urbis Constantinopolitanae* 10; Eusebius, *VC* 4.38.

⁴⁷ e.g. Ausonius, *Professores* 16.14-16.

antique title and exactly the kind of appropriated dignity which Constantine liked to hand out.⁴⁸ Dalmatius resided at Antioch, where he tried Athanasius, and he may have suppressed the revolt of Calocaerus, a surprisingly ambitious overseer of camels on Cyprus.⁴⁹ These were not trivial responsibilities, and it is tempting to see his position as a sort of imperial apprenticeship: on the 18th of September 335, the tenth anniversary of the defeat of Licinius, he was made a Caesar.⁵⁰ His brother Hannibalianus soon received royal titles. A series of marriages bound the various descendants of Constantius I to each other: Hannibalianus wed Constantina and Constantius II married a daughter of Iulius Constantius.⁵¹ By the time Constantine celebrated his final Easter, the empire might almost be thought to have too many monarchs: one Augustus, four Caesars, a King of Kings, and two powerful imperial half-brothers, the entire Flavian clan promiscuously connected by blood and by marriage. The definition of dynasty was being altered.

A plan has been detected in all this: Constantine sitting at the centre, expertly manipulating his relatives in pursuit of a grand vision for the empire's future. He wished, it is argued, to revive the Tetrarchy, but as a purely Flavian affair: Constantine II and Constantius II as Augusti, with Constans and Dalmatius as Caesars – or perhaps with Constantine II as sole Augustus, a college of Caesars beneath him.⁵² The half-brothers would have served as a sort of grey-haired brains-trust, able to provide sage counsel to the next generation. Each of the Caesars was given their share of the empire before Constantine died: Constantine II Gaul, Constantius the East, Constans Illyricum and Italy, and Dalmatius the rest of the Balkans.⁵³ This division is the main proof that Constantine had planned his succession, but crucial evidence is also found in the relative heights of the Caesars on coins of the

⁴⁸ It is universally assumed that the Dalmatius *ensor* who occurs in the sources was his father, the consul of 333 (*PLRE* 'Dalmatius 6'; *CLRE* 333; Barnes, 1981, 251, 1982, 105; Burgess, 1999b, 216; (foundationally) Enßlin, 1929), but the only admissible explicit evidence for his identity is Socrates 1.27.20 who says the censor was Constantine's nephew (the *Chronicon Paschale* s.a. 335, confuses father and son *passim*; Athanasius, *AA* 65.1-2, leaves it unstated). Crucially, the papyri for 333 (*CLRE*, 201; add *P. Kellis* 1.38 a-b), do not say Dalmatius *senior* was *censor*, where those of 334 and 335 do list the patriciates of Iulius Constantius and Flavius Optatus (*pace* Barnes, 1978, 61-2, it is unlikely the title was granted after the consulship).

⁴⁹ Athanasius, *AA* 65.1-2; Theophanes *a.m.* 5825 (with *AV* 41.11-12).

⁵⁰ *CC* s.a. 324, 335.

⁵¹ Eusebius, *VC* 4.49; Julian, *EA* 4.272d; Athanasius, *HA* 69.1.

⁵² Chantraine, 1992, esp. 19-20; Burgess, 2008, 7-10; Barnes, 2011, 163-168; Frakes, 2012, 95-6. Cara, 1993a-b, argues for Constantine II as sole Augustus, but the conclusion has not found much support. Chantraine, 13 outlines earlier schemes, simply asserting that it was impossible for all four to be Augusti.

⁵³ As *OCI* 35 might suggest; Barnes, 2011, esp. 165 leans heavily on this passage, as does Chantraine, 1992, 5, 9, 17.

era.⁵⁴ Enormous effort has been devoted to squaring this vision with the confusing extant evidence for the praetorian prefecture in the 330s.⁵⁵ Obviously, given that he was planning this new imperial college, it is legitimate to suppose that Dalmatius and Constantine II married other members of the Flavian family, even though no evidence which identifies their wives exists, or indeed says that Dalmatius ever married.⁵⁶ All that was needed to put the plan into effect was for Constantine to promote his two older sons to the status of Augustus, and it was a cruel accident that his campaigns against the Goths north of the Danube kept him from doing this, for constitutional precedent required it if the sons were to be legitimate Augusti.⁵⁷ This admirably clear scheme was a masterly attempt to solve at a stroke both the problems of a dynastic state and those of the only recent alternative, the Tetrarchy.⁵⁸ By including the son of his half-brothers, Constantine removed any reason for them to attempt usurpation, and by creating an imperial college out of blood relations he showed that he understood the fatal flaw of Diocletian's earlier attempts to bring harmony to the Roman world.⁵⁹ One cannot but wonder at the clarity, simplicity, and forethought of Constantine's plan, one which demonstrated all the virtues which orators were accustomed to praise in emperors. Not only was there a plan, but there were already plans about the plan, for not everyone was pleased with this attempt to solve the problems of the succession. Constantine's sons refused to mint coins in the name of Dalmatius, a sign that they had not accepted his place in the government of empire and that they had agreed not to accept it.⁶⁰ A single problem with this elegant historical construct remains: there is no evidence that it ever existed.

The idea starts from a mistake which is almost elegant in its simplicity: it assumes that the situation which happened to supervene in 337 was intended to be a final settlement for the Flavian empire. It is true that at the end of Constantine's reign the four Caesars seem to have had geographical areas of responsibility, but there was no indication anywhere that these were

⁵⁴ Chantraine, 1992, 15-16; Leedom, 1978, 133.

⁵⁵ The bibliography is vast: as a starting point, Barnes, 2011, 158-163.

⁵⁶ Barnes, 2011, 165, 171-2.

⁵⁷ Barnes, 2011, 165-6; Burgess, 2008, 8-9.

⁵⁸ Chantraine, 1992, 17-18.

⁵⁹ Burgess, 2008, 8-9.

⁶⁰ Burgess, 2008, 21-2.

permanent.⁶¹ In 337, Constantine II was in Gaul, but in 333 he had been dispatched to attack the Goths in Sarmatian territory, winning a famous victory.⁶² As Constantine lay dying, Constantius II was stationed in the east, waiting to invade Persia, but earlier he had kept the watch on the Rhine frontier.⁶³ Dalmatius was prowling the *ripa Gothica* as the Augustus went to Nicomedia, but in the early 330s he had resided at Antioch, superintendent of the east.⁶⁴ Nor is there much evidence of any especial bond between the Caesars and their ‘zones’. It has escaped notice that most of the statues erected to the Caesars before 337 were put up in regions outside their ‘control’: Constans had ones in Phrygia, Epirus Nova, Dalmatia, and Tarraconensis, but only one (at Rome) in the area he ‘ruled’ in 337.⁶⁵ The one appointment we are certain Dalmatius made was not in his Balkan *Teilreich*, but in Spain.⁶⁶ It looks very much as though Constantine sent the Caesars all over the empire, to places in which he thought they might be of use. Who was to say that there might not be more Caesars? There were plenty more Flavians who might be put to work and, in an era when the ruling family’s connection to Claudius Gothicus was so advertised, one cannot but wonder if Iulius Constantius’ decision to name his sons Flavius **Claudius** Constantius and Iulianus implies some imperial ambition for them.⁶⁷ They were young in 337 (twelve and five), but Constans was probably only ten when he was made a Caesar, Constantius seven.⁶⁸ Given how rapidly the situation had changed from 333 to 337, it is rash to suppose that the circumstances which happened to obtain when Constantine died were the ones he had always intended to be final.

Equally, the numismatic evidence, on which the case for a succession plan has leant heavily, does reveal that Constantine II and Constantius II appear much more frequently on gold and silver coins than Dalmatius or Constans.⁶⁹ This might be proof that Constantine was preparing the army and civil service to accept them as senior emperors, but it might equally reflect the fact that they had been Caesars for far longer than their junior colleagues and celebrated significant anniversaries in the

⁶¹ *OCI* 35.

⁶² *OCI* 31; Julian, *Or.* 1.9d; *CC s.a.* 333. *contra* Barnes, 1982, 85, n. 162.

⁶³ Julian, *Or.* 1.11d-12a. *contra* Barnes, 1982, 85, n. 162.

⁶⁴ *OCI* 35.

⁶⁵ *LSA* 652, 1086, 1145, 2690; 1086.

⁶⁶ *PLRE* ‘Exsuperius 1’.

⁶⁷ *PLRE* ‘Constantius 4’, ‘Iulianus 29’.

⁶⁸ Barnes, 1981, 45 (with Gneecchi, 1912, i, Tav. 10, no. 2).

⁶⁹ Burgess, 2008, 43-5.

330s.⁷⁰ The same problem bedevils attempts to detect hostility to Dalmatius in the coinage (leaving aside the fact that the same mints are meant to simultaneously reflect the differing intentions of Constantine and his sons): it is true that he does not feature on coins of Rome, Antioch, and Trier in a series issued both before and after his appointment.⁷¹ Since, however, Constans was not featured on coins minted at Rome in this same series and Constantius did not appear on those from Antioch, the logic which detects hostility to Dalmatius would require us to see the Roman and Antiochene mints as also revealing opposition to the emperors who controlled them. The dynastic marriages of the 330s do suggest that Constantine was happy for the two branches of his family to be more closely linked to each other, but because some Flavians married their relatives does not mean that they all did: the emperor was equally prepared to betroth Constans to the daughter of his prefect Ablabius and to see his brother Iulius Constantius marry the daughter of Iulius Iulianus.⁷² Finally, if Constantine really had been planning to promote some of the Caesars, was not his tricennalia the ideal occasion on which to do it? The two putative Augusti, Constantine II and Constantius, were both of an age in 336 (twenty and nineteen) and had both recently married.⁷³ That Constantine failed to make any Augusti before his death strongly suggests he had not worked out exactly what was to happen when he died.

The idea of Constantine's Grand Plan is an attempt to fit the messy data we have for the 330s into a neat conceptual framework – the strain shows. In truth, it looks very much as though no one – least of all Constantine – quite knew what was to happen when he died.⁷⁴ That explains his shuttling of the Caesars round the empire and the staggered rise to prominence of his half-brothers and their children. When Eusebius of Caesarea was called on to celebrate the emperor's thirtieth year on the throne, he tried to fit all four Caesars into his speech. He started by dwelling on how Constantine had promoted one of his sons at each ten year anniversary of his rule, before awkwardly mentioning that he had also recently promoted one of his other relatives.⁷⁵ He then descended into metaphor: the Caesars were like lamps, set down by the emperor to illuminate mankind, or they were like four colts,

⁷⁰ Burgess, 2008, 9, n. 21. Constantine II had been a Caesar for 15 years by 332, Constantius for 10 by 334. *cf.* Woods, 2011, for a technical critique.

⁷¹ Burgess, 2008, 21-2.

⁷² Athanasius, *HA* 69.1; *AM* 20.11.3.

⁷³ Eusebius, *VC* 4.49.

⁷⁴ *Cf.* Pietri, 1989, 120.

⁷⁵ Eusebius, *LC* 3.1-2.

yoked to the imperial chariot, which Constantine drove ‘governing them with the reins of harmony and concord’.⁷⁶ He implies something like equality between the Caesars, and if he saw any one of them as elevated above the others it was Constantius II, ‘an offspring worthy of himself [*i.e.* Constantine]’.⁷⁷ If there was some plan for a new Tetrarchy, then either nobody had briefed the bishop of Caesarea or he was being positively subversive:

Monarchy is superior to every <sort of> constitution and administration; for in comparison a government shared by many as equals is in fact lawlessness and civil strife.⁷⁸

That impression of incompleteness is strengthened by the febrile atmosphere we can just detect at court at the end of Constantine’s life: Athanasius, the friend of Ablabius, was exiled to Trier, accused of preventing the shipment of grain from Alexandria to Constantinople, precisely the charge which the prefect himself brought against the philosopher Sopater, procuring his execution.⁷⁹ Eusebius muttered darkly about the corruption and wickedness of some of those serving Constantine at the end of his life, men who exploited the emperor’s forbearance – the emperor, back ramrod straight, face set hard, voice low, used to lecture them on the judgement which awaited their deeds.⁸⁰ The jockeying for position which must underlie these stories, and the religious edge which the feuds seem to have had, do not reveal a world where everyone knew what was going to happen next.

When Constantine set out from his city in 337, he had not yet established in any detail what was to happen when he died: he had not precisely defined the Flavian family in the light of whose perpetual rule the empire was to bask. He may not have seen how much of a problem that would come to be. Despite what Eusebius claims about intimations of the emperor’s mortality, he must have expected to live for some time, for the conquest of Persia was not the work of an afternoon. Insofar as he had any inkling of what the succession might look like, it clearly revolved around his plans for the East. Constantine was about to invade the Sasanian empire and install Hannibalianus on the throne. He was going to do this in the company of Constantius II, that Caesar whom Eusebius had hinted might just be superior to the others. Both Constantius and Hannibalianus had recently married other

⁷⁶ *ibid.*, 3.4.

⁷⁷ *ibid.*

⁷⁸ Eusebius, *LC* 3.6: μοναρχία δὲ τῆς πάντων ὑπέρκειται συστάσεώς τε καὶ διοικήσεως· ἀναρχία γὰρ μᾶλλον καὶ στάσις ἢ ἐξ ἰσοτιμίας ἀντιπαρεξαγομένη πολυαρχία.

⁷⁹ Athanasius, *AA* 9.3-4; Eunapius, *VS* 6.13-18.

⁸⁰ Eusebius, *VC* 4.54.2; 4.29.2-5, 4.30-31.

Flavians, and in 337 any grand scheme was wrapped up in a vision of an eastern empire, ruled by cousins married to each other's sisters: the Persian war was central to the future of the Flavian dynasty, and so whatever inchoate idea Constantine had developed for the succession depended on its prosecution. Any chance of that died with the emperor: he left only a surfeit of successors, his answer to the question 'who is Flavian?' being, apparently, 'all of them'.⁸¹

Massacre

Immediately after Constantine's death, the situation must have been chaotic. In the vivid words of a (lamentably unpublished) inscription from Perge: 'the reins of the state whipped <in the wind>; as a sudden confusion disturbed men's minds'.⁸² Rumour and expectation were powerful forces in such times and in Sardinia we find the governor erecting milestones in the name of Dalmatius as both Augustus and Caesar, a belt and braces approach to imperial titulature.⁸³ It would have been difficult enough simply to get out the news that the emperor had died to those who needed it, for none of the Caesars was nearby: Constantius was at Antioch, Dalmatius somewhere in the Balkans, Constans in Italy, or perhaps Illyricum, Constantine II in Trier.⁸⁴ Hannibalianus in Caesarea was the closest, but the roads in Asia Minor were probably clogged with troops and supplies headed to the east, and it must have been more difficult than sometimes assumed for messages to have been sent.⁸⁵ We have no real idea when it became clear that Constantine was going to die – he had been ill for some time, but that had not prevented him from setting out on campaign and it may only have been very close to the end that anyone realised that the couriers had to set off. Nor do we know to whom they might have been dispatched.⁸⁶ Even when couriers arrived bringing the grim news, it was

⁸¹ cf. Harries, 2012, 187-188.

⁸² The inscription (an *Oratio ad senatum* of Constantius II, from c. 353) has been known for some time (e.g. Foss, 1996, 18), but is apparently almost illegible (personal information). For this fragment, see Feissel, 2016, 1224-5.

⁸³ *CIL* 10.8015: *PLRE* 'Octavianus 3' silently corrects the inscription.

⁸⁴ Athanasius, *AA* 87.4-7 (Constantine II); *OCI* 35 (Constans and Dalmatius – tentatively); Barnes, 1982, 87, suggests that Dalmatius was in Naissus.

⁸⁵ e.g. Burgess, 2008, 35-40, 49-51.

⁸⁶ *contra* Burgess, 2008, 35-8. Eusebius, *VC* 4.68; Julian, *Or.* 1.16d, 2.94b spin different stories for different reasons.

not clear what anybody was to do next: there was no plan for the succession, and without a living Augustus there was nobody who could promote any of the Caesars, unless the army was to do it.⁸⁷ That had its own risks, for there were plenty of regiments scattered over the empire and a healthy supply of Flavians: there was a real prospect of a return to the anarchy which had engulfed the second Tetrarchy, troops proclaiming emperors at will. In this interval of indecision, nobody seems to have made any sudden moves: Constantine continued to reign as Augustus, and his sons and nephew continued to refer to themselves as Caesars.⁸⁸ Constantius II was the first to arrive at the scene of the action: he was present soon after the body of Constantine was brought into Constantinople (still more of a building site than a metropolis).⁸⁹ The whole region was thick with troops: one of the things that comes over most clearly in Eusebius' account of the last days and funeral of Constantine is the intense involvement of the army.⁹⁰ Soldiers from the Balkans, who could simply march into Constantinople, probably predominated. The corpse, stripped of white baptismal clothes and clad in regal purple, lay in a golden coffin, while generals, soldiers, *comites*, administrators, and the common people filed past.⁹¹ No source attests their presence, but it seems likely that the half-brothers of Constantine, along with Dalmatius, the other Caesar in the near-vicinity, were present at this stage. Ablabius, the prefect who seems to have been in attendance on Constantine in his last years, was probably in the city as well (he had a good deal of property there).⁹² The atmosphere must have been tense, fraught with emotion and rife with suspicion. The city's population would have swelled with all the visitors, before the harvest and at the time of year when food was in short supply and prices were high. As the intrigues surrounding Athanasius and Sopater show, the government was extremely sensitive to any threats to the food supply for Constantinople, and it seems likely that it was difficult enough to provision the city in normal times, let alone when thousands had flooded in for the funeral.

⁸⁷ *cf. e.g.* Lactantius, *DMP* 24.8.

⁸⁸ Eusebius, *VC* 4.67.3; Athanasius, *AA* 87.4-7.

⁸⁹ Eusebius, *VC* 4.70.1 (with MacCormack, 1981, 117-121); Julian, *Or.* 1.41a.

⁹⁰ *e.g.* Eusebius, *VC* 4. 65.1-2, 66.1.

⁹¹ Eusebius, *VC* 4.66-67.

⁹² *PLRE* 'Ablabius 4'; Synesius, *Ep.* 61.

We know the outcome of all this: on the 9th of September 337, the three sons of Constantine were proclaimed Augusti.⁹³ What happened in the 110 days which separated that date from the death of Constantine is shrouded in mystery, polemic, and bitterness. In an influential article, R.W. Burgess has argued that the sequel was simple: in early June, Constantius II presided over the sudden slaughter of almost all his relatives, along with many of the servants of his father, including Ablabius, a massacre for which he subsequently claimed the army was responsible ('the troops insisted' being the fourth-century equivalent of 'I was only following orders'), though some (Julian and Athanasius in the lead) knew the truth and were prepared to speak it.⁹⁴ Burgess conjures a world where everybody acted with speed and decisiveness, a world where Constantius set out to disrupt his father's plans for the succession, where messengers strained every sinew to move as fast as possible, men knew exactly what they wanted to do and how to set about doing it. The end-product is extremely neat: a single, cataclysmic episode of internecine slaughter, for which one man was largely responsible, and from which the empire of the sons of Constantine emerged. Reality is likely to have been considerably messier. Burgess' reconstruction rests on two crucial pillars: that everyone was killed at the same time (early June), and that Constantius II was solely responsible. Neither is secure.

Julian provides the fullest list of victims, in his outraged *Letter to the Athenians*, the blame squarely-laid at the feet of Constantius:

And these were the things which that most humane emperor did to us, though we were very close relatives: without trial, he killed six cousins, mine and his own, my father, his own uncle, along with the other uncle we had in common on his father's side, and my oldest brother.⁹⁵

From Jerome and Zosimus, we can add to this Ablabius, a large number of nobles, and the *patricius* Optatus (cos. 334).⁹⁶ Were they all killed at the same time? Our sources give few concrete indications: Jerome puts the deaths of Ablabius and of Dalmatius Caesar in separate entries, but in the same year (338, for what it is worth). Julian does seem to envisage a single moment of bloodshed,

⁹³ *CC* s.a. 337.

⁹⁴ Burgess, 2008, esp. 42. 337 was established as the date by Olivetti, 1915a, with Baynes, 1925a, 67 (*cf.* Pietri, 1989, 122-4).

⁹⁵ Julian, *EA* 270c-d: Οὕτω δὲ πλησίον ἡμᾶς ὄντας συγγενεῖς ὁ φιλανθρωπότατος οὗτος βασιλεὺς ἃ εἰργάσατο, ἔξ μὲν ἀνεψιούς ἐμοῦ τε καὶ ἑαυτοῦ, πατέρα δὲ ἐμόν, ἑαυτοῦ δὲ θεῖον, καὶ προσέτι κοινὸν τὸν ἕτερον πρὸς πατρός θεῖον ἀδελφόν τε ἐμόν τὸν πρεσβύτατον ἀκρίτους κτείνας.

⁹⁶ Jerome, *Chron.* 234c; Zosimus 2.40.2-3.

but only mentions the family members, while Zosimus was not in the business of giving precise chronological indicators. In fact, there are good reasons to think that at least Ablabius was killed at some stage after the members of the Flavian family: the evidence is thin but suggestive. Eunapius, in his *Lives of the Sophists*, cannot resist recounting the career of Ablabius, even though he had related the story already in his (lost) historical work.⁹⁷ He loathed the prefect because he blamed him for the execution of Sopater, and his account is a magnificent hatchet job.⁹⁸ It closes with the story of the end of his life:

And when Constantius had received the empire, and had been allotted those things which had been apportioned to him (these were the lands which stretch from the Illyrians into the East), immediately he dismissed Ablabius from office, and he gathered about himself another faction.⁹⁹

Ablabius retired to Bithynia, where he spent time in dissolution on his estates.¹⁰⁰ Clearly, Eunapius envisaged this as taking place over a considerable period of time, not a few hectic days in June. In fact, given that he says Constantius had received his portion of the empire, one which included the area in which Dalmatius had presided in 337, the events must have taken place after the proclamation of the sons of Constantine as Augusti. Burgess would rule this a mistake, for Zosimus (who depends on Eunapius' historical work here) implies that Ablabius was killed at roughly the same time as everybody else.¹⁰¹ This is hardly acceptable source-criticism: one cannot use a drastic, clumsy, and considerably later abbreviation (Zosimus) to correct its source, on the grounds that the abbreviation is a more accurate account of the author's thought than his own words. Crucially, there is epigraphic evidence which suggests that Eunapius was right and that Ablabius lived on after September 337: two statues erected by the college of praetorian prefects at Tubernuc and Antioch, dedicated to Constantine II for his *vicennalia* in 336.¹⁰² These are rich, if occasionally perplexing, pieces of evidence, but the vital point in this context is that the dedication at Tubernuc has been modified to reflect the situation after the 9th of September 337, with Constantine II upgraded from Caesar to

⁹⁷ Eunapius, VS 6.26.

⁹⁸ *ibid.*, 6.19-31.

⁹⁹ *ibid.*, 6.27: διαδεξάμενος δὲ ὁ Κωνσταντίος τὴν βασιλείαν καὶ κληρωθεὶς ὅσα γε ἐκληρώθη, αὐτὰ δὲ ἦν τὰ ἐξ Ἰλλυριῶν εἰς τὴν ἑφ' ἡμέραν καθήκοντα, τὸν μὲν Ἀβλάβιον αὐτίκα παραλύει τῆς ἀρχῆς, ἄλλο δὲ περὶ αὐτὸν ἐταιρικὸν συνέστησε.

¹⁰⁰ *ibid.*, 6.28.

¹⁰¹ Burgess, 2008, 31.

¹⁰² Antioch: Feissel, 1985. Tubernuc: *IL Tun.* 814; Poinssot, Lantier, 1924. Barnes, 1992, 250 suggests a date in 335, because any later date would disrupt his reconstruction of the praetorian prefecture.

Augustus. Whenever this was done, the name of Valerius Felix was also removed (a victim of the events of 337?) – clearly he had fallen from power and been disgraced, and whoever modified the inscription was removing the names of those who were now un-persons. Significantly, that of Ablabius was not erased, and the only possible conclusion is that in Africa at a date after September 337, he was believed to still be alive and had not been disgraced.¹⁰³ He must, therefore, have been killed sometime after the others: evidently the events of 337 were more complex than a single paroxysm of violence.¹⁰⁴

The question of responsibility is equally murky. It is absolutely clear that initially a veil of silence was cast over events, and that as time went on the ‘official’ explanation blamed the soldiers; it is equally obvious that this was a distortion of the truth.¹⁰⁵ Burgess places great weight on the fact that when this official version lapsed in the 350s and 360s, both Athanasius and Julian accused Constantius of murdering his relatives.¹⁰⁶ The strength of Julian’s emotion is held to reflect honest belief, and we are told that ‘there is no serious reason to doubt [his] evidence’, since he was ‘the closest we have to an eye-witness’.¹⁰⁷ There are not a few problems with this. For one thing, Julian’s view of what had happened was flexible: sometimes he blamed Constantius, but sometimes he alluded to a sort of generalised chaos, or held all three brothers responsible.¹⁰⁸ For another, the patriarch and apostate shared (for very different reasons) a fanatical hatred of Constantius. To Athanasius, he was by the 350s ‘the image of the Antichrist’, a new Herod and Saul.¹⁰⁹ For Julian, his cousin’s responsibility for the massacre in 337 was central to his attempts to justify the civil war he had started.¹¹⁰ Of course they blamed him for the massacre: they needed him to be monstrous, his hands dripping with the blood of noble kinsmen, and they were no doubt right that he bore much of the responsibility. They had their reasons, then, to point the finger at Constantius, and at the time they were writing, a generation later, he alone survived of those who had been at the top of imperial

¹⁰³ *cf.* Dagron, Feissel, 1985, 425.

¹⁰⁴ *c.f.* Pietri, 1989, 122.

¹⁰⁵ Burgess, 2008, 10-15, 26-9.

¹⁰⁶ *ibid.*, 15-17.

¹⁰⁷ *ibid.*, 17, 28.

¹⁰⁸ Julian, *Or.* 7.228b, *Caesares* 336b (*cf.* Libanius, *Or.* 30.37).

¹⁰⁹ Athanasius, *HA* 74.1, 52.6, 37.1.

¹¹⁰ Below, 176-7.

politics when Constantine died. By then, he was the only person who could be blamed; that does not mean he was solely responsible.

Ablabius, ‘Fortune’s plaything ... even more powerful than the emperor’, is an obvious culprit.¹¹¹ He had a stake in the succession, for his daughter was betrothed to the emperor Constans, only fourteen at the time, and it was alleged that Constantine had in some sense entrusted Constantius to the care of his prefect.¹¹² His meteoric rise through the administration had brought him to such a pitch of power that he was ‘almost an emperor’: he had as much to lose as any member of the family.¹¹³ Because of his daughter’s marriage and his connection with Constantius II, it was in his interests for the sons of Constantine to succeed their father. He had, in other words, motive to do something in 337, and as the most powerful administrator on the scene, capable of manipulating the machinery of government, he had the means as well. Did he and Constantius cut some kind of deal? His survival of the massacre strongly suggests that they came to some arrangement, even if Constantius went back on his word later on. There is a tantalising hint of what might have happened in Eunapius’ account of Ablabius’ murder. After his dismissal, the prefect was on his estates in Bithynia, ones he had prepared long ago and which had ‘imperial retreats and relaxations’: ‘all men were amazed that he did not wish to be emperor.’¹¹⁴ Constantius dispatched swordsmen to visit the prefect, and what happened next is intriguing:

They prostrated themselves before him, just as the Romans customarily prostrate themselves before the emperor, and they handed over letters; he received these very haughtily and released from all fear, was demanding the purple robe from those who had come: already he was quite overbearing, and it was a fearful spectacle for those watching.¹¹⁵

The swordsmen demurred, explaining that they had only brought the letters, and the robe was following behind, conveyed by men standing at the door. He summoned them in, but found only a flood of assassins, who brought not a purple robe, but (our author cannot resist a nod to Homer) ‘purple death’. Eunapius gloats that they massacred him like a butcher, slaughtering some animal for

¹¹¹ Eunapius, VS 6.25.

¹¹² The sense of Eunapius, VS 6.26. *pace* Penella, 1990, 130, n.31, Eunapius’ generally uses καταλείπω to mean ‘bequeath’ (e.g. 9.4).

¹¹³ Eunapius, VS 6.24.

¹¹⁴ *ibid.*, 6.28.

¹¹⁵ *ibid.*, 6.29: καὶ προσεκύνησάν γε αὐτόν, ὥσπερ νομίζουσιν Ῥωμαῖοι βασιλέα προσκυνεῖν, οἱ τὰ γράμματα ἐγχειρίζοντες· καὶ ὃς μάλα σοβαρῶς δεξάμενος τὰ γράμματα καὶ παντὸς ἀπολυθεὶς φόβου, τὴν τε ἀλουργίδα τοὺς ἐλθόντας ἀπῆτει, βαρύτερος ἤδη γινόμενος, καὶ φοβερὸν ἦν τοῖς ὀρωμένοις.

a feast.¹¹⁶ Buried in this obviously polemical account appears to be a precious piece of information: Ablabius expected to become emperor, and he expected Constantius to make him one, perhaps a *quid pro quo* for supporting, even orchestrating, the massacre at Constantinople. He is, after all, a more plausible Machiavel than the nineteen-year-old Caesar – as Sopater had discovered, he did not lack ruthlessness. Seen from the perspective of the later-fourth century, the idea that he might have been an emperor appeared faintly ridiculous: Eunapius is careful to emphasise the prefect's presumption. In 337, amidst the turmoil which followed Constantine's death, the idea that the father-in-law of one emperor, the prefect of Constantine, and the second man in the state might become an Augustus was rather less absurd.

There is another plausible candidate, if we are seeking those responsible for the massacre. The consuls of 338, Flavius Ursus and Flavius Polemius, are ciphers to us, with no known history of service under Constantine.¹¹⁷ Yet, the first two consuls of the new regime ought to be significant: one would expect key figures in the transition to be rewarded with high honours. There is a tantalising possibility with Ursus. The Byzantine encyclopaedia, the *Suda*, contains an entry on one Apsyrtus, from Prusa or Nicomedia, who fought under Constantine in Scythia, presumably in the 330s, when the emperor fought several wars against the Goths and Sarmatians.¹¹⁸ Apsyrtus was a veterinarian, who specialised in the treatment of horses and wrote about it; extracts of his work are preserved in the *Hippiatrica*.¹¹⁹ His treatise was framed as a series of letters and one of these was directed to an Ursus, a general (στρατηλάτης) who had (he alleged) enquired about some kind of horse injury.¹²⁰ An important general (the word would later come to mean *magister militum*), whom Apsyrtus, a man who had served on the Danube, knew reasonably well: it is tempting indeed to conclude that Ursus was a commander in the Balkans, one who had fought against the Goths.¹²¹ In 337, it was Dalmatius who held the *ripa Gothica*: Ursus would then have been one of his senior generals. A consulship

¹¹⁶ *ibid.*, 6.30-32; cf. *Iliad* 5.308.

¹¹⁷ *CLRE* 210-11; *PLRE* 'Polemius 4', 'Ursus 4'.

¹¹⁸ *Suda* A.4739; *OCI* 31-2.

¹¹⁹ McCabe, 2007, 122-155 on Apsyrtus. She opts for an earlier campaign (125), but service *in* Scythia implies over the Danube, which better suits the 330s. Björck, 1944 attempts to re-date Apsyrtus is interesting, but relies on nesting hypothecations and is not ultimately convincing (McCabe, 2007, 125-6, is perhaps too cautious in opposition).

¹²⁰ *Hippiatrica Cantabrigiensia* 80.1; cf. *Praxis de stratelatis* I-II, *passim*.

¹²¹ cf. Barnes, 1974, 226.

would have been a fitting reward for betraying the Caesar.¹²² There are other figures we might wonder about: Eusebius of Nicomedia for instance, soon to be promoted to the see of Constantinople, and present for Constantine's last moments; a relative also of Basilina, the mother of Julian and wife of Iulius Constantius.¹²³ He was accused by hostile bishops in 338 of 'thinking that piety lies in wealth and the greatness of cities', in what is certainly a dig at his frequent changes of bishopric, and may conceal an accusation that he was thought too involved in secular politics.¹²⁴ There were other victims too: Flavius Felicianus the consul of 337 may have been disgraced, his name was scratched out on an inscription.¹²⁵ Murkily, we can make out a massacre in 337 which was a work of many hands.¹²⁶

All this is conjectural – given the evidence, it could hardly be anything else – but a plausible reconstruction can be attempted. When Constantine died, there was no plan for the succession. Every sinew had been strained towards a Persian war which was now not going to take place. Those members of the Flavian family nearby converged on Constantinople for the funeral: they found a city stuffed with troops, whose mood was no doubt nervous and who were quite possibly hungry. Disagreement about who was to succeed, and as what, was natural in the absence of anything which could be claimed as the great man's will. A quarter-century later, Gregory of Nazianzus spoke of how the army 'made a revolution out of fear of revolution', and though he was seeking to exculpate Constantius, his formulation catches something of the tension of the moment.¹²⁷ Ablabius must have been at the centre of events; as Praetorian Prefect, he controlled the machinery which fed and paid the armies and administration.¹²⁸ He had a direct interest in manipulating the succession to guarantee the safety and status of his daughter, and she was betrothed to one of Constantine's sons. It was an obvious course of action, then, for him to ally with Constantius, the only one of them on the scene:

¹²² *cf. idem*, 1975, 49, n. 105.

¹²³ Socrates 2.7, with Barnes, 1993, 211-2; AM 22.9.4.

¹²⁴ Athanasius, AA 6.7 (with Barnes, 1993, 36-9, esp. n. 14. Di Maio, Arnold, 1992, (*e.g.* 169) make him the massacre's chief mover and imagine ecclesiastical politics already neatly split into 'Orthodox' and 'Arian' factions (178): Athanasius would be delighted.

¹²⁵ *CLRE*, 208-9. Felicianus' name has been removed from *ILS* 6112 (Paestum, 30th of April 337 – Salway, 2008, 308, n. 175 adds *AE* 1988, 491, but inspection of a photograph shows that this is physical damage to the whole of the top line).

¹²⁶ *cf. Leedom*, 1978, 133-6.

¹²⁷ GN 4.21; Elm, 2012, 342-3.

¹²⁸ Jones, 1964, 448-462.

his price was elevation to the purple. Between them, they obtained the support of Flavius Ursus. As a prominent general in the army in the Balkans, which predominated in the city, he was a powerful, indeed indispensable, supporter, and a consulship was a fitting reward for his efforts. Opposed to them were the half-brothers and their children, a formidable coalition, but Constantius and Ablabius had the advantage of a natural rallying cry. Eusebius, writing a little after all this, emphasised that the troops had insisted they would be ruled by only the sons of Constantine – a definitive answer to the question of dynasty.¹²⁹ The people of the city of Rome wisely concurred in this verdict and the bishop of Caesarea (prone to overemphasis under stress) mentions that ‘they proclaimed his sons alone and no others as emperors and Augusti’.¹³⁰ The killing of the family members took place quickly, over by high summer.¹³¹ Precisely what spark set the conflagration going is unknown and perhaps unknowable. Again though, it is chaos which emerges as the dominant factor in the events of 337: the haphazard way in which Julian and his brother Gallus were not killed (with the vague hope that the former was too young to matter and the latter too sickly) suggests that Ablabius and Constantius had no detailed plan for what they were doing.¹³² Like everybody else, they were making things up as they went along. Violence was perhaps inevitable in a dynastic state that had no plan for the succession and a swelling imperial family.

An Imperial Occasion

Constantius set out to meet his brothers in the aftermath of this coup. He was in Viminacium at the end of July, where he met Athanasius on his way to Alexandria.¹³³ He may have launched a short campaign against the Sarmatians, who had probably exploited the confusion of the period to raid the empire.¹³⁴ The emperor then proceeded to Pannonia, where the three ‘beloved and genuine’

¹²⁹ Eusebius, VC 4.68.2.

¹³⁰ Eusebius, VC 4.69.2.

¹³¹ Burgess, 2008, 35–40, makes a compelling case that Constantius II was only in Constantinople in June and July of 337 (the objections of Woods, 2011, 192–3 are weak).

¹³² Libanius, *Or.* 18.10.

¹³³ Burgess, 2008, 38.

¹³⁴ Barnes, 1983.

sons (as Eusebius called them) met.¹³⁵ Given the way that Constantine had been typed as Augustus, a triumviral feel to events after his death was not out of place.¹³⁶ The proscriptions, so to speak, had already occurred: everything else was up for grabs. The massacre had drastically simplified the dynastic question. There were only now three male Flavians in their teens or twenties, all of them Caesars.¹³⁷ It had also settled the question of who was to hold power in the east: Constantius II's position, allied to the praetorian prefect and in control of an army massed to fight Persia, was unassailable. In the west, where the scene of action sprawled across numerous provinces and the dissemination of news was slower, there had been no similar resolution of the uncertainties which attended the succession. Constantine II may have regarded himself as occupying a sort of preeminent position. His swift and unilateral decision to restore Athanasius to his see in 337 reeks of a sense of superiority over his brothers.¹³⁸ He did not communicate with his brother Constantius II, into whose zone of control (*de facto* or *de jure*) Alexandria fell, and politely ask him to restore the bishop. He instructed the people of the Catholic Church of Alexandria to receive their bishop. His partisan summary of the reasons for Athanasius' exile – a tale of conspiracy and persecution – was an intervention in the fraught politics of the eastern Church. He claimed that he was merely heir to his father's fixed intention, obliged to carry it out, which rather presupposed a special connection to Constantine. His brother may have had a rather different view of his restoration of that turbulent priest. There were other tensions: Constantius' actions in orchestrating or conniving in the massacre of so many of their family cannot have endeared him to his brothers, even if they were the beneficiaries of this ruthless pruning of the family tree. Ablabius, ally of one emperor, father-in-law to another, gripping tight a promise of imperial power from Constantius, must also have been at the centre of discussions.

The brothers took their time: almost an entire month. We have no real idea of the details which detained them, but it is clear that the main topic of discussion was how to divide the empire –

¹³⁵ Eusebius, VC 4.71.2; only Julian provides the region (*Or.* 1.19a). Burgess, 2008, 38 suggests they met at Sirmium; an attractive, though unsupported, idea.

¹³⁶ e.g. Grünwald, 1990, 71-3, 75-7; AV 1.1 vs 41.10.

¹³⁷ Barnes, 1982, 44-5; Gallus was only twelve (AM 14.11.27).

¹³⁸ Athanasius, AA 87.4-7.

in the absence of any plan for the succession it is not hard to imagine that the technicalities of doing this presented mind-boggling difficulties.¹³⁹ In particular, there was the question of how to partition the Balkans, the region in which Dalmatius had been stationed, and of who was to be consul in 338.¹⁴⁰ It seems likely also that the brothers also agreed to a general amnesty for bishops exiled in the theological controversies of the 320s and 330s, an event into which Athanasius was naturally keen to intrude his own earlier return.¹⁴¹ In the last chapters of Eusebius' *Vita Constantini* we have something approaching a contemporary account of what was decided, albeit one which presents the outcome of the negotiations as Constantine's foreordained plan. It is clear from what the bishop says that there was a formal tripartite division of the empire: Constantine II receiving the area his grandfather had ruled (Britain, Gaul, Spain), Constantius the east, and Constans 'the bit in between'.¹⁴² Each had their own army, and civilian administration.¹⁴³ The bishop implies equality of power and prestige between the brothers: no formal authority for Constantine II.¹⁴⁴ Discussing the same events in the 350s, Julian was at pains to emphasise the 'perfect concord' of the brothers: evidently the rows between them were furious. His language (he talks of συνθήκαι or treaties) also suggests some kind of written set of terms.¹⁴⁵ The Caesar went on to stress how the magnanimity of Constantius, his willingness to take less than his fair share of the inheritance, and his prudence were the guarantees of concord between the brothers.¹⁴⁶ Adjusting for the hyperbolic positivity of the panegyrist, it sounds very much as though Constantius was forced to make concessions. He may have hoped to swallow the region under the control of Dalmatius whole, to take over the diocese of Moesia, as well as that of Thrace. Whatever Constantius had promised Ablabius, or been forced to

¹³⁹ Julian, *Or.* 1.19a-20a, 2.94b-c.

¹⁴⁰ Barnes, 1975, 49 suggested that the failure of Lollianus Mavortius to obtain the consulship in 338 was connected to the succession crisis: an intriguing idea. Unfortunately it hinges on a precise date for the *Mathesis* of Firmicus Maternus in 337 (Mommsen, 1894), which, since I.10.14 refers only to Constantine's sons as Caesars is unlikely – *prima facie* the date should be before Dalmatius was made Caesar in 335. *CLRE*, 14 detected serious tensions in the choice of consul for 338 and 339, because Constantine II was neither time appointed, though since he had already held four ordinary consulships, he could afford to be magnanimous.

¹⁴¹ Athanasius, *HA* 8.1. *pace* Barnes, 1993, 34 not a unilateral measure by Constantine II.

¹⁴² Eusebius, *VC* 4.51.1 (*cf.* Zonaras 13.5.2-4). Palanque, 1944, 54-8, suggested that Constantine II really ruled the whole west, and Constans was an emperor 'sans terre' (still influential, Drinkwater, 2007, 199, *e.g.*). There is no evidence for this and Bleckmann, 2003a, 26-36 is a methodical exposition of the case against (though curiously without reference to Eusebius, which makes his task harder).

¹⁴³ Eusebius, *VC* 4.51.3, 52.1.

¹⁴⁴ *ibid.*, 4.68.3.

¹⁴⁵ Julian, *Or.* 1.20b.

¹⁴⁶ *ibid.*, 1.14.19b-c; *cf.* Themistius, *Or.* 2.38c-d.

concede to him, the prefect did not become an emperor. The Augusti, newly elevated, departed from the scene of the conference: Constantine to Gaul, Constantius to the east, where the Persian war had already turned hot, and Constans to Thessalonica, no doubt to stamp his rule on the newly acquired diocese.¹⁴⁷ At Pergamum, as must have happened throughout the empire, a stone-carver was sent to dutifully modify an inscription: deleting *nobbb(ilissimorum) Caesss(arum)*, and writing over it *nobbb(ilissimorum) Auggg(ustorum)*.¹⁴⁸

Constantine had come to Pannonia confident that he – an emperor for twenty years by 337 and four times a consul – enjoyed some kind of authority over his brothers. He left on equal terms to them, in possession of the territory which he had already held. Constantius had hoped, perhaps, to receive all of the Balkans, but had only obtained half – that this was a sore point nearly two decades later suggests he bore the division ill. Constans, or his regime, was the real victor of the negotiations. In spite of his youth and inexperience – he had not even been consul yet and was only fourteen – the emperor left the negotiations an Augustus, like his older brothers, and in possession of a huge swathe of territory: Italy, Illyricum, Moesia, Macedonia, Greece, and Africa. He thus held the breadbasket of the western empire (Africa), its ancient capital (Rome), one of its chief intellectual centres (Athens), and some of its most important recruiting grounds in the Balkans – not to mention Naissus, his father's birthplace. There was much to envy in his situation, and there were those in Gaul who began to cast covetous glances at Constans' realm.¹⁴⁹

Civil War

In the east, massacre had brutally obviated the problems which the lack of any clear plan for the succession left in its wake – the alternative, hardly unthinkable, was civil war between some combination of Constantius, Dalmatius, and Hannibalianus. In the west, the conference in Pannonia

¹⁴⁷ Barnes, 1993, 218, 219, 224.

¹⁴⁸ *CIL* 8.7198.

¹⁴⁹ Bleckmann, 2003a, 241-3 argues that Constantius II and Constans ganged up on their older brother at the conference. The idea is intriguing, but there is no evidence for it and in part it relies on the idea that the brothers departed from some Constantinian plan (n. 3; 235).

seemed to have brought agreement without the need to kill off all but one of the claimants to the throne. That harmony turned out to be an illusion. Constantine II evidently found it hard to swallow the equality which had been the basis of agreement between the brothers. There was little, in practice, that he could do to exert pressure on Constantius: their zones of authority were separated by a huge swathe of territory, and he lacked any means to demonstrate his superiority. He could only, after all, unilaterally restore Athanasius once. Constans, however, whose empire pressed up against that of Constantine II in the Alps, was in a quite different situation. The brothers soon began to square off against each other. Ammianus mentions a tribune from Paphlagonia, called Amphilochius, who had served under Constans, and was ‘buffeted by suspicions (which were close to the truth) that he had cultivated the causes of disagreements between the ... brothers’.¹⁵⁰ Evidently they found much to dispute, even if we cannot quite see what drove them apart. In the legal evidence we find hints that there was a conflict of jurisdiction. There are few western laws which survive from the later 330s, and those we have were mostly issued to North Africa.¹⁵¹ There is a risk that the prominence of African affairs is an artefact of the well-kept files of Catullinus, the *vicarius*, and Celsinus, the proconsul, rather than of any priority of the new regimes.¹⁵² Still, it is striking that at a time when Constans was keenly interested in the affairs of the town councils of North Africa, his brother was legislating on precisely the same topic, claiming that the proconsul had written to him bemoaning the small number of decurions at Carthage.¹⁵³ Celsinus went on to serve as prefect of the city of Rome in 341, and it seems unlikely that this would have happened had he engaged in correspondence with a by then dead and disgraced public enemy: Constantine II was attempting to muscle in on his brother’s possessions. It must have taken time for people to become habituated to the new division of the empire, to think themselves into a world governed by three youths, not their mighty father. Constantine II, tested in war against the Goths and Germans, could profitably exploit any ambiguity and confusion: there are tantalising hints elsewhere that he was staking a claim to areas which his brother ruled and that people were forced to choose sides. We have already seen that governors in

¹⁵⁰ AM 21.6.2: there is a textual problem in that *tprioris fratres* is corrupt. The general sense is clear.

¹⁵¹ e.g. *CTh* 10.10.4, 9.34.5, 15.1.5 etc.

¹⁵² See *PLRE* ‘Catullinus 3’, ‘Celsinus 4’. Matthews, 2000, 280-293.

¹⁵³ Constans: *CTh* 15.1.5, 12.1.26, 6.22.2, 12.1.29. Constantine II: 12.1.27, issued at Trier.

Sardinia struggled to make sense of the dynastic transition – prematurely designating Dalmatius an Augustus. The next governor, one Munatius Genteanus, was engaged in erecting milestones near Olbia, on the north-coast of the island. One of them was to Constantine II as Augustus in solitary splendour.¹⁵⁴ Milestones did not have to list every reigning emperor, but we might detect a declaration of allegiance here: Sardinia was part of the realm of Constans.

By 340, relations had evidently deteriorated beyond any hope of repair. The sources for what happened next are late and generally taciturn, but it seems likely that Constantine II demanded a fresh division of the western empire, with Italy and Africa to be conceded to him and his brother reduced to a rump empire in the Balkans.¹⁵⁵ When he was rebuffed, he resorted to war. He attacked in the dead of winter, when Constans was in Dacia and he had the element of surprise.¹⁵⁶ He may have pretended that he was setting out to help Constantius in the Persian war – a pretext to mass men and *matériel* on the Italian border.¹⁵⁷ Still, his army was probably small – it is hard to imagine him taking a large force over the Alps at such a season, or keeping the element of surprise if he had been preparing an enormous force. His precise aim in the invasion is obscure, but he was killed just west of Aquileia, and that might provide a clue.¹⁵⁸ The city was, so to speak, the eastern gate of the Italian peninsula – a general who held it controlled access to Italy from the Balkans, and any opponent had either to capture it, or take an arduous detour north through the Alps.¹⁵⁹ Constantine II was probably hoping to dash for the city, seize it, and effectively lock his brother out of Italy. The peninsula, well-bribed (for he had been liberal with promises of tax breaks), would come round, and Africa, cut-off in the closed season for sailing, would discover in the spring that it had a new master.¹⁶⁰

It very nearly worked. Constantine evidently found not a few supporters in northern Italy, for it is hard otherwise to explain how he made it so far into his brother's territory without apparent opposition. Constans, or his advisers (he was still only seventeen), acted with cool determination. A

¹⁵⁴ *AE* 1889, 33.

¹⁵⁵ Zonaras 13.5.7-8; *Epitome* 41.21; Zosimus 2.41.1.

¹⁵⁶ Zonaras 13.5.9. *CTh* 11.12.1 of the 29th of April 340, gives a *terminus ante quem* for the campaign.

¹⁵⁷ Zosimus 2.41.1 may suggest this, though his account is very confused.

¹⁵⁸ *Epitome* 41.21.

¹⁵⁹ Talbert, 2000, map 19 shows this well.

¹⁶⁰ *CTh* 11.12.1.

force was dispatched, and the emperor promised to follow later, when he had gathered a larger army. The column he had sent just made it to Aquileia before Constantine II, and it was a little to the west of the city, on the banks of the river Alsa, that they joined battle. Constans' troops pretended to flee, and Constantine II fell straight into an ambush which they had set. Pinned in between the two formations, the ambushers and those who had feigned flight, his troops were massacred, and he was thrown from his horse and butchered.¹⁶¹ His mutilated body was cast into the river, his memory proscribed, and his name erased from monuments in both halves of the empire – 'the enemy of the public and ourselves' was the most Constans, sole master of the Roman west, would now say of him.¹⁶² At Rome, the father of the orator Symmachus, then prefect of the annona, hastily instructed the nearest mason to delete the name of Constantine II from an inscription, and replace it with that of his brother. He chose a clumsy workman, whose straggling letters suggest he was doing his job very fast indeed. Ironically, the modified tablet praises Constans for his 'courage against the enemy, and his piety towards his own family'.¹⁶³

Three tumultuous years had answered the question of who was Flavian and who was to rule. In the east, a 'promiscuous massacre' as Gibbon called it, had ended the chaotic and confused period which marked the death of Constantine.¹⁶⁴ Such had, unpleasant as it is to think it, probably averted civil war – comparison with the west is instructive. In Pannonia, the brothers had carved up the empire, on terms of rough equality, and reached enough of an agreement to smile and nod before the assembled armies as they were proclaimed Augusti. Constantine II left superior to his brothers in neither lands nor status. Unhappy with the settlement, he attempted to violently amend it in 340, and paid with his life. The empire devolved on his two brothers, men 'godly by descent' as Athanasius put it.¹⁶⁵ It remained for them to rule it.

¹⁶¹ Zonaras 13.5.9-13 for the details.

¹⁶² *CTh* 11.12.1; Cahn, 1987.

¹⁶³ See Gasperini, 1988.

¹⁶⁴ Gibbon, 1781, 662.

¹⁶⁵ *Apol. ad Const.* 1.1.

East

Two forces were to profoundly shape the rule of Constantius II in the east: his choice of subordinates and his relationship to them and an intractable war with Persia. He confronted both as he returned from Pannonia in the autumn of 337. In Constantinople, he faced the resentful Ablabius, soon banished to his estates in Bithynia. His fall must have led to convulsions in the administration he had dominated. Rumours of chaos on the eastern frontier must have flown thick and fast: the troops were mutinous, the Armenians had revolted, and Shapur had only recently broken off his first siege of Nisibis.¹⁶⁶ The uniform view of our sources is that Constantius' failure in both areas was total. When it came to the way he governed and the men around him, he was weak and suspicious, under the thumb of his wives, eunuchs, and palatine officials.¹⁶⁷ He had no mind of his own, 'being moved only by those who made suggestions to him'.¹⁶⁸ He was 'a man bound up with the lawlessness of his followers, men who use incantations on him, who are the sort who have trampled his brain under their heels'.¹⁶⁹ These associates were an awful crowd of lawbreakers and miscreants, ill-educated and 'utterly outrageous' as Libanius put it.¹⁷⁰ The emperor's military record was almost proverbially disastrous: 'in foreign wars this prince was mauled and humbled', the bruising judgement of Ammianus.¹⁷¹ This was especially true of conflict with the Persians, which was one long disaster, marked throughout by Constantius' timidity, unwilling to meet the enemy in battle and content to see them besiege his cities.¹⁷² The best that could be said of him was that he 'fought against the Persians with a various and rather difficult outcome'.¹⁷³ Wicked advisers to whom he was enslaved, a disastrous foreign war: it hardly matters where one turns, the bill of indictment against Constantius is long and devastating. It comes from Christians and pagans, from the west and the east, from men like Ammianus who had served Constantius and from those like Athanasius who had

¹⁶⁶ Julian, *Or.* 1.18d; Jerome 234d, with Burgess, 1999b, 233-8 for the date of the siege of Nisibis.

¹⁶⁷ AM 21.16.16. Athanasius, *HA* 6.2, 38.5, makes very similar accusations.

¹⁶⁸ Athanasius, *HA* 69.2.

¹⁶⁹ *ibid.*, 70.1.

¹⁷⁰ Libanius, *Or.* 18.23.

¹⁷¹ AM 21.16.15.

¹⁷² Libanius, *Or.* 18.206-7.

¹⁷³ Festus 27.

devoted their careers to thwarting him. What possible objections could be offered to this comprehensive portrait of evil and incompetence?

New Men

In recounting the murder of Ablabius, Eunapius noted that Constantius had gathered around himself ‘another faction’ (ἄλλο ἐταιρικὸν) when he came to the throne. Who were these men who stepped into power with the young Augustus and what might we deduce from them about the way that he governed? It is far from easy to get a grip on them: a comprehensive account, every *praeses* present, is likely to tell us more about the texture of our evidence than anything else – some alternative approach is needed. The holders of the ordinary consulship are perhaps the best place to start. Here at least we have a full list of those who held the position, we know that it was important, and that precedence in it was determined by service, so its holders were likely to be men of weight in the affairs of the empire. Study of the consuls gives us, in other words, some way to pick out the characteristics of the regime, or at least of those who held its most exalted honour, and some sense of what we should be looking for in the rest of government, of the tendencies which reflect what was really going on, rather than the pitfalls of our evidence.¹⁷⁴

Some of the consuls, it is true, are little more than names to us, but even bare onomastics can be revealing.¹⁷⁵ At the time, several overlapping nomenclatures were in use. People always had a ‘diacritical’ name, which is what people would have called them in conversation or addressed them

¹⁷⁴ *CLRE*, 13-14 established that both Constantius and Constans chose consuls, rather than the senior Augustus alone (*contra* the influential Palanque, 1944). Salway, 2008, 301-2, suggests that division into eastern and western consuls is too simplistic: both emperors were patrons of the Roman senate and Constantius might have nominated some apparently ‘western’ consuls. No doubt he paid attention to those senators whose names came up in discussions of the consulship, but: a) Constans continued to control the main points of the senatorial *cursus* (the proconsulships of Africa and Achaëa, the prefecture of Rome), b) his regime was closely interlinked with the senatorial aristocracy c) the only senatorial consul *certainly* nominated by Constantius (Acindynus) was in his service at the time and that no other senatorial consuls were, d) at least one of those Salway suggests was possibly Constantius’ nominee, Albinus, was a *comes* of Constans. For previous examinations of the prosopography of the period: Barnes, 1989a, 313-321, Pietri, 1989, 131-3. Vogler, 1979 offers a schematic overview of the structure of imperial administration, rather than its personnel, and argues that developments in administration (the emergence of offices, in particular) took place under Constantius, not his father. There is much of interest in her pages, but steadfast refusal to pay attention to the chronology or texture of the period produces a strangely ahistorical Constantius, administering without reference to (e.g.) the civil war of 350.

¹⁷⁵ On late Roman names, see in general Cameron, 1985, esp. 171-7, and Salway, 1994.

by in writing. This was normally their last name and was the only constant in a system of reference which can seem bewilderingly fluid. So, however many of his appellations M. Maecius Memmius Furius Baburius Caecilianus Placidus chose to use of a Wednesday, Placidus would always be one of them. To supplement this diacritic, individuals generally drew from one of two systems: variants of the traditional Roman *tria nomina*, which encoded genetic information in one (or more) names, or the system of status *nomina*, derived from the family names of ruling dynasties (Valerius or Flavius).¹⁷⁶ Obviously, when an individual's names suggest a web of familial connections, that can tell us a lot about them, even if their names are all we have. Yet, a status *nomen* can also be useful evidence.¹⁷⁷ Flavius, for instance, was a 'nicety of protocol', a polite title taken by (or assigned to) all those in government service above a certain (low) level – an onomastic benefaction bestowed on the empire by Constantine in 324.¹⁷⁸ Technically, both the *curator* of Oxyrhynchus and the grandest senatorial prefect were *Flavii*, but a man's attachment to the title varied with his social status. To senators, the name was slightly *infra dig*: they gained no status from such a banal recognition of government service. Such men avoided using it if they could, though that did not always prevent it from being assigned to them in the papyri.¹⁷⁹ In general, a senator preferred to go by a family name and a diacritic, quietly advertising his descent. So, when erecting a statue to their patron Placidus, the citizens of Puteoli spent nearly two lines giving all his names, but in the papyri he is generally Furius Placidus and only once (in a petition) mislabelled Flavius.¹⁸⁰

To the *curator*, on the other hand, the title might seem very prestigious, especially if his birth name was *Aurelius* x, indicating that his family had received (like the vast mass of individuals) citizenship in 212.¹⁸¹ As soon as dynastic *nomina* denoting service appeared, we find the *curatores* of Oxyrhynchus proudly substituting them for their family names.¹⁸² For such men, to be able to call oneself *Flavius* was to move up in the world, to separate oneself from the masses, and they employed

¹⁷⁶ For Valerius, see Keenan, 1973, 44-6, Salway, 1994, 138-9; *PLRE*, 941-4.

¹⁷⁷ For this and what follows, see the pathbreaking studies of Keenan, 1973, 1974, 1983.

¹⁷⁸ Cameron, 1988 = *CLRE*, 36-40. Keenan, 1973, 47-51.

¹⁷⁹ *CLRE* 36-40; Salway, 1994, 140.

¹⁸⁰ *ILS* 1231; *CLRE* 221; *P. Abinn.* 43.25.

¹⁸¹ e.g. Keenan, 1973, 41-3.

¹⁸² *P. Oxy.* LIV 'Appendix I', 222-229, on the *curatores*, all Valerius or Flavius, with the exception of the first, and mostly Aurelii before office.

it in parallel to the way that others used *gentilicia*, advertising not their ancestry but the fact that they had a job in government.¹⁸³ So, the way that a man did or did not use Flavius can tell us something about his social status – if he tried to avoid it, he probably had better options; if he did not, then we can reasonably deduce a relatively humble background (which might, of course, contain a multitude of levels) and a career in imperial service.¹⁸⁴ Of course, there are hazards in doing this. Flavius was such a common title that almost anyone in government might have it bestowed on them and there is a risk that a single extant rogue document might misleadingly imply that a very grand aristocrat was actually an administrative grafter. For consuls, however, we have some guarantee against this. Consular formulae, which were normally official products, are our best source of onomastic information and they generally took the form:

[*consul prior*: name 1, name 2] et [*consul posterior*: name 1, name 2] vv.cc. [*viri clarissimi*]

For the 340s, we have twenty non-imperial consuls; of these ten used family names in other contexts. Of these ten, only two are referred to as ‘Flavius’ and only one (Nummius Albinus, cos. 345) is consistently and inaccurately so-termed.¹⁸⁵ So if a consul is plain Flavius, we can be more or less certain that he had chosen to bear that name.

338	Flavius Ursus and Flavius Polemius
339	Constantius Aug. II and Constans Aug. I
340	Septimius Acindynus and L. Aradius Valerius Proculus
341	Antonius Marcellinus and Petronius Probinus
342	Constantius Aug. III and Constans Aug. II
343	M. Maecius Memmius Furius Baburius Caecilianus Placidus and Flavius Romulus
344	Domitius Leontius and Flavius Sallustius
345	Flavius Amantius and M. Nummius Albinus

¹⁸³ Salway, 1994, 141.

¹⁸⁴ Cf. Keenan, 1974, 289-290.

¹⁸⁵ *CLRE*, 210-235. In 345, Domitius Leontius is called Flavius, but only by two papyri (*P. Princ.* II.81 a receipt for a loan; *P. Abinn.* 2.10, a draft of a petition), neither official documents. In 349, *P. Würz.* 16.14 calls Limenius and Catullinus Flavii, but *P. Amh.* II.139.21 (a post-consulate) gives their *nomina*.

346	Constantius Aug. IV and Constans Aug. III
347	Vulcacius Rufinus and Flavius Eusebius
348	Flavius Philippus and Flavius Salia
349	Ulpian Limenius and Aconius Catullinus
350	Flavius Sergius and Flavius Nigrinian

Figure I: Consuls from 338-350, eastern consuls are in bold.

In 338, two easterners shared the consulship. Flavius Ursus was a general on service in the Balkans, a crucial figure in the revolution of 337.¹⁸⁶ Beyond that, there is little one can say of him: he has occasionally been thought to be of Germanic origin, but Apsyrtus wrote to him in Greek, so he likely came from the east – citizen Ursi are found in the papyri from as early as the first century.¹⁸⁷ His dynastic *nomen* indicates a background in imperial service and no very elevated social position, but that is about all we can say of him. Flavius Polemius can be seen a little more clearly. In 345, he was one of a group of *comites* of Constantius who wrote to Athanasius, offering profuse and public promises that he could return safely to the east.¹⁸⁸ Polemius is first in the list, ahead of Datianus (cos. 358), Bardio (probably a eunuch chamberlain), Thalassius (later the praetorian prefect of the emperor Gallus), and Taurus and Florentius (coss. 361 and praetorian prefects).¹⁸⁹ The ordering would seem to reflect seniority, so Polemius was evidently the longest serving of the emperor's advisers and, since everyone else on the list was a civilian administrator, he probably was too.¹⁹⁰ That is not, however, where his story ends. Robin Lane Fox has identified the Flavius Polemius attested by the papyri with a senator, Iulius Valerius Alexander Polemius, the author, he argues, of a text from the reign of Constantius, the *Itinerarium Alexandrini*, as well as the Latin version of the *Alexander Romance*.¹⁹¹ He even suggests, on the basis of the Romance's inclusion of a long prayer to Serapis, that Polemius was a pagan, perhaps one who converted in the 340s – just in time to write to the bishop of

¹⁸⁶ Above, 37-8.

¹⁸⁷ Demandt, 2007, 268, n. 50. *P. Harris* 2.178 for the first man called (Iulius) Ursus, from the 80s A.D.

¹⁸⁸ Athanasius, *HA* 22.1.

¹⁸⁹ *PLRE* 'Bardio', 'Datianus 1', 'Thalassius 1', 'Taurus 3', 'Florentius 10'.

¹⁹⁰ *pace* Barnes, 1981, 262.

¹⁹¹ Lane Fox, 1997, 239-47 (*cf.* *PLRE* 'Polemius 3').

Alexandria.¹⁹² A pagan senator, one with serious literary interests, as the most senior adviser to Constantius is a tantalising prospect.

Unfortunately, the vision is a mirage. Lane Fox builds his case methodically on the basis of manuscript evidence. The sole witness to the text of the *Itinerarium* (Milan, Biblioteca Ambrosiana P 49 Sup.) contains before it the translation of the *Romance*, there attributed to one Iulius Valerius Alexander.¹⁹³ The author of the *Itinerarium* is anonymous, but one could plausibly suggest that it was also by Valerius Alexander, since the two works are both on Alexander (after a fashion) and circulate together. In another manuscript of the *Romance*, the Turin palimpsest, we find the name rendered twice as *Iulius Valerius Alexander vc Polemius* and *Iulius Valerius Alexander Polemius vc*.¹⁹⁴ Lane Fox concludes that our author was called Flavius Iulius Valerius Alexander Polemius, ‘an immensely distinguished *clarissimus*, right at the top of Roman society’.¹⁹⁵ He is conscious that one should not (to use Alan Cameron’s phrase) ‘play fast and loose’ with late Roman names, but asserts that ‘no pattern forbids’ this one.¹⁹⁶ That is not quite right and to see why one has to unpick the information encoded in the names: in particular the significance of ‘Polemius’. This is an attested diacritic, but in its manuscript context, the tell-tale *-ius* ending and separation from the other name reveals that it is a *signum*, an extra (often Greek, sometimes punning) name borne not infrequently by members of the senatorial aristocracy.¹⁹⁷ Polemius was a good tag for a man evidently extremely interested in the wars of Alexander the Great. *Signa*, however, were intimate nicknames, almost never employed in official contexts, like the dating clauses of government documents.¹⁹⁸ The only exceptions (naturally) always show the *signum* combined with a diacritic.¹⁹⁹ The idea, then, that a consul might be referred to by a combination of a lowly courtesy title and his personal *signum* is to play fast and loose with onomastics – the names belong to different social worlds and such a formula would omit the one constant element of Roman nomenclature! One can imagine a consul called Flavius Polemius or a

¹⁹² Lane Fox, 1997, 246-7.

¹⁹³ Described by Tabacco, xxxii-xxxvi.

¹⁹⁴ Kuebler, 1888, viii.

¹⁹⁵ Lane Fox, 1997, 242-3.

¹⁹⁶ Cameron, 1985, 178.

¹⁹⁷ See the lucid discussion in Salway, 2008, 136-7.

¹⁹⁸ Cameron, 1985, 172; cf. Cameron, 1999, 483.

¹⁹⁹ *CLRE*, 215 *Populonium* Proculus; Cameron, 1999, 481-4, Valerius *Tullianus*.

senator called Iulius Valerius Alexander, *signo* Polemius, but not a Iulius Valerius Alexander *vc* who went under the name Flavius Polemius, but only in reference to his consulship.²⁰⁰ So, for the consul of 338, no senatorial status, literary interests, or pagan religion for Polemius: he and Ursus were men with dynastic names who rose to the consulship after a career in government and the army.

Septimius Acindynus, consul in 339, came from that different, more rarefied world which Valerius Alexander inhabited.²⁰¹ He was the son of Septimius Acindynus, prefect of the city of Rome in the 290s – his toga-clad father dispensed justice to the Quirites, as the orator Symmachus put it.²⁰² After a stint as *corrector* of Tuscia and Umbria, he went to Spain to serve as *vicarius* in the 320s.²⁰³ He married the daughter of an Athenian noble, seemingly a member of a priestly family (we might posit a proconsulship of Achaëa at the time) – Acindynus himself may have been pagan.²⁰⁴ He then re-emerges in the later 330s as prefect in the East, resident apparently in Antioch, where he ‘ruled the *praetoria* of kings amongst the peoples of the dawn’.²⁰⁵ There he was caught up in a scandalous episode involving double-crossing, adultery, and threats of judicial violence which was still able to provide Augustine with preaching material fifty years later.²⁰⁶ He retired to Bauli in the bay of Naples, where he built a villa, portrayed himself and his ancestors in a lavish painting, and stretched out his retirement: Symmachus later bought the same house.²⁰⁷ Acindynus, however, was unusual amongst the men who served Constantius. His next consul, in 343 (the first for two years), was one Flavius Romulus, who again seems to be a man who had served in government and who came from a relatively humble background, though we have little to go on beyond his names.²⁰⁸ In 344, the

²⁰⁰ As far as I can tell, no individual given a *signum* in *PLRE* ever goes in any context by ‘Fl. [*signum*]’.

²⁰¹ *PLRE* ‘Acindynus 2’.

²⁰² *Chron.* 354 s.a.; Symmachus, *Ep.* 1.1.2 which *PLRE* ignored.

²⁰³ Tuscia: Saquete, 2000. Spain: *CIL* 2.4107, undated, the deleted name of the Caesar is probably Crispus.

²⁰⁴ Symmachus, *Ep.* 1.1.2. *pace* Barnes, 1989a, 317 that Augustine knew an anecdote about him does not mean he was a Christian.

²⁰⁵ Symmachus, *Ep.* 1.1.2. He was in office before the 27th of December 338 when *CTh* 2.6.4 was posted at Antioch.

²⁰⁶ Augustine *De sermone domini in monte* 1.50.

²⁰⁷ Symmachus, *Ep.* 1.1.2, 5.

²⁰⁸ *PLRE* ‘Romulus 3’. Salway, 2008, 306-7 suggests he is to be identified with the general of Magnentius in 351 (‘Romulus 2’), but the name is common (Kajanto, 1965, 179), the link based on the (dubious: below, 114-5) idea that Constans was overthrown by a conspiracy of the highest ranks of the administration *and* army, and would give Constans four consuls in a row and Romulus an unusually long career, or early consulship.

consulship was shared between two easterners: Domitius Leontius and Flavius Sallustius.²⁰⁹ Leontius was praetorian prefect at the time, in office for long stretches of the 340s and well-attested by laws and inscriptions. One of these gives us an unusually good insight into him. The city council of Berytus, having sought imperial permission so to do, erected a statue to him, ‘since his merits, which have carried him through the separate positions of honour to these peaks of dignities [the prefecture and consulship], demand it’.²¹⁰ He evidently had a career in imperial administration (of which we are ignorant), and it is tempting to suppose that the lavish, and expensive project of putting up a statue to him entered the minds of the councillors because he was a local boy, and they hoped to extract some benefit from his stint as prefect. Flavius Sallustius was *magister peditum* and an imperial *comes*, about whose career and origin we are otherwise ignorant.²¹¹ He was a senior general who had distinguished himself, probably on the eastern frontier, and was rewarded with the consulship. Flavius Amantius, consul in 345, is again very obscure to us, though to take precedence over M. Nummius Albinus, scion of an important family, he must have been very important indeed.²¹² Again, whatever his career, the dynastic *nomen* suggests a relatively humble social origin, and imperial service.

That would make him rather like Flavius Philippus, the consul of 348, about whom we are, in contrast, rather lavishly informed.²¹³ He, so Libanius averred, was the son of a sausage-maker and had got his start in the administration as a *notarius*.²¹⁴ Libanius’ list of the low-born senators of Constantinople appears to run in rough chronological order, and Philippus’ placement, between Ablabius and Datianus, would mark him as an associate of Constantius from the start of his reign – the unpublished inscription from Perge apparently reveals he was his *cura palatii* before 337.²¹⁵ He was an extremely powerful figure, described as ‘second after the emperor’ by the ecclesiastical historian Socrates – the man who was sent to get the Nicene bishop Paul out of Constantinople in 344

²⁰⁹ *PLRE* ‘Leontius 23’; ‘Sallustius 7’.

²¹⁰ *CIL* 3.167. Barnes, 1989a, 317 makes him a ‘probable Christian’ on no evidence.

²¹¹ *P. Abinn.* 58 alone calls him Iulius Sallustius (a mistake?). In 344, Fl. Bonosus was initially recognised as consul in the West. Salway, 2008, 300-309 brilliantly shows that this was the result of confusion over which general was to be honoured (refuting earlier attempts (e.g. Vogler, 1979, 25) to merge the two into one man).

²¹² *PLRE* ‘Amantius 4’ (it is not certain he was Constantius’ nominee, though it would be symmetrical).

²¹³ *PLRE* ‘Phillipus 7’.

²¹⁴ Libanius, *Or.* 42.24.

²¹⁵ Feissel, 2016, 1224.

when earlier efforts had (bloodily) failed, and who was ultimately to execute him.²¹⁶ He was also, as the abuse which Athanasius directed at him demonstrates, a Christian, albeit a ‘champion of heresy’.²¹⁷ He served as praetorian prefect for a long stint, attested in office from 344 until well into the war with Magnentius, in which he undertook a perilous mission to the court of the usurper.²¹⁸ After death, he was honoured with statues throughout the eastern provinces, one of which was still extant at Chalcedon in the sixth century when John the Lydian saw it.²¹⁹ Another, made of bronze embellished with gold was erected at Chytrae, on the island of Cyprus.²²⁰ At Ephesus, a lengthy imperial letter was inscribed, in fulsome praise of the prefect’s virtues: ‘what more can I say about a man born to serve our state than that he always subordinated his own safety to her advantages?’²²¹ That text ordered an official called Marinus (presumably the proconsul of Asia) to erect gilded statues of Philippus in ‘noble cities’ (*opimis urbibus*). That may provide a further clue about Philippus. Chytrae was not, even in the fluid language of late-imperial rhetoric, a ‘noble city’; it only had one Latin inscription, that on the statue of Philippus.²²² It is hard not to conclude that the only reason it would have obtained a gold-plated likeness of the prefect is if he had some intimate connection with it – he was probably from there.²²³ His was to be a noble lineage, his grandson also a praetorian prefect, and the emperor Anthemius a descendant. The last two consuls of the decade of diarchy, Flavius Sergius and Flavius Nigrinianus, were also probably the nominees of Constantius.²²⁴ Sergius is otherwise unknown to us, but his diacritic, extremely rare in the fourth century, was shared by a martyr, venerated in Syria in particular.²²⁵ Flavius Sergius was perhaps a Syrian Christian with a background in government service, like his colleague Nigrinian, who came from Antioch and whose

²¹⁶ Socrates 2.16.2; Barnes, 1993, 86.

²¹⁷ Athanasius, *AFS* 3.6.

²¹⁸ Still in office on the 28th of July 346 (*CTh* 11.22.1), during his consulship (*BGU* 2.405), and in 350 (Athanasius, *HA* 7.6). See, still, Jones, 1955.

²¹⁹ John the Lydian, *De magistratibus* 2.9; cf. Şahin, 2015, 177-8.

²²⁰ *CIL* 3.214 = *LSA* 863.

²²¹ Swift, Oliver, 1962.

²²² So a search on the Clauss-Slaby Database suggests.

²²³ cf. Skinner, 2008, 134, n. 29 who suggests Egyptian origin.

²²⁴ We cannot be certain with Sergius, but Constantius’ failure to nominate consuls in 351 is an indication that those of 350 were his choice.

²²⁵ In *PLRE* I, the only Sergius is the consul. Fowden (E.K.), 1999, 7 suggests there is no evidence for the veneration of the saint before 431, but see *IGLS* 2124 of 354/5, from a village near Philippopolis in Syria.

(Christian) son Florentius went on to be *magister officiorum* in the 350s and 60s.²²⁶ He may have been the Nigrinian, a *vir clarissimus* and *comes*, who features in some *mansio* accounts from Oxyrhynchus from c. 347.²²⁷

If we dip just below the surface of his regime, and examine those who were important but did not win the *fascēs* before 350, we find men very similar to the consuls. The *comites* who wrote to Athanasius are a good place to start, for they were obviously important. Flavius Taurus' (cos. 361) origins looked humble to the snobbish Libanius, who condemned him as a notary.²²⁸ He served Constantius for a long time (345-361 at least) and could count four consuls, down to the sixth century, amongst his descendants. His colleague in the consulship, Fl. Florentius, served the emperor for a similar length of time, while his son went on to be *comes Orientis*.²²⁹ Censorius Datianus was said to have been the son of a bath-attendant and perhaps came from Ancyra, where (influential, but not in office) he spent the winter of 363/4.²³⁰ He was a powerful and long-standing adviser of Constantius, though never seems to have held office: 'the emperor's Nestor', 'the sharer of his thoughts', 'the student of one emperor [*i.e.* Constantine] and the teacher of another [Constantius]'.²³¹ Thalassius was probably from Syria and both his sons entered government service.²³² All the signatories of this open letter were Christians. These *comites* were not atypical, as a major (but somewhat neglected) figure from Constantius' regime shows. Soon after moving back to Antioch in the 350s, Libanius met a man called Maiorinus, of whose willingness to spend his substance to help friends he heartily approved.²³³ The sophist wrote two letters of recommendation for the spendthrift, even though Maiorinus had studied with the orator Eubulus, who seems to have adopted him when his own children died.²³⁴ All this suggests a man who was of school age in 353, whose father had died when he was relatively young.²³⁵ Libanius tells us that the father was also called Maiorinus and

²²⁶ AM 15.5.12, 22.3.6 ; Libanius, *Ep.* 113.4; Lucifer, *Epp.* 3-4.

²²⁷ *P. Oxy.* 4088, with intro, 191-4.

²²⁸ *PLRE* 'Taurus 3'.

²²⁹ *PLRE* 'Florentius 10'; 'Lucianus 6'.

²³⁰ *PLRE* 'Datianus 1' with *P. Oxy.* 3624 for his *nomen*.

²³¹ Libanius, *Ep.* 114.7, 490.5, 1184.9.

²³² *PLRE* 'Thalassius 1'.

²³³ *PLRE* 'Maiorinus 1'; Libanius, *Ep.* 560, 1510; at 560.2, 4.

²³⁴ *ibid.*, 1510.2.

²³⁵ His father was certainly dead by 365 (*Ep.* 1510.1).

that after a variety of unspecified magistracies, he held the ‘highest office’ (μεγίστην ἀρχὴν), *i.e.* the prefecture – probably in the 340s.²³⁶ A prefect called Maiorinus appears on a fascinating cluster of inscriptions from Busra al-Harir, on the fringes of the desert a little south of Damascus.²³⁷ He was buried there in a tomb constructed by a nephew named Philippus, who left a Latin inscription of dubious syntax and a Greek poem praising his relative.²³⁸ His uncle (he said) was a man ‘beloved by the senate’, whose fame reached the four corners of the earth: ‘most faithful to the emperors, a faultless prefect’. The inscription was found inside a church and outside there was a stone inscribed ‘Christ help Maiorinus’, so the prefect was a Christian. All the more remarkably, in another (larger) church on the same site, dedicated to St Sergius and built by 517 or 518, there is an inscription put up by a deacon called Elias which records that he was ‘of the family of Maurinos’, so his descendants were still significant figures in the region nearly 200 years later. This prefect, a very important figure in the time of Constantius II, has almost entirely escaped record in the Codes and our literary sources – a reminder of how unrepresentative the extant evidence can be.

Others can be added to the list. Fl. Arbitio, Constantius’ long-serving general and veteran of civil strife, had started as a common soldier, slowly climbing the ranks.²³⁹ Flavius Nemesianus was the *comes sacrarum largitionum* of Constantius. He was a long-serving revenue official, who had been a provincial governor, *catholicus* in Egypt in 332, and was at the centre of government for at least five years in the 340s.²⁴⁰ In retirement, like many curious late-antique individuals, he took a package holiday to the Valley of the Kings, and left some graffiti recording his visit.²⁴¹ He tells us that he was a fellow citizen of Homer (probably from Chios or Smyrna, which both claimed the poet). Hermogenes, the unfortunate general of Constantius killed by a mob in 342 in the riots which followed his attempts to eject Paul from Constantinople, was probably from Tyre, where his son had

²³⁶ Libanius, *Ep.* 1510.1, 560.1. Barnes, 1992, 255 puts him in the period from 351-4, because (one suspects), otherwise it would be hard to defend his reconstruction of only three prefects, in office sequentially from 338-351. Coşkun, 2004, 308, has more plausibly suggested the 340s.

²³⁷ See *IGLS*, nos. 2474-2477 (with *AE* 2006, 1610).

²³⁸ *PLRE* ‘Gratus 2’, wishes *haec sed <e>s / aeterna Filippi extracta stu/diis gratique(!) nepotis*, to conceal a nephew called Gratus, but he is unmentioned in the accompanying Greek inscription (unlike Philippus); *gratique* is a parallel to *studiis* (something like ‘by the efforts and goodwill of...’).

²³⁹ *PLRE* ‘Arbitio 2’.

²⁴⁰ *PLRE* ‘Nemesianus 1’, add *P. Oxy.* 3127, for the *nomen* Flavius. *CTh* 12.1.30 (340), 11.7.5 (345).

²⁴¹ *Syringes*, no. 1293.

inherited property. The boy, Herculanius, was a student of Libanius (who liked him enough to compose an *epithalamium* for his wedding), and also went into the army, where he was entrusted with dangerous missions (spying on the Caesar Gallus, for instance).²⁴² The Cappadocian Christian Flavius Philagrius, one of Athanasius' *bêtes noires*, served Constantius II as prefect of Egypt (338-40), then as a *comes*, and finally as *vicarius* of Pontica, where he met Libanius and oversaw (though he later denied responsibility) the death of Paul of Constantinople.²⁴³ The other prefects of Egypt under Constantius are less fleshed-out figures, but Longinus, the successor of Philagrius, was from Nicaea and Nestorius who held the position for seven years was from Gaza.²⁴⁴

We have almost exhausted the evidence for the men who served Constantius II in the late 330s and 340s. What emerges is an administration drawn promiscuously from all over the eastern Mediterranean, Christian where it advertised its religious sympathies, and dominated by men who were pleased to call themselves Flavius, proud of their service in government, service which had probably elevated them in social status. Where we know much about their backgrounds, they were indeed humble, common soldiers and secretaries. Constantius relied on a small and tight-knit circle to run his empire, men whom he had raised up and to whom he clearly gave a good deal of responsibility. It is remarkable how long some of them served for: stints of seven years in one office are common and plenty of individuals spent decades in the inner circle of power. They were also emphatically Constantius' men. It would be exaggerated to imagine that the massacre of 337 swept through the entire administration, clearing out the servants of Constantine entirely: such would have come as a surprise to Philagrius, Musonianus, Flavius Ursus and so on.²⁴⁵ Still, while men like Domitius Leontius and Flavius Philippus began their careers under Constantine, they were not his men: Constantius made them. We might even detect in these developments the first stirrings of a new eastern elite. The role of the eastern senate in this, drawn from those in government service as Libanius objected (he could tell they were not following what he said when he spoke to them), must

²⁴² *PLRE* 'Hermogenes 1', 'Herculanius 1'. AM 14.10.2; Libanius, *Ep.* 828.

²⁴³ Athanasius, *HA* 7.5 shows he was *vicarius* of the region which contained Cucusus (Pontica, Barnes, 1982, 206), in c. 350 (Barnes, 1993, 102; cf. Libanius, *Or.* 1.66-69. *BL*, 235-7, divided the Philagrius who was *vicarius* from the prefect, because the former was a post junior to the latter, but the inference is not secure (rule of Cappadocia at a time of war with Persia was a very important task).

²⁴⁴ *PLRE* 'Longinus 1', 'Nestorius 1'.

²⁴⁵ *PLRE* 'Musonianus'.

have been crucial, although it is shadowy.²⁴⁶ At the time, the government was concerned that being absent from Constantinople should not prevent men from holding the praetorship (and thus entering the senate), and was willing to pay the necessary expenses until they could arrive.²⁴⁷ We might imagine a senate whose new members, their status invariably gained from some office, were often away on official business when they assumed the dignity of the *clarissimus*. Dragged together from all over the eastern empire, it must have functioned as a melting-pot for this new governing class. The men around Constantius put down roots: Philippus' progeny, for instance, went on to achieve imperial power in the fifth century. In a way, however, the pedestrian fact that Maiorinus' family were still prominent in the sixth-century in their home town, or that Hermogenes' son was straightforwardly in the officer class, is more striking.

This portrait of a governing class, carefully stitched together from the scraps of information which are the raw materials for prosopography, finds confirmation in the sources which comment more schematically on the government of Constantius. A curious tract, the *Expositio totius mundi et gentium*, written in the reign of Constantius somewhere in the east, speaks in general terms of the men who staffed the government.²⁴⁸ It comments on Berytus (the home of Leontius): 'For learned men from there are assessors to judges in the whole world, and knowing the laws they guard the provinces'.²⁴⁹ In discoursing on Asia Minor, the author noted that in the courts of both east and west there was a profusion of men from Pontica, Paphlagonia, Cappadocia, and Galatia, valued by the emperors for their faithfulness: perhaps he was thinking of Datianus (Galatian) and Philagrius (Cappadocian)?²⁵⁰ The *Expositio* is a rather crude text, and its author was not performing a measured analysis of the ranks of government, but the text's rough attempt to locate where *palatini* came from strengthens the impression of diversity. It is a little more difficult to get at the social status of such men. Late in life, provoked by the failure of the Constantinopolitan senate to admit his friend

²⁴⁶ Libanius, *Or.* 1.76. Following Skinner, 2008 on the origins of the Constantinopolitan senate.

²⁴⁷ *CTh* 6.4.6.

²⁴⁸ The *Expositio* is conventionally dated to 359, on the basis of the work of J. Rougé, its editor (14-24). This has always seemed rather odd, for the text clearly envisages two imperial courts (44), and mentions Constantius II (28), whom it locates in the east, where he has built a harbour at Seleucia, something which Jerome dates to 346 (236g). The work thus clearly comes from between 346 and 350, as Barnes, 1989a, 340, n.7, 1993, 219, n.7 has suggested in passing.

²⁴⁹ *Expositio* 25.

²⁵⁰ *Expositio* 44.

Thalassius to its ranks, Libanius cast a dyspeptic eye over the individuals they had admitted in the past, focussing on those in the reigns of Constantine and Constantius.²⁵¹ They had all, he said, been low, even disgracefully born, the sons of coppersmiths, fullers, bathhouse attendants; they rose only through their skill in shorthand – apparently powerful evidence for the origins of men in government in the 330s, 340s, and 350s. This fiery denunciation captured the mind of A.H.M Jones and through him came to play a crucial role in modern historiography of the late Roman governing class, evocative as it is of a new eastern aristocracy of service.²⁵² No mean legacy for Constantius II.

In a powerful recent piece, however, Alexander Skinner has taken this famous passage as the starting point for a wide ranging assault on the application of the concept of social mobility to the later Roman Empire.²⁵³ He emphasises the rhetorical and exaggerated nature of the sophist's attacks on these men and suggests that his scathing descriptions of their family circumstances conceal perfectly respectable origins in the βουλαί of the east.²⁵⁴ He describes a world where 'the traditional curial stratum' was 'the central junction of aristocratic life' – movement within this 'tiny' group of men, more coherent than sometimes supposed, was vanishingly insignificant set against the population of the entire empire.²⁵⁵ The eastern elite were drawn from the prosperous Hellenic gentry, educated and wealthy, who staffed the city councils. The senate at Constantinople drew its membership from 'families at the apex of provincial life', and senior eastern office holders were from the top ranks of the provincial aristocracy, a case documented by studies in the careers of some Libanius' correspondents in the 350s and later.²⁵⁶ The rise and fall of those in government is a tale of status within the one percent.²⁵⁷

There is always something to be said for treating Libanius with due scepticism, and there is much truth in Skinner's conclusions, which are broader in their implications than a narrow study of the reign of Constantius. Yet, seen from the perspective of the 330s and 340s, the remarkably flat,

²⁵¹ Libanius, *Or.* 42.23-7.

²⁵² See esp. Jones, 1963, 27–30.

²⁵³ Skinner, 2013.

²⁵⁴ *ibid.*, 22-8.

²⁵⁵ *ibid.*, 19-20.

²⁵⁶ *ibid.*, 28-9, 44, 45-9.

²⁵⁷ *ibid.*, 34-7.

wealthy, secure elite he produces is almost unrecognisable. It is worth noting that Libanius repeated the accusation elsewhere, bitterly remembering an era when secretaries became senators, and the low born transmuted into men of wealth, power, and influence.²⁵⁸ There was more to his allegations, then, than wounded pride that his friend had been denied entry to the senate: he really believed these charges, as did Ammianus.²⁵⁹ It is possible that the Flavii who stock the *fasti* in the reign of Constantius were all respectable scions of local gentry, though given their onomastic humility, suggestive of ancestors who were not citizens in 212, that seems unlikely. Even if they were of curial origin, did that really mean that they were comfortably-off gentry? In Egypt at least, almost all town councillors were Aurelii – only the most important rose to the Flaviate.²⁶⁰ It is also always worth remembering that there was a dizzying gulf between the places we think of when we speak of ‘late Roman cities’ – Carthage, Alexandria, Antioch – and most cities in the late empire.²⁶¹ It is hard to believe that the greatest man in Chytri or Busra al-Harir, important as he might be to the life of a small town, counted for very much in neighbouring Salamis or Damascus – let alone at the imperial court. Yet the sons of such men were Constantius’ lieutenants. Anachronistic it may be, but it is hard not to be struck by the social mobility, or at least the generous opportunities, at which their careers hint, even if it did not outlast the 340s.

Reacting against a long and morose history of curial decline, Skinner runs together the *decuriones* and local elite, and tends (though this is only implicit) to regard this as a rather closed society; that is to confuse legal and social status. As A.H.M. Jones put it with lapidary clarity, juridically the curials were a single class, but socially and economically they covered a wide range, and that was true both between and within councils.²⁶² They were not simply those who sat at the top of local society – from the perspective of the central administration they were men who owned property and who did not possess any immunity: it was that that lent them coherence.²⁶³ Because they had property, they could meet their local obligations, be usefully conscripted into the tax system, or

²⁵⁸ Libanius, *Or.* 62.10-11.

²⁵⁹ AM 22.4.3.

²⁶⁰ Keenan, 1974, 290-294.

²⁶¹ As a glance at *e.g.* Jones, 1971 rams home.

²⁶² Jones, 1964, 737.

²⁶³ As Jones, 1964, 739 penetratingly saw. On immunities, see above all Millar, 1983.

distrained on if they failed in that task, but that did not mean they were particularly wealthy, or even prominent. The amount of property one had to possess to come into the sights of the government was low: we find Constantius II pressing men with around 25 *iugera* of land into the councils – that is about sixteen acres.²⁶⁴ Jones was perplexed by this law, since the amount was ‘a peasant holding’, and stipulated that this was ‘not to be taken as a general ruling’, simply because the amount of land was too low. It must, he averred, relate to one of the tiny ‘cities’ of Arabia, or Isauria.²⁶⁵ Constantius II’s men came from precisely such places, but leaving that aside, Jones’ view was based on an assumption about the kinds of men curials were. The point was precisely that if they had property, even those with relatively small holdings could be conscripted and there was a regular flow into the *curiae* of men who had come into a bit of property.²⁶⁶ They perhaps did not see themselves as wealthy (and they were right). There are other reasons to doubt the status of many curials. Libanius spent the happiest five years of his life at Nicomedia; he had been summoned there because the city council had fallen out with their home-grown sophist and thought having to deal with Libanius was an appropriate punishment for him. The Nicomedian’s sin? He had said that the entire town council was descended from the slaves of his ancestors.²⁶⁷ He had evidently not got the memo about the deep roots and long standing of most town-councillors. When Libanius later sang his native city’s praises, he emphasised that its council was distinctive because its members had been curial for many generations.²⁶⁸ As for the senate, drawn from the cream of the councils, they too were rather poorer than Skinner imagines. In 340 Constantius set the amounts which those who held the praetorships at Constantinople – the route by which men entered the senate – were to distribute on appointment, seemingly at their games.²⁶⁹ The first, or Flavian praetor was to pay 5,000 *folles*, and fifty pounds of silver; the second, or Constantinian, 20,000 *folles*, and forty pounds of silver; the third, or Triumphal, 15,000 *folles* and thirty pounds.²⁷⁰ There is no real way to characterise such sums – significant

²⁶⁴ *CTh* 12.1.33 (following Godefroy’s conjecture of *parem* for *parvum*).

²⁶⁵ Jones, 1964, 738 with notes.

²⁶⁶ *CTh* 12.1.53 (362) *e.g.*

²⁶⁷ Libanius, *Or.* 1.49.

²⁶⁸ Libanius, *Or.* 11.133.

²⁶⁹ *CTh* VI.4.5, 6, clearly fragments of the same law.

²⁷⁰ The nature and value of the *folles* is disputed. Bagnall, 1985, 17-18 suggests it was a bag of coins (125 at this date), though admits that that ill-fits some of the data. Were that the case, the senators would have been handing

expenditures, evidently, for those involved – as anything other than pathetically small: Libanius earned considerably more from teaching, Symmachus gave out silver bowls weighing 2 lbs as casual gifts.²⁷¹ ‘Silver is not all that valuable’, lots of people possessed it in quantity, yet the quantities here are smaller than that contained in a few larger plates, from the (roughly contemporary) Kaiseraugst treasure, which (*in toto*) was enough to pay for all three praetorships in one year, and have enough left over for a lavish set of tableware.²⁷² At Rome, in a later era, Olympiodorus records the expenditures of various senators on the praetorian games of their sons, choosing examples from the top, middle, and lower rungs of the senatorial order.²⁷³ Whatever caveats one employs (and many could be chosen), the amounts (1,200 lbs of gold, 2,000 lbs, 4,000 lbs), could have bought the entire Constantinopolitan senate early in the reign of Constantius.²⁷⁴ Even if one grants that Constantius’ officials were drawn from the curial class and that his senators came from the top echelons of that stratum, there are solid grounds to think that they were still mostly of relatively humble origin. Such men owed their status to their service, they were powerful insofar as they held office or understood how the machine of government worked.

As for their religion, Libanius was scathing about the ‘profane men’ around Constantius and recalled the rise of ‘those sallow fellows, those enemies of the gods, those frequenters of tombs’ through the ranks of government.²⁷⁵ One of Athanasius’ favourite accusations against his opponents was that they introduced unsuitable men into the Church: ‘heathens and catechumens, and those who hold first place in the town council, and those who are famous for their wealth’.²⁷⁶ Money was (allegedly) the sole requirement for a bishopric.²⁷⁷ Bishops were nominated ‘because of their wealth and their secular power’, sent out ‘as though from a marketplace’.²⁷⁸ The Meletians were no better in this regard than the Arians: ‘For having come out, some of them from the idols, some from the town

over (in one case) 2.5 million bronze coins, which seems implausible, so here, some low-value bronze coin must be meant.

²⁷¹ Libanius, *Or.* 1.61; Symmachus, *Ep.* 7.76 *e.g.*

²⁷² Cameron, 1992, at 185; Kaufmann-Heinimann, 1999.

²⁷³ Photius, *Bibliotheca*, *cod.* 80; Cameron, 1984.

²⁷⁴ esp. Cameron, 1999, 493-499.

²⁷⁵ Libanius, *Or.* 1.39; 62.10.

²⁷⁶ Athanasius, *AC* 28.2.

²⁷⁷ *ibid.*, 28.3.

²⁷⁸ Athanasius, *HA* 73.1.

councils and the first rank of the administration, for the sake of a miserable exemption from public service', they rushed to be ordained.²⁷⁹ In amidst the patriarch's (rather confected) fury, one has a sense of a governing class which was increasingly Christian. The world of Abinnaeus was far removed from the stormy career of the bishop of Alexandria. Yet, his letters are revealing of the quiet Christianity of the Constantian bureaucrat: in an unstudied way those (priests, soldiers, administrators, civilians) who wrote to Abinnaeus, greeted him in the Lord, referred to Almighty God or 'the Lord our God', and quoted the Gospels.²⁸⁰ We cannot simply have stumbled on a network of Christians in the lower ranks of the officer-class and administration, for the archive is as chaotic and varied as we might reasonably expect it to be. This is much more interesting: a world where by default people wrote as Christians to other Christians. Other contemporary archives similarly suggest an official world where, if there was any mention of religion at all, people were simply assumed to be Christian.²⁸¹

The sources, then, tend to confirm the picture of Constantius' administration that can be picked out of the prosopography. As to how he governed, his panegyrists were at pains to stress that he enjoyed a close bond with his friends and compatriots, and they too envisage a small and tight-knit body of supporters. Themistius went so far as to close his first oration with what he called a 'fitting conclusion', a long disquisition on how the prince who loved mankind must surely love his friends still more.²⁸² True friendship was more precious than gold and jewels, and the emperor, in possession as he was of only a single body, relied on friends to project his presence everywhere. Tyrants cast down those around them, 'but men who have grasped the emperor's right hand know that they cling to a secure cable and will indeed cling to it to the end.'²⁸³ In a speech delivered so soon after riots at Constantinople, riots in which the empire's foremost general had been killed and his ecclesiastical policy left in tatters, this was quite a vote of confidence in the men who served Constantius.²⁸⁴ Libanius commented that the emperor was slow to befriend men, but very loyal to them once he

²⁷⁹ *ibid.*, 78.1.

²⁸⁰ *P. Abinn.* 6 (Gospels); 29; 4; 5; 22. See Judge, Pickering, 1977, 57-9 on Christianity in the archive.

²⁸¹ *P. Oxy.* 3384-3429, of Paphnutis and Dorotheus *e.g.*

²⁸² Themistius, *Or.* 1.17b ff..

²⁸³ *ibid.*, 1.18.a.

²⁸⁴ Skinner, 2015.

counted them one of his close connexions, while Julian noted that he kept them in office for long stretches of time.²⁸⁵ We might expect no less from those engaged to speak of the emperor's good qualities, but it is worth noting that even Ammianus praised the way that Constantius:

... bestowed palatine dignities as though using some plumbline, and under him no man who was to perform some lofty task was swiftly or unknown employed in the palace, but he who after ten years was to be in government as *magister officiorum* or *comes* of the largesses or something similar was very thoroughly examined.²⁸⁶

On a few occasions, we see in the historian's pages the machine of Constantian government at work: the *comes sacrarum largitionum* Ursulus bursting in to the *consistorium* to tell the emperor he was being deceived or the fierce debate about whether Silvanus was really guilty of treason.²⁸⁷ What he is describing (and he was an eye-witness) is an emperor who trusted his officials enough for them to be frank. One cannot help but wonder if the repeated accusation of the sources that he was fickle, easily-led, paid too much attention to his courtiers, is a simple inversion of that.

Eastern War

The main challenge the emperor and his administration confronted was an intractable war with Persia.²⁸⁸ The details of this are, despite efforts to recover them, largely obscure to us, and it is clear that already by the 370s and 380s it was hard to recover the precise sequence of events, which faded out into a vague sense that Constantius had fought a large number of battles in the east (nine is a common figure), without much success.²⁸⁹ At the start of his reign, he may have hoped for a decisive victory: in the early 340s the author of the *Itinerarium Alexandri* believed that Constantius was embarking on a war of conquest such as the king of Macedon or Trajan had led.²⁹⁰ The sketch he drew was bold in its ambition:

²⁸⁵ Libanius, *Or.* 59.122; Julian, *Or.* 1.46b-c.

²⁸⁶ AM 21.16.3: ... *palatinas dignitates uelut ex quodam tribuens perpendiculo et sub eo nemo celsum aliquid acturus in regia repentinus adhibitus est uel incognitus, sed, qui post decennium officiorum magisterium uel largitiones uel simile quidquam esset recturus, apertissime noscebatur.*

²⁸⁷ AM 16.8.7, 15.5.6, 11-12.

²⁸⁸ In general: Blockley, 1992, 12-24; *idem*, 1989, 465-90, Warmington, 1977; Dodgeon, Lieu, 1991. Lightfoot, 1988, is a lucid study of the third siege of Nisibis; his doctoral thesis (1981) remains the fullest treatment of the war.

²⁸⁹ Jerome, *Chron.* 236l; Festus 27.

²⁹⁰ *Itinerarium* 1. Date of composition is actually rather uncertain: 4 shows Constantine II was dead, so after 340, and 8 shows Constantius was roughly the same age as Alexander, whom the author believed was 19 when

The duty you have inherited lies amongst the Persians: when those who have for so long trembled before Roman arms, at length have received the name of our countrymen and have been granted Roman citizenship among your provinces, let them learn by the kindness of those who rule them that they are free, those men there whom royal contempt adjudges there all soldiers in war, and in peace slaves.²⁹¹

Constantius was fighting for Rome's safety, and would soon win immortal glory – liberal interventionism in Iraq; what could go wrong?²⁹² Reality was more prosaic than the fantasies of writers. A grand invasion of the Sasanian Empire would have required the might of the entire Roman world: Constantius did not have this at his disposal.²⁹³ He did his best all the same. In 338, he launched a raid into Persian territory, plundering far and wide without much opposition.²⁹⁴ That in fact was precisely the problem, it was impossible to bring the Persians to battle.²⁹⁵ He continued to probe over the border, with some success: in 343, the eastern bishops beat a hasty retreat from the council of Serdica, explaining that the emperor had written to them of a victory over the Persians and that they needed to return home.²⁹⁶ Such triumphs were ephemeral, however, and before long the emphasis of imperial rhetoric began to shift. In 342, Themistius still indulged in the traditional rhetoric of Persian slavery, but while he dwells at length on the comparison between Constantius and Shapur there was no so open suggestion that the former was planning the total conquest of Persia.²⁹⁷ By the time Libanius delivered his panegyric in praise of Constantius and his brother, he went to some lengths to explain that the war had started when Constantine was on the throne.²⁹⁸ One can sense that as the conflict dragged on, consumed ever more resources, and produced few definitive victories, it became important to explain that Constantius was not its cause, or (as Julian did) emphasise that he had made adequate preparations for it.²⁹⁹

he invaded Asia (13), which Constantius was in 337. Lane Fox, 1997, 246, and Barnes, 1985a, 135 (implicitly), both suppose that the author had the correct age for Alexander (22). For the preface, see Callu, 1992b.

²⁹¹ *Itinerarium* 5: *tibique in Persas hereditarium munus est: ut qui Romana tamdiu arma tremuerunt, per te tandem ad nostrarium nomen recepti inter uestras prouincias ciuitate Romana donati, discant esse beneficio iubentium liberi, qui omnes illic fastibus regiis milites bello, serui pace censentur.*

²⁹² *Itinerarium* 11.

²⁹³ Julian, *Or.* 1.18c.

²⁹⁴ Libanius, *Or.* 59.77; Julian, *Or.* 1.22a-b.

²⁹⁵ Libanius, *Or.* 59.81.

²⁹⁶ Athanasius, *HA* 16.2. Burgess, 1999b, 241-4.

²⁹⁷ Themistius, *Or.* 1.11b-c.

²⁹⁸ Libanius, *Or.* 59.59-72.

²⁹⁹ Julian, *Or.* 1.21d-22a.

When he did finally fight a pitched battle against the Persians, at Singara in 344, the result was unclear, something obvious in the very careful way which Libanius explained what kind of victory it was not.³⁰⁰ The fog of sophistry which (no doubt deliberately) obscures the course of the battle in his speech makes it very hard to work out exactly what happened, but it does seem clear that the Romans beat the Persians in the open, and forced them back to their camp.³⁰¹ At this stage, it was later alleged, the emperor lost control of the situation – he urged a halt, for the troops were tired and thirsty, night was approaching, and the Persians held the hills.³⁰² His men ignored him and forced their way into the enemy camp, looting as they went. They tore the place apart as night was falling, wonderfully illuminated by their torches and the setting sun. They sustained very heavy losses, as the Persians in the hills around bombarded them with arrows, and heavy infantry tried to chase lightly equipped skirmishers.³⁰³ The Romans were left in possession of the field, but they had paid a bitter price. That the situation had indeed dissolved into anarchy is suggested by the brutal treatment of the Persian crown prince, who was ‘taken alive, flogged, tortured, and (a little later) butchered’ – Shapur could hardly negotiate after that.³⁰⁴ Singara must have made it impossible for either side to envisage either victory or peace: it soon turned into a brutal grinding war of ‘small contests of those keeping watch on the frontier’, sporadically punctuated by vicious battles.³⁰⁵ The Persian aim appears to have been the recovery of Mesopotamia and Armenia, an attempt to return the frontier to its state before Galerius’ dramatic victories.³⁰⁶ The struggle became, on the Roman side at least, a largely defensive one, a war of sieges, where Nisibis (‘a city which Rome sometimes swallows, and sometimes spits out’) was attacked three times by the Persians, and Ammianus lavished praise on a commander

³⁰⁰ Libanius, *Or.* 59.105. Portmann, 1989, is vital for the date of the battle. Mosig-Walburg, 1999, is exhaustive, but (e.g. 343) rather exaggerates on the scale of a Roman ‘defeat’, which saw them in possession of the battle-field, the Persian crown-prince dead, and Shapur beating a hasty retreat – had they lost as badly as she argues, Libanius (*Or.* 59) would surely have avoided mentioning the battle at all. One cannot use later (pro-Julianic) sources to ‘prove’ the battle was a disaster (348-52).

³⁰¹ Libanius, *Or.* 59.104-5.

³⁰² *ibid.*, 59.107.

³⁰³ *ibid.*, 59.111-2. Festus 27 confirms the general details.

³⁰⁴ Libanius, *Or.* 59.117.

³⁰⁵ Festus 27.

³⁰⁶ AV 39.36; AM 17.5.6; Zuckerman, 1994.

because of his success in leading sallies.³⁰⁷ Libanius' boast that most of the Syrians now lived in unwall'd cities was remarkable in its hollowness.³⁰⁸

Much historiographical energy has been devoted to unravelling the chronology of the war, with admirable results.³⁰⁹ What has, however, got slightly lost in all this is the profound effect that this long, grim, defensive war had on the way the eastern empire worked. That was partly just a matter of the sheer quantity of imperial time it demanded, for Constantius spent most of the 340s on the eastern frontier, always attentive to the Persian threat.³¹⁰ He was not afraid to get close to the action, and Ammianus has a vivid story of how once, bested by the Persians, he had fled with a few retainers to an outpost called Hibita, where he survived on crusts of bread begged from an old peasant woman.³¹¹ Yet the effects of the war were far wider than that. Peace had left the soldiers at ease, made less onerous the burdens borne by those in public service; war called for money, supplies, huge public expenditure, and (more than that) the endurance of will to last through it.³¹² We can episodically trace its effects in the sources. The Codes speak of enormous efforts to press men into the city councils, the machinery of administration on which the empire relied to move supplies and feed troops.³¹³ They also suggest imperial solicitude for councillors, a keenness to ensure that they could do their jobs in an orderly fashion.³¹⁴ This rhetorical concern for the curials is unsurprising, for the struggle seems to have been largely funded by making their liturgies more onerous: Libanius spoke bitterly of the losses they incurred moving *matériel* to the Tigris.³¹⁵ It was certainly hard to keep men liable for civic duties out of the army – an index of the strain of continuous war.³¹⁶ Other sources of revenue were sought out with increasing ruthlessness. In the late 340s, Julian was shocked by the way the temples were destroyed, pagan rites prohibited, sacred wealth parcelled out.³¹⁷

Ammianus denounced those in the emperor's entourage who had been 'nourished on the spoils of the

³⁰⁷ Festus, 27; Talmud, see Isaac, 1992, 33, n. 91; AM 18.9.3.

³⁰⁸ Libanius, *Or.* 59.79.

³⁰⁹ See especially, Burgess, 1999b, 'Study II', esp. the commentary, 178 ff.; Mosig-Walburg, 1999.

³¹⁰ Barnes, 1993, 219-220.

³¹¹ AM 25.9.3.

³¹² Julian, *Or.* 1.21b-c.

³¹³ *CTh* 12.1.23, 25, 33, 34, 35.

³¹⁴ *ibid.*, 12.1.28, 30.

³¹⁵ Julian, *Or.* 1.21d; Libanius, *Or.* 49.2.

³¹⁶ *CTh* 12.1.38.

³¹⁷ Libanius, *Or.* 18.23.

temples' and a cluster of references makes clear that the demolition and plundering of pagan sacred buildings continued apace.³¹⁸ Libanius recalled Constantius' reign as an era of temple destruction, when the emperor 'gave gifts of temples to his friends as if they were a horse or a slave or a dog or a golden bowl'.³¹⁹ An underappreciated accelerant for this destructive process was perhaps the need to feed the machine of war. There were new taxes as well, levies on property at Alexandria, for instance, while Ammianus speaks generally of the ruthlessness of the revenue-collectors, 'who brought him more hatred than money'.³²⁰ Much of Constantius' unpopularity may reflect the fiscal squeeze which characterised the 340s.

In the *Expositio*, we can detect the civic landscape of the east being reshaped by the gargantuan efforts poured into the war. At Seleucia, the port of Antioch, an enormous new harbour was dug to make it easier to bring supplies to the army, while an inscription from Laodicea Maritima shows extensive building work in another Syrian harbour-town.³²¹ The agricultural bounty of Egypt was in large part sent to the eastern front to feed the troops and sustain the war.³²² The febrile atmosphere of Alexandria – a city which 'truly controls those who govern it', who entered it 'in fear and trembling', terrified of disorders in which they were pelted with stones – perhaps owed much to the need to squeeze 'divine Egypt' for everything it had.³²³ The war's effects were especially noticeable at Antioch, a 'royal city', where the author, wishing to explain the range of goods available there, commented 'since there the emperor has his seat, and on his account there is need of all things'.³²⁴ When Libanius delivered a panegyric of his home city in 356, he looked back on the central role which it had played in the war against Persia.³²⁵ When war broke out, only Antioch could sustain the army which such a campaign required; the sophist sketches the flood of 'all the soldiers, all the archers and cavalrymen, and the horses, both those for war and those to bear burdens, and

³¹⁸ AM 22.4.3; Sozomen 5.2.2; Julian, *ELF* 79, 60.

³¹⁹ Libanius, *Or.* 30.38.

³²⁰ AM 21.16.17, 22.11.6.

³²¹ *Expositio* 28; Aliquot, 2010.

³²² *Expositio* 36.

³²³ *ibid.*, 37.

³²⁴ *ibid.*, 23, 32.

³²⁵ For the date, see Petit, 1983.

every camel and every regiment' into the city.³²⁶ There were so many units in town that their assembled commanders would have made a formidable force, and the business of provisioning, watering, and billeting them was almost miraculous.³²⁷ The city's population swelled enormously, little enclaves of immigrants from different regions forming, while floods of students from all over the east got their education there, and went off to serve governors or their home towns.³²⁸ It is hardly surprising that the city experienced a construction boom, courtiers building on a lavish scale.³²⁹ From Antioch, the tendrils of commerce reached out into the towns of Syria and Palestine, sucking in goods and men.³³⁰ We hear of how Galatia, lesser Armenia, and Thrace were recruiting grounds for the war, and one has a sense, sharpened by the artlessness of the text, of the way that the war was like the tug of the tide on the eastern empire.³³¹ Other crises – riots at Constantinople, or Athanasius at it again – might supervene, but in the background there was always the war. It dragged (conveniently) eastern bishops back from awkward councils, or prevented them from setting out in the first place.³³² Its effects reached deep into Asia Minor, where Libanius records that he was conspired against by a *vicarius* of Pontica who really ought to have been overseeing preparations for the Persian war (the prefect who was superior to the *vicarius* agreed, which was the sophist's saving).³³³ In Nicomedia, he had seen troops of prisoners being sent west.³³⁴ Even in the career of Abinnaeus, engaged in his relentless quest to become prefect of the camp of Dionysias, we find that he had at one stage commanded a convoy of recruits from the Thebaid who were being taken to Hierapolis (in Syria) to be mustered for the Persian campaign.³³⁵

This eastern war dominated life in the empire of Constantius – in some senses it created that empire as something like a coherent unit, bending the east to the single purpose of sustaining the effort on the frontier. It turned Antioch into the *de facto* capital, certainly the city the emperor loved,

³²⁶ Libanius, *Or.* 11.177-8.

³²⁷ *ibid.*, 227

³²⁸ *ibid.*, 164-169, 185-6; *cf. Expositio* 23.

³²⁹ Libanius, *Or.* 178; *ep.* 114.5 *e.g.*

³³⁰ *Expositio* 27, with Laodicea, *e.g.*

³³¹ *ibid.*, 41, 43, 50.

³³² Athanasius, *HA* 11, XVI.2.

³³³ Libanius, *Or.* 1.66, 69.

³³⁴ Libanius, *Or.* 59.84.

³³⁵ *P. Abinn.* 1.9-10.

whose inhabitants would dwell on how Christ and Constantius had been good to them.³³⁶ An entire generation of soldiers and administrators was shaped by the war, and in Ammianus' recollections of the 350s and 360s, the experience of that decade when Constantius ruled only the east loomed large. The cautious way he governed, reliant on a surprisingly small number of advisers and officials to whom he always returned, emerged in the context of a war which consumed his attentions and his efforts – in some ways left him little choice. There was little glamorous about this conflict: visions of conquest had swiftly faded and even Constantius, a man who did not eat or drink much, may have reflected as he chewed crusts of bread at Hibita that this was not quite the war of which he had dreamt.³³⁷ It was unsatisfying to those, raised on Alexandrian declamations, who dreamed of glory: that is perhaps why the sources are so scathing about it. Yet it was not unsuccessful. For over a decade, in the face of repeated Persian attacks, Constantius held the line on the frontier, keeping the King of Kings king of less than he desired. In his account of the invasion of 359, Ammianus envisaged the deserter Antoninus goading the Persians into action: in spite of their victories in pitched battles, in spite of the fact that the Romans had been distracted by civil strife, in spite of the awesome effort they had made, in forty years they had not reached Edessa, or the bridges over the Euphrates, gateways to the heart of Roman Syria.³³⁸ Libanius perfectly well understood the way this defensive strategy worked. In the same year he tried to put steel into the *comes Orientis* Domitius Modestus by reminding him that Shapur had attacked often in the past, and always suffered badly, bitterly regretting his attack.³³⁹ If he crossed the Tigris, he would be unable to take the fortified towns, and find the country ravaged, and if he advanced up the Euphrates, he would similarly fail to capture the cities.³⁴⁰ The Persians did not always fail – they had taken Singara at some stage – but the defining image of the war was of Shapur camped yet again before the walls of Nisibis, failing, yet again, to win the city: 'these cities – their walls are famous – always destroy the courage of the Persians in war'.³⁴¹ That was not glorious, triumphal victory – it was much more useful than that. The

³³⁶ Libanius, *Or.* 11.180; Julian, *Misopogon* 357a-b.

³³⁷ AM 21.16.5, for his moderation.

³³⁸ AM 18.5.7.

³³⁹ Libanius, *Ep.* 49.2.

³⁴⁰ *ibid.*, 49.4.

³⁴¹ AM 19.2.8, 20.6.5; at *Expositio* 22.

contrast to the third century, the last time a divided Roman empire had faced determined and persistent Persian aggression, could hardly be sharper – Constantius was never at much risk of ending his days as a wall-hanging (dyed a tasteful shade of red) in a Persian temple (unlike Valerian).³⁴²

Memories of Constantius' thirteen years on the eastern throne were dark. A near-tyrant emperor ruled, surrounded by wicked advisers to whom he was more or less enslaved. Between them, they mismanaged the Persian war, a sorry tale of defeat and cowardice, marked by the timidity of an emperor who spent his time crawling up and down the eastern front. This vision is sprawling in the evil it attributes to the emperor, vigorous in its assertion that this was what he was. It is also far from the more prosaic, more textured, more ambiguous reality. Constantius gathered around himself men from largely humble backgrounds, who were mostly Christian, and came from all over his portion of the empire. He trusted them, kept them in his government for long, sometimes very long, stretches; they showed him loyalty in return. In their ranks we can begin to detect something like an eastern governing class. The reluctant inheritor of a Persian war for which he did not have the resources, Constantius pursued an unglamorous but successful defensive strategy. For over a decade, the Romans clung on grimly in Mesopotamia, watched and waited as Shapur hurled his army at the cities of the east again. He never got very far. That war reshaped the east, sucking in huge quantities of men and *matériel*, and dominating the activities of the government. Somehow, in the haze of polemic and the necessary spadework of accurate chronology, the remarkable fact that slightly under half the empire faced and saw off a resurgent Persia has gone missing. That was the rule of Constantius: unglamorous for sure, cautious, undoubtedly, but not unsuccessful.

³⁴² Lactantius, *DMP* 5.3-6. cf. Warmington, 1977, 518; Barnes, 1998, 136-8. The most lucid account of the third-century indignities Rome suffered in the east is Potter, 1990, 3-69.

West

Constantius II is always presented in our sources as incompetent, but his vices are the vices of seriousness: severity, suspicion, a grim and unforgiving disposition. One has the sense, not least from the unforgettable description of his visit to Rome in Ammianus, that he was a man who had never smiled, but was confident that he could so do, should the *res publica* require it.³⁴³ Constans was a considerably more colourful figure. His elevation as Caesar in 333 was, we are told, marked by prodigies which forecast turmoil in the state: the face of heaven was on fire.³⁴⁴ He was alleged to have been gay, to have shown undue favour to barbarians, to have loved drinking and carousing, and to have been ‘quite mad when it came to the chase’.³⁴⁵ He wasted time dashing through the woods with suspiciously good-looking barbarian boys: hostages acquired for a pretty price, the ‘live coals of licentiousness’ in Zonaras’ wonderfully vivid phrase.³⁴⁶ His ministers were hateful and oppressive, appointed after bribery, for the emperor was greedy. He himself could hardly be suffered by the provincials or the soldiers. He put the state at risk by his carousing, drunkenness, and unnatural love affairs.³⁴⁷ So debauched was Constans that, while still in his 20s, he had somehow managed to become afflicted by gout: ‘he had grown sick from an excess of pleasures because he lived licentiously’.³⁴⁸ Wafting over these accusations is a sense that he was irresponsible: the contrast with his imperturbable brother in the east is sharp. The final, devastating, charge was that his youth was to blame: ‘he was insufficiently cautious and violent in spirit because of his youth (*per aetatem*)’.³⁴⁹ The tale is surprisingly uniform: there are no significant variations between texts, early and late, Latin and Greek, and (perhaps surprisingly, given Constans’ warm relationship with Athanasius) Christian and pagan. It emerged early on as well: the picture was already present in outline by the time Aurelius Victor was composing his history around 360. He has the main lines of the indictment before him:

³⁴³ AM 16.10.10-11.

³⁴⁴ AV, 41.14.

³⁴⁵ Zonaras 13.6.7.

³⁴⁶ *ibid.*, 6.8.

³⁴⁷ A composite picture from AV, 41.23-4; *Epitome*, 41.24; Eutropius, 10.9.3; Zosimus 2.42.1; Philostorgius 3.22-26a; Zonaras 13.5-6; John of Antioch, fr. 197.

³⁴⁸ Zonaras 13.6.7 (*cf. Epitome*, 41.24; Eutropius 10.9.3). Zonaras calls the disease ἀρθρίτις, and it has been a natural enough assumption to make him say that Constans had arthritis, e.g. Harries, 2014, 205. The word actually suggests gout (as do the symptoms).

³⁴⁹ AV 41.23.

Constans was proud, rash, had vicious ministers, maltreated the soldiers, was suspected of unnatural passions, and showed too much favour to those barbarian hostages.³⁵⁰ Victor, with greater subtlety than he is generally credited, turns Constans' proclivities to good rhetorical effect. Having set them out, he jolts the reader awake: 'would all the same that such vices had persisted!' a sentiment calculated to shock.³⁵¹ He explains that the reign of Magnentius, a barbarian after all, was so bad that men longed for the preceding one.³⁵² By the mid-350s at the latest then, the story of Constans as bad-boy emperor already existed, indeed had in some sense become conventional, so much so that an author could play with it to make a startling, ethically troubling point about recent history. At the time, Victor was probably in Illyricum with the prefect Anatolius.³⁵³ Within a few years of his death, evidently, the sorry tale of Constans' descent into vice was the table talk of the official classes. It was hardly a surprise that the emperor ended up murdered in a Pyrenean church, hunted and alone.³⁵⁴ The history of his reign promises to be entertaining, if rather one-dimensional: a story of a ruler slouching towards revolution and enjoying himself on the way.

It is a compelling tale, full of scandal and interest. The problem is that it comes from the wrong side of 350. It is Constans seen through the distorting lens of coup and civil war, of a period which tore the empire apart and which must have encouraged fevered explanation: Ammianus sniffily remarked that he knew a man who could have saved the emperor from himself.³⁵⁵ In a sense it is entirely predictable: bad emperors are full of vice, and emperors who were overthrown normally turn out to have been bad. It might be better to try to read the reign of Constans from its start, to treat what happened at its end as merely an event, not the basis for the reconstruction of all that went before. To do that, we need some sense of Constans' rule from before he fell: we need to work out what his government was like, who staffed it, and what it tried to do, to see how he was presented, perhaps even presented himself. This is not easy: he has left us few materials for history, and much of the story of the decade in which he ruled the Roman west has to be pieced together from inscriptions,

³⁵⁰ *ibid.*, 41.23-24.

³⁵¹ *ibid.*, 41.24.

³⁵² *ibid.*, 41.25.

³⁵³ *ibid.*, 13.6.

³⁵⁴ Below, 107.

³⁵⁵ AM 16.7.5.

laws, and odd hints in curious texts. Still, it is worth doing not merely because it might give us a view of the emperor different from that found in the later sources, but because it gives us a way to get a grip on that smoothly uniform tale of imperial misconduct. Leaving (with regret) those salacious tales to one side, it makes most sense to turn instead to the considerably more arid territory of the 340s, before coming back to those gossipy obituaries: to unearth Constans, so to speak, from the accretions of a later and hostile tradition, and then bury him under it again.

Aristocrats in Government

We can start with his servants, those wicked men who figure so prominently in later condemnations, and that means turning again to the consuls:

338	Flavius Ursus and Flavius Polemius
339	Constantius Aug. II and Constans Aug. I
340	Septimius Acindynus and L. Aradius Valerius Proculus
341	Antonius Marcellinus and Petronius Probinus
342	Constantius Aug. III and Constans Aug. II
343	M. Maecius Memmius Furius Baburius Caecilianus Placidus and Flavius Romulus
344	Domitius Leontius and Iulius Sallustius
345	Flavius Amantius and M. Nummius Albinus
346	Constantius Aug. IV and Constans Aug. III
347	Vulcacius Rufinus and Flavius Eusebius
348	Flavius Philippus and Flavius Salia
349	Ulpian Limenius and Aconius Catullinus
350	Flavius Sergius and Flavius Nigrinian

Figure II: Consuls from 338-350, western consuls are in bold.

It is not until 340, with L. Aradius Valerius Proculus that we meet a consul of Constans. Proculus was a grand senatorial aristocrat, holder of multiple pagan priesthoods, patron of Puteoli along with several urban corporations at Rome, and a faithful and much honoured servant of Constantine, whose last extant communication was a letter to the senate which begins by evoking ‘the family of Proculus and his virtues, public and private’.³⁵⁶ The elder Symmachus versified his praises, said he was marked by ‘a love of truth and constancy, the simple worship of those who dwell in heaven’, and playfully suggested that he was not unworthy of the great Republican Valerii Publicolae.³⁵⁷ In the crucial period of 337-8, he was prefect of the city of Rome from the 10th of March until the 18th of January, spanning the perilous transition: there was serious discontent in the city when Constantine was not buried there, and the situation must have been tense. The consulship was probably the reward of service at such a time.³⁵⁸ He was succeeded in 341 by two more western consuls. Antonius Marcellinus had first been *praeses* of Lugdunensis and then proconsul of Africa, where the town council of Bulla Regia praised his ‘famous family’, which may have had a background in Spain, but was clearly by the fourth century resident in Italy.³⁵⁹ In the early 340s, he was praetorian prefect, the servant of Constans who received grim instructions after the death of Constantine II about abolishing the acts of that public enemy.³⁶⁰ He had a distinguished posterity, for he was related to the saintly and well-attested Melania the elder.³⁶¹ She married well, perhaps to one of the senatorial Valerii, so Valerius Proculus may have been an in-law.³⁶² Marcellinus’ colleague, Petronius Probinus, is rather more shadowy.³⁶³ He went on to serve as prefect of the city of Rome in 345-6, but we are otherwise ignorant of his career.³⁶⁴ His son, however, was that panjandrum of the Theodosian age Sextus Claudius Petronius Probus, honoured by an inscription at Verona, which reveals his connection to

³⁵⁶ *PLRE* ‘Proculus 11’. *pace* Salway, 2008, 306, nothing suggests he was a nominee of Constantine II. *AE* 1934, 158.

³⁵⁷ Symmachus, *Ep.* 1.2.4; as Arnheim, 1972, 138-9, shows, it is just possible to trace a link back to them.

³⁵⁸ *AV* 41.17; *Chron.* 354 *s.a.*

³⁵⁹ *PLRE* ‘Marcellinus 16’; *CTh* 11.3.1; *CIL* 8.25534. Palladius, *Historia Lausiaca* 46.1, comments rather oddly that Melania (his relative) was ‘Spanish by race, that is to say (εἰτοῦν) Roman’.

³⁶⁰ *CTh* 11.12.1, *cf.* 6.22.3, and *CIL* 3.12330, where he is senior to Domitius Leontius and Fabius Titianus.

³⁶¹ Grandfather (Paulinus of Nola, *Ep.* 29.8) or father (Jerome, *Chron.* 247d; Palladius, *Historia Lausiaca*). Either Paulinus (her relative, *Ep.* 29.5) or Jerome (who often mentions her *PLRE* 592-3) could be correct.

³⁶² Her son was called Publicola, perhaps even Valerius Publicola (*PLRE* ‘Publicola 1’), a name suggestive of a connection, Arnheim, 1972, 70.

³⁶³ *PLRE* ‘Probinus 2’.

³⁶⁴ *Chron.* 354 *s.a.*

Probinus and shows that he was the son of Petronius Probianus, who had been prefect of the city of Rome from 329-331 and consul in 322.³⁶⁵ Petronius Probus was honoured by the Veronese as ‘a citizen of outstanding goodness’ and at Rome the Venetians and Istrians set up another statue to him, describing themselves as his ‘special friends’ (*peculiares eius*).³⁶⁶ Probus, vaulting from one praetorian prefecture to another, was hardly a citizen of Verona in the residential sense, and what the inscriptions probably reveal is that his family came from the region. Such is also suggested by the elder Symmachus, who challenged fortune to boast of others it had elevated by its own whim, but vaunted the ‘Italian simplicity of morals and cleverness’ of Petronius Probianus, which had raised him up.³⁶⁷ Aristocrats are not generally praised for their simplicity, and to praise it without mentioning ancestors suggests that Probianus was the man who made the family fortune.³⁶⁸ His son, then, was not quite a *novus homo*: a member of the senatorial aristocracy, albeit from a recently established clan. Petronius Probus was a Christian, but his father’s faith is unknown.³⁶⁹ The connection to Verona, a city which Constantine took in a desperate battle in 312, is intriguing, and one wonders if the Petronii made their fortunes during the invasion of Italy.³⁷⁰ Three consuls, three Italian aristocrats.

The next nominee of Constans was cut from the same cloth: the resplendently polynomious M. Maecius Memmius Furius Baburius Caecilianus Placidus (cos. 343), held several important pagan priesthoods and had served Constantine loyally.³⁷¹ He was the praetorian prefect of Constans in the mid 340s, probably at the same time as he was consul, and went on to serve as prefect of the city of Rome (346-7).³⁷² He was probably a grandson of C. Memmius Caecilianus Placidus, a senator, augur,

³⁶⁵ *CIL* 5.3344; *PLRE* ‘Probianus 3’; ‘Probus 5’. Pace Arnheim, 1972, 67-8, he should not be connected with Petronius Annianus (PPo under Constantine): the *nomen* was common (*PLRE* 691).

³⁶⁶ *CIL* 6.1751.

³⁶⁷ Symmachus, *Ep.* 2.

³⁶⁸ Arnheim, 1972, 111 and Chastagnol, 1962, 82-4, have him as a relative of the senatorial Petronii; this (given the evidence of Symmachus), seems unlikely. Cameron, (2012), 136-8, refutes the idea that Probinus married a member of the *gens Anicia*.

³⁶⁹ Barnes, 1973, 149 suggested his father was the ‘Probus’ to whom Lactantius dedicated a work – this is to play fast and loose with nomenclature. He thus supposed 1989, 317 that Probinus was a Christian.

³⁷⁰ The battles vividly described in *Pan. Lat.* 12.8-11.

³⁷¹ *PLRE* ‘Placidus 2’.

³⁷² *CTh* 12.1.37 shows he was in office in 344. An unpublished inscribed letter from Delphi (most easily consulted – in translation – Athanassiadi, 1991, 276-7) lists Placidus after Domitius Leontius and Fabius Titianus, who were (above, n. 360) junior to Antonius Marcellinus, in office in 340. *Chron.* 354 s.a.

and suffect consul of the mid-third century, who was in turn probably a descendant of the Memmii of Gigthis in Africa Proconsularis, who had entered the senate under Hadrian.³⁷³ Senatorial Baburii are recorded at Hippo Regius, and he may also have had family from there.³⁷⁴ By the fourth century, the family had extensive Italian links: like Proculus, Placidus was a patron of Puteoli. M. Nummius Albinus, *signo* Triturrius, (cos. 345) was similar. He was apparently sufficiently grand to omit a career in service altogether: a *cursus* from what was probably his house on the Quirinal in Rome, mentions only the standard steps of the urban senatorial career, comital dignity, and tries to claim he was twice ordinary consul.³⁷⁵ The discovery of an inscription honouring Marcus Nummius Attidius Tuscus, a second-century senator, in the same spot suggests (as do their names), that the consul of 345 was from a family which had been senatorial for a very long time. In fact, Nummius Albinus was perhaps the son of M. Nummius Ceionius Annius Albinus, a senator and urban praetor, and through him the grandson of Nummius Ceionius Albinus, the consul of 263.³⁷⁶ That man's father was perhaps M. Nummius Senecio Albinus, consul in 227, and his brother M. Nummius Tuscus, the consul of 258, whilst that man's son was Nummius Tuscus, the consul of 295.³⁷⁷ Senecio Albinus was probably related to M. Nummius Umbrius Primus Senecio Albinus, consul in 206, and through him the family may ultimately trace another branch of their ancestry to a landowner in the time of Trajan.³⁷⁸

Vulcacius Rufinus (cos. 347) was no less blue-blooded. He was the brother (perhaps half-brother, given the difference in their names) of Naeratius Cerealis (cos. 358), the scion of a family which had produced consuls from the time of Vespasian and which had deep roots in the municipal aristocracy of the late Republic.³⁷⁹ Their sister, Galla, had married Iulius Constantius, the half-brother of Constantine, and so they inhabited the very loftiest stratum of aristocratic society, distinguished not only by the most azure of blood, but connected to the ruling dynasty. In the year of Rufinus'

³⁷³ *PLRE* 'Placidus 3'; *CIL* 6.31737, 8.22178, 22729.

³⁷⁴ *AE* 1958, 137-8.

³⁷⁵ *CIL* 6.1748, with Hillner, 2003, 139. Chastagnol, 1962, 95 suggests he held a second ordinary consulship under Nepotian or Magnentius, but there is no evidence for this. Perhaps he had been designated to another ordinary consulship (*CLRE*, 4), but died before he could take it up? If so the honour done him was remarkable.

³⁷⁶ *PLRE* 'Albinus 7', 'Albinus 9'. Their stemma (*PLRE*, 1141) is more forthcoming than any of the entries.

³⁷⁷ *PLRE* 'Tuscus 1'. Arnheim, 1972, 131, a third- or fourth-century pot-herd from Carthage inscribed 'Numm. Tus/ci et Albin/I cc.vv' strongly suggests that the two families were connected.

³⁷⁸ Arnheim, 1972, 131.

³⁷⁹ *PLRE* 'Rufinus 25', 'Cerealis 2'. Arnheim, 1972, 115-8.

consulship, the citizens of Ravenna paid for a statue to be dedicated in the vestibule of his house at Rome, which lauds the ‘innumerable records of his lofty kindness’ and gives a reasonably full account of his career.³⁸⁰ He was *consularis* of Numidia, when he presumably became patron of Timgad.³⁸¹ He then became a *comes* of the first rank in the *consistorium*, probably in Constantine’s last years. He went from there to service as count of the east, Egypt, and Mesopotamia, where a law shows he was in office in 342.³⁸² Summoned back to the west, he was serving as praetorian prefect when consul, active in Pannonia, where an inscription records him building granaries.³⁸³ He held that office until the end of Constans’ reign, in post as the coup against his master unfolded.³⁸⁴ He was also a *pontifex maior*. In old age, he returned to office to serve Valentinian, and Ammianus gave him barbed praise as ‘perfect in every way, as though holding out the peak of an honoured old age, though he never omitted favourable opportunities for graft if there was hope of concealment.’³⁸⁵ Rufinus was grand, very grand, Italian, perhaps patron of Ravenna (given the statue), and a pagan.³⁸⁶

His colleague was rather different. Flavius Eusebius was a soldier, a very senior general, the *magister equitum et peditum* at the time he held the consulship.³⁸⁷ He was the father of the empress Eusebia, the wife of Constantius II in the 350s, and from Julian’s speech in her honour, we learn a little more about the family: they were Macedonians, from Thessalonica.³⁸⁸ Julian (naturally) said that the empress was of noble birth, but the strongest proof of this he could bring forwards was that her father had held the consulship: he was said to have been ‘the originator of the honour of his

³⁸⁰ *CIL* 6.32051 = LSA 1253.

³⁸¹ *CIL* 8.2403, with Chastagnol, 1978, esp. 42-3.

³⁸² *CTh* 12.1.33.

³⁸³ *CIL* 3.4180. The papyri collected in *CLRE*, 229 show he was prefect at the same time as being consul.

³⁸⁴ *CJ* 6.62.3 (28th December 349).

³⁸⁵ *AM*, 27.7.2.

³⁸⁶ cf. Chastagnol, 1992, 444, n. 70.

³⁸⁷ *PLRE* ‘Eusebius 39’; for his rank, see *CTh* 11.1.1, the transmitted date of which is obviously corrupt. It is normally (Mommson *ad loc*; Seeck, 1919, 44; *PLRE*) resolved to 360, but were that so, Datianus would have been called *ex console* in it. The date is perhaps 354 and the place of issue not Constantinopolis but Arles (Constantina). Papyri from 347 term Eusebius only a *comes* (*CLRE*, 229), so *PLRE* deduced that he was retired by then, but Fl. Sallustius is referred to as *comes* alone on one consular papyrus (*P. Princ.* 2.81.1 = 3.181), though in post at the time (*P. Abinn.* 2.10). *PLRE* (cf. *CLRE*; Salway, 2008; 305; Lee, 2015, 110) assumed that Eusebius was an eastern general, but Macedonian origin (ruled by Constans and ‘western’ since 316), would argue otherwise.

³⁸⁸ Julian, *Or.* 3.106b-107d, 110b.

family'.³⁸⁹ Evidently, Eusebia's ancestors before him were not worth mentioning, and, noting also his dynastic *nomen*, it seems likely that Eusebius was from a relatively humble background and owed his status to service. The empress was a Christian, and it is possible her father was as well.³⁹⁰ The next western consul certainly was: Flavius Salia (cos. 348) was sent by Constans to his brother in the aftermath of the council of Serdica, and is described by Theodoret as 'conspicuous for his piety and righteousness'.³⁹¹ The ecclesiastical historian calls him a 'general', while papyri from his consulship reveal that he was *magister equitum*.³⁹² His name suggests a barbarian, perhaps Burgundian, origin.³⁹³ Two generals, one certainly Christian, the other perhaps so, one of humble, one of barbarian origin, are markedly different to the other consular nominees of Constans – they perhaps reveal the very different make-up of the leadership of the army.

The final consuls nominated by Constans held the honour in 349: Ulpius Limenius and Aconius Catullinus, *signo* Philomathius.³⁹⁴ At the time, Limenius was serving simultaneously as praetorian prefect and prefect of the city of Rome: he may well have died in the course of his consulship, for there was an interregnum of 41 days between his leaving office and the next prefect (Hermogenes) taking it up.³⁹⁵ Limenius had earlier served in the east, a proconsul at Constantinople with whom Libanius had tangled, but we are ignorant of his background.³⁹⁶ His *nomen* suggests that his family received citizenship from Trajan and his *cognomen* would appear to be Greek: he may then have been from a prominent family in the Balkans, but it is hard to be sure.³⁹⁷ Catullinus is a more familiar type. His father had been a proconsul of Africa, and, since Aconius is a rare name, we can probably trace his family to Volsinii, where an L. Aconius Callistus, a senator in the third century, lived, and beyond him to a range of men from the region, sturdy local gentry, with occasional forays

³⁸⁹ *ibid.*, 107d, 108c.

³⁹⁰ *PLRE* 'Eusebia'.

³⁹¹ Theodoret 2.8.54.

³⁹² *CLRE*, 231.

³⁹³ Schönfeld, 1911, 197, s.v. 'Salaverus'.

³⁹⁴ *PLRE* 'Limenius 2', 'Catullinus 3'.

³⁹⁵ *Chron.* 354 s.a.

³⁹⁶ Barnes, 1989a, 318 is prepared to push Libanius, *Or.* 1.46 (where Limenius prays to Fortune that he might kill the orator) so far as to make him a pagan. He may be right.

³⁹⁷ Instances of the name Limenius are surprisingly few and mostly later (see Trismegistos, People Database Name ID 10169). Ulpius (Name ID 7866) as a *nomen* has no certain attestations in the papyri from before the reign of Trajan, but is frequent after that.

into imperial service.³⁹⁸ Catullinus himself was an early consular *praeses* of Gallaecia, where he put up a dedication to Jupiter.³⁹⁹ He was then *vicarius* of Africa and praetorian prefect (in office in 341), before taking up the urban prefecture in 342 and holding it to 344.⁴⁰⁰ His daughter, Fabia Aconia Paulina, who was an enthusiastic participant in Greek mystery cults, married Vettius Agorius Praetextatus, one of the leading pagan aristocrats of the next generation.⁴⁰¹ Her name suggests that her mother may have been one of the Fabii, so Fabius Titianus may have been an in-law. Since she got married in 344, her father was presumably of some age in 349.⁴⁰² That would match his holding the consulship so long after he last held office, and one wonders if he was a stop-gap, appointed because someone had died.

Constans' consuls were men of a type: aristocratic, relatively old, Italian, and pagan. In some ways their nobility is the most striking thing about them. The least grand of them was Probinus and even he was the son of one consul and father to another: his family may have been gentry in northern Italy for all we know and what Symmachus called *Itala simplicitas* probably looked rather more prestigious at Verona. The rest could show consuls in every branch of the family tree back to the second century, or trace their lineage to local aristocrats of the late Republic or Principate. Now, senators had always had a claim on the *fascēs*, but what is striking about Constans' consuls is that he did not merely lavish honour on senatorial aristocrats: they ran his government for him, its highest reaches dominated by a blue-blooded clan, promiscuously connected to each other as members of what M.T.W. Arnheim called the 'aristocratic cousinhood'.⁴⁰³ They held not merely the traditional senatorial offices – the proconsulship of Africa and the Urban Prefecture – but the praetorian prefecture, which had only really been open to those with the *latus clavus* for a generation.⁴⁰⁴ These powerful aristocrats were also relatively old, significantly older than their emperor. Most of them had started their careers under his father, often reaching positions of some seniority: they may well have

³⁹⁸ Arnheim, 1972, 79.

³⁹⁹ *CIL* 2.2635.

⁴⁰⁰ *CTh* 8.2.1 = 12.1.31; *Chron.* 354 s.a.

⁴⁰¹ *PLRE* 'Paulina 4', 'Praetextatus 1'; *CIL* 6.1780.

⁴⁰² *CIL* 6.1779.

⁴⁰³ Arnheim, 1972, Chapter V.

⁴⁰⁴ The chronology is murky, but by the 330s the prefecture was no longer an equestrian, but a senatorial office (see the dedications at Antioch and Tubernuc, above, 34-5), so prefects were senators and (crucially) senators could be prefects.

been sent back to Italy in the entourage of Constans in the late 330s. By the time he became an Augustus, many of them would have been in their 30s or 40s, and there was not much turnover in the more-than-decade which followed: Fabius Titianus seems to have been a praetorian prefect for almost the entire 340s.⁴⁰⁵ By 350, then, the governing elite of the western empire was a relatively old one. The contrast with the regime of Constantius could hardly be sharper.

Naturally, not all reaches of the administration had some *vir clarissimus* at their head: there were hardly enough of them and they would not all have so deigned to serve. There were men in positions of power from humbler backgrounds, the generals Salia and Eusebius for a start. There were also figures like Flavius Eugenius, who held, as an inscription in his honour breezily states, ‘all the palatine dignities’, ending up as praetorian prefect, and was consul designate at some stage in the 350s, when Constantius and Julian restored a golden statue of him erected at Rome by Constans.⁴⁰⁶ He was perhaps from Corinth, where he feuded with Aristophanes, the friend of Libanius, to whom he was evidently connected by marriage.⁴⁰⁷ The sophist mocked the way that ‘little Eugenius became great under Constans’ and he was perhaps from the same curial background as Aristophanes.⁴⁰⁸ One wonders about men like Eusebius ‘Mattyocopa’ (‘pudding-basher’), the *comes rei privatae* of Constans, or Orion, his successor, or Bulephorus (‘counsellor’), the *rationalis summae rei*, whose Greek names certainly do not suggest senatorial or Italian origin, but who are almost totally obscure to us.⁴⁰⁹ Like the army, the fiscal arm of the state was perhaps the preserve of men from less grand backgrounds who had worked their way up. Still, one only has to glance beyond the consuls of Constans to men like Fabius Titianus (cos. 337), to find another high-born prefect, both praetorian and urban, of Constans, again a pagan, and a patron of Suessa. Jerome praised his eloquence, and claimed his family was descended from the Republican saviour of the state, Fabius Cunctator, an exaggeration, though they can be traced through collaterals back to the first century and had been

⁴⁰⁵ He was certainly still prefect in 349 (*CTh* 7.1.3 May 30th), and his appointment must fall early in the 340s (above, n. 372). He may of course have had stints out of office in between these dates.

⁴⁰⁶ *PLRE* ‘Eugenius 5’; *CIL* 6.1721. *pace PLRE*, there is no reason to think he was dead by 350 (Athanasius, *AC* 3.6, thought he was still alive in the 350s (see Barnes, 1993, 196-7)), nor that his prefecture was honorary (unless one presupposes a fixed college of prefects).

⁴⁰⁷ Libanius, *Or.* 14.10.

⁴⁰⁸ For which see *Or.* 14.1, 5-6, though his father was a senator.

⁴⁰⁹ *PLRE* ‘Eusebius 6’, ‘Orion’, ‘Bulephorus 1’.

senators since at least the late second.⁴¹⁰ His daughter probably married the elder Symmachus.⁴¹¹ Or one could turn to Mavortius Lollianus, prefect of the city in 342, another pagan with an aching grand *stemma*, reaching back to consuls and legates of the third century, and possibly connecting him to the wife of the emperor Valerian.⁴¹² Even further down the administrative hierarchy, we find similar individuals. L. Crepereius Madalianus was a true senatorial bureaucrat, who (under Constantine) held a fistful of junior offices, was then *corrector* of Flaminia and Picenum, *consularis* of Pontus and Bithynia, and went on to serve Constans as prefect of the *annona*, *vicarius* of Italy, and proconsul of Africa.⁴¹³ His family did not inhabit the same Olympian heights as the Nummii – they had perhaps only entered the senate in the third century – but they were still grand.⁴¹⁴ When the author of the *Expositio* turned his attentions to Rome, he pointed out its ‘senate, the greatest one, of wealthy men, whom, if you wish to examine them individually, you will find all have either been made governors or are going to be’.⁴¹⁵ He knew whereof he spoke. Such men, in sharp contrast to their colleagues in the east, were powerful in their own right: magnates with extensive lands and clients scattered across the western empire.⁴¹⁶

As the social status of those who served Constans is remarkable, so is the extent to which they were all representatives of a particular part of a particular regional aristocracy: they were all Italians. Of course, any government with a strong senatorial contingent was likely to be superficially peninsular: senators resided in Italy and naturally picked up local associations.⁴¹⁷ The *amplissimus ordo* sucked in men from all over the empire, was subject to the whims of imperial patronage, as when Constantine had stocked it with his partisans after 312 – betrousered Gauls for a new age.⁴¹⁸ Constans’ servants, however, were *echt* Italians, men whose filigree of connections reached out into

⁴¹⁰ *PLRE* ‘Titianus 6’; Arnheim, 1972, 119-122; Mommsen, 1881, 153-4. Jerome, *Chron.* 236d, *Ep.* 77.2. Cameron, 2011, 138-9 argues for a rather lower social status than sometimes thought, though without apparent attention to the evidence above; in any case marriage with the Symmachi should imply some grandeur, if we follow Cameron, 1999 as to quite how blue-blooded they were.

⁴¹¹ *PLRE* ‘Stemma 27’.

⁴¹² *PLRE* ‘Lollianus 5’; Arnheim, 1972, 122-3.

⁴¹³ *PLRE* ‘Madalianus’.

⁴¹⁴ Arnheim, 1972, 133. African origin? Levick, Jameson, 1964, 104-6.

⁴¹⁵ *Expositio* 55.

⁴¹⁶ *Inter plurima alia*, see Matthews, 1975, ch. I on the world of the senator.

⁴¹⁷ Paulus, *Ad edictum* 41= *Digest* 1.9.11.

⁴¹⁸ *Pan. Lat.* 4.35.1-2.

the old *municipia*: they were patrons of Ravenna or Puteoli or Suessa, descendants of *duoviri* in Republican *coloniae*. Under Constans, the western empire was effectively a fiefdom of the Italian aristocracy – again the contrast to the servants of his brother, drawn from all over the eastern empire, is stark. As John Matthews showed for a slightly later period, there was nothing inevitable about a western empire being dominated by Italians.⁴¹⁹

This dominance of the Italians perhaps conceals something else very interesting: it is extremely difficult to detect officials from what had been the realm of Constantine II in the service of Constans at a senior level. We are, it is true, astonishingly poorly informed about those who served Constantine II: all we can do is pick out a few names here and there. An inscription attesting the restoration of a circus at Mérida ‘in the most flourishing and blessed age’ of the three sons of Constantine reveals to us one Iulius Saturninus, the equestrian *praeses* of Lusitania, and Tiberius Flavius Laetus, an old comrade of Constantine, and now a *comes* and senator.⁴²⁰ What must be a law of Constantine II reveals the *praeses* of Baetica, one Egnatius Faustinus.⁴²¹ Attempts have been made to suggest that the father of St Ambrose was the emperor’s praetorian prefect, because the bishop’s biographer describes him as ‘stationed in the administration of the prefecture of the Gauls’, and the saint was born in either c. 334 or c. 340.⁴²² Paulinus, however, never otherwise uses such a bureaucratic periphrasis and one has the sense that he has done so here because he was not actually certain about Ambrose senior’s job.⁴²³ His informant for the episode was probably Marcellina, Ambrose’s elder sister, who told him a story about how when Ambrose was lying in a cradle in the courtyard of the *praetorium*, a swarm of bees entered his mouth: an omen of his honeyed tongue.⁴²⁴ One wonders if he has simply deduced the father’s job from the physical setting of the anecdote. On such a slender foundation, we would not necessarily expect to be able to trace servants of Constantine

⁴¹⁹ Matthews, 1975.

⁴²⁰ AE 1975, 472; PLRE ‘Laetus 1’ (add P. Oxy. 3620, showing he was *praefectus Aegyptii*); ‘Saturninus 13’. Chastagnol, 1976.

⁴²¹ CTh 11.9.2. PLRE ‘Faustinus 9’.

⁴²² Paulinus, *Vita Ambrosii* 3.1. McLynn, 1994, 32-3 opts for 339. Prefect: PLRE ‘Ambrosius 1’; Mazzarino, 1989, 79-81; Barnes, 1992, 251, 253; *idem*, 2007, where Paulinus’ wording is both (44) ‘precise and factual’ and (47) ‘strangely ambiguous’, erroneous (there was no *Gallic* Prefecture), and corrupt (the name ‘Ambrosius’ (46) is interpolated). All this because he is keen to revive Mazzarino’s gambit that Ambrose sr. was actually called Uranius and received CTh 11.1.4 (which would then ‘prove’ he was prefect, after all).

⁴²³ cf. Paulinus, 5.1, 8.3; 26.1; 26.3, 31.2; 31.5; 34.1.

⁴²⁴ *Ibid.*, 3.2. cf. McLynn, 1994, 33.

II into the government of his brother. The fact, however, that we cannot and that the careers and origins of Constans' men mostly rule out some service in Gaul, Spain, or Britain in 337-340 is striking. It suggests that there was very little overlap between the men who staffed the administrations of the two brothers. A few other hints point in the same direction. Gaul was run, at least in the 340s, by Fabius Titianus and the only provincial governor of the period was M. Aurelius Consius Quartus Iunior, an Italian who had held a fistful of offices, and was patron of Ancona, Fanum, and (perhaps) Lucera.⁴²⁵ The only general of Constans whom we know served in Britain (Gratianus, father of Valentinian and Valens), had previously seen action in Illyricum and Africa (both regions ruled by Constans).⁴²⁶ The father of Ambrose, who (whatever his position) probably did work for Constantine II, seems to have died in mysterious circumstances when his son was young: Saturninus, Laetus, and Faustinus all vanish too.⁴²⁷ It looks very much as though there was a clean sweep of the high ranks of the army and administration after the death of Constantine II, and that the regime of Constans was careful to put its own men into posts in newly acquired territory. After 340, that is, the Italians simply walked out of their ancestral stamping grounds, and ran everything.

It is hardly surprising, given their age and noble background, that Constans' servants were largely pagan as well. Of course, priesthoods of the traditional cults were as much markers of social status as signs of religious obedience, and we should not assume that a man who held one was a wild-eyed fanatic: some were clearly more devout than others.⁴²⁸ Still, presumably senators did not take them unless they could perform the rituals with some semblance of sincerity and it is striking that so many of Constans' servants felt they could. With the exception of Salia, there is no explicit evidence that any of Constans' consuls were Christians, while three were pagan priests and another had erected a dedication to Jupiter. In the east in the 340s, high office was dominated by Christians, even if there

⁴²⁵ Jerome, *Chron.* 236d; *PLRE* 'Quartus 2', with *AE* 1983, 247; Barnes, 1985c, 146.

⁴²⁶ *PLRE* 'Gratianus 1'; *AM* 30.7.2-3 (a *t.a.q* of 350 for his career), Symmachus, *Or.* 1.1-2. Lenski, 2002, 36-41; Drijvers, 2015.

⁴²⁷ Paulinus, 2.4.

⁴²⁸ As Cameron, 2011, 132-141, has wisely cautioned.

was clearly still space for pagans in the state. In the west, in contrast, the Christian emperor was surrounded by worshippers of the Gods.

War and Western Christianity

It was an irony of Constantinian history, perhaps one lost on those involved, that this strikingly pagan and Italian administration, spent its time preoccupied with wars on the northern frontiers and an aggressively moralising and Christian legislative programme. Constantine spent most of his reign in Gaul, at Trier, or in the Balkans watching the Danube – tracing a path across northern Italy to get between them.⁴²⁹ Constantius faced a grinding war with Persia, but his brother had inherited extremely long frontiers, ones which brought their own problems. He spent much of the early 340s fighting on the Rhine: first against the Franks, who seem to have defeated him in 341 before he won a crushing victory in 342, and then the Alamanni, who were said to have been terrified of him.⁴³⁰ The amount of time he spent in the Balkans suggests that the frontier there was unquiet, though we are ignorant of any details.⁴³¹ In 343, at the end of his Frankish campaign he made a visit to Britain, troubled by raiding barbarians.⁴³² A contemporary caught the mood of triumph:

You have conquered the enemy, you have extended the empire, and that greater glory should be added to your mighty deeds, with the order of the seasons despised and altered, you trampled under foot the swelling and raging waves of the ocean – something which has never happened at any time before, nor will. The waves of a sea almost unknown to us trembled beneath your oars, and Briton grew terrified at the unlooked for face of the emperor. What more do you wish? Conquered by your mighty deeds, the elements have yielded.⁴³³

As the emperor made this victorious progress along his frontiers, his government was engaged in what approached a reformation: the imposition of the Constantinian religious settlement on the West.

In the east, for all the fury of theological controversy which tortured his government, Constantius was heir to his father's Christian empire. This was the world Constantine had acquired at a stroke in 324 and on which he had noisily imposed a religious settlement, one still more noisily

⁴²⁹ *Expositio* 57, 58; Barnes, 1993, 224-5.

⁴³⁰ Jerome, *Chron.* 235b, e; AM 30.7.5.

⁴³¹ Barnes, 1983 suggests a campaign in 338.

⁴³² AM 20.1.1.

⁴³³ FM, DE 28.6: *Vicistis hostes, propagastis imperium et ut uirtutibus uestris gloria maior accederet, mutato ac contempto temporum ordine, hieme - quod nec factum est aliquando nec fiet - tumentes ac saeuientes undas calcastis Oceani. Sub remis uestris incogniti iam nobis paene maris unda contremuit et insperatam imperatoris faciem Britannus expauit. Quid amplius uultis? Virtutibus uestris uicta elementa cesserunt.*

celebrated by Eusebius: the problems his son confronted were those of continuity. In the West, Constans faced a much more ambiguous situation in an empire acquired piecemeal by his father, never subject to that rhetorically aggressive and politically cautious assault on paganism which had occurred after 324. The regime of Constans set to work with vigour. In 341, Constans issued a thunderous denunciation of pagan practices:

Let superstition cease, let the madness of sacrifices be abolished. For whoever has dared to celebrate sacrifices contrary to the law of the deified prince, our father, and this order of our clemency, let the fitting vengeance and present sentence be stretched forth against him.⁴³⁴

This is Constans as the pious Christian emperor, a stern overseer for any of his subjects who might be inclined to indulge in some of the traditional practices of Roman religion: tough on paganism, tough on the causes of paganism. Despite the law's vagueness in its current form (what exactly is the 'present sentence'?), it shows the government of Constans imposing one of the key features of Constantine's religious settlement on the west, and doing so self-consciously.⁴³⁵ Those other Constantinian tics, moralising legislation and favour for the Church, are soon in evidence as well. In 342, Constans menaced 'disreputable men' (seemingly homosexuals) who sought to engage in an activity 'where Venus is changed into another form': 'let the laws rise up, let justice be armed with an avenging sword, so that they may be subjected to special punishments'.⁴³⁶ The next year, restating the provisions of an earlier (paternal?) measure, he hastened to assure clerics of their immunities, and firmly stated that they were exempt from the burdens of the state which others had to bear, a privilege which he reaffirmed in 349.⁴³⁷ Constans' laws are few in number, their clipped tone in sharp contrast to the suffocating bombast of Constantine's later legislation, but they hint at a regime busily engaged in the promotion of Christianity and suppression of paganism.

This portrait of a pious, anti-pagan prince neatly matches the man whom Athanasius met on those occasions when he absolutely, definitely did not say anything rude about the emperor

⁴³⁴ *CTh* 16.10.2: *Cesset superstitio, sacrificiorum aboleatur insania. Nam quicumque contra legem diui principis parentis nostri et hanc nostrae mansuetudinis iussionem ausus fuerit sacrificia celebrare, competens in eum uindicta et praesens sententia exeratur.*

⁴³⁵ Bradbury. 1994 for Constantine's measures on sacrifice.

⁴³⁶ *CTh* 9.7.3. The text is corrupt. Mommsen occluded matters by merging the *CJ* and *CTh* texts into a version which is nonsense, and crucially nonsense not actually present in any single manuscript; however, FM, *DE* 12.2 confirms that there had recently been legislation against homosexuality. Seeck, 1919, 49 correctly emended the date to 342.

⁴³⁷ *CTh* 16.2.8 (ascription of the law to Constans uncertain); 16.2.9.

Constantius at all.⁴³⁸ Often lost in the study of these episodes, concealed by the furious energy of the bishop of Alexandria's self-defence, is what they tell us about Constans. He was baptised, and filled the churches with generous offerings (the sight of which, the bishop added, did not deter Magnentius from murdering him).⁴³⁹ He engaged in pious study, writing to Athanasius to request copies of the Scriptures from him.⁴⁴⁰ He was observant also: Athanasius once met him at an Easter service, and Zonaras suggests that at the end of his life he fled to a church, from which he had to be dragged to be murdered.⁴⁴¹ His court was packed with prelates, and one of the most interesting things about Athanasius' reports of his encounters with the emperor is the rotating cast of bishops who feature: Fortunatianus of Aquileia, Hosius of Cordoba, Crispinus of Pavia, Lucillus of Verona, Dionysius of Elis, Vincentius of Campania, Maximinus of Trier, and Protasius of Milan.⁴⁴² These were not just the bishops of the city in which Constans happened to be, dutifully attending their monarch: they are evidence that wherever he went Constans had lots of clerics around him. The western bishops at the council of Serdica had noticed this. They expressed frustration at the way that some of their number were forever on their way to the *comitatus*, desperate for worldly dignities, and stipulated that only those actually summoned by the emperor should turn up.⁴⁴³ A similar portrait of the emperor emerges from his interactions with the Christian sophist *par excellence* of his day, Prohaeresius of Athens.⁴⁴⁴ The emperor summoned the sophist to his court, probably in 343 when he was in Gaul, and was enormously taken with him, giving him a place at table with those in positions of honour.⁴⁴⁵ Prohaeresius much impressed the Gauls, not by his incomprehensible Greek philosophy, but by his physical appearance and disregard for cold weather.⁴⁴⁶ Constans, eager to convey the glory of the age to his subjects at Rome, sent Prohaeresius to them, where the citizens, again impressed, erected a statue to him.⁴⁴⁷ The emperor ultimately sent him back to Athens, with the title of στρατοπεδάρχης

⁴³⁸ Refuting this charge is one of the central concerns of Athanasius, AC, programmatically 2.1, further 3.3.

⁴³⁹ *ibid.*, 7.2-3.

⁴⁴⁰ *ibid.*, 4.2.

⁴⁴¹ *ibid.*, 15.4; Zonaras 13.6. On Constans' churchgoing, see McLynn, 2004, 243-6 for illumination.

⁴⁴² Athanasius, AC 3.6. For the identity of Dionysius, see Barnes, 1993, 65, n. 9.

⁴⁴³ Serdica, c. 8.

⁴⁴⁴ In general: Penella, 1990, 83-94; Watts, 2006, 48-78, esp. 59-62.

⁴⁴⁵ Eunapius, VS 10.72. Barnes, 1987, 208-9.

⁴⁴⁶ Eunapius, VS 10.72-3.

⁴⁴⁷ *ibid.*, 10.74-5.

and a grant of tribute to the city from several islands to ensure its food supply.⁴⁴⁸ We can just detect something of the character of the court of Constans, as the emperor made his progress from the Danube to the Rhine, full of pagan administrators and bishops, holding out the prospect of advancement to Christian intellectuals.

It was not just at court that Christianity was in the ascendant. Constans' reign witnessed a surge in the number of Christians and the construction of huge new Christian temples for them: the massive, uniform basilica at Aquileia, built over the earlier, smaller patchwork church, embodying the transformations of Constantinian Christianity.⁴⁴⁹ Both there and in Trier, Athanasius was present at festal services in half-finished churches, rapidly put up to accommodate the swelling mass of the faithful.⁴⁵⁰ At Rome, Pope Julius was busily engaged in construction: five new basilicas erected from 337 to 352.⁴⁵¹ It is significant in this regard that at Tours, perhaps the western city after the various imperial capitals about whose late-antique Christian history we are best informed, the reign of Constans was remembered as the historical foundation of the religion.⁴⁵² There were bishops under Constans even in Britain, and Athanasius could boast that when he was in exile, some 400 of those in the episcopate, drawn largely from the west, were in communion with him.⁴⁵³ In the aftermath of Serdica, some thirty-four bishops from Gaul alone subscribed the council's encyclical letter.⁴⁵⁴ That council was deeply concerned that 'villages or small cities, for which one presbyter is enough' were seeking bishops, and sought to restrain the practice: the tendrils of the Church were reaching out into the countryside.⁴⁵⁵ The social background of the clergy was changing as well and the bishops at Serdica were strict in their view that 'a rich man, or a lawyer from the forum, or a former administrator' could not simply enter the episcopate in one leap; he had to work his way up through

⁴⁴⁸ *ibid.* 10.76.

⁴⁴⁹ McLynn, 2004, 243.

⁴⁵⁰ Athanasius, AC, 15.4.

⁴⁵¹ *Chron.* 354 XIII. I leave to one side here the controverted question of who built St Peter's in Rome: Bowersock, 2002 (Constans), Liverani, 2015 (a thousand times no!), Westall, 2015 (Constantius II). There are problems with all the proposed solutions, not least that the crucial brick stamps could be expanded to reveal the name of Constantine, Constantius, or Constans (a fact which no one involved seems prepared to acknowledge).

⁴⁵² Gregory of Tours, *Decem libri historiarum* 10.31 (II). On all aspects of Tours' late-antique development, see the exhaustive work of Pietri, 1983.

⁴⁵³ Athanasius, HA 28.

⁴⁵⁴ Athanasius, AA 49.1.

⁴⁵⁵ Serdica, c. 6.

the ranks of the clergy.⁴⁵⁶ From such scattered indications, we gain some sense of the way that the institutional structure of the Church was becoming firmer, that the number of Christians was increasing. A contemporary was exaggerating when he asked ‘what place in the earth is there which the name of Christ does not possess?’ and envisaged the death of all idolatry, but it is striking that the possibility had entered his mind at all.⁴⁵⁷ Suffering for his opposition to the emperor Constantius, Hosius of Cordoba looked back wistfully on the reign of Constans, an emperor who never banished a bishop, presided over ecclesiastical matters, or sent agents to force people to subscribe condemnations.⁴⁵⁸ One can see why the emperor had friends in the episcopate.

An Intellectual at Court

It is in this context of a pious emperor, in a court full of bishops and pagan bureaucrats, pursuing a legislative programme of anti-pagan measures, and preoccupied by war, that a curious and neglected text assumes a surprising importance: the *De errore profanarum religionum* of Firmicus Maternus. This work has been ill-treated by history, the single manuscript damaged, stolen, and looted in its circuitous travels from the monastery of Monte Amiata in Italy to the Vatican.⁴⁵⁹ It is difficult to pigeon-hole, for the treatise, formally addressed to both Constans and Constantius, is part rabid denunciation of paganism, part learned disquisition on it, part fawning appeal to the emperors. What are we to make of it? The established answer goes something like this: born in Sicily, Firmicus began his career as an advocate. Worn out by the constant struggles of this line of work, to which his probity (he assures us) ill-suited him, he abandoned the law and tried astrology instead.⁴⁶⁰ After discussions with Lollianus Mavortius, then *consularis* of Campania, he rashly promised a treatise on the subject.⁴⁶¹ The result was the *Mathesis*, a massive eight-book synthesis of astrological learning.⁴⁶² The contrast between this work and his attack on paganism is so apparently striking that it is

⁴⁵⁶ Serdica, c. 13.

⁴⁵⁷ FM, *DE* 20.5.

⁴⁵⁸ Athanasius, *AC* 15.4.

⁴⁵⁹ Turcan (ed.), 63-6 for a summary; a digital facsimile is available at http://digi.ub.uni-heidelberg.de/diglit/bav_pal_lat_165.

⁴⁶⁰ FM, *Mathesis* 1.pr.4; 4.pr.1-3.

⁴⁶¹ *ibid.*, 1.pr.1-6.

⁴⁶² In general, see Dickie, 2012.

invariably assumed he converted in between writing them: Firmicus the pagan intellectual and astrologer active in the 330s transmuted into Firmicus the foe of the traditional cults. Explanations for this transformation vary. His fanatical opposition to his old faith was perhaps for psychological reasons: 'He had the typical intolerance of a convert, who is reborn and finds in his own past very little that is positive'; his call for state-sponsored forced conversion has been seen as a precursor of terrible developments for humanity.⁴⁶³ Alternatively, one might see in his later work a pledge of the sincerity of his new religion: converts have to be extremists to be believed, they are terrorists because they have been terrorised.⁴⁶⁴ More commonly, it is suggested that at some point, conscious of the secular advantages of the new religion, he made the switch to Christianity: 'fear and opportunism made as many conversions as faith, as in every revolution' is one editor's comment.⁴⁶⁵ Perhaps the senatorial dignity given to him in the manuscripts was the reward of a seasonable conversion?⁴⁶⁶ In this shifting mass of explanations, the *De errore* is a screed, directed only haphazardly to the emperors: its real targets lie elsewhere. Firmicus emerges as a ranting saloon-bar boor, attacking the flagrant absurdities of paganism, praising tough measures taken against it, and urging still more grisly ones. He is normally, albeit often only implicitly, thought to be currying favour with a regime from which he was distant. He expresses the frustrations which Christians felt at the slow pace of the death of paganism, even as he ill-understands the delicate balancing act in which the emperors were engaged.⁴⁶⁷ They can hardly have welcomed his peremptory tone and the impossible course of action he urged on them.⁴⁶⁸ The text, in other words, tells us a lot about Firmicus, but not a great deal about Constans.

There are reasons to be sceptical of this line of interpretation, attributing to Firmicus (as it does) all the vices of fanaticism and sincerity and mixing in some dubious psychological reasoning. The mere fact of astrological interest is often treated as proof-positive of Firmicus' paganism, as though it was roughly on a level with a firm commitment to blood-sacrifice, but it is worth

⁴⁶³ Barnard, 1993, 99, 98.

⁴⁶⁴ Turcan (ed.), 1982, 24. For the argument that, like Arnobius, Firmicus wished people to take his change of heart seriously see Drake, 1998, Caseau, 2007.

⁴⁶⁵ Turcan (ed.), 1982, 23.

⁴⁶⁶ Monat (ed.), 1992, 8.

⁴⁶⁷ Watts, 2015, 87.

⁴⁶⁸ Barnard, 1993, 99.

remembering that there was nothing inherently ‘pagan’ about star-gazing with intent. It is the Book of Genesis, after all, wherein God says ‘Let there be lights in the firmament of the heaven to divide the day from the night; and let them be for *signs*...’ (I.14). Origen seems to have known plenty of Christians with astrological inclinations and was even prepared to concede that although the stars did not cause events, they did indicate that they would happen.⁴⁶⁹ On the other side, the Romans had long had a complex, one might even say abusive, relationship with astrology, one neatly summed up by the way that the emperor Augustus both banned it and issued an edict explaining the arrangement of the stars at the time of his birth.⁴⁷⁰ Diocletian, no Christian he, had also proscribed the ‘damnable art of astrology’.⁴⁷¹ Tacitus, as ever, got to the heart of the matter when he said that astrologers were ‘a class of men who are treacherous to those in power, and deceitful to those who hope: they will always be forbidden in our city, and retained’.⁴⁷² This ancestral suspicion and fascination was the reason why Firmicus was so keen to emphasise that the astrologer must be a respectable and upstanding citizen, a man who refused absolutely to enquire into the future of the emperor or the state.⁴⁷³

We might, then, be better off seeing Firmicus’ interests as esoteric and scholarly rather than primarily religious, the work of a man who did not believe ‘that the paths which others shunned were forbidden to him’.⁴⁷⁴ In writing the *Mathesis*, he had embarked on a massive work of synthesis, one which required both technical expertise in astrology and encyclopaedic knowledge of the Greek literature on it.⁴⁷⁵ This should at least give us pause before riding any individual ‘pagan’ reference in the work too hard: we cannot be certain whether it tells us what Firmicus thought, or is merely a calque from some much older text. In its discursive sections, more securely his own work, he adheres to a vague monotheism, one which suggests that his conversion, if such it was, was more a gentle stroll than a precipitous leap.⁴⁷⁶ Crucially, Lollianus Mavortius, for whom the work was written, was

⁴⁶⁹ Heine, 2010, 110-112 is a convenient summary.

⁴⁷⁰ Cassius Dio, 56.25.5.

⁴⁷¹ *C.J.* 9.18.2.

⁴⁷² Tacitus, *Historiae* 1.22.

⁴⁷³ FM, *Mathesis* 2.30.

⁴⁷⁴ Edwards, 2015, 73.

⁴⁷⁵ Henry, 1934, 25-43, esp. 31-4; *P. Oxy.* 4503-4507 with Gonis’ commentary, 57-109.

⁴⁷⁶ Chapot, 2001.

a pagan, a public augur.⁴⁷⁷ At the time of writing, more or less by his own admission, Firmicus' career as an advocate was not going well, and the thickly-lathered flattery he applied to Mavortius suggests he needed any patronage he could get. That is to say he may well have had reasons to dissemble when it came to his religious views, but in the *Mathesis*, not the *De errore*. Features of his vocabulary in the former do suggest that Firmicus had a more than passing acquaintance with Christianity, whatever it was he then believed.⁴⁷⁸ It is thus unsurprising that the *De errore* is full of Biblical quotations and allusions (66 in all), and that it shows Firmicus' knowledge of the work of Cyprian of Carthage, Clement of Alexandria, and also Arnobius.⁴⁷⁹ His barb that pagan places of worship 'ought, most sacred emperors, to be called tombs not temples' perhaps has its origin in the *Octavius* of Minucius Felix, and his deployment of the Ciceronian tag 'counterfeit and fabricated gods' may be borrowed from Lactantius.⁴⁸⁰ He had even gone to the trouble of reading the report which Pliny the younger had sent to Trajan on discovering that his province was riddled with Christianity, and neatly applies his mention of the 'infection of that superstition' to pagan religion.⁴⁸¹ His mentions of baptismal waters and the Eucharist might lead one to suppose that he had himself been baptised, while his account of the economy of salvation is an elegant summary of the topic.⁴⁸² This depth of knowledge is not the kind of understanding hastily got up by someone hoping to take communion and pass straight into the governor's chair. This is the work of someone 'moulded by the doctrine of the sacred scriptures', as he describes himself.⁴⁸³ If anything, the oddities of Firmicus' account of cultic depravities may suggest that he was rather shakier on some 'pagan' topics than he was on Christian matters.⁴⁸⁴ All this is to say that we may be better off seeing Firmicus as the kind of Christian who gave his bishop palpitations: educated, rhetorically skilled, theologically idiosyncratic,

⁴⁷⁷ *PLRE* 'Lollianus 5'; for the inscription *CIL* 6.37112.

⁴⁷⁸ Skutsch, 1910.

⁴⁷⁹ Turcan (ed.), 1982, 361 lists 66 biblical quotations or allusions in all; 51-2 for the authors he knew. Turcan suggests that his knowledge of Clement was indirect, but the verbal allusion in *DE* 12.7 (*Scaenam de caelo fecistis*) to Clement of Alexandria, *Protrepticus* IV.58.4 (Σκηνὴν πεποιήκατε τὸν οὐρανὸν) suggests to me that Firmicus had read the original.

⁴⁸⁰ FM, *DE* 16.3 (Minucius Felix, 8.4); 17.4 (cf. Cicero, *De natura* 2.70, Lactantius, *DI* 1.17.1, 3).

⁴⁸¹ Pliny, *Ep.* 10.96.9: *superstitionis istius contagio*. FM, *DE* 12.1: *superstitionis istius metuenda contagio*. A search in Brepols' *Cross Database Search Tool* reveals no other uses of this collocation.

⁴⁸² FM, *DE* 2.5; 18.2; 24.2-8.

⁴⁸³ *ibid.*, 8.4. This is often deployed as evidence for his conversion (e.g., Barnard, 1993, 85, Lössl, 2013, 74), which logic seems to rely on *nunc ... formatus* (as in 'just now moulded...'). However, Firmicus has just finished speaking in the voice of the Sun, and *At ego nunc* merely marks the shift back to speaking for himself.

⁴⁸⁴ cf. Edwards, 2015, 111-135, where Firmicus is often the only source for some allegation against a cult.

a nightmare member of the congregation – the kind of Christian intellectual welcomed at the court of Constans, perhaps. We certainly should not make his hypothecated conversion the basis for all other arguments about him: the result rather resembles an inverted pyramid.

Read without prejudicial assumptions about what he was up to, the *De Errore* reveals a Firmicus much closer to the centre of imperial power than conventionally thought. He was certainly well-informed about the emperors' activities. He gives us a resonant account of Constans' visit to Britain in 343.⁴⁸⁵ His remark that 'proud peoples have been sent under the yoke and the wishes of the Persians have collapsed' perhaps alludes to the Frankish campaigns of the early 340s and the ongoing struggles in the east.⁴⁸⁶ The ambiguous phrasing of what exactly had happened on the Persian frontier perhaps suggests a period before news of the battle of Singara (344) had reached the west. All this suggests a date for the work of 343 or 344, and Firmicus thus appears to be at the forefront of the interpretation of events.⁴⁸⁷ What looks like a subtle allusion to the fate of Constantine II – 'rebellious arms have fallen before your gaze' – suggests he was good at this indeed.⁴⁸⁸ Firmicus, as we would expect of a barrister, knew the legislation of his emperor and alluded to the recent prohibition of homosexuality, something 'nowadays punished most severely by Roman laws'; the law (*CTh* IX.7.3) was issued in December 342, not long before Constans went to Britain.⁴⁸⁹ Firmicus does not merely recapitulate the legislation of his emperor. At two crucial points, he subtly alludes to the language of Constans' legislative measures. That 'avenging sword' we met above, armed there against homosexuals, is said to have been raised by the consuls against the bacchanalian revels in Republican Rome. That was an era when 'there were still wholesome morals in the city of Rome, and no man longed with dissolute morals for foreign superstitions', Firmicus neatly suggesting that paganism was not only wicked but un-Roman.⁴⁹⁰ At the end of the work, he reminds the emperors that Christians are enjoined to raise that sword even against idolatrous family members (a barbed comment for the

⁴⁸⁵ FM, *DE* 28.6.

⁴⁸⁶ *ibid.*, 29.3.

⁴⁸⁷ The work is normally dated after 346/7 (Barnard, 1993, 86; Chapot, 2001, 63-4 *e.g.*), because Turcan (ed.) 1982, 24-5 identified the *persica vota* as the failure of the siege of Nisibis in 346. The phrase, however, seems to me to suit a non-event better than something specific. That is to say, it comes from a time before definite events on the eastern front.

⁴⁸⁸ FM, *DE* 29.3.

⁴⁸⁹ *ibid.*, 12.2 (the only time Firmicus ever uses *hodie*).

⁴⁹⁰ *ibid.*, *DE* 6.9.

sons of Constantine).⁴⁹¹ The avenging sword – *gladius ultor* or *gladius vindex* – is a Judaeo-Christian idea, found in the books of Leviticus (XXVI.25) and Job (XIX.29).⁴⁹² It is not a particularly common phrase earlier than the latter half of the fourth century – only Tertullian used it before Firmicus – but it is a favourite tag of the (scarce) laws of Constans: it occurs twice (in laws on different topics), a quarter of all its occurrences in the Code.⁴⁹³ It is sufficiently rare that its use by Firmicus immediately strikes one: he is deliberately exploiting the language of the laws, something suggested also by his call for the pagan practices to be *penitus delenda*, just as Constans had ordered superstition to be *penitus eruenta*.⁴⁹⁴ Firmicus seems less here a fanatical opportunist, catching the dull echoes of imperial priorities and attempting to shout them back, and more an insider, playing elegant verbal games with the rhetoric of the regime. It is interesting in this connexion to note that in 342 his old patron Lollianus had been Urban Prefect at Rome. This was his first office after a break of several years and he was clearly back in favour: Firmicus may have trailed in his wake, perhaps even found a new and greater patron.

Firmicus, then, may – and everything should be hedged in what Gibbon would have called the subjunctive mood of maybe – have been rather closer to the centre of power than is often assumed, at the forefront of interpreting and explaining policy and proclamation almost as soon as they appeared. It is tempting indeed to put him into a court context in the early 340s, when we know his first patron was in office again. In that light, it is worth revisiting the question of what kind of text the *De errore* is. Firmicus' work is that classic item of late Roman literature: a justification of a policy (the ban on sacrifice and closure of temples) dressed up as a call for it and mixed in with suggestions about how it might be taken further. Throughout and frequently, Firmicus addresses the emperors: *uos, sacratissimi imperatores*, he says, naming them in the vocative *Constanti et Constans*.⁴⁹⁵ This is the language of panegyric: *sacratissimi imperatores* or *principes* is an invocation

⁴⁹¹ *ibid.*, DE 29.2.

⁴⁹² The only use I have found before the Christian era of the empire is Lucan, *Bellum civile* 5.206.

⁴⁹³ Tertullian, *De patientia* 3. *CTh* 9.7.3, 2.1.1, for Constans; other uses are 9.42.2, 16.10.4 (Constantius II: 356; 356, see Seeck, 1919, 41-2), 14.17.6 (Valentinian I, 370), 9.6.3, 9.34.10, (Arcadius: 397, 406).

⁴⁹⁴ FM, DE 16.4; *CTh* 16.10.2.

⁴⁹⁵ *Sacrr. imp*: FM, DE 3.2, 6.1, 7.7, 8.4, 16.3, 4, 20.7, 24.9, 25.4, 28.6, 29.1, 3, 4. *Constanti et Constans*: 20.7.

that is rare outside of dedications and addresses, and even there generally used only once.⁴⁹⁶ Its use with any frequency was the reserve of the panegyrist, and the plural was appropriate when there was more than one emperor on the throne.⁴⁹⁷ Like the author of *Pan. Lat.* 11, Firmicus cannot stop himself from using it again, and again, and again, ramming home that he is speaking to (in reality or only imagination) the emperors. We have someone with apparently close links to the regime, someone with a rhetorical training who calls what he is doing a *sermo*, overuses the imperative, and adopts a hortatory, even a hectoring tone.⁴⁹⁸ Firmicus displays an extravagant learning, he indulges in word-play, he touches on recent imperial deeds and legislation. What we have seems, when put like that, awfully like a speech, delivered before (in posture, if not in fact) the emperor – like, in other words, one of those speeches which we loosely call panegyrics.

Firmicus, a Christian intellectual in the orbit of the emperor, gives us a window into the court of Constans in the early 340s, of the emperor we see on campaign, crushing barbarians, or meet in his legislation, overturning the temples. He urged the emperor to go much further: idolatry, whose ‘dying limbs still twitch’, is a disease, the emperor a doctor who will cure it.⁴⁹⁹ This takes a sinister turn, for Firmicus points out that doctors treat even those who are unwilling to be cured: ‘free those who are dying! ... It is better that you liberate those who do not wish <to be freed> than that you concede death to those who wish for it’.⁵⁰⁰ Temple treasures must be confiscated: ‘take away, take away without worry, most holy emperors, the adornments of the temples. Let the fire of the mint or the flame of the mines melt those gods; translate all the gifts to your use and dominion!’⁵⁰¹ The emperors had already experienced divine favour for their actions against the temples, and Firmicus promised its continuation if they went further: ‘Thus will all things turn out happily for you: victories, opulence, peace, plenty, health and triumphs, so that raised up by divine majesty, you may govern the world with happy rule.’⁵⁰² Who, surveying the lockstep march of Christian law and imperial victory, could

⁴⁹⁶ Marcellus ‘Empiricus’, *De medicamentis*, *Ep. Vindiciani* 1.22; *De rebus bellicis* 1.1, 21.1.

⁴⁹⁷ *Sacr. principes: Panegyrici Latini* 11.7.7; 7.1.1, 13.1. *Sacr. imperator: Ausonius, Gratiarum actio* 12.58; *Pan. Lat.* 10.1.1, 1.5, 8.6, 13.5; 11.1.1, 1.2, 2.3, 3.8, 5.1, 6.1, 8.4, 13.1, 15.3, 19.1; 12.1.1; 5.1.1, 1.3, 2.2; 6.1.1.

⁴⁹⁸ FM, *DE* 13.1.

⁴⁹⁹ FM, *DE* 20.5; 16.4-5.

⁵⁰⁰ *ibid.*, 16.4.

⁵⁰¹ *ibid.*, 28.6.

⁵⁰² *ibid.*, 29.4.

oppose such a programme? A man, as Firmicus described him, who ‘treads in his toga in the temple, who glitters in purple, whose head is pressed by gold or laurels’?⁵⁰³ One wonders what Fabius Titianus made of that. Firmicus offered a coherent justification for further anti-pagan measures, and sketched out what they might be, now that sacrifice had been banned. Was he providing rhetorical support for a policy which was unpopular with pagan courtiers, or a useful reminder to them that there were those who would go further than the emperor? In fact, Constans left his anti-pagan campaign roughly where it stood in the early 340s: some, but not all, of the Constantinian settlement. Not long after his ban on sacrifice, he hastened to legislate in defence of the actual temple buildings: ‘Although’ (that infallible sign in the Codes of the emperor screeching into reverse gear) ‘all superstition ought to be utterly destroyed’, the physical structures of paganism were not simply to be torn down as they were the scene of games, circuses, or contests.⁵⁰⁴ Towards the end of Constans’ reign, his longest extant law suggests that people had generously interpreted his earlier measure as giving them licence to pull down tombs on their land if they looked a little bit heathen.⁵⁰⁵ They were to be punished and buildings repaired. That some eight years after he had railed against superstition and sacrifices, the same emperor was making provision for the Urban Prefect at Rome to tramp round inspecting monuments with the (pagan) *pontifices* is an index of quite how messy the end of paganism was in practice.

Approaching 350

The decade in which Constans was master of the Roman west turns out to be considerably more interesting than a simple tale of imperial vice. It was an era of contradictions, as a Christian court, frequented by bishops and intellectuals, shuttled along the northern frontiers, fighting barbarians and condemning the cults, even as it relied on an administration dominated by pagan Italians to do this: the emperor thundering about idolatry at one moment and solicitous for the repair of the temples the next. All this is far removed from the debauched incompetent we meet in slightly later sources. We would hardly expect those who spoke of the emperor in the 340s to boast of his

⁵⁰³ *ibid.*, 18.6.

⁵⁰⁴ *CTh* 16.10.3^s.

⁵⁰⁵ *CTh* 9.17.2.

licentious and drunken behaviour, but the gap between the way he was later remembered and how he was presented by (for instance) Libanius at Nicomedia in the 340s is so stark as to be troubling. The sophist was surprisingly well-informed about events in the west, fixing on war with the Franks (the Φρακτοί, or fortified people, on his lips – jokes were not his strong point) and the visit to Britain.⁵⁰⁶ He even betrays some of the ideological tics of Constans' regime, using the dual to hammer home the idea that there were now and only ever had been two sons of Constantine.⁵⁰⁷ He claims that Britain was almost obscure before Constans penetrated to it, emphasising (like Firmicus) the raging Ocean and the surprise of the inhabitants. Official lies, and the notion that Britain was unknown until the emperor reached it is certainly one of those, are like a barium meal for tracing the flow of ideas. Libanius even reproduces the idea that the emperors were physicians, tough enough to administer bitter medicine.⁵⁰⁸ All this is to say that the portrait of Constans which he offers was live to the twists and turns of official rhetoric.

With this in mind, if we then take a closer look at each of the main points of the later indictment of Constans, something remarkable emerges: they are almost the photographic negative of the claims made on his behalf when he was on the throne. He was said to have been gay, and yet he legislated against homosexuals. He was alleged to have predilection for the company of barbarians, yet he fought against them repeatedly on the Rhine in the early 340s, and even those who attacked him had to grudgingly acknowledge that he was a good soldier – what better way to undermine a general than to suggest that he went home from beating barbarians to sleep with them?⁵⁰⁹ In his panegyric of both the emperors, Libanius praised Constans for his sobriety, said he was an emperor who hardly touched drink, yet his posthumous reputation was as someone so given over to inebriation that he had achieved the feat of becoming gouty in his twenties.⁵¹⁰ The sophist portrayed an emperor of almost superhuman restraint, a man who abhorred the theatre, demonstrated astonishing endurance, gave no thought to female beauty, and was extremely vigorous; the contrast with the feeble, sickly, licentious man we meet in the story being told only a decade or so later could

⁵⁰⁶ Libanius, *Or.* 59.127-133, 137-141.

⁵⁰⁷ *ibid.*, 59.pr *e.g.*

⁵⁰⁸ *ibid.*, 59.94, 150.

⁵⁰⁹ Jerome, *Chron.* 235b, e; Eutropius, 10.9.4.

⁵¹⁰ Libanius, *Or.* 59.144.

hardly be sharper.⁵¹¹ Constans, as he was portrayed at Nicomedia in the 340s, was surrounded by a small and loyal band of advisers, the only men who could keep up with his incredible speed; they were chosen not for their bribes, but for the judgement they showed.⁵¹² Yet, when men looked back on his reign, the idea that he had advanced governors of provinces to office in return for bribes, that his friends were execrable human beings, and so on and so forth, loomed large.⁵¹³ Libanius even went so far as to evolve an interesting and interestingly explicit justification for rule by child emperors: best to catch them young, he suggested, to stamp their characters with duty when they were utterly impressionable.⁵¹⁴ The countervailing idea, that the natural irresponsibility of youth was the cause of Constans' vices, might almost be thought to contain a critique of hereditary monarchy itself: one did not (after all) get child emperors any other way. The degree to which the portrait of Constans after his death engages with what was said about him in his life suggests that whoever framed it was at least thoroughly acquainted with the rhetoric of his regime, perhaps even that they had set out to consciously invert it.

Consistent, sophisticated, well-informed: the story of Constans' descent into misrule turns out to be much more than a hazy collection of the sorts of thing one said about an emperor who had failed. It bears the fingerprints of someone who wanted to deliberately blacken the name of Constans, and had thought carefully about how to do that. Who, we might wonder, had an interest in such tales in the 350s? It could hardly be Constantius. Whatever feelings he may have had in private about his brother, official rhetoric rooted his right to rule the West in his hereditary claim to it: as he asked Vetrano, unanswerably, 'when a brother has died to whom does the inheritance pass?'⁵¹⁵ As Aurelius Victor was playing with an account of Constans as an emperor gone bad, Constantius was engaged in building him a monument.⁵¹⁶ The official line was respectful, if rather curt, as when Julian delivered a panegyric of Constantius and spoke of Constans as a man who 'kept his country safe from the

⁵¹¹ Libanius, *Or.* 59.149 (vigour), 144 (naturally virtuous, shuns the theatre), 145 (endurance), 146 (female beauty).

⁵¹² Libanius, *Or.* 59.146, 148.

⁵¹³ *Epitome* 41.24 for selling office; Eutropius, 10.9.3 for the wickedness of his friends.

⁵¹⁴ Libanius, *Or.* 59.38.

⁵¹⁵ Athanasius, *HA* 50.1.

⁵¹⁶ *ibid.*, 69.1.

enemy, often making war on them himself'.⁵¹⁷ There is another candidate, a man who had a compelling interest in painting Constans in the blackest possible colours, who wished (perhaps) to occlude his own origin in humble, allegedly barbarian circumstances, and needed some way to shore up his always tottering authority: Magnentius. When he needed to rally the troops after Flavius Philippus had nearly provoke a mutiny, he reminded them of 'the ways in which Constans had maltreated them', and how when they were unable to bear the enormity of his wickedness, they had revolted and 'liberated the cities from that worthless wild beast'.⁵¹⁸ All over Italy, inscription went up praising Magnentius as 'the liberator of the Roman world, the restorer of liberty and the state, the defender of the soldiers and the provincials', an implicit condemnation of Constans that touches on some of the points we find in Victor, who cites the emperor's greed and 'disdain for the soldiers' in his account.⁵¹⁹ We know little of what Magnentius said about his predecessor – we are mostly ignorant of what he said at all – but he clearly portrayed him as a tyrant who had damaged the state, as did whatever stories Victor had heard in the 350s. Magnentius and those who supported him had a compelling, even all-consuming, reason to attack the memory of Constans. They were, as former servants of that emperor, well-acquainted with his own rhetoric, able to shape their indictment of him to its contours. They were surely responsible for that story about him, of how he was a licentious tyrant, destined for overthrow, the one still passed around in Illyricum in the 350s. Our image of Constans is a product of the men who killed him. We seem, in sum, to have unearthed Constans, buried him again, and found Magnentius standing crowned upon the tomb thereof.

⁵¹⁷ Julian, *Or.* 1.9d.

⁵¹⁸ Zosimus 2.47.3.

⁵¹⁹ Below, 111-2; AV 41.23.

The Roman Empire at Mid-Century

In 337, as Constantine expired in Nicomedia, the empire seemed to stand on the edge of the abyss. That villa in Bithynia, thronged with troops for the eastern war, where the emperor was ministered to by Eusebius of Nicomedia, one of the doughtiest combatants of the Arian controversy, as his sons, brothers, nephews waited impatiently for news, or hastened to the great man's side, was no mean synecdoche of the issues which were to dominate the empire after his death. As he lay dying, there existed no answer to the question of who was to succeed him: his very success in turning the empire into the hereditary possession of the Flavian family was a source of instability. He left a war with Persia which was gargantuan in its ambition. In the east, massacre supervened, and left Constantius II master of nearly half the empire. In the west, his brothers showed that the alternative was little more palatable, and in bitter civil war Constans acquired a realm which stretched from the Danube to the Tyne, the entire northern circuit of which he would traverse. Yet, out of the chaos of the succession, the long roiling crisis of 337-40, emerged a remarkably stable diarchy. In the east, Constantius relied on a tight-knit group of men – drawn from all over his empire, predominantly Christian and surprisingly humble – to run his empire. They rose not only to power, but to positions of honour and status which would have been unthinkable to their ancestors. All this took place against the background of an eastern war in which the Romans held the lines with grim determination against a resurgent Persia. Heir to a war which would have strained the resources of the unified empire, what is remarkable is not so much that Constantius failed to win the victories for which later writers lusted, as that after a decade of grinding, brutal struggle on the frontier, Persia had advanced not at all. The east was reshaped by this conflict, resources and men pouring into the Syrian heartland of the eastern empire, the tendrils of war reaching deep into the provinces. In the west, Constans relied on the loftiest strata of the Italian aristocracy to run his empire: when Constantine II died, they simply took over the entire enterprise. Even as he was surrounded by men who held a bevy of priesthoods, Constans oversaw the closure of the temples and a programme of Christian and moral legislation. His court was thronged with bishops, and Christian intellectuals like Prohaeresius and Firmicus Maternus, some of whom looked only for favour, some for a more aggressive assault on

paganism. In the *De errore*, we can perhaps see some of the tensions which divided this administration, as the youthful emperor progressed from victory to victory on the northern frontier. The story of the brother emperors' rule turns out to be much richer than we might have expected.

Yet, it is also crucial to point out that for all the divergences between east and west, it remained a Flavian empire. Both emperors were emphatic about their hereditary right to rule, a claim advertised in laws, inscriptions, and panegyric. When it was hoped that Constantius might overwhelm Persia, the author of the *Itinerarium* was careful to class this as a hereditary duty, and invoke the example of the emperor's brother and father. A few years later in Nicomedia, Libanius grounded his speech in the idea that unlike previous princes, who had come to power by violence or bribery, Constantius and Constans were in power by right of blood.⁵²⁰ In the west, they were no less keen on dynasty. Constans lent heavily on his father's name, reference to him like a ritual incantation: 'our illustrious father', 'our venerable father', 'our deified begetter', 'the deified emperor our father'.⁵²¹ The emperor could not help himself, whatever the topic – anonymous denunciations, gifts from the *res privata*, the validity of donations without signatures – in fact even when he was reversing his father's legislation, he had to drop the name of Constantine. That loyal servant of the dynasty, Madalianus, caught this mood when he erected a dedication 'to the deified prince Constantine, father of the greatest princes'.⁵²² If, in 350, neither yet had an heir, then they were both still young in 350 (thirty-three and twenty-seven), younger than their father had been when they were born.

The brothers managed, moreover, to cooperate for the decade of their joint rule. This significant fact can be overshadowed by the violent death of Constantine II, or by the threat which Constans made in the shadow of Serdica, that he would restore Athanasius himself, if he needed so to do.⁵²³ One can too easily, like Werner Portmann, turn the aftermath of the council into the lens through which the 340s are interpreted, all the facts neatly arranged in relation to a single moment of

⁵²⁰ Libanius, *Or.* 59.13.

⁵²¹ *CTh* 9.34.5, 10.10.6, 8.12.6, 16.10.2.

⁵²² *CIL* 6.1151.

⁵²³ Socrates 2.22.3-4; cf. Lucifer of Cagliari, *De sancto Athanasio* 1.29.

crisis, an era of ‘latent civil war’.⁵²⁴ The emphasis which Athanasius lays in his *Apologia ad Constantium* on the idea that he had not stirred up hostility between Constans and Constantius, paints by implication a portrait of brothers who treated each other with intense suspicion and wariness, of an empire split into two camps, nervously watching each other over the Balkan frontier, while feuding bishops spread misinformation and hostility at either court. As always in the 340s, it is hard not to prevent Athanasius swallowing the history of the period whole. Yet, the brother emperors clearly managed to negotiate over the consulship and, with the partial exceptions of 344 and 346, always recognised the same consuls, normally from the start of the year.⁵²⁵ We can detect officials shuttling back and forth between the two halves of the empire, like Vulcacius Rufinus who served Constantius in the east and Constans as praetorian prefect, or Ulpian Limenius, proconsul at Constantinople in the early 340s before returning to the west, or the Anatolius from Berytus who was praetorian prefect in Illyricum in the 340s, boldly sacrificing at Athens.⁵²⁶ The traffic went the other way as well: the prefect of Egypt in 344, one Palladius, was from Italy.⁵²⁷ Men pursued careers across the whole Roman world: useful confirmation that the peculiarities of each regime when it came to personnel were not simply a consequence of imperial division.

At Constans’ court, Firmicus carefully alluded to Constantius’ struggles on the eastern front and carefully signalled throughout that there were two emperors. At Nicomedia, Libanius spoke of how in former times, imperial division had inevitably led to civil war, as emperors envied each other’s dominions.⁵²⁸ Now, he claimed, concord prevailed, and the emperors’ actions confirmed their kinship: messengers constantly passed between them, travelling freely in the territory of both, the

⁵²⁴ Portmann, 1999, *passim*, at 328. His case relies on a) tensions visible in Libanius, *Or.* 59 (302-5), b) difficulties over the consuls in 344 and 346 (305-7), c) evidence for reconciliation in the coinage (307-319). Of these, the first is based on an early date for the speech, one which might be challenged (as Malosse, 2001 has), b) is partially based on a misunderstanding, since Salway, 2008 demonstrated that in 344 we are dealing with confusion, not disagreement, and thus the evidence for continuous crisis turns out to be the fact that the emperors coordinated the images put on their coins from c. 346.

⁵²⁵ *CLRE*, 222-3, 226-7; in 344 there was confusion (above, n. 211). In 346, the bulk of the evidence suggests that Constans did not recognise his and his brother’s consulship, which is very strange – all the stranger, for he minted medallions with the two of them in consular robes at Siscia (*RIC* VIII, 341-2). *cf.* Burgess, 1989, 148; Salway, 2008, 301.

⁵²⁶ Above, 77-8, 79. Barnes, 1989a, 320, n. 93 suggests that Constantius sent them back west because of their paganism, but Limenius may not have been a pagan at all and the emperor was perfectly happy to have the pagan Acindynus as consul. On Anatolius, see Bradbury, 2000.

⁵²⁷ *PLRE* ‘Palladius 3’.

⁵²⁸ Libanius, *Or.* 59.151.

border marked not by armies, but by trust.⁵²⁹ We would hardly expect a panegyrist to deny that the brothers ‘possess all things in common and are thought shared masters by all men’, but Libanius’ own experiences in the 330s and 340s, the easy way with which he passed between the two halves of the empire, suggest he was not dissembling.⁵³⁰ He tells us of the continued flood of students from Constantius’ half of the empire to Athens – the Athenians were outraged that his residence in Bithynia put a stop to the flow from that province – while his idyll in Nicomedia was briefly disrupted by the sale of his ancestral property, to a man, we might note, busily travelling between the east and Italy.⁵³¹ He was not the only travelling panegyrist, and in his attempts in 348 to reclaim the slaves owned by his brother, Ammon reveals that Harpocraton travelled ‘from country to country ... from Greece to Rome, and from Rome to Constantinople’, crossing between the two halves of the empire with apparent ease.⁵³² Even the dark days after Serdica are more revealing of cooperation than conflict. Constans was issuing a threat, of that there can be little doubt, but he was also still engaged in bilateral negotiation with his brother. His aim was to get Constantius II to restore the disputatious prelate to Alexandria, which is to say that he respected his brother’s sphere of influence, and his right to make decisions within it, even as he tried to influence them. Constantine II had simply sent Athanasius back, with an imperial mandate and the implicit warning that his will was law wherever he deemed it so. Constans and Constantius treated each other very differently, and when Athanasius came back, the older brother was allowed to save face, claiming in a series of implausible letters that this was what he had always wanted.⁵³³

As the empire approached mid-century, the stability and success of the Flavian state appeared assured. In spite of occasional tensions, Constantius and Constans clearly cooperated, and cooperated successfully, for their decade of joint rule, while their subjects continued to treat the empire as a unified whole. Libanius sketched a Mediterranean made safe for trade and travel, for the promiscuous exchange of ideas and goods, as westerners went to the Nile and Phoenicians to Sicily, while

⁵²⁹ *ibid.*, 59.152.

⁵³⁰ *ibid.*, 59.153.

⁵³¹ Libanius, *Or.* 1.53, 58.

⁵³² *P. Ammon.* 13.23-6.

⁵³³ Athanasius, *AA* 51.

everybody sought education at Athens: the nations of the world sang in harmony, the emperors leading the tune.⁵³⁴ A rosy picture, to be sure, but not a fundamentally misleading one. In the east, the author of the *Expositio*, with his careful delineation of the provinces and products of the empire, envisioned a similarly prosperous and united Roman world. A Flavian had been on the throne for over fifty years, and the cohort of those who could remember the era before Constantine was rapidly diminishing. In the east, the Persians had been pinned back; on the northern frontiers, barbarian peoples had been subdued. The churches were full of the swelling mass of the faithful, and depraved pagan customs were vociferously condemned (and less vigorously repressed) in both halves of the empire. With two youthful emperors on the throne, decades of stability seemed to stretch before a prosperous and united Roman world. This was an illusion, and as 350 began the empire lurched into the abyss of civil war. The five brutal years from 350 to 355 were to shake the foundations of the house of Constantine.

⁵³⁴ Libanius, *Or.* 59.171-2.

II

FIERCE CIVIL STRIFE (350-355)

In the winter of 349-50, the court of Constans settled at Autun. The town, perched in the hills above the Saône, was a pleasant place to break the journey from the Rhône valley up to Trier, and well provided with wine to warm the spirits in the depths of the season.¹ It had a long connection with the Flavian family, extensively documented in the *Panegyrici Latini*, as Aeduan speakers forged their tongues to grand themes.² Constantius I was, they averred, the city's second founder, as a flood of artisans from re-conquered Britain restored its buildings.³ On one occasion, its young men had escorted him on his return from Italy and he in turn had appointed his *magister memoriae*, Eumenius, to teach oratory in the city 'which you are not ignorant we are restoring to its former glory'.⁴ In the porticoes of the school of rhetoric there, restored at Eumenius' expense, boys could wonder at a map showing the extent of Roman power.⁵ Constantine too lavished favour on the city, was also said to be its founder, and had even renamed it 'Flavia Aeduum'.⁶ He made a famous visit, gave it a huge tax break, and remitted its debts.⁷ The city's notables shrewdly exploited the (recently discovered) Claudian descent, keen to suggest that the relationship between town and Flavian emperor went back into the mists of the third century, when it had valiantly resisted a seven month siege in the emperor's name.⁸ The imperial faith was rising in the city as well. Its first historical bishop, in the days of Constantine, had been one Reticius, a scholarly prelate and former *rhetor*.⁹ At Christmas 350, one might have heard a sermon from bishop Simplicius, a wealthy local notable who had overcome doubts about how chaste his marriage really was by grasping burning coals, and converted a

¹ *Pan. Lat.* 5.6.6-8.

² *cf.* AM 31.16.9.

³ *Pan. Lat.* 8.21.2.

⁴ *ibid.*, 9.14.

⁵ *ibid.*, 9.20.2.

⁶ *ibid.*, 5.1.1.

⁷ *ibid.*, 5.8, 10-11, 12.4-5.

⁸ *ibid.*, 5.2.5, 4.2-3.

⁹ *PCBE* IV, 'Reticius', 1608.

significant portion of the local population.¹⁰ Dynasty and Christianity: Autun was, in its way, a microcosm of the Flavian empire at mid-century. Constans was on home territory.

The emperor was making his first visit to Gaul for several years, perhaps intending to launch a campaign on the Rhine when spring arrived.¹¹ In January, however, there was little to do but drink and hunt, and the emperor threw himself into the chase: probably wild boar, which are plentiful in the region.¹² Not all were so active and his courtiers preferred to stay in town. The life of the *comitatus* was wearing, and those in it were ‘no strangers to the dust and toil of the camps ... men whom the length of journeys and the hardships of campaigns vex’, as Constantine had put it.¹³ They probably appreciated an opportunity to rest and enjoy themselves before the grind of business began again. One of them, Marcellinus, the *comes rerum privatarum*, held a birthday party for his son on the evening of the seventeenth of January, inviting a large number of those in the *comitatus*.¹⁴ Amongst them was Magnentius, the *tribunus* of the Ioviani and Herculiani, the most prestigious units of the field army, named for Diocletian and Maximian.¹⁵ Drink was taken, and the occasion was raucous, lasting long into the night (one hopes the birthday boy was sent to bed).¹⁶ At about midnight, Magnentius rose to relieve himself: when he came back he was wrapped in the purple robe of an emperor. Such moments were devoid of the ambiguity so dear to students of ritual and he could mean only one thing. In retrospect, Themistius ridiculed what had happened, contrasting Constantius with Magnentius:

For men did not choose this man at a banquet, out of drunkenness and repletion, as though an emperor were some pudding, one lamented not long after the drinking-bout, as happens at the Kronia.¹⁷

It is, however, momentum, not sobriety, which is vital in revolutions, and of that Magnentius had plenty. The guests hailed him as Augustus, the citizens of Autun did the same, the *rustici* flocked in

¹⁰ Gregory, *Liber in Gloria Confessorum*, 75; PCBE IV ‘Simplicius 1’, 1814.

¹¹ Barnes, 1993, 225.

¹² Zonaras 13.6.6, *Epitome* 41.22. *pace* Harries, 2012b, 195 it is unlikely that he was hunting in the Pyrenees. For the availability of wild-boar, one might see e.g. <http://www.gameshootingfrance.com/driven-boar.html>.

¹³ CTh 6.36.1.

¹⁴ Zosimus 2.42.2-3; *Epitome* 41.22. *cf.* Zonaras 13.6.2. CC s.a. 350.

¹⁵ Vegetius, 1.17.2.

¹⁶ Zosimus 2.42.3, *Epitome* 42.22, Zonaras 13.6.3.

¹⁷ Themistius, *Or.* 2.36a: τοῦτον οὐχ αἰροῦνται ἐν συμποσίῳ ἄνθρωποι ἐκ μέθης καὶ πλησμονῆς, ἀτεχνῶς ἐπίδειπνόν τινα βασιλέα, οὐκ εἰς μακρὰν οἰμωξόμεν μετὰ τὴν κραιπάλην, ὥσπερ ἐν Κρονίοις. *cf.* Julian, 2.56c.

with enthusiasm, and crucially he won the loyalty of a detachment of Illyrian cavalry, who seem to have been the only troops on the scene.¹⁸ He proceeded to the imperial residence in the city, bribed liberally, and barred the gates.¹⁹ A picked squad of conspirators, led by one Gaiso, was sent to hunt down Constans.²⁰ The emperor fled: it was his custom to travel with only a small escort, and he had little other choice.²¹ He was perhaps in the hills south of Autun when he learnt of what had happened, and feared he could not work his way round the city to the main north-south road, which might have taken him to the safety of the armies on the Rhine, or to Italy.²² He made his way towards Spain, perhaps hoping to rally support there or reach one of the ports, but was caught at the town of Helena, on the coast road.²³ There, accompanied by a single *candidatus*, he fled into a church and stripped off the trappings of empire, before being dragged out and murdered.²⁴ He had probably refused to do the expected thing and kill himself, conscious (as a baptised Christian) that that was a most grave sin: an unexpected consequence of the new imperial religion. He was twenty-seven. A prophecy which had allegedly predicted that he would die in the embrace of his grandmother (the empress Helena) soon began to circulate.²⁵ Magnentius found himself, perhaps to his surprise, master by default of two-thirds of the Roman world, or at least the only ‘emperor’ to be found west of Mesopotamia, where Constantius was watching the frontier as the Persians prepared for yet another assault on Nisibis.²⁶ The iron grip of the Flavian family on imperial power appeared to have weakened, and in Illyricum the *magister militum* Vetrano was proclaimed Augustus on the first of March.²⁷ At Rome, Constantine’s nephew, Iulius Nepotianus, was raised to the purple on the third of June.²⁸ The empire tottered towards chaos.

¹⁸ Zosimus 2.42.4.

¹⁹ Zonaras 13.6.5.

²⁰ Zosimus 2.42.5.

²¹ Libanius, *Or.* 59.148. Drinkwater, 2000, 136, suggests this was a deliberate ‘cat-and-mouse game’ to show his unfitness to be emperor. There are more prosaic explanations.

²² BA 18.

²³ BA 25.H3; Zosimus 2.42.5.

²⁴ Zonaras 13.6.11-12; AM 15.5.16.

²⁵ Zonaras 13.6.13-15.

²⁶ Barnes, 1993, 220; Lightfoot, 1988.

²⁷ CC s.a. 350. PLRE ‘Vetrano 1’.

²⁸ CC s.a. 350. PLRE ‘Nepotianus 5’. Bleckmann, 2003b, 46, n. 7 puts the usurpation in the winter of 350/351 on the strength of the *interim* at AV 42.5, but in Victor the particle does not give chronological precision, but shifts the scene of action from one place to another in roughly the same period.

How had this happened? At mid-century, as we saw, the empire appeared entirely stable, Constantius and Constans ruling in a (mostly) amiable diarchy. Both were successful generals, with a formidable record of leading their troops. If Constans had the showier victories, the starry voyage to mythical Britain and so on, then Constantius had the solid advantages of ten years of experience fighting the Persians – few emperors can have been quite so familiar with the demands of long campaigns against seasoned enemies. Both had settled the way in which they ruled as well: Constantius reliant on his tight circle of eastern administrators, Constans hemmed in by Italians of almost baffling grandeur. Both appeared set fair for many decades of rule to come. Yet, in 350 the empire lurched into revolution and for the next four years the Roman world was convulsed by a civil war quite as brutal as any of those which had marked the dissolution of the Tetrarchy. At its end, Constantius would find himself master of the entire Roman world, one exhausted by the enormous strain of the war, nothing having changed, and yet nothing quite the same anymore. It is hard for us, and it was evidently hard for contemporaries, to segregate the coup of 350 from the civil war which followed, to look beyond the enormous loss of life and try to understand what Magnentius meant. The ambiguous reputation which the usurper enjoyed in antiquity, a man who (as Julian put it) ‘did nothing sound, although many things he did appeared good’, perhaps speaks to an unease in fitting him into history.²⁹ Yet, we are better served by sources than for the more obscure 340s: between them Julian, Zonaras, and the *Epitome* give us a sense of the outline of events, and Zosimus swells into implausible loquacity for the fighting in the Balkans.³⁰ There are numerous inscriptions from the period and the brief compass of Magnentius’ reign allows a welcome precision in dating them.³¹ The coinage of the usurper has been subjected to searching examination (perhaps more searching than it can withstand), has been made, indeed, the basis for reconstructions of the period.³² Still, even though it is relatively easy to gain a sense of what, in broad outline, happened, it is much harder to see why it happened, and what its significance was. The extant portions of Ammianus Marcellinus begin just at the war’s close, and in history, as in his pages, it is a formidable brooding presence, the

²⁹ Julian, *Caesares* 315d.

³⁰ Julian, *Or.* 1.26b-40c; Zonaras 13.7-9, Zosimus 2.42-55, *Epitome* 41.22-42.11.

³¹ In general, Didu, 1977, (still the most thorough survey of the revolt). For Africa, Salama, 1987.

³² Bastien, 1964, 1965, 1983; Kellner, 1968; Gricourt, Gricourt, 1987.

background to everything which followed in the mid-fourth century, and yet never quite probed. To understand the tumultuous *quinquennium* which followed the death of Constans, it is necessary first to grasp what caused the proclamation of Magnentius, the civil war to which that led, and its aftermath. Only then will it be possible to see what it all meant.

Magnentius

Accounts of the fall of Constans invariably start from the ‘general dissatisfaction’ with his ‘incompetent and corrupt régime’, which had brought widespread ‘anti-Flavian feeling’ to boiling point.³³ The coup was, we are told, the inevitable result of discontent with the vicious emperor and his ghastly family. As we have seen, that idea probably has its roots in an indictment which was circulated by Magnentius and his supporters. It tells us a great deal about what they wished men to think and very little about what men actually did think.³⁴ It is certainly no sure basis for reconstructing events, not least because there is a *prima facie* case that discontent with Constans’ rule was far from ubiquitous, or at least that Magnentius’ actions were not met with universal rejoicing. The usurper appears to have subdued Gaul without too much difficulty. Britain fell into line, and Spain, in that deep and possibly happy obscurity wherein it existed, acknowledged his rule.³⁵ Africa too bent the knee.³⁶ The armies in Illyricum, however, were not prepared to simply accept Gallic dictation, and with the connivance of Constantina, a daughter of Constantine, and Vulcacius Rufinus, praetorian prefect and Flavian in-law, they raised Vetranio, the *magister militum* to the throne.³⁷ This hardly looks like wild enthusiasm for what had happened at Autun.

Explanations of this Balkan declaration have, however, tended to read events in Sirmium in such a way that they do not detract from a vision of deeply unpopular Flavian rule. Vetranio’s proclamation was traditionally seen as a shady conspiracy, a usurpation at which Constantius winked,

³³ Šašel, 1971, 205; Barnes, 1993, 102; Drinkwater, 2000, 150. Didu, 1977, 25 ‘generale scontento’; Jeločnik, 1967, 211, ‘Constant, haï de tous’.

³⁴ Above, 97-99.

³⁵ Britain, implicit at AM 14.6. Spain: Didu, 1977, 35-6.

³⁶ See Salama, 1987.

³⁷ Bleckmann, 1994. *pace PLRE* ‘Rufinus 25’, Delmaire, 1997, 113, he was never a servant of Magnentius.

knowing the old soldier would hold the line until he could arrive at the scene.³⁸ Bruno Bleckmann has, no doubt rightly, reasserted the general's agency, suggested that he and Constantina were political actors in their own right, with their own agendas, trading dynastic legitimacy for brute power, and scheming to arrive at the summit of imperial rule.³⁹ Constantina was certainly a formidable personage, 'a woman begotten from a divine stock by the founder of the Roman empire, the daughter of the deified Constantine, pious, the greatest, and sister of our lords', as an inscription at Rome put it.⁴⁰ Building on Bleckmann's arguments, John Drinkwater has even suggested that Vetranio's revolt was really one against Constantius II. Magnentius, he believes, had made it to Aquileia within a few weeks of his proclamation, and had quite deliberately not proceeded further, a gesture of goodwill to the eastern emperor.⁴¹ The usurper had no intention of ruling over the entire West, and so 'the proclamation of Vetranio is therefore significant because it must reflect the depth of feeling in the Balkans against the continued dominance of the Flavian dynasty'.⁴² Even an apparent rejection of Magnentius leads us back, it seems, to hatred of Constans.

Looming over all this, spectral but pervasive, is the mirage of a Roman politics characterised by swift and decisive action, by messengers who strained every sinew and ruined their horses, by generals and bureaucrats who knew exactly what they wanted and how to go about getting it. At the root of most reconstructions of what was happening in the Balkans lies the idea, derived from the coinage, that Magnentius reached Aquileia in force in late February or early March of 350, having first gone from Autun to Trier – this caused panic in Illyricum, to which Vetranio's proclamation was the hasty response.⁴³ This is simply impossible. He was proclaimed in the dead of winter, and it is hard to believe he left Autun at once, while Gaiso was still hunting Constans. He cannot have moved an army up to Trier (375 miles), and then down to Aquileia (another 1,000 at least), in driving snow,

³⁸ See, e.g., Šašel, 1971, 207-208, Barnes, 1993, 101. The idea still surfaces: e.g. Frakes, 2012, 98; Leppin, 2015, 199.

³⁹ Bleckmann, 1994, 42-8. *pace* Bleckmann, whether Constantina was formally an Augusta or not was probably less important than that she was the daughter of Constantine.

⁴⁰ *AE* 1995, 195 = *LSA* 1563; read *procreatae*.

⁴¹ Drinkwater, 2000, 147-8.

⁴² *ibid.*, 149. *cf.* Šašel, 1971, 206.

⁴³ Bastien, 1964, 11. Followed by Šašel, 1971, 206-8, Drinkwater (see above).

through territory which had not yet acknowledged him, in a mere forty-one days.⁴⁴ A lone rider would kill several horses (if not himself) to make that journey in that time; battalions of troops, weighed down with armour and supplies simply did not move that fast. So, when Vetranio was made emperor, it was not because Magnentius was calculatingly just over the border. Equally, the traditional idea that Constantius, in distant Mesopotamia, had any foreknowledge of the proclamation of Vetranio is absurd – no messenger could have made it from Gaul to the east and then back to Illyricum in time. Julian suggests that news of the tumult in the west reached the ears of Constantius in one shattering message as winter drew to its end: the death of his brother, the revolt of Magnentius, and the proclamation of Vetranio.⁴⁵ He was probably right, and the pace of politics in reconstructions of 350 needs to be slowed down.

Dispersed as they were for the winter season, it would have taken weeks for soldiers and officials in the Balkans to gather after news of Constans' death had trickled out: the proclamation of Vetranio was probably the first occasion that the Illyrian armies had assembled, his elevation their immediate response to the news from Gaul. They were not acting under pressure because Magnentius was just over the Alps, threatening to pounce; he was probably still slogging along the roads of southern Gaul – there was no compulsion in their decision.⁴⁶ With that in mind, whatever was going on in the *praetorium* at Sirmium in February and March of 350, it is hard to understand the proclamation of Constans' senior general with the connivance of the dead emperor's sister and his prefect as anything other than an emphatic rejection of Magnentius' coup. There were doubters in Italy too. Aurelius Victor is quite clear that the motivation for the revolt of Nepotian was hatred of Magnentius.⁴⁷ Proclaiming the cousin of Constans as emperor hardly speaks to deep-rooted discontent with the ruling dynasty. Magnentius also went to considerable lengths to make plain the virtues of his regime to the Italians, erecting dozens of milestones with the legend:

⁴⁴ Distances: *Stanford Geospatial Network Model of the Roman World* (<http://orbis.stanford.edu/>). Speed: Burgess, 2008, 49-50.

⁴⁵ Julian, *Or.* 1.26b-c.

⁴⁶ As Zosimus 2.43.1 says.

⁴⁷ AV 42.6.

To the liberator of the Roman world, the restorer of Roman liberty and the saviour of the soldiers and provincials, our lord Magnentius, victor and triumpher, Augustus forever.⁴⁸

No other province was favoured with such an extensive advertisement of the usurper's virtues, and it is hard not to conclude that he was nervous about the loyalty of Italy. There was, then, no generalised discontent with Constans' regime, and his fall was not met by universal rejoicing. In proclaiming emperors in rivalry to Magnentius, the Balkans and Rome rejected his usurpation, while he uneasily eyed Italy, unsure which way its citizens would jump. Given that Constans was dead, Constantius far away, and Magnentius the only man on the spot in the West, the reaction of Constans' subjects suggests not that they hated him, but that most were quite content with his rule – many were prepared to violently express their unhappiness at its end.

If anything, the actions of Magnentius (at least after he had murdered Constans) reveal the continuing prestige of the Flavian name, its ability to move men and command their loyalty.⁴⁹ A startling fact, which has entirely escaped comment, is that throughout his reign Magnentius continued to advertise on coins and inscriptions that he held the dynastic *nomen* 'Flavius'.⁵⁰ If it were just a handful of inscriptions, then one could perhaps dismiss it as mere habit, but that it is on the coins as well, including the gold issues of Aquileia where the usurper himself may have been present, suggests that Magnentius (or his regime) had consciously decided to include the family name of the man he had overthrown in his own. Throughout the usurpation, Magnentius appears to have formally presented himself as the colleague of Constantius, even after he had appointed Decentius as Caesar in mid 351 and war was inevitable. One of the few discursive inscriptions from the era of civil war records the construction of the *forum transitorium* at Mustis, 'in the most blessed age of our lords, Flavius Iulius Constantius and Magnentius, perpetual Augusti, and Decentius, most noble Caesar'.⁵¹

⁴⁸ Didu, 1977, 45-6, though add to his examples Aemilia: *CIL* 11.6643, *AE* 1993, 712b. Etruria: *AE* 1997, 525. Samnium: *SupIt* 9 27. Transpadana: *Miliari XI Regio* 9, *CIL* 5.8066. Venetia and Histria: *Inscr. Aqu.* 2, 2900, *AE* 1992, 741, 1987, 433, *Miliari Venetia* 88, *CIL* 5.6963: *Liberatori orbis Romani, Restitutori libertatis et rei publicae, Conservatori militum et provincialium, domino nostro Magnentio, Victori et triumphatori, semper Augusto*.

⁴⁹ I leave to one side the question of Centcelles (a Magnentian mausoleum for Constans? Schlunk, 1988, Arbeiter, Korol, 1989. Absolutely not! Arce, 1994, Warland, 1994. Fifth-century? Vallverdù, Martínez 2013). The building's chronology is hazy and the *cupola* mosaics are simply too fragmentary to permit any secure identification (Keay, 2004, Edmondson, 2004 are balanced summaries).

⁵⁰ See *RIC* VIII, 325 ff.; e.g. *AE* 1976 282b, *CIL* 17.1, 144.

⁵¹ *IL Tun.*, 1557; Salama, 1987, 205; Beschaouch, 2005.

The pretence that they were part of an imperial college, not opponents in a brutal civil war, was vigorously maintained.

This was not merely keeping up appearances, a show for domestic consumption that Magnentius was committed to peace, even as he prepared for war. Peter the Patrician includes a fascinating account of an embassy from Vetricius and Magnentius to the emperor Constantius, in which the Gaulish usurper offered a grand bargain: there should be peace in the empire, sealed by a series of dynastic marriages. Constantius would wed the daughter of Magnentius, and he would marry Constantina, the emperor's sister.⁵² He was not trying to replace the Flavian family, but marry into it! When his offers were rebuffed and it became clear that there would be war, he married one Iustina, later the second wife of the emperor Valentinian.⁵³ Iustina is a fascinating figure, a doughty foe of Ambrose, with a dense web of aristocratic and imperial connections. She bore several children to Valentinian in the 370s, so she was young indeed in 351. Why then did Magnentius marry her? Her father, Iustus, was evidently a senator, governor of Picenum at some point in the mid-fourth century.⁵⁴ His sons were called Cerealis and Constantianus, and his granddaughters by Iusta were Galla, Iusta, and Grata.⁵⁵ Amongst senators, these names were characteristic of the Neratii and Vettii, so perhaps his father was Vettius Iustus (cos. 328), his mother a Neratia. Iustina would then have been a relative of Vulcacius Rufinus and Naeratius Cerealis: a prestigious match, certainly, but there is more. A cluster of references suggest that she had some connection to the imperial family, as we know the Neratii did also through the marriage of Iulius Constantius.⁵⁶ It may be, as Tim Barnes has proposed, that Iustus quietly married a daughter of Crispus and that Iustina was the granddaughter of Constantine.⁵⁷ In any case, Magnentius' bride appears to have had Flavian blood. Thus, even after

⁵² Peter the Patrician, *EL* 14.

⁵³ *PLRE* 'Iustina'.

⁵⁴ Socrates 4.31.11; *PLRE* 1094 (the province was governed by *clarissimi* by the 340s).

⁵⁵ See *PLRE* 'Iustus 1'.

⁵⁶ Rougé, 1958, 1974; Woods, 2004.

⁵⁷ Barnes, 1982, 44.

war was inevitable, the usurper was keen to insinuate himself into the ruling dynasty. A curious manifestation, indeed, of deep-seated dissatisfaction with the Flavian family.⁵⁸

If the idea that there was widespread discontentment with Constans is ever lent specificity, then it tends to be by characterising Magnentius' coup as 'an outright military usurpation', led by Constans' 'most successful general'.⁵⁹ This view is built on a void. Beyond the fact that Magnentius was indeed a soldier, there is almost nothing to suggest that his usurpation had a primarily military character. Autun was not a garrison town, and was far removed from any major concentration of troops. Nor did any senior generals throw themselves behind the new regime. Vetrano, obviously, did not leap to its support and Constans' other *magistri militum* – Salia and Eusebius – are conspicuous in the era of civil war by their absence. The marshals of Magnentius were either *tribuni*, like Silvanus, or obscure, like Gaiso, Romulus, and Marcellinus.⁶⁰ In this they resembled their master. The origins of Magnentius are shrouded by a haze of contemporary abuse, as supporters of Constantius hastened to label him a barbarian, 'a man of awful and savage character', as Victor put it.⁶¹ Drinkwater has argued that the ancient evidence is in some sense fundamentally irreconcilable, the product of a series of elaborations on the idea that he was a barbarian.⁶² He suggests that he was from a relatively humble background, had risen through military service, and that 'he could not have been in any way barbarian', because he was made emperor.⁶³ It seems more likely that the sources differ because in the immediate aftermath of the war it was important to stress that he was barbarous, but as tempers cooled, the truth – that like so many from frontier provinces he had a complex family history – could emerge. He was born at Amiens to a British father, probably a senior officer in the army of Constantine, and a Frankish mother.⁶⁴ They provided their son with a good education, and he became a *protector*, one of the staff officers of the army, at a young age – a glittering start in military

⁵⁸ It is thus strange to say (as Barnes, 1993, 102) that Magnentius after the usurpation of Nepotianus, 'no longer aspired to join the Constantinian dynasty, but to supplant it'.

⁵⁹ e.g. Šašel, 1971, 05; Bastien, 1964, 10; Webster, 1983, 241; Szidat, 2015, 125; Lee, 2015, 118; Barnes, 1993, 101; Didu, 1977, 21-2, 25. cf. Harries, 2012b, 195 (though note 222).

⁶⁰ *PLRE* 'Silvanus 2'; 'Gaiso'; 'Romulus 2'; 'Marcellinus 9'.

⁶¹ AV 41.25.

⁶² Drinkwater, 2000, 138-145.

⁶³ *ibid.*, 143.

⁶⁴ Bidez, 1925 (Drinkwater, 2000, 143's suggestion that the scholiast's information came from his inspection of the usurper's coinage is needlessly conspiratorial) (cf. Zonaras 13.6.1). Zosimus II.46.3.

life.⁶⁵ By 350 he was commander of the two most prestigious regiments of the army, yet he was also nearly 50, a considerable age for an officer in the field army – a really successful soldier might have expected one more promotion by then.⁶⁶ He had had, in other words, a good, but not a great career, and he was far from being Constans' most important general – to call him a leading figure of the second rank would be closer to the mark. If it was a military revolt, then it was a conspiracy of colonels; the marshals were happy enough with Constans. Julian alleges that Magnentius murdered generals, but was servile to the common soldiers, Zosimus that the usurpation took the high-command by surprise, while Zonaras says that soon after his usurpation he sent forged letters to those in positions of power to lure them to their deaths.⁶⁷ Tyrants are invariably accused of promiscuous massacres, but, on the thin evidence of personnel, it is at least plausible that Magnentius executed the generals of Constans. He certainly bribed lavishly to win support, as the Kaiseraugst treasure, which contains a series of silver plates issued by Constans but concludes with three ingots with the image of Magnentius on them, demonstrates.⁶⁸ Might we imagine the carefully amassed wealth of a senior officer, distributed to a lieutenant of the usurper before he set out on campaign?

If anything, it is not the military supporters of Constans who are noticeable, but the civilians.⁶⁹ Marcellinus, the *comes rei privatae*, was obviously involved, but there were others. Fabius Titianus, the long-serving praetorian prefect of Constans, was swiftly made Urban Prefect by the usurper (appointed, at least, by the 27th of February) and was later to be found in his entourage in the war in the Balkans.⁷⁰ On the eve of the battle of Mursa, he arrived at the camp of Constantius, and launched a wide-ranging assault on the crimes and misdemeanours of Constantine and his sons – he was evidently a committed supporter of Magnentius. Since he was in Gaul for some parts of the 340s, perhaps even at Autun in 349, it is tempting to see in him the main pillar of the usurping regime. It is otherwise surprising to find such a prominent and favoured servant of Constans (indeed of Constantine) enthusiastically embracing his murderer. The other Urban Prefects of Magnentius (the

⁶⁵ Zosimus 2.54.1; Zonaras, 13.6.1. Frank, 1969, 83-87.

⁶⁶ *Epitome* 42.6.

⁶⁷ Julian, *Or.* 1.34a; Zonaras 13.6.16-18.

⁶⁸ Kaufmann-Heinemann, 1991.

⁶⁹ For Magnentius' men, see Delmaire, 1997, 112-116; Humphries, 2015, 163-4.

⁷⁰ *Chron.* 354; Zosimus 2.49.1.

only office for which we have a complete run of names) were not too dissimilar: grand servants of Constans, like Titianus. Valerius Proculus was brought in not long after Magnentius had returned from the shattering defeat of Mursa, and was presumably there to steady the ship of state: again, the prominence of a consul and servant of the Flavian dynasty in the regime of the usurper is striking.⁷¹ One of his predecessors was Aurelius Celsinus, whom we met as the proconsul of Africa and Urban Prefect of Constans not long after the death of his father, apparently a faithful servant in the turbulent period when he and Constantine II had shared dominion over the west.⁷² Clodius Celsinus Adelfius had been *corrector* of Apulia and Calabria and *consularis* of Numidia before 335. Magnentius made him Urban Prefect, though his career was an unhappy one, accused as he was of aspiring to loftier honours.⁷³ It must be admitted that others – Septimius Mnasea and Celiu Probatu – are more obscure, and support was far from universal: plenty of prominent civilians opposed the new regime.⁷⁴ In Illyricum, Vulcacius Rufinus was clearly involved in the intrigues around Vetrano, while his brother, Naeratius Cerealis, was in the region by 351, before Mursa, present at the cross-examination of the heresiarch Photinus at Sirmium – presumably he was a defector from Italy.⁷⁵ Memmius Vitrasius Orfitus, the father-in-law of the orator Symmachus and a distinguished senator and bureaucrat, defected to Constantius and then stayed with the emperor for the duration of the campaign, perhaps even marrying a Flavian woman.⁷⁶ Still, it is immediately noticeable that some of those aged, pagan, aristocratic Italians whom we have met before appear to have been pillars of the regime of Magnentius, while their senior colleagues in the military were not to be found leading the armies of the usurper.

Linked with the theories that the revolt of Magnentius was a result of general discontent, or a military revolution, is the equally durable, equally flawed, idea that it was a specimen of that phenomenon historians have been so keen to diagnose: pagan reaction.⁷⁷ Magnentius has often been

⁷¹ On Proculus, above 75.

⁷² On Celsinus, above 43.

⁷³ *PLRE* 'Celsinus 6', 'Celsinus 7', who should probably be identified. See Barnes, 2006, 249-56, for a more detailed and more speculative reconstruction.

⁷⁴ *PLRE* 'Mnasea', 'Probatu'.

⁷⁵ *PLRE* 'Cerealis 2'; Epiphanius, *Panarion* 71.1.5, Socrates 2.29.4, with Barnes, 1993, 109.

⁷⁶ *PLRE* 'Orfitus 3'; Cameron, 1996.

⁷⁷ On which in general, see Cameron, 2011.

thought a ‘pagan brute’, though more opportunist than ideologue in his religious policy, an emperor who offered ‘acceptance and tacit encouragement of paganism’.⁷⁸ This view of the usurper was always weak, reliant as it was on sources which were keen to portray Constantius as fighting for God, and thus axiomatically made his opponents pagans (or worse).⁷⁹ It should not have survived the careful demonstration of Joachim Ziegler that Magnentius was very likely a Christian, and that his coinage prominently advertised that fact, growing increasingly fervent as his situation became more desperate.⁸⁰ We know that, much like Constans, he had bishops in his entourage: he used them as ambassadors in the course of the war, two of them part of the embassy which Athanasius saw at Alexandria, and others in the aftermath of Mursa, as he tried desperately to make peace.⁸¹ In spite of all this, the notion that, in some sense, paganism underlay his rebellion has proved durable. Zeev Rubin has even suggested that it was really a pagan military revolt, the largely pagan troops sustained by the hope of a religious restoration, which explains their fanatical loyalty to Magnentius throughout the war.⁸² The evidence for this is nonexistent.⁸³ We have no real idea what the religion of most troops was, though since Constantine they appear to have been obliged to participate in Sunday observance: Christian soldiers allowed to go to Church, non-Christians marched out into open spaces and ordered to recite a monotheistic prayer.⁸⁴ They had Christian signs on their banners, and their shields.⁸⁵ It seems bold, then, to conclude that the army was a hotbed of paganism – as A.H.M. Jones long ago lucidly pointed out, it tended to homogenise around a vague, imperially inflected Christianity.⁸⁶ In fact, it is noticeable that while there were prominent pagans in the civilian administrations of both Constantius and Constans, as there had been under their father, all of their generals and officers about whose faith we know were Christian – including Magnentius. If anything, one might conclude that a pagan military revolt was a contradiction in terms.

⁷⁸ As *e.g.* Bastien, 1964, 8. Ziegler, 1970, 65, summarises views to that date. Webster, 1983, at 243; Pietri, 1989, at 146.

⁷⁹ Cameron, 2011, 95-6.

⁸⁰ Ziegler, 1970, 53-74.

⁸¹ Athanasius, *AC* 9.2; Zonaras 13.8.21.

⁸² Rubin, 1998, esp. 135, 141.

⁸³ Rubin, 1998, 134-6, simply assert soldiers were recruited from largely non-Christian regions, introduces an anecdote about Constantine of dubious relevance, and misreads Ephraem of Nisibis who is in fact saying that the army was punished by God for the paganism, or acquiescence to it, which it *later* showed under Julian.

⁸⁴ Eusebius, *VC* 4.18.3-20.2.

⁸⁵ *ibid.*, 4.21.

⁸⁶ Jones, 1963, 23-6.

What has sustained the idea that paganism had something to do with Magnentius' regime is a single law of Constantius II, issued on November 3rd 353:

Let the nocturnal sacrifices permitted by Magnentius be abolished, and henceforth let wicked licence be spurned. And other things.⁸⁷

That Magnentius did indeed allow nocturnal sacrifices to take place (a sop to traditional practices) has been almost universally accepted.⁸⁸ Even Ziegler conceded that he had legalised them and the normally sceptical Barnes accepted this as a 'clumsy attempt to curry favour' with pagan aristocrats.⁸⁹ Yet, there are serious reasons to be sceptical of these 'nocturnal sacrifices'. For one thing, this is what Constantius II (hardly an objective witness) claimed Magnentius had done after the civil war, when he had already annulled all of Magnentius' acts, which lends the measure a suspiciously showboating feel.⁹⁰ In fact, the idea that Magnentius allowed 'nocturnal sacrifices' is almost certainly a confection of the regime of Constantius, one which bore no relation to the truth at all. There is a very simple reason for this: the Romans had a deep-seated aversion to the performance of religious rites at night, which were associated with wicked people, who used sinister magics for nefarious purposes.⁹¹ This was rooted in an association in the Roman mind between secret rituals and illicit rituals, one which perhaps even went back to the days of the Twelve Tables, when nocturnal meetings were already illegal.⁹² The *Sentences* attributed to Paulus (third-century A.D.) specified that those who celebrated 'impious or nocturnal rites (*sacra*)' (inevitably for some wicked purpose) were to be crucified or condemned to the beasts.⁹³ It was this horror of sacrifices at night that led Firmicus Maternus to insist that the astrologer never take part in them, whether in public or in private: he should practice his art openly, in view of everybody, because that showed it was legitimate.⁹⁴ As so often, it is in the pages of Augustine that this point about paganism is made most sharply: nocturnal sacrifices were not merely a shady business (in both senses), they were *ipso facto* illicit. In the course

⁸⁷ *CTh* 16.10.5: *Aboleantur sacrificia nocturna magnentio auctore permissa et nefaria deinceps licentia repellatur. Et cetera.*

⁸⁸ *e.g.* Salama, 1987, 208; Rubin, 1998, 132; Bastien, 1964, 8; Pietri, 1989, 162

⁸⁹ Ziegler, 1970, 67-8; Barnes, 1993, 102, n. 21.

⁹⁰ *CTh* 15.14.5.

⁹¹ For which, see *e.g.* Kippenberg, 1997.

⁹² *Twelve Tables* 8.26.

⁹³ Paulus, *Sententiae* 2.23.15, with Liebs, 1993, 45-50.

⁹⁴ FM, *Mathesis* 2.30.10.

of a debate at Hippo about demons and divination, conversation turned to the Almighty's attitude to sacrifice. One of Augustine's interlocutors made the point with crystal clarity:

But if now some prohibited sacrifices are celebrated secretly and illegally, they ought not to be compared to that priestly kind of sacrifice, but ought to be defined in the same way which those which happen at night also are, since it is certain that all these are prohibited and condemned as illegal by those books of the pontiffs.⁹⁵

To suggest that Magnentius favoured nocturnal sacrifices was merely to say that he was broadly in favour of bad things; but to suggest that he had made them legal was a contradiction-in-terms.

Paradoxically, the law of Constantius reveals not continuing pagan feeling in the west, but an imperial administration that had an increasingly tin ear for describing pagan rituals, because, perhaps, fewer and fewer individuals had any idea what they were like.

Magnentius' usurpation, then, revealed no deep discontent with the rule of the Flavian family, it was not a military revolt and still less was it motivated by pagan desperation. There is no evidence that Magnentius broke with the policy of his predecessor in any significant way. In its brief existence and obscured as it is by the haze of civil war, his regime actually looks remarkably like the one it had overthrown: a Christian 'Flavian' emperor, with bishops at his court, supported by prominent pagan Italian aristocrats. What, one might wonder, was all the fuss about, then? It is possible, as Jill Harries has suggested, that the state was under serious fiscal stress.⁹⁶ It is true that amongst Magnentius' legislative measures appears to have been a large tax of some kind, along with the sale of a lot of imperial property, and that Marcellinus, clearly an important individual in the coup, was involved in imperial finance.⁹⁷ Still, Magnentius had a civil war to fight, requiring as that did expenditure on an enormous scale, and these measures were probably the result of conflict's insatiable appetite for money. It seems, in the end, most likely that Constans was killed as a result of some, now totally obscure, feud at court (perhaps in a plot orchestrated by Fabius Titianus) – which is more or less what Zosimus thought.⁹⁸ Emperors, even popular ones with a record of military

⁹⁵ Augustine, *De divinatione daemonum* 2.5: *si quid autem nunc prohibitorum sacrificiorum fit occulte atque illicite, non est illi pontificali sacrificiorum generi comparandum, sed in eodem deputandum, quod etiam nocturno fit tempore, cum haec omnia illicita ipsis pontificalibus libris certum sit prohiberi atque damnari*. On the work, see Kühn, 1997.

⁹⁶ Harries, 2012b, 194-5.

⁹⁷ Julian, *Or.* 1.34b.

⁹⁸ Zosimus 2.42.2. *cf.* Harries, 2012b, 196.

success, were always vulnerable to such things, like Aurelian, murdered in the scheme of a finance official worried his embezzlement would be discovered.⁹⁹ Perhaps the relationship between prefect and emperor had grown strained over the years, as the pagan administrator began to find the emperor's violent Christian rhetoric wearing. It may be that the cause was more prosaic: Titianus was probably an old man by 350, as were several of Constans' servants. Constans was now in his middle-twenties, and perhaps the aging bureaucrats felt their position was threatened by a thrusting and increasingly assertive young emperor, whom they were finding it more and more difficult to control. It is certainly easy to see how arguments at the court of Constans, where most of the people involved were powerful aristocrats in their own right, with a fierce sense of their own dignity, might turn nasty, far more quickly than at the court of Constantius, where most owed their position solely to the emperor. The plotters, however many they were, settled on an officer of the second rank, a man whose career had never quite fulfilled its promise, perhaps because they knew that the generals would react with horror to whispers of any plots. They chose their stage carefully, exploited the season and the Constans' habit of travelling with few guards, presenting to the empire a *fait accompli*, one which they could make stick in the former realms of Constantine II (we might note). In its aftermath, they embarked on a sustained and successful attempt to blacken the dead man's name. In truth, however, while the revolt of Magnentius might tell us something about the febrile world of the court, it does not fundamentally change our portrait of the Flavian empire.

⁹⁹ AV 35.8.

Civil War

Constantius was on the eastern front when news arrived of the revolutions in the west. Years later, Themistius vividly evoked the terror and uncertainty felt at Constantinople:

... the whole empire was on tip-toe and in suspense as to the future, and the city was terribly overwhelmed by fear: its heart pounded, its voice stammered.¹⁰⁰

By the time he had learnt that Vetrano was on the throne at Sirmium (some 1,350 miles from Antioch), it was probably the middle of April, and the campaign season was just beginning. Shapur hurled an enormous force at the city of Nisibis, which he had twice besieged and twice failed to take. This was an epic affair, lasting four months, as the Persian army strained every sinew to take the city and its inhabitants, under the command of the doughty general Lucillianus, resisted with a viciousness and determination born of desperation.¹⁰¹ The titanic struggle, in particular the spectacular Persian efforts to divert the river Mygdonius to breach the walls and the assaults by elephants, caught the imagination of contemporaries and posterity, was perhaps even immortalised in fiction.¹⁰² Constantius, busily engaged in preparations for an expedition against the usurpers, could not march to the city's immediate aid, or gamble on a pitched battle – he needed to husband his strength.¹⁰³ Yet, at the same time, he could hardly risk departing for the west while Shapur was at his back, with an army in the field and the threat he might take 'that most strong bulwark of the east'.¹⁰⁴ He hovered in the region, caught between two unpalatable choices – ultimately, it was the demands of external security which weighed most heavily with him. Constantius held his nerve, continued to prepare for his expedition, and trusted in the defensive strategy he had pursued over the previous decade to see him through. The empire held its breath, and under the strain the regular rhythms of government stopped – no legislation at all seems to have been issued in 350.¹⁰⁵ At last, probably in late August or early September, Shapur gave up. Zonaras says that the siege had cost him more than

¹⁰⁰ Themistius, *Or.* 4.56a: ἅπαντα οὖν ἡ ἀρχὴ ὀρθὴ ἦν καὶ μετέωρος πρὸς τὸ μέλλον, ἡ πόλις δὲ ἐνδεινότερον ἐξεπέπληκτο ὑπὸ δειμάτος, καὶ ἔπαλλε μὲν αὐτῆς ἡ καρδία, ἐβάμβαινε δὲ ἡ φωνή.

¹⁰¹ Zosimus 3.8.2. The duration of the siege varies in the sources (Lightfoot, 1988, 114).

¹⁰² Themistius, *Or.* 2.37a e.g. Heliodorus' *Aethiopica* was perhaps inspired by the siege (Lightfoot, 1988, 117-9).

¹⁰³ Julian, *Or.* 2.62c; Barnes, 1993, 220.

¹⁰⁴ AM 25.8.14.

¹⁰⁵ Seeck, 1919, 196, 197-8.

20,000 men dead and that the Massagetae were threatening the eastern rim of his empire.¹⁰⁶

Constantius may have made a flying visit to the exhausted city and the Persians appear to have offered some kind of truce.¹⁰⁷ The emperor left Lucillianus and the general Ursicinus in command of the frontier and stuffed the cities of Syria with troops and *matériel* to deter the Persians.¹⁰⁸ He set out to the west, as winter closed in, the eastern army trailing behind him.

Constantius had had to watch and wait as the usurpers consolidated their power in the West. Throughout the long year A.D. 350, he appears to have propped up Vetranio, embassies shuttling back and forth, while the emperor gave the general money and sent out troops to maintain the frontiers in the Balkans – ‘taking precautions lest the old man be overmastered by the tyrant’.¹⁰⁹ Magnentius, perhaps resident in Milan, was menacing the frontier of Illyricum and may already have seized the passes through the Julian Alps by treachery.¹¹⁰ He seems to have hoped to strike against the Balkans while Constantius was detained in the east. As we saw, Magnentius clearly recognised, or attempted to, the rule of Constantius II, but he never so much as hinted that he accepted Vetranio’s claim to be an emperor and in overthrowing Constans he had presumably intended to take over his entire domain.¹¹¹ That would have handed him a strategic advantage, hugely increasing the forces at his disposal, and leaving them perched on the borders of Thrace, capable of a swift descent on Constantinople. Constantius would have had little choice but to negotiate.

Vetranio was probably saved by the revolt of Nepotian. This is presented by the sources as a scrappy affair, his supporters gladiators, or dissolute men given over to robbery.¹¹² Still, it took twenty-seven days for the forces of Magnentius to subdue them, after they had killed a large number of his supporters.¹¹³ It was a very serious business – a *pugna magna* as the *Consularia*

¹⁰⁶ Zonaras 13.7.12-13. That Shapur did indeed go east after 350 is suggested by AM 14.3.1.

¹⁰⁷ Zonaras 13.7.14; Julian, *Or.* 1.28d.

¹⁰⁸ Julian, *Or.* 1.26d; Zosimus II.45.2; *PLRE* ‘Ursicinus 2’. *pace* Blockley, 1980, 472, n. 25, he probably had been *magister militum* for a decade in 359 (certainly he was in 353, when Ammianus starts).

¹⁰⁹ Julian, *Or.* 1.30b.

¹¹⁰ Zonaras 13.8.1. AM 31.11.3 (date unclear, but some time in 350 seems plausible). The name of the commander involved is ‘Actus’ in the MSS, normally emended or daggered, but it is an attested *cognomen* (Kajanto, 1965, 349). *cf.* Duval, 1976, 243-4.

¹¹¹ *contra* Drinkwater, above, 110.

¹¹² AV 42.6; Zosimus 2.43.5.

¹¹³ AV 42.6-8; Zosimus 2.43.2-4.

Constantinopolitana put it, the very words with which it described the calamity of Adrianople.¹¹⁴ The slaughter in suppressing the revolt was considerable and Aurelius Victor speaks of a city where ‘the houses, *fora*, streets, and temples were, like tombs, filled up by gore and dead bodies’.¹¹⁵ This diverted the armies of Magnentius for a considerable period of time – it was not suppressed until the end of June and the troops appear to have been badly mauled in the encounter. The dispatch of Marcellinus, one of Magnentius’ chief lieutenants, ‘the poet of that monstrous and accursed drama’, shows that the usurper’s regime regarded the revolution as a very serious, perhaps existential, threat.¹¹⁶ In its aftermath, there were considerable reprisals at Rome – Nepotian’s head was paraded on a spike through the city and there were promiscuous confiscations and proscriptions.¹¹⁷ Athanasius could reel off a list of friends he had lost to the slaughter (including Eutropia, the mother of Nepotian), while the statues of servants of Constans were at risk of destruction.¹¹⁸ As Urban Prefect at the time, Fabius Titianus loyally advertised the rule of Magnentius, ‘the enlarger of the Roman world and state’.¹¹⁹ At Rome, the truth was rather less happy. In 350, Italy was a debatable land, subject to Magnentius, but only at the cost of considerable blood and treasure. The campaign to convince those travelling along its roads of the usurper’s virtues probably belongs to the aftermath of Nepotian’s revolt. It was that which had preserved the threefold division of the empire.

Magnentius instead invested in diplomacy, attempting to reach some kind of settlement with Constantius. He made his first effort in 350, sending ambassadors overland from North Africa through Egypt – bypassing, we might note, the territory under the control of Vetricio. We know about this first effort only through the furious self-defence of Athanasius and (as so often) he is interested in it only insofar as it helped his cause – no details about what the ambassadors were planning to say to Constantius.¹²⁰ He does, however, reveal something of the febrile atmosphere of the time: fears that Magnentius might invade Egypt overland and kill those (like Athanasius, as he himself emphasised) who had loved the dead prince Constans. The patriarch, a shrewd judge of

¹¹⁴ *CC* s.a. 378.

¹¹⁵ *AV* 42.7.

¹¹⁶ Julian, *Or.* 2.57d.

¹¹⁷ John of Antioch, fr. 200; Jerome, *Chron.* 238b.

¹¹⁸ Athanasius, *AC* 6.5. Above, 81 for Eugenius.

¹¹⁹ *ILS* 741, *CIL* 6.1167.

¹²⁰ Athanasius, *AC* 9-10.

political circumstance, hastened to affirm his loyalty to Constantius. In the presence of the *dux* and other imperial officials, Athanasius urged the people of Alexandria to pray for the emperor – an ostentatious demonstration of loyalty.¹²¹ In return for this public vote of confidence, he received a written guarantee that he might continue unmolested in his see, one signed in the emperor's own hand, with a wish (perhaps not entirely sincere) that the Divinity preserve him for many years.¹²² If troubled Alexandria was solid for Constantius – Athanasius' rush to advertise that he was a splendid emperor and he had always thought so, suggests it was – then it seems likely the entire east was firmly in his grasp. No deep-rooted discontent with the Flavian family there. The emperor's letter to Athanasius has a truculent tone when it refers to what had happened in the west, speaking of the gloom by which he had been enveloped, 'since I learnt that he [Constans] had been killed by the treachery of certain most unholy men'.¹²³ No suggestion here that he was thinking of dealing with the usurpers: the name of Constantius sits in splendid isolation at the head of the letter, acknowledging no other legitimate emperors. The envoys of Magnentius evidently went home empty-handed.

When, late in the year, Constantius reached Heraclea in Thrace, he found ambassadors from the two usurpers waiting for him.¹²⁴ At some stage towards the end of 350, Vetranio had cut a deal with Magnentius, perhaps when the latter realised that neither the conquest of the Balkans, nor a separate peace were possible.¹²⁵ The details of this pact are obscure, but it was obviously a major threat to Constantius, whose approach had clearly concentrated their minds. The Balkan emperor may have hoped to play off one side against another, or, by threatening to settle with Magnentius, extract better terms from Constantius.¹²⁶ He was certainly willing to take a hard line in relation to the last son of Constantine: his forces occupied the Succan Alps, and it would have been a grim task for Constantius' army to try and force them in the dead of winter.¹²⁷ Magnentius, on the other hand, was clearly still desperate to strike some kind of deal with the emperor, willing to try again even after his earlier efforts had been rebuffed. The ambassadors the usurpers had dispatched were a distinguished

¹²¹ Athanasius, *AC* 10.3-4.

¹²² *ibid.*, 23.

¹²³ *ibid.*, 23.1.

¹²⁴ Zonaras 13.7.19.

¹²⁵ Julian, *Or.* 1.30c.

¹²⁶ Zosimus 2.44.1.

¹²⁷ Philostorgius 3.24.

bunch. From Vetranio came the prefect Vulcacius Rufinus; from Magnentius, Marcellinus, apparently a general, Nunechius, a senator and prefect, and one Maximus.¹²⁸ The framework of agreement was that Constantius would have first place in the state and there would be no civil war. The emperor would marry Magnentius' daughter, the usurper the emperor's sister. Rufinus urged Constantius not to risk war, for the odds were against him: Magnentius and Vetranio were in agreement, knew how to fight, and had fresh troops. They had won triumphs on his family's behalf. Nunechius emphasised that his master wished only for peace. The talking evidently went on for some time and Constantius retired to bed without having given a definitive answer.¹²⁹

In retrospect, that restless night assumed enormous significance. The emperor was said to have seen a vision in a dream: his father seemed to be by his side, leading Constans by the hand. Constantine spoke, and ordered Constantius to avenge his murdered brother. He was not to suffer the empire to be divided or the state to be overthrown, even at the price of war.¹³⁰ Whatever Constantius had or had not seen (and the family was peculiarly prone to visions), it was clear that he had settled on war, a war which was to avenge his brother and in which familial duty was his rallying cry. He imprisoned the ambassadors, except Rufinus, and turned to dealing with Vetranio.¹³¹ What happened next is clear enough in outline: Constantius advanced into the Balkans, moving quickly to Serdica, where Vetranio met him.¹³² From there, they proceeded to Naissus, the birthplace of Constantine, we should note, where the Balkan armies had assembled in the run up to Christmas.¹³³ Constantius had relatively few soldiers with him and to all appearances Vetranio was in a position of strength.¹³⁴ On the 25th of December (the anniversary of Constans' proclamation as Caesar), the two emperors, clad in regal purple, climbed onto a tribunal to address the troops.¹³⁵ Constantius spoke first (in Latin),

¹²⁸ Petrus Patricius, *ELG* 14.

¹²⁹ *ibid.*

¹³⁰ *ibid.*; Zonaras 13.7.21.

¹³¹ *ibid.*

¹³² Zonaras 13.7.22. Drinkwater, 2000, 157, n. 129 is surely right that they did first meet at Serdica (*contra* Bleckmann, 1994, 53, n. 126).

¹³³ Jerome *Chron.* 238c (for the location, *contra* Socrates 2.28.17 not Sirmium), *CC s.a.* for the day date, which must fall in 350 (not 351), since AV 42.1 says his reign lasted for fewer than ten months.

¹³⁴ Julian, *Or.* 1.31a-b; 2.78a.

¹³⁵ Zosimus 2.44.3.

while the assembled soldiers listened with great attention.¹³⁶ Themistius sketched this moment of high drama:

...the soldiers stand, leaning on their shields, the cavalry restrain their horses, the bowmen unstring their bows, while the slingers loosen their slings, and the emperor alone and unarmed, without spear, without sword, engages in single combat on the platform...¹³⁷

Constantius dwelt on the liberality which his father had shown them, on the oaths they had sworn to be loyal to his children; he reminded them of how they had fought for Constans and been rewarded by him.¹³⁸ How could they serve Magnentius, who had murdered their master? Turning to Vetranio, he asked him ‘when the brother has died, to whom does the inheritance pass?’¹³⁹ The question answered itself. The troops cheered him wildly, and demanded that Constantius rule the empire alone. With a show of great reluctance, Vetranio gradually removed his purple robe, and handed it to Constantius. Without bloodshed, by sheer force of eloquence, the emperor had won a famous victory – the tribunal from which he had spoken was preserved for tourists to gawp at.¹⁴⁰ Vetranio was well-treated, sent off to a comfortable retirement at Prusa in Bithynia, to enjoy ‘easy luxury, free from the cares of business’, where he lived for another six years, occupying himself by going to church and giving alms.¹⁴¹ His supporters were shown favour by Constantius, who rewarded some of them, and protected the rest.¹⁴²

That was how events were presented to contemporaries, the sources rhapsodizing over the emperor’s brilliance and clemency. Writing only a few years later, Aurelius Victor used the episode to illustrate one of his favourite points: that eloquence was always and everywhere useful, and that by it even difficult things were easily accomplished.¹⁴³ Alone of all emperors, Constantius had won this bloodless victory merely through what he had said.¹⁴⁴ Historians have, naturally, been disinclined to accept this ‘carefully staged ceremony’ at face value, have looked for the reality behind the veil of

¹³⁶ Julian, *Or.* 1.31c-d.

¹³⁷ Themistius, *Or.* 2.37a: οἱ μὲν ὀπλῖται ἐστήκασιν κεκλιμένοι ἐπὶ τῶν ἀσπίδων, οἱ δὲ ἵππεῖς ἐγκεχαλινωμένοι τοὺς ἵππους, οἱ δὲ τοξόται τὰ τόξα ἀνέντες, οἱ δὲ σφενδονῖται χαλάσαντες τὰς σφενδόνας, βασιλεὺς δὲ μόνος καὶ ἄοπλος, ἄτερ αἰχμῆς, ἄτερ μαχαίρας, μονομαχεῖ ἐπὶ τοῦ βήματος.

¹³⁸ Zosimus 2.44.3.

¹³⁹ Athanasius, *HA* 50.1; Themistius, *Or.* 3.45c.

¹⁴⁰ Julian, *Or.* 1.31d-32a.

¹⁴¹ Zonaras 13.7.26-28. Themistius, at *Or.* 2.38. *Chronicon Paschale* s.a. 350.

¹⁴² Julian, *Or.* 1.32a-b.

¹⁴³ AV 41.1-4.

¹⁴⁴ *ibid.*, 41.2.

panegyric.¹⁴⁵ The most subtle explanation of what was going on has been offered by Bruno Bleckmann. His Vetranio is a man betrayed by his supporters, especially by Vulcacius Rufinus, who had struck a deal with Constantius at Heraclea. The emperor would formally recognise his rival, but, when the opportunity presented itself, he would remove him. In return for services rendered, Rufinus would continue to be praetorian prefect, Gallus would be made Caesar, and Vetranio quietly retired.¹⁴⁶ John Drinkwater has developed this thesis of an elaborate plot, making Vetranio, ‘an unwilling emperor’, loyal in his heart to Constantius, party to the conspiracy, an active participant ‘in a scrupulously planned formal abdication’.¹⁴⁷ Stories about Vetranio’s stupidity, his oafishness, the way that he was ‘entirely unlettered and quite brutish in character, and therefore the worst on account of his peasant stupidity’ as Victor put it, were circulated as an excuse for the actions of the soldiers in the Balkans and of Constantina.¹⁴⁸ He had never really been a threat and so it hardly mattered that he had been made emperor.¹⁴⁹

There is much to be said for such a portrait of events. It is clear that Vetranio was betrayed at certain points: by Gomoarius, for instance, then in command of the *Scutarii*.¹⁵⁰ Zosimus claims that the Balkan soldiery had been bribed to support Constantius before the meeting and, before asking the troops for anything, it was always wise to encourage the warm goodwill which only gold could rouse.¹⁵¹ Rufinus, an old comrade of Constantius, is a plausible double agent. Yet it also produces a ‘problem-free liquidation of the rule of Vetranio’, retreats again into a politics of perfect information and ruthlessly effective action.¹⁵² In its haste to deconstruct, it has perhaps missed the most obvious contemporary distortion of recent history. When Constantius’ panegyrists described the build-up to that day at Naissus, one event was conspicuous by its absence: the conference at Heraclea.¹⁵³ Why? Surely not because some plot to betray Vetranio had coagulated there – that would have been, on an orator’s lips, good evidence for the ‘loyalty’ of army and administration. It is hard to be certain, but

¹⁴⁵ Barnes, 1993, 105.

¹⁴⁶ Bleckmann, 1994, 52 ff.

¹⁴⁷ Drinkwater, 2000, 156 ff., at 156, 158.

¹⁴⁸ AV 41.26.

¹⁴⁹ Bleckmann, 1994, 54.

¹⁵⁰ AM 21.8.1.

¹⁵¹ Zosimus 2.44.4.

¹⁵² Bleckmann, 1994, 57.

¹⁵³ e.g. Julian, *Or.* 1.30c-d.

the indications are that a veil of silence was drawn over those negotiations because Constantius had struck a deal with Vetranio there, an agreement that they would, together, fight Magnentius – which is what Zosimus says quite explicitly.¹⁵⁴ That explains his treatment of Vulcacius Rufinus, the way he then advanced into the territory of Vetranio, treating him, it is evident from their joint progress and address to the troops, as his colleague.¹⁵⁵ The other central features of the presentation of Constantius fall neatly into line around this. His support of the elderly usurper throughout 350 established his good faith, while Vetranio's harped-on 'deal' with Magnentius showed that he was the false friend. His arrogance in dealing with Constantius might be a coded reference to a presumption of equality – perhaps a justified one.¹⁵⁶ The presentation of Vetranio as barely sentient suggested that the emperor's dealings with him were not that serious – it did not matter that Constantius had betrayed him if he was so stupid he could not even manage to be a tyrant.

It is in this light that the circumstances of his usurpation become very important. As we saw, this was not so much a challenge to the Flavian dynasty, as a howl of despair at what Magnentius had done. As he advanced through the Balkans, Constantius probably found an army and administration that were sympathetic to the idea of a war of revenge against Magnentius and which now had a son of Constantine to lead it. There were evidently receptive individuals, like Gomoarius, who were unconvinced that they needed a Vetranio. It may have been relatively late in the day that the emperor opted for the course of action which was ultimately so significant. He chose his stage carefully: what better place than the town of Constantine's birth to remind the troops of their loyalties? What better date than the anniversary of Constans' elevation to imperial power? Of course the incident looks staged to modern eyes, but it is worth remembering that such scenes often produced surprises, as when Diocletian stunned the armies on a hill outside Nicomedia by announcing the promotion of Severus and Maximin Daia as Caesars.¹⁵⁷ Constantius exploited his rank to address the massed regiments first. As he spoke, he dwelt on the virtues of his descent and the way his family had been wronged. He turned to Vetranio, asked him that unanswerable question and the troops – whose

¹⁵⁴ Zosimus 2.44.1-2.

¹⁵⁵ As emphasised by Drinkwater, 2000, 157.

¹⁵⁶ Julian, *Or.* 1.30c-31c.

¹⁵⁷ Lactantius, *DMP* 19.1-6.

reaction, it must be remembered, was the least predictable moment – roared for one emperor alone. It was a triumph for Constantius, and the admiration expressed by our sources for his eloquence may not be totally feigned. At the mere nod of Constantius, Vetricius had been cashiered, as though he were a common soldier, and the emperor had won the allegiance of the armies in the Balkans, the balancing force in the year of the three emperors.¹⁵⁸ It was the middle of winter and the passes were closed – all action ceased until the New Year.¹⁵⁹ In the west, Magnentius proclaimed himself and Gaiso, the murderer of Constans, consuls; in the east the *fasti* were pointedly left blank.¹⁶⁰ In this interval, Constantius took an immensely significant decision. On the Ides of March (history is not devoid of a sense of irony), just before the campaign season got under way, he made his cousin Gallus, one of only two survivors of the massacre of 337, a Caesar.¹⁶¹

The appointment of Gallus is so shrouded in polemic that it is probably impossible to recover what really happened. The collapse of his rule at Antioch into blood and terror, his subsequent execution, and the significance of that to Julian's career made Gallus' brief turn on the imperial stage a matter of deep controversy.¹⁶² The sources almost uniformly suggest that he was made emperor as a sort of eastern viceroy, to keep the frontier safe from the Persians while Constantius fought in the Balkans.¹⁶³ Historians have been happy enough to accept that: 'his prime function was to oppose the Persians'.¹⁶⁴ To this, Zosimus adds the precision that Constantius' real aim was to have him murdered and while modern historians have not quite gone that far, they have found it hard to avoid seeing the whole of Gallus' career through the lens of his fall: he had a hopeless circle to square, the victim of an unworkable division of power, as Constantius undermined him from the start.¹⁶⁵ Yet, the idea that Constantius wanted Gallus to be a protector for the east is much less secure than one might imagine. He had already made provision for its defence, leaving an army and two experienced

¹⁵⁸ AM 15.1.2.

¹⁵⁹ AV 42.5.

¹⁶⁰ CLRE, 236-7.

¹⁶¹ CC s.a. 351.

¹⁶² AM 14.1; Julian, EA 270d-271a.

¹⁶³ AV 42.9; Libanius, Or. 18.16; Philostorgius 3.25, Socrates 2.28.21; Zosimus 2.45.1; Zonaras 13.8.3-4.

¹⁶⁴ Blockley, 1972b, 445; Bastien, 1964, 17-18. Warmington, 1977, 514. Frakes, 2012, 101. Bleckmann, 1994, 58-9, cf. 2003b, 46-7.

¹⁶⁵ Blockley, 1972b, *passim*, esp. 467. Vogler, 1979, 52; Bleckmann, 1994, 62-3.

generals to oversee the frontier and making a truce with Shapur.¹⁶⁶ Against all odds, that truce appears to have held well into the 350s, which Themistius thought a clear sign of God's partnership with Constantius:

That the hateful Persians did not cease to harass him when he was at leisure, but when he was without it were almost destroyed – surely this is a manifest sign of that alliance? For God appears, as in a long battle-line, when there are many enemies, to place himself on the emperor's behalf against the wing <of their army> as it toils.¹⁶⁷

If he had really thought that the east needed an emperor in his absence, then the time to give it one was when he had left on campaign, not nearly half a year later. In any case, it is not clear that Gallus went immediately to the east: his praetorian prefect, Thalassius, was still in Illyricum late in 351.¹⁶⁸ It is, in fact, uncertain whether it was initially intended that Gallus go to the east in any permanent way: Constantius would later lean on the example of the tetrarchic Caesars, whom he clearly thought of as having no precise geographical areas of responsibility.¹⁶⁹ One cannot help but wonder whether the story that Gallus had been sent to protect the east emerged in the aftermath of his fall, a retrojection from the violent way he had interpreted his commission and an attempt to rationalise his fate. Equally, the idea that Constantius wanted Gallus to destroy himself is simply a product of the former's image as a monster of suspicion, with a fondness for conspiracy.¹⁷⁰ Constantius was quite capable of ruthless action, and had he wanted to remove Gallus during the civil war – as he did, for instance, Paul of Constantinople – he would simply have done that.¹⁷¹

Why then was Gallus appointed? It is in the context of the civil war that his sudden rise to prominence can assume its true aspect and it is worth noting immediately that it was not a rash decision, coming as it did almost a year after news of the usurpations had filtered east.¹⁷² Constantius was fighting a war, so he said, to avenge his brother, asserting that his was the only family which had

¹⁶⁶ Above, 122.

¹⁶⁷ Themistius, *Or.* 2.39a: Τὸ δὲ δὴ Πέρσας τοὺς δυσωνύμους σχολὴν μὲν ἄγοντι μὴ παύεσθαι ἐνοχλοῦντας, ἀσχολουμένου δὲ σχεδὸν τι ἀπολωλέναι, ἄρα οὐκ ἐναργὲς ἐκείνης τῆς συμμαχίας σημεῖον; φαίνεται γὰρ ὁ θεός, καθάπερ ἐν μακρᾷ παρατάξει, πολλῶν πολεμίων ἀντιμεθιστάμενος πρὸς τὸ πονοῦμενον κέρας τῷ βασιλεῖ.

¹⁶⁸ Bleckmann, 1994, 59; 2003b, 48-9 (*contra*, Barnes, 1993, 226).

¹⁶⁹ AM 14.11.10.

¹⁷⁰ On which, see *e.g.* above, 14.

¹⁷¹ Athanasius, *HA* 7.3-6; Barnes, 1993, 214-7 for the date.

¹⁷² *contra* Harries, 2012b, 196.

any right to rule.¹⁷³ A rare contemporary document, a letter from Cyril of Jerusalem to the emperor, gives us the flavour of contemporary rhetoric. The bishop emphasises Constantius' hereditary right to rule, suggests that his piety exceeds even that of his father, and offers a heavy hint that the emperor should beget sons.¹⁷⁴ That was the real problem with the dynastic rallying cry: the ranks of the imperial family were sadly diminished – there was no heir. Of the male descendants of Constantius I, only Constantius II, Gallus, and Julian were still alive. The emperor himself was soon to be thirty-four: he was unmarried and he had no children.¹⁷⁵ When he appointed Gallus, he changed his cousin's name to mirror his own, so that the Caesar is a very rare figure whose diacritic oscillates between the 'Constantius' of consular dates and the 'Gallus' of the sources.¹⁷⁶ Modifying one's name was, of course, historically associated with adoption, or the creation of fictive familial relationships – as when the Caesars of the Tetrarchy took the *nomina* of their Augusti to signal their relation to them.¹⁷⁷ The consular formula for 352, the first year in which both emperors held the consulship together, rammed the point home: plain Constantius Augustus and Constantius Caesar, onomastic difference between them totally elided.¹⁷⁸ When Gallus was proclaimed Caesar, it seems that his brother Julian was simultaneously rehabilitated. At Sirmium, in 351, the sophist Himerius was on hand to hail this dynastic moment, as Constantius 'the most brilliant sun of your own race', was joined by Gallus, 'the morning star ... imitating your rays by his own beams', while Julian, 'shone forth from the herd of young men', as he 'frolicked in the fields of the muses'.¹⁷⁹ Gallus was soon married to Constantina, that woman who had figured so prominently in Magnentius' putative solution to the turmoil of the era, and they had a daughter.¹⁸⁰ A Caesar who took the name of the Augustus, as he married his sister, while the regime discovered a sudden enthusiasm for the two survivors of the

¹⁷³ cf. Pietri, 1989, 147-8; Bleckmann, 1999a, 56-7.

¹⁷⁴ Cyril, *Ep.* 2, 3, 7.

¹⁷⁵ He did not marry Eusebia until perhaps 352 (Julian, *Or.* 3.109a-b, 110c-d) (certainly not, as *PLRE* 'Eusebia', in 354).

¹⁷⁶ AV 42.9. Constantius may have changed Gallus' *nomen gentilicium* to his own (from Claudius to Iulius, some coins *RIC* VIII, 414 ff.), but he may not (most coins; *CIL* 8.8475, 12.5560, *AE* 1989, 699a) – contemporaries often struggled with near homonymous Flavians.

¹⁷⁷ Salway, 1994, 138-9.

¹⁷⁸ *CLRE*, 239 (add *P. Kellis* 1.24, *P. Oxy.* 4090-4091).

¹⁷⁹ Himerius, *fr.* 1.6 with Barnes, 1987, 209 (Penella, 2007, 274, n. 5 for discussion and bibliography). Libanius, *Or.* 18.17 in any case suggests Julian was rehabilitated (though, *pace* Barnes, would imply he was not at Sirmium in 351).

¹⁸⁰ *PLRE* 'Constantina 2'.

events of 337. Only one conclusion seems possible: Gallus was appointed as the emperor's heir, the future hope of the Flavian line, 'raised up to such a peak by his kinship to the royal race, and also by his sharing the name of Constantius', as Ammianus put it in a slightly different context.¹⁸¹ That his appointment was understood to be dynastic is strongly suggested by the fact that, perhaps preparing for the inevitable civil war, Magnentius made his brother Decentius Caesar soon afterwards and sent him to Gaul to watch the frontier.¹⁸² The two sides now waited anxiously for the spring, and the war which it would bring.

For the campaign which followed, most of our sources fall silent. Julian is not atypical. He waxes lyrical on the crimes of Magnentius, 'a man who had murdered his own master', and the epic scale of his preparations, which are alleged to have had even the Persians scrambling to defend themselves, but then skips directly to the fateful battle of Mursa.¹⁸³ The path which led there has to be teased out of the detailed but confused narrative of Zosimus and historians have had only harsh words for the epitomator's efforts. Seeck first suggested that a panegyric of some kind lay behind this unusually loquacious section of the work: 'this is obviously not history, but bad poetry'!¹⁸⁴ Olivetti even argued that behind it might lurk the poem of poetess Proba about 'the war of Constantine [sic] against Magnentius', reference to which Montfaucon saw in an Italian manuscript.¹⁸⁵ Both Olivetti and Seeck mean to suggest that poetic origins make for unreliable narratives. Bleckmann has pushed these ideas further, seeing in the detailed accounts of Zosimus and Zonaras fragments of a Roman, senatorial account of the civil war, heavily influenced by the poems of Lucan, with Magnentius as a

¹⁸¹ AM 14.1.1. For *propinquitias* as 'kinship', cf. 14.11.7.

¹⁸² cf. Didu, 1977, 30-34. On the relationship of Magnentius and Decentius, see Bleckmann, 1999b. Decentius' appointment is invariably dated to the summer of 350 (e.g. Barnes, 1993, 101-2, n. 10; Šašel, 1971, 208), on the basis of numismatic arguments of Bastien, 1964, 15. These are dubious (*RIC* VIII, 134, Aquileia, minting for Magnentius at the start of 351, issued no coins in Decentius' name; Wigg, 1986, ii, 227, n. 1, the coin portraits, on which Bastien based his arguments, are simply not closely dateable), but more importantly contradict Zosimus 2.45.2 (much the most detailed account), the account of the Heraclea conference, and the evidence of the western consulships (*CLRE*, 239).

¹⁸³ Julian, *Or.* 1.34a, 35c, 36a. The most detailed examination of the battle is the exhaustive Bleckmann, 1999a.

¹⁸⁴ Seeck, 1906b, 483-4.

¹⁸⁵ Olivetti, 1915b, 321-333 (Montfaucon, 1702, 36). I leave to one side the controverted question of the identity of this Proba: Anicia Faltonia Proba (Shanzer, 1986, 1994; Barnes, 2006) (which would make the note baffling), or Faltonia Betitia Proba (Matthews, 1992; Green, 1995, 1997). Bleckmann, 1999a, 69-74 offers a detailed analysis of the poem, also carefully picking out the stylistic and thematic links between the prologue of Proba's *cento* and Lucan.

defeated Pompey, and Constantius as Caesar, magnanimous in victory.¹⁸⁶ Unsurprisingly, Nicomachus Flavianus turns up at the end as the writer of this work.¹⁸⁷ These sources are ‘hardly an authentic view of the war, but are ... literary constructs of later generations’.¹⁸⁸ N.H. Baynes, in what is less a ‘note of interrogation’ than a howl of despair, regretted the proverbial optimism of youth, which he had once shown in attempting a reconstruction, and concluded that ‘Frankly this account seems to me to defy any rational explanation’.¹⁸⁹ Geographically, the account appears hopelessly confused and while full of drama, of scenes that stick in the mind, it does not inspire much confidence.¹⁹⁰ We are at serious risk of losing sight of one of the most important campaigns of the fourth century.

The counsel of despair, however, has perhaps been a little too talkative. There is no denying that Zosimus’ account requires major surgery. It looks, for instance, as though he first meant to describe only the battle of Mursa, but then switched sources and plunged into more detail, so the narrative’s beginning is geographically incomprehensible, veering wildly around the Balkans.¹⁹¹ Yet, it does seem to be fundamentally reliable: where we can check it against independent evidence, that tends to confirm that Zosimus was at least on the right track. So, his version of the campaign starts with Constantius probing the Julian Alps – Julian suggests there was an early clash there.¹⁹² Zosimus says Flavius Philippus went to Magnentius’ camp to negotiate – a scholiast confirms he was there on the eve of battle.¹⁹³ In the historian’s account, Magnentius took Siscia amidst considerable violence – there was indeed a short-lived mint of his based there.¹⁹⁴ He suggests that, after failing to take Sirmium, the usurper went north (along the Danube) – a chance remark in Ammianus reveals Magnentius accepting a dinner invitation at Cibalae, which happens to lie just north of Sirmium.¹⁹⁵ So, for all its faults, Zosimus’ narrative of the campaign is rich in historical *realia*, gives us a deep, if

¹⁸⁶ Bleckmann, 1999a, esp. 86-91.

¹⁸⁷ *ibid.*, 91 (*e.g.*).

¹⁸⁸ *ibid.*, 69.

¹⁸⁹ Baynes, 1925b.

¹⁹⁰ Šašel, 1971, 208-210 and BA 20 are the best places to start.

¹⁹¹ Zosimus 2.45.3; *cf.* Olivetti, 1915b, 323.

¹⁹² Zosimus 2.45.3-4; Julian, *Or.* 1.25c.

¹⁹³ Zosimus 2.46.2-3; Bidez, 1925, 314.

¹⁹⁴ Zosimus 2.49.2; Bastien, 1964, 216.

¹⁹⁵ Zosimus 2.49.3; AM 30.7.2-3.

confusing, insight into what was happening. Any detailed reconstruction based on it would be lengthy indeed and almost incomprehensible without a thorough knowledge of Balkan topography. What we can do, however, is pick out a few of the key threads of his account and use them to think about the campaign and what it might teach us.

Zosimus describes a war of manoeuvre, of march and counter-march: a long strategic duel that did not reach its decisive point until autumn was at hand. Magnentius seems to have been trying to outflank and encircle the forces of Constantius, perhaps to cut his supply lines to the east and force him to retreat, or threaten a sudden descent on Thrace – he spent the war probing for a way round.¹⁹⁶ The emperor, in contrast, seems to have aimed to force Magnentius to give battle at Cibalae – he garrisoned Balkan towns and tried to offer the enemy only one avenue of approach. The city, site of his father's victory over Licinius, was rich in significance – located on the plains between the Save and Danube, it was good territory for Constantius' more numerous cavalry.¹⁹⁷ It has been forcefully denied that the emperor was much involved in the bloody business of the campaign, suggested that he hung back at Sirmium for its duration and left the gruesome business to his generals.¹⁹⁸ In fact, he seems to have been at the head of his troops throughout the long summer of 351 – he was certainly in command when the contest at Mursa finally came.¹⁹⁹ As the armies watched each other warily, they traded embassies. Constantius sent Fl. Philippus, on the pretext that he would discuss a truce, but really to spy on the usurper's army. Unwisely, Magnentius let him speak to the troops. His thunderous address – that it was wrong for them to fight fellow Romans, especially when a son of Constantine was leading them – nearly provoked a mutiny. It was only with great difficulty, and the

¹⁹⁶ Zosimus 2.46.1-2.

¹⁹⁷ Zosimus 2.48.3-5.

¹⁹⁸ Barnes, 1993, 221, with n. 29, argues that Constantius spent the entire period at Sirmium, and accuses Julian of 'deliberate falsehood' for suggesting otherwise.

¹⁹⁹ As evidence, Barnes offers Sulpicius Severus, *Chron.* 2.38.5-7, Socrates 2.28.23, Zosimus 2.45.3, 48.3. Stray statements in Zosimus and Severus can be misread to imply the emperor's absence, but both accounts *presuppose* his presence during the campaign, especially at Mursa. Socrates claims that the emperor waited at Sirmium during the campaign, but he puts the emperor in the city for reasons of narrative arrangement: he next treats the council held there in 351, at which Constantius was present (*HE* 2.29.4 with Barnes, 1993, 231-2 – he also erroneously puts the deposition of Vetrano there), and only then moves to the war. His account of the period is hopelessly confused (*e.g.* a battle of Mursa in Gaul, after Magnentius has withdrawn from Rome (*HE* 2.32.1-2)), and should not be trusted against Julian, *Or.* 1 and *AV* 42.10, who are perfectly clear. *cf.* Bleckmann, 1999a, 66-7.

promise of further remarks on the morrow, that he persuaded the men to calm down.²⁰⁰ As the night wore on, Marcellinus entertained Philippus, hoping to win his friendship, while his master wined and dined the captains and colonels, furiously working to bring them round.²⁰¹ In the morning, he addressed the soldiers, spoke with passion of the crimes of Constans, and rallied them to his banner (he refused to release Philippus).²⁰² He then sent Fabius Titianus to Constantius, who found the emperor feasting his officers and proceeded to denounce Constantine and his sons, alleging that through their carelessness the cities had been destroyed.²⁰³ Zosimus remarks that two of Constantius' closest associates were not present because they were anxious about the fate of Philippus.²⁰⁴ His dangerous, perhaps fatal, mission was, however, proving very successful: he persuaded Silvanus, the *tribunus* of the *schola armaturarum* to desert to Constantius when battle was in prospect.²⁰⁵

What is interesting about Zosimus' story of the campaign is the light it casts on the rival emperors at a moment of clarifying stress. Magnentius' regime looks like the rather unsteady edifice suggested above: not quite certain of the loyalty of its officers and men, rhetorically reliant on furious denunciations of Constans, and supported most vigorously by Italian aristocrats. Constantius looks rather like the unshowy but able emperor already described, resting his campaign on the glory of his family's name and reliant on the services of a small number of extremely loyal servants: praetorian prefects prepared to risk their lives in the enemy camp. He also resembles the careful and cautious general who had husbanded Roman strength through a decade of eastern war. Throughout 351, he constrained Magnentius' options, forced him to tire his troops in manoeuvre and siege, and waited until he could bring him to battle in favourable circumstances. As the summer wore on without a decisive confrontation, there were men in the east whose nerves jangled. From Jerusalem, Cyril offered a hortatory prayer that the emperor might be filled with greater daring against his enemies, as close as the bishop might safely come to criticism.²⁰⁶ He need not have worried, for Constantius knew what he was doing. His moment came as September drew to its end, when he caught the

²⁰⁰ Zosimus 2.46.2-47.1.

²⁰¹ *ibid.*, 47.2.

²⁰² *ibid.*, 47.3.

²⁰³ *ibid.*, 49.1.

²⁰⁴ Zosimus 2.48.5.

²⁰⁵ AV 42.15; AM 15.5.33; Bidez, 1925, 314.

²⁰⁶ Cyril, *Ep.* 2. For the date, *cf. Ep.* 4 (nones of May), *CC s.a.* 350.

usurper near Mursa as Magnentius was moving north after he had been repulsed from Sirmium.²⁰⁷ There, on the twenty-eighth of September 351, the decisive battle of the campaign was fought. The two armies drew up, with cavalry on the wings, infantry in the centre and the river Drave anchoring one of their flanks.²⁰⁸ The action can be pithily summarised: the cavalry of Magnentius broke and ran; the infantry stayed and were cut to pieces.²⁰⁹ It took a long time, waves of cavalry charges interspersed with bombardment by mounted archers, but gradually the usurper's army was driven back into the river Drave, away from the route that might have allowed them to retreat to Italy.²¹⁰ Few of them can have escaped. Magnentius was alleged to have fled early on, terrified of the din of battle (it was averred), and putting his marks of imperial status on a horse he set free, to make it appear he had been killed.²¹¹ The slaughter was immense, so vast, allegedly, that Constantius had thought of making a truce as it went on, but neither he, nor night, nor exhaustion brought an end to things.²¹² The emperor apparently withdrew to a basilica of the martyrs some way from the battle, where the bishop Valens won enormous favour by being the first to announce that the enemy had fled.²¹³ He climbed a hill to survey the devastation the next day, and wept openly; Zonaras suggests that some 30,000 of Constantius' men, and 24,000 of Magnentius' had fallen, among them Marcellinus, his chief lieutenant.²¹⁴ The victory was even vaster than those of Constantine, and in its aftermath panegyrists began to speak of the emperor as not merely being like his father, but exceeding his achievements: 'the monument you set up for that victory was more brilliant than that of your father', for Licinius had just been a feeble old man.²¹⁵ Winter closed in, and both sides retired to lick their wounds.²¹⁶

Constantius threw himself into government. For the first time, we get laws that suggest the regular grind of administration was starting again: a measure permitting eunuchs to make wills, for

²⁰⁷ Zosimus 2.49.3-4.

²⁰⁸ Julian, *Or.* 1.36a.

²⁰⁹ *ibid.*, 36a-b.

²¹⁰ *ibid.*, 37a.

²¹¹ *ibid.*, 36b; Zonaras 13.8.14-15.

²¹² Zosimus 2.51.1-3.

²¹³ Sulpicius Severus, *Chron.* 2.38.4-6. *pace* Bleckmann, 1999a, 65-8, stripped of its obvious biases, there is no particular reason to reject the story out of hand.

²¹⁴ Zonaras 13.8.16.18.

²¹⁵ Julian, *Or.* 1.37b.

²¹⁶ *ibid.*, 38b.

instance, issued on the 26th of February.²¹⁷ Ecclesiastical affairs occupied much of his attention, as a council met to condemn Photinus, the bishop of Sirmium, where the emperor was resident.²¹⁸ Not that this distracted him. By 354, he had completed a massive programme of road construction in the Balkans, milestones nicely capturing the mood of exuberant triumph which marked victory in civil war:

The emperor Caesar Flavius Iulius Constantius, pious, fortunate, Augustus, the greatest victor, eternal triumpher, son of the deified Constantine, the best and greatest prince, grandson of the deified Maximian and Constantius, great-grandson of the deified Claudius, *pontifex maximus*, conqueror of the Germans, the greatest conqueror of the Alamans, Germans, Goths, Adiabenicans, in the thirty-first year of his tribunician power, his thirtieth year as emperor, seven times consul, father of his country, proconsul, with roads repaved, the bridges rebuilt, the state recovered, placed milestones every five miles from Atrans to the river Save.²¹⁹

The frantic campaigning of the previous year, the armies tearing back and forth across the Balkans, must have damaged the roads, but Constantius was also clearly preparing the ground for an invasion of Italy.²²⁰ In Alexandria, a fleet was being massed for war in the West – one reason, no doubt, why the emperor was so keen for the city to be quiet in 350 and 351.²²¹ Throughout all this, the prefecture of Oriens purred quietly, the peace disturbed only by trouble in Palestine, where a Jewish revolt was suppressed with some brutality.²²² Magnentius dispatched an embassy to Constantius, led by a senator, then another when that failed, composed of bishops, who were similarly rebuffed.²²³ The emperor made clear that his grudge was with the usurper alone by proclaiming an amnesty for his soldiers – he must have taken a large number of prisoners when they finally gave up after Mursa – unless they had shared with Magnentius in those ‘unholy murders’, a reference to his slaughter of Constans.²²⁴ The trickle of refugees from Italy turned into a flood – it must have been impossible to

²¹⁷ *CJ* 6.22.5 (Sirmium).

²¹⁸ Barnes, 1993, 109-110. Location, *cf.* *IG Pannon.* 129 (352 A.D.).

²¹⁹ *CIL* 3.3705: *Imp. Caes. Fla. Iul. Constantius, Pius Fel. Aug., victor maximus, triumfator aeternus, divi Constantini Optimi Maximique principis [(ilius)], divorum Maximiani et Constanti nepos, divi Claudii pronepos, pontifex maximus, Germanic., Alamannicus [sic] maximus, Germ. max., Gohticus [sic] maximus, Adiabin. max., tribuniciae potestatis XXXI, imp. XXX, consul{i} VII, p(ater) p(atriae), proconsul{i}, viis munitis, pontibus reffecti(s), recuperata re publica, quinarior lapides per Illyricum fecit ab Atrante ad flumen Savum.*

²²⁰ *cf.* Jeločnik, 1967, 229.

²²¹ Julian, *Or.* 1.40c.

²²² Jerome, *Chron.* 238f. The revolt’s extent has often been exaggerated, see Bijovsky, 2007.

²²³ Zonaras 13.8.20-21.

²²⁴ Julian, *Or.* 1.38b. Portmann, 1992, 417-420.

prevent people slipping across the Adriatic in spring and summer – and Constantius made great show of welcoming them.²²⁵ All the while, he waited for spring, and the next round of the war.

Magnentius' situation was much less happy. His government was beginning to fall apart and there are signs of tension within his regime: it is probably to the winter of 351/2 that the fall of Clodius Celsinus Adelfius belongs.²²⁶ From the Balkans, all roads lead not to Rome, but to Aquileia, and that was where he resided; it was in his grasp until at least the 28th of July 352.²²⁷ Magnentius evidently hoped that the formidable natural barriers which separated him from Constantius would be enough to keep him safe while he plotted and played for time.²²⁸ He had lost probably his entire army at Mursa and he must have been desperately short of troops as the campaign season of 352 began. It seems likely that he stripped the frontiers to form another field army.²²⁹ This he could ill-afford to do: on the Rhine, Decentius was humiliatingly defeated by the Alamanni, who proceeded to raid and sack the fringes of Gaul.²³⁰ It later became an article of faith that these attacks owed their origin to the machinations of Constantius, that he had abrogated the treaties and granted letters to the barbarians authorising them to settle in Gaul.²³¹ The story is immediately suspicious: how exactly did the eastern emperor get his message to the Rhine? How, nearly twenty years after he had last been to the region, did he know whom to contact? Why, even if he was intent on stirring up the Alamanni, did he so suspiciously put his orders in writing (a very Roman vision of how barbarians operated)? Finally, why do we first meet with the accusation in the pages of Julian's supporters, when we know that the Apostate made the same charge against his cousin in 361?²³² Even so, the notion has received almost universal support from historians.²³³ In fact, it assumes enormous significance in the only sustained interpretation of relations between the Romans and the Alamanni. J.F. Drinkwater essays a bold and original argument for the whole course of that history, in which emperors and their subordinates used

²²⁵ Julian, *Or.* 1.38c.

²²⁶ Above, 116.

²²⁷ Julian, *Or.* 1.38d. *AE* 1982, 383 with *CLRE*, 238.

²²⁸ Julian, *Or.* 1.38d-39a.

²²⁹ Julian, *Or.* 1.34d-35a.

²³⁰ *AM* 16.12.5.

²³¹ e.g. Libanius, *Or.* 18.33.

²³² Below, 255.

²³³ e.g. Bastien, 1964, 18; Rubin, 1998, 128; Bowersock, 1978, 56-7. Nutt, 1973, 81.

a largely invented ‘Germanic threat’ to justify the whole Roman imperial system.²³⁴ The real *Germani* were only ever a threat when the empire was divided by civil war, or when they had been invited in:

Most of the time Alamanni and Franks were victims rather than oppressors, exploited by later Roman emperors as their predecessors had been exploited by earlier rulers for the needs of internal politics.²³⁵

He shows apparent caution about the genuineness of Constantius’ barbarian invitations, though ultimately favours their authenticity.²³⁶ Yet, this warily accepted ‘documentary justification’ for Alamannic settlement over the Rhine keeps cropping up in what follows.²³⁷ It explains why Julian found lots of Alamanni on the Roman side of the frontier from 355 onwards, why he initially only took back the towns in the region, but did nothing about the settlers, why Constantius, uneasy at betraying the barbarians who had aided him, minted no victory coins for the battle of Strasbourg.²³⁸ In his account, it drives the whole history of the Rhine in the 350s. That era, minutely documented by Ammianus, suggests a portrait of life entirely at odds with Drinkwater’s overall thesis, a world of brutal frontier warfare, where the Alamanni could certainly be a threat, and where the driving aim of imperial policy was not the hyping up of Germanic raids, but their containment. He needs the 350s to be unusual, for otherwise one would read its portrait of the frontier forwards and backwards to less well-known periods. Hence the raiding and chaos have to be entirely a product of Constantius’ civil war plots. Yet, rather than presupposing some vast and complex plot, is it not much more plausible that, as Magnentius’ government was collapsing, the Alamanni took advantage of a thinly defended frontier to press their raiding further than it would normally have gone? The 350s were not the unfortunate result of some vast conspiracy: they were what the frontier looked like when the Romans did not, could not, defend it.

When the blow came, it did Magnentius little good to have stripped the Rhine. In spring of 352, the army of Constantius found a way over the Dalmatian Alps – ‘impassable mountains yield to <the emperor> without needing to dig through them and become smoother than the plains and low

²³⁴ Drinkwater, 2007, 361-2 esp.

²³⁵ *ibid.*, 360.

²³⁶ *ibid.*, 201-2.

²³⁷ *ibid.*, 237; 165,

²³⁸ *ibid.*, 218, 222, 240.

places as he goes over them' – defeated the troops the usurper had stationed there, and was bearing down on Aquileia as he fled from attending a festival.²³⁹ Several hoards from Emona, one on the road out of town towards Atrans, another of gold coins which (extremely unusually) were deposited in the town centre, hint at the speed and chaos with which the troops of Magnentius pulled out of the region.²⁴⁰ This thrust over the mountains was only part of Constantius' plan. He also sent a fleet to occupy the mouth of the Po River, which Julian comments deprived Magnentius of all his forces in Italy.²⁴¹ The point can be grasped cartographically: from north-east Italy, the Roman roads led either south along the coast, or west, skirting the Alps, two sides of a triangle with its point at Milan, the third being the *Via Aemilia* from Rimini, along the Apennines, up to Placentia and beyond.²⁴² There were of course roads between these routes, but it was a long slog to cross over on them. Thus, if you were at Aquileia, to get to the rest of the peninsula your options were essentially to go along the mouth of the Po, or go back to Milan and then down again. Taking the Po cut Magnentius off from Italy south of the Apennines and he had no option but to retreat along his lines towards Pavia, where he issued a stinging reproach to some troops of Constantius who were pursuing him too enthusiastically.²⁴³ He fled back into Gaul, abandoning Italy to Constantius, to whom large formations of troops appear to have gone over wholesale.²⁴⁴ The emperor's agents fanned out across the country, his Urban Prefect – Naeratius Cerealis, whose judgement in changing sides had been vindicated – in post by the 27th of September.²⁴⁵ In Rome, Cerealis erected an equestrian statue of the emperor, 'the restorer of the city of Rome and the world, the extinguisher of destructive tyranny'.²⁴⁶ The emperor made a more stately progress, arriving at Milan by the third of November, when he

²³⁹ Julian, *Or.* 1.39b-c. Themistius, *Or.* 2.36d.

²⁴⁰ Jeločnik, 1967, esp. 226-231. *Coin Hoards of the Roman Empire*, no. 4260. *pace* Bleckmann, 2003b, 54-5, it seems unlikely these towns were taken in the winter of 351 (his argument places a great deal of weight on Libanius' knowledge of the precise administrative border between Italy and Illyricum).

²⁴¹ Julian, *Or.* 2.74c.

²⁴² *BA* 39-40.

²⁴³ *Epitome* 42.5.

²⁴⁴ Julian, *Or.* 1.48c.

²⁴⁵ *Chron.* 354.

²⁴⁶ *ILS* 731 = *LSA* 838.

abolished Magnentius' acts – a confident declaration that the civil war was all over bar the fighting.²⁴⁷ He paused once again to await the start of the campaign season.

Magnentius had retreated to Gaul: perhaps he hoped that the land which had launched his usurpation would be stauncher in its support than always-uncertain Italy. His rule, however, was rapidly collapsing. Julian alleges that now he tortured and executed with the abandon of despair, a predictable charge against a 'tyrant', with an oddly specific context which may conceal the usurper's desperate attempts to shore up his regime by punishing defectors and dissenters – his army was dissolving.²⁴⁸ Trier, under the leadership of one Poemenius, rebelled, and since he survived the revolt, it seems unlikely it was ever suppressed.²⁴⁹ Constantian fleets went to North Africa and northern Spain and appear to have met little resistance.²⁵⁰ In 353, an imperial army crossed into Gaul and at Mons Seleucus, on the road down to the Rhône Valley and Valence, it defeated whatever forces Magnentius could muster.²⁵¹ The location is significant – it was deep in the Alps, not far from where they begin their descent into France. Evidently Magnentius had been unable to rally any resistance in the high passes as his troops melted away with the snow. The usurper was well-aware that this was the end, and in a final, if grim, statement of his imperial status, committed suicide at Lyons on the 11th of August, in part to avoid being handed over to his enemy – he became his own tyrannicide, in Themistius' well-turned phrase.²⁵² His brother Decentius was en route to the city when he heard the news and hanged himself on the 18th of August.²⁵³ Constantius came to the same city on the third of September, and proclaimed an amnesty:

All those most sorrowful things which the time of the tyrant provided ought to be entirely abolished. We therefore order that all men be secure, with the exception of those accused of the five crimes which are punished capitally.²⁵⁴

Magnentius head was cut off, and sent to the east to be paraded through the provincial towns.²⁵⁵ Thus ended four brutal years of civil strife.

²⁴⁷ *CTh* 15.14.5.

²⁴⁸ Julian, *Or.* 1.39d-40a; Libanius, *Or.* 18.104.

²⁴⁹ Kent, 1959.

²⁵⁰ Julian, *Or.* 1.40c.

²⁵¹ Socrates 2.32.6. *BA* 17.5F.

²⁵² Zonaras 13.9.1-5. Themistius, *Or.* 2.38b.

²⁵³ Zonaras 13.9.6, with *CC* s.a. 353.

²⁵⁴ *CTh* 9.38.2^s: *Omnia penitus amputentur, quae tyrannicum tempus poterat habere tristissima. Uniuersos ergo praecipimus esse securos exceptis quinque criminibus, quae capite uindicantur.*

The Flavians Return to the West

Winning the West was easier than ruling it. It is a paradox of Flavian history that in the career of Constantine his final triumph in civil war comes at the end of our narrative sources and he drifts unmoored down to 337, but we first meet Constantius in a detailed account of secular affairs just after he had concluded his most successful campaign. Suddenly, the unsurpassable narrative of Ammianus picks up:

After the events of an unendurable campaign had been survived, when the spirits of both sides, which the variety of dangers and hardships had broken, were exhausted, when the blasts of the trumpets had not yet ceased, and the soldiers were not stationed in their winter quarters, the gales of raging fortune poured yet other storms on the state.²⁵⁶

The campaign had required efforts on an almost unimaginable scale, sucked in enormous quantities of men and *matériel*. The effort of unifying the empire in civil war, which in the age of the Tetrarchy had been spread out across nearly two decades, had been compressed into three campaign seasons. Thousands were dead or wounded, and the treasury must have been largely empty. In the east, the tensions which led to the fall of Gallus were beginning to become uncontrollable, the Isaurians were restive, and the Persians were beginning to cause trouble again.²⁵⁷ In the west, Constantius settled in for the winter at Arles, a Flavian city, renamed Constantina by his father, who had embarked on a lavish campaign of building there.²⁵⁸ Bishops, primarily from Gaul and probably including a number of supporters of Magnentius, met there for a bitter and divided council.²⁵⁹

In the pages of Ammianus, we first meet Constantius, thickly wrapped in ugly intimations, raging like some kind of wild beast (as our author would have put it) against the supporters of Magnentius.²⁶⁰ He was celebrating his thirtieth year as emperor with lavish games, yet the occasion was disfigured by the blackest sort of reprisal. The emperor's narrow and suspicious mind drove him

²⁵⁵ AM 22.14.4.

²⁵⁶ AM 14.1.1: *Post emensos insuperabilis expeditionis euentus languentibus partium animis, quas periculorum uarietas fregerat et laborum, nondum tubarum cessante clangore uel milite locato per stationes hibernas Fortunae saeuientes procellae tempestates alias rebus infudere communibus.* cf. Tacitus, *Histories* 1.49 for *emetior* as 'survive'.

²⁵⁷ AM 14.1-3.

²⁵⁸ Heijmans, 2007.

²⁵⁹ Barnes, 1993, 115-6.

²⁶⁰ AM 14.5.1.

to atrocity: 'he made his victory mournful by the slaughter of innocent men'.²⁶¹ Anyone at all in public life who was even rumoured to have favoured Magnentius was imprisoned and abused.²⁶² No proof was really necessary: 'it was as though this alone sufficed, that a man had been named, or denounced, or prosecuted, and he was condemned to death, or the loss of his goods, or exile to an island'.²⁶³ All this was of a piece with the intense, paranoiac suspicion which Constantius showed, a suspicion which his courtiers did their best to stir up, pretending that the world's safety hung by the thread of the emperor's life.²⁶⁴ He refused to save anybody from punishment when they had been condemned, and (Ammianus comments) where most grew milder with advancing age, Constantius got worse, more suspicious, more violent, under the influence of his flatterers.²⁶⁵ As if to make clear how widely this storm raged, Ammianus then turns to the activities of Paul 'the Chain' in Britain, who broke over the province like a flood, leaving a trail of slaughter, destruction, and imprisonment.²⁶⁶ Paul's crimes grimly related, our portrait of the victorious emperor concludes with the haunting remark that nobody could recall anyone accused under Constantius who was ever acquitted.²⁶⁷

This is a portrait of a western empire in turmoil, of hundreds dragged off to death or exile, of the brutal rooting out of the adherents of the defeated usurper – those amnesties were, one must assume, so many empty words and Constantius had as his object only vengeance.²⁶⁸ There must have been a bitter irony in such a brutal regime harping on the emperor's clemency, fawning on Constantius for the moderation with which he used his victory, the clemency he showed even to those who were very close to Magnentius.²⁶⁹ Ammianus' account, like the actions of Paul the Chain, has 'branded an eternal mark on the age of Constantius'.²⁷⁰ Historians have generally accepted that there were brutal reprisals in the aftermath of the civil war, a period of 'relentless and systematic

²⁶¹ *ibid.*, 14.5.2.

²⁶² *ibid.*, 14.5.3.

²⁶³ *ibid.*

²⁶⁴ *ibid.*, 14.5.4.

²⁶⁵ *ibid.*, 14.5.5.

²⁶⁶ *ibid.*, 14.5.6.

²⁶⁷ *ibid.*, 14.5.9.

²⁶⁸ e.g. Portmann, 1992, 419, 420.

²⁶⁹ Julian, *Or.* 2.95d-96a.

²⁷⁰ AM 14.5.6.

oppression', offering an account which is Ammianan in its details, if not its vividness of language.²⁷¹ Insofar as a defence of Constantius is essayed, it is made by pointing out that in the aftermath of a civil war dissension was 'not a figment of Constantius' brooding imagination or his supporters' invention', or arguing that what Ammianus has done is pick out general features of late Roman political life, and (unfairly) make them the peculiar characteristics of the age of Constantius.²⁷² Political trials, with the evils that attend them, were to be expected: 'it was an unpleasant time to be living, but the emperor was not alone responsible for that'.²⁷³ Far-reaching consequences have been attached to the episode, the transformation of the villa regime in Britain for instance, and the destruction of temples on the island.²⁷⁴ It is certainly difficult, in studying Constantius, to ever forget the shattering impact of the opening of Ammianus, that unforgettable portrait of a tyrant.

Yet, is this account accurate? There are reasons to be sceptical. Leave to one side the oddity of Constantius' supporters highlighting his clemency as he brutalised so many men: the glare from Ammianus' rhetorical fireworks has tended to blind commentators to something very important in those opening chapters. The historian speaks almost entirely in generalities: anyone might be at risk, no one ever escaped punishment, in Britain very many suffered at the hands of Paul, and nobody could recall that anybody had ever been acquitted by Constantius. Yet, this account of generalised atrocity contains only two specific incidents to prove its point. At Arles, the *comes* Gerontius was tortured (standard, if unpleasant, procedure in a charge involving *maiestas*) and then exiled.²⁷⁵ In Britain, the *vicarius* Martinus tried to murder Paul 'the Chain' and when the attempt failed, killed himself.²⁷⁶ If the two signal crimes of the conquering regime were that it exiled a military commander of the defeated side and that a bureaucrat who had tried to murder another bureaucrat

²⁷¹ e.g. Harries, 2012b, 197; Potter, 2014, 480-481; Leppin, 2015, 203. Didu, 1977, at 56.

²⁷² Matthews, 1989, 33, 34-5. Hunt, 1999, 48.

²⁷³ Matthews, 1989, 34.

²⁷⁴ Webster, 1983, *passim*.

²⁷⁵ AM 14.5.1. Paulus, *Sententiae* 5.29.2.

²⁷⁶ AM 14.5.8. Bidez, 1925, 317 suggests that Paul's investigations in Britain might be connected to Magnentius' father.

committed suicide, then by late-Roman standards it was almost saintly in its mildness. Themistius would (much later) use it as an *exemplum* of clemency.²⁷⁷

If we turn from the blood-soaked vagueness of Ammianus to the hard data of prosopography, what is immediately striking is quite how many supporters and servants of Magnentius survived his fall, were even re-employed by Constantius. Gaiso, the man who had commanded the squad sent to kill Constans, vanishes from history after his consulship, but Libanius, in his forty-second oration, rails at a ‘son of Gaiso’ who had helped to thwart his attempt to get Thalassius into the senate.²⁷⁸ This seems a remarkably obscure way of abusing someone in 388, unless they really did have a connection to the consul of Magnentius – a child of Gaiso would have been exactly the right age by then to have become prominent in the senate. It has been plausibly suggested that the ‘son of Gaiso’ was Ellebichus, the *magister militum* in the east in the 380s.²⁷⁹ The taint of even the closest attachment to Magnentius evidently did not last. Desiderius, another brother of Magnentius, whom the usurper had tried to kill before the end of the war, survived, and was apparently honoured by Constantius: Iustina survived and so too did her brothers, Constantianus and Cerealis, who both joined the army.²⁸⁰ Iovius, made *quaestor* in 361, appears to have served the usurper as well – perhaps again in a military capacity, for he led soldiers for Julian.²⁸¹ Attius Tiro Delphidius, a Gallic orator and advocate praised by Jerome for his skill as a teacher, had served Magnentius in the palace, and yet in 355 he was pardoned.²⁸² Fabius Titianus, the fundament of the usurpation, seems to have been left undisturbed in its aftermath – he should, given his speech on the eve of Mursa, probably be identified with the individual who had insulted Constantius and was left unpunished.²⁸³ Certainly his name was not removed from any of the inscriptions he had erected at Rome under the usurper.²⁸⁴ The survivors of the regime of Magnentius were not, however, limited to the eminent. In Flaminia and Picenum we

²⁷⁷ Themistius, *Or.* VI.80c.

²⁷⁸ Libanius, *Or.* 42.45.

²⁷⁹ *PLRE* ‘Ellebichus’. Norman, 2000, 163, n. 62.

²⁸⁰ *pace PLRE* ‘Desiderius 1’ he likely did exist (the relevant evidence is Zonaras 13.9.4, not Socrates 2.32.7, a confused reference to Decentius). *PLRE* ‘Constantianus 1’, ‘Cerealis 1’.

²⁸¹ *PLRE* ‘Iovius 2’.

²⁸² *PLRE* ‘Delphidius’ (Ausonius, *Professores* V.31-2). *pace* Green, in his commentary *ad loc.*, Jerome’s date (355, *Chron.* 239g) for Delphidius’ *floruit* hardly rules out identifying the tyrant as Magnentius.

²⁸³ Julian, *Or.* 2.96a.

²⁸⁴ Above, 123.

encounter one Fl. Romulus, who honoured Magnentius as a liberator of the world and saviour of the provincials, and then (when times had changed) expressed firm views on the way that Constantius was the ‘defender of peace and the conservator of the Roman empire’. No purges in Le Marche, evidently.²⁸⁵ In refuting the charge that he had communicated with the usurper, Athanasius clearly envisaged that it would be easy to find his secretaries (who would naturally prove the bishop’s innocence) ‘for it is very likely they live’, an odd presumption if Constantius was widely known to have massacred them.²⁸⁶ Even someone like the lowly *medicus Scutariorum*, Dorus, who had denounced Clodius Celsinus Adelfius and been promoted, cropped up at court in the mid-350s, where he attempted the same trick with the general Arbitio (it worked rather less well).²⁸⁷ It is the haphazard way that individuals associated with Magnentius appear in events of the following decades which is most revealing of how many of them survived.

One can, of course, add a few names here and there to the number of those punished for some association with the usurper. Gratian, the father of Valentinian and Valens, for instance, was fined for having entertained Magnentius not long before Mursa.²⁸⁸ In general, however, Constantius was remarkably restrained in punishing the adherents of Magnentius – the raging suspicion and violence appears to have been mostly a product of Ammianus’ vivid imagination. That cautious approach to the aftermath of civil war is of a piece with the way that the emperor was extremely careful to administer his new domains largely through westerners – men who in most cases had served his brother or (we might wonder) the usurper. In the spring of 354, Constantius prepared to fight the Alamanni on the upper Rhine.²⁸⁹ Accompanying him was Vulcacius Rufinus, his praetorian prefect, who had to go to Châlon to explain to the restless troops why their supplies were delayed.²⁹⁰ Ammianus saw an attempt to get rid of the prefect in this dangerous commission, though (counter-intuitively) his evidence for this appears to have been that the eunuch chamberlain Eusebius was

²⁸⁵ On Romulus, see Camodeca, 1978.

²⁸⁶ Athanasius, *AC* 11.3.

²⁸⁷ *AM* 16.6.2-3.

²⁸⁸ *AM* 30.7.3.

²⁸⁹ *AM* 14.10.1.

²⁹⁰ *ibid.*, 14.10.3-4.

dispatched to bribe any troops who were thinking of rebellion.²⁹¹ Naeradius Cerealis, Rufinus' brother, served as Urban Prefect until December 353.²⁹² The uncles of Gallus were two of the most important men in government at the time and they were both from that circle of aristocratic Italians who had run Constans' regime. Constantius' other praetorian prefects in his early days in the west, as he tramped back from campaigning in Gaul to supervise councils of bishops in northern Italy, were not dissimilar to Rufinus.²⁹³ In 355, we find C. Ceionius Rufius Volusianus, *signo* Lampadius, as prefect in the emperor's presence at Milan.²⁹⁴ He was a pagan, one who had experienced the *taurobolium*, perhaps was even the patron of the famous Phrygianum on the Vatican, a site with which his family was closely associated, and a senatorial aristocrat, probably a descendant of C. Ceionius Rufius Volusianus (cos. 314).²⁹⁵ In fact, though we have no firm evidence for his career before he was made prefect, he had almost certainly served either Constans or Magnentius (or both). His colleague in the prefecture was the old patron of Firmicus Maternus, Mavortius Lollianus, finally receiving in 355 the ordinary consulship his astrologer had predicted all those years ago.²⁹⁶ These men were connected by a fine web of links by blood or marriage. Lampadius' wife was called Caecina Lolliana.²⁹⁷ Her father was probably a Caecina Postumianus, perhaps the son of Antonius Caecina Sabinus (cos. 316), for she had a daughter called Sabina.²⁹⁸ It seems likely that Lolliana derived her diacritical *nomen* from her mother's family, which would suggest she was a female relative of Mavortius Lollianus – his daughter or sister? Memmius Vitrasius Orfitus was rewarded for his service in the civil war with the proconsulship of Africa and would go on to serve as Urban Prefect twice.²⁹⁹ Constantius had easterners with him in Gaul and Italy – the general Arbitio and the eunuch Eusebius, for instance – but the most important administrative posts were monopolised by those from the west. His first non-imperial consuls after the civil war carefully balanced an eastern

²⁹¹ *ibid.*, 14.10.5.

²⁹² *Chron.* 354.

²⁹³ Barnes, 1993, 117-8, 221.

²⁹⁴ AM 15.5.4-5. He thus cannot (*contra* PLRE 'Volusianus 5'), have been PPo in Gaul.

²⁹⁵ PLRE: son of Rufius 'Albinus 14' (cos. 335). Barnes, 1975, 47: grandson of Rufius Volusianus, by a son from an earlier marriage. McLynn, 1996, 326-8 for the family connection to the site. In general, see Sbriglione, 2010.

²⁹⁶ FM, *Math.* I.pr.8. CLRE, 244-5.

²⁹⁷ PLRE 'Lolliana'.

²⁹⁸ PLRE 'Postumianus 1'; 'Sabina 2'.

²⁹⁹ Above, 116.

marshal and a western prefect.³⁰⁰ Even that most apparently characteristic servant of the paranoid regime of Constantius, Paul ‘the Chain’ (*catena*), was a westerner, from Spain.³⁰¹ As his nickname would suggest, he moved in Latin circles and he should probably be identified as the Paulus in the service of Constans who was involved in some of the more brutal episodes of the Donatist controversy in the 340s.³⁰² It is hard to believe that his association with Constantius went back before 351 at the earliest.

The army shows a very similar pattern. When Constantius led his forces to the Rhine in 354, the expedition had amongst its senior officers three Alamans – Latinus, the *comes domesticorum*, Agilo, the *tribunus stabuli*, and Scudilo, the *tribunus Scutariorum*.³⁰³ Latinus and Scudilo were in the imperial army at Mursa and presumably came over when Constantius deposed Vetranio; Agilo may even have been a colonel under Magnentius.³⁰⁴ Further up the Rhine, Silvanus was the *magister militum* (the rank reward for his seasonable desertion), trying to pacify the restive frontier, with one Laniogaisus, a *candidatus* of Constans, as his lieutenant and a Remigius, a native of Mainz, as his accountant.³⁰⁵ In the next year, men with names from over the Rhine – Malarichus and Mallobaudes – were prominent in the councils of Constantius.³⁰⁶ The former was *tribunus* of the *Gentiles* and had family in Italy, while the latter was commander of the *Schola Armaturarum*, perhaps a former deputy of Silvanus.³⁰⁷ The Franks are said to have been numerous and powerful in the palace at that time.³⁰⁸ Arbitio, one of Constantius’ most trusted generals, was campaigning in Raetia in 355, with three *tribuni* (Arintheus, Seniauchus, Bappo), whose names again suggest that they were recruits to the western army.³⁰⁹ The emperor went out of his way to work with officers who had quite probably served the usurpers of 350. He was no less attentive to the troops: placating them when food was short, while imperial rhetoric emphasised how courageous (if misguided) they had been in the civil

³⁰⁰ *CLRE* 244-5.

³⁰¹ *PLRE* ‘Paulus 4’.

³⁰² *PLRE* ‘Paulus 2’; *PCBE I* ‘Paulus 2’, 839-841 with Kajanto, 1965, 345.

³⁰³ *AM* 14.10.8.

³⁰⁴ Zosimus 2.48.5, 50.2.

³⁰⁵ *PLRE* ‘Silvanus 2’, ‘Remigius’.

³⁰⁶ *PLRE* ‘Mallobaudes’, ‘Malarichus’.

³⁰⁷ *AM* 15.5.6, 11. Schönfeld, 1911, 159-160.

³⁰⁸ *AM* 15.5.11.

³⁰⁹ *AM* 15.4.10; *PLRE* ‘Arbitio 2’. Schönfeld, 1911, 26 for Arintheus.

war.³¹⁰ In his army, there were evidently in 354 and 355 regiments which (whatever they were later renamed) men thought of as *Magnentiaci* and *Decentiaci* – six full legions of them were still in service at Amida in 359.³¹¹ It is hard, looking on as Constantius forbore to take revenge for the civil war, appointed a string of western bureaucrats, and went on campaign with officers and men, many of whom must have fought on the other side in the civil war, to think of a figure who less resembles that caricature of a vengeful paranoiac we meet in Ammianus. That false note with which the extant portion of his *Res Gestae* opens should tip us off to a much more subtle distortion. It is almost banal to note that we do not have all of Ammianus' history, that we start *in medias res*.³¹² Yet, that mutilated opening to the work provides a distorting perspective for what follows. It is not merely that the awful turmoil of the civil war is held at a distance by it, so that one all too easily forgets the enormous strain under which it had placed the empire. It is rather that by starting where it does, the work (quite by chance) makes Constantius look at home in the west, as though he were there for some other reason than that he had won a brutal series of battles. Perhaps it even makes him look too in control of events, the spider at the centre of an imperial web. That can have unfortunate consequences.

Constantius' careful, cautious, restrained approach to the aftermath of the civil war throws into sharp relief the real crisis of the period: the activities of Gallus at Antioch. Whilst invariably noting Gallus' erratic and violent behaviour, approaches to his fall tend to start from the idea that he was doomed from early on. He had been given an impossible commission, the contradictions of which gradually became clear, as a Caesar with primarily military responsibilities was sucked into matters outside his purview or his vision of what he was doing became increasingly distant from that of Constantius.³¹³ That is a result of thinking he was sent to the east primarily to do something, rather than to be something. If he was intended to be the heir-apparent to Constantius II, then there was no structural reason for them to fall out, nor anything necessarily sinister in his being summoned back

³¹⁰ Julian, *Or.* 1.59c-60c.

³¹¹ AM 18.9.3; 19.5.2.

³¹² cf. Matthews, 1989, 33.

³¹³ e.g. Blockley, 1972b, esp. 467; Matthews, 1989, 34-5; Bleckmann, 1994, 30-31, 59 ff.; Harries, 2012b, 198-9.

from the east. It is possible that the emperor's marriage to Eusebia in 352 was a sign of rising tensions between the cousins – it did rather suggest that Constantius hoped for heirs. On the other hand, it may already have been clear by 354 that the empress was infertile and the heir's position secure.³¹⁴ Alternatively, the suspicious mind of the Augustus and the activities of his flatterers are invoked, Gallus cast as the victim of the paranoid style in imperial politics – that is certainly how many of the sources present it.³¹⁵ As we have seen, it is possible to exaggerate quite how paranoiac and vengeful the atmosphere of 354/5 was at court. Indeed, on the evidence of those years, we might begin to wonder whether the 'suspicion of Constantius' is really a useful lens through which to understand what was going on in high politics.

That returns us, then, to the behaviour of Gallus as an explanation for his fall. Ammianus luridly evokes the varied misdeeds of the Caesar and he has fantastic stories of the poorly-disguised but heavily-armed Gallus prowling the streets at night, asking people (in a foreign accent!) what they thought of him.³¹⁶ All this, reeking of caricature as it does, might rouse suspicions about how tyrannical and violent the rule of Gallus really was. Yet, Ammianus was an eyewitness to much of what was going on, present in the east throughout 353 and 354, as the Caesar edged towards his end.³¹⁷ When he describes violence at Antioch, he is detailed and specific, in sharp contrast to his summary of events in the west. He gives the names of numerous victims and their violent ends, and, much more importantly, we can confirm from other sources that what he says is true. So we meet a Clematius, a prominent citizen of Alexandria who had been governor of Palestine, who (as Libanius put it) 'received a death that was not just after a life that was'.³¹⁸ Or we encounter Theophilus, the *consularis* of Syria, whom Gallus suggested to the common people was to blame for food shortages.³¹⁹ He was subsequently murdered by an enraged mob, apparently while attending some chariot races, and his body dragged round, while Eubulus, a prominent decurion, and his son fled as

³¹⁴ AM 16.10.18: *ipsa, quoad vixerat, sterilis*.

³¹⁵ e.g. Frakes, 2012, 101.

³¹⁶ AM 14.1.9.

³¹⁷ *ibid.*, 14.9.1.

³¹⁸ *ibid.*, 14.1.3. Libanius, *Ep.* 693.1.

³¹⁹ AM 14.7.5.

their house burned.³²⁰ Gallus had even ordered the execution of the Antiochene council, and was only with some difficulty dissuaded – Libanius had seen some of them in prison (he credited their release to his visit, though the intervention of Honoratus, the redoubtable *comes Orientis*, seems to have been more important).³²¹ Even Julian was forced to concede that his brother had a cruel streak.³²²

At the time, Libanius, slowly extricating himself from employment at Constantinople, had just settled in Antioch.³²³ If Ammianus speaks in generalities of how Gallus ‘was shaking all the regions of the east, sparing neither the *honorati*, not the city nobles, nor the common people’, then Libanius at least supports that impression: ‘some storm had seized the state, the anger of an emperor which had reached a murderous pitch’.³²⁴ His testimony is especially valuable, because a web of connections linked him to the regime: his uncle Phasganius was close to Gallus, while Thalassius, the praetorian prefect, was married to his cousin, and he had taught the man’s son.³²⁵ The sophist records his own delicate attempts to flatter the Caesar but remain at a safe distance – he reluctantly (he says) delivered a panegyric.³²⁶ The atmosphere was tense. Food was running short at Antioch.³²⁷ The Persians, quiet for years, were beginning to probe the frontier again and, if there is anything which Ammianus is concealing from us in his narrative of events, it may be the Caesar’s military activities.³²⁸ Constantius, nervously trying to keep the west in order, was fed reports of what was going on at Antioch and can hardly have been pleased – stories of the theologically racy company his cousin kept cannot have improved his mood.³²⁹ He began to withdraw troops from the region.³³⁰ Ammianus puts a sinister interpretation on this, influenced perhaps by the role it played in the run-up to Julian’s usurpation, but Constantius had his reasons. There was plenty of fighting to be done on the Rhine and Danube and the armies in the west had been weakened by the brutal civil war. He also summoned the Caesar west, an action normally seen as a prelude to his death and disgrace. Yet, if

³²⁰ AM 14.7.6. Libanius, *Or.* 19.47; 1.103.

³²¹ AM 14.7.2. Libanius, *Or.* 1.96.

³²² Julian, *EA* 271d.

³²³ Libanius, *Or.* 1.93 ff.

³²⁴ AM 14.7.1. Libanius, *Or.* 1.96.

³²⁵ Libanius, *Ep.* 283.3; *PLRE* ‘Thalassius 1’, ‘Bassianus 2’.

³²⁶ Libanius, *Or.* 1.97.

³²⁷ AM 14.7.2.

³²⁸ AM 14.3, 17.5, 11.14.

³²⁹ Philostorgius 3.27.

³³⁰ AM 14.7.9.

Gallus was not simply an emperor for the eastern provinces, then there was nothing inherently odd in his being recalled to the west, and it is worth noting that Constantius ordered him to go to Italy, at a time when he intended to spend the campaign season on the Rhine.³³¹ He evidently envisaged that they would convene in the winter of 354, and it seems unlikely that at that stage he intended anything more sinister than an uncomfortable conversation about avoiding the lynching of governors.

It was this not-so-sinister request that sparked the terminal crisis of the career of Gallus. The new prefect sent to deliver it, one Domitianus, was said to have been tactless in his behaviour towards the Caesar, to have failed to call on him – the stories have the flavour of gossip in the *officia*, who had snubbed whom, and so on.³³² They rowed at a meeting of the *consistorium* and the prefect bluntly told Gallus to pack his bags. One wonders, especially in the context of the frank discussions which characterised the court of Constantius at the moment of Silvanus' usurpation, whether this was partly a clash of governing cultures. Perhaps Domitianus was used to impassioned arguments, real arguments, the emperor sitting silently and weighing his conclusion.³³³ When the prefect gave the Caesar a piece of his mind, he may not have meant to be rude – in the close-bonded administration of the Augustus, perhaps that was just how they gave advice. In a fit of pique, Gallus sent some of his *protectores* to arrest Domitianus. The cooler-headed Montius, his *quaestor*, intervened and suggested to the troops that this was a bad idea. Unwisely, he finished with a flourish by saying that if they were going to arrest Domitianus, then they might as well go the whole hog and topple the statues of Constantius at the same time.³³⁴ Gallus seized on this, said he was being falsely accused of *maiestas*, and asked his men to stand with him.³³⁵ They proceeded to brutally murder first Montius and then Domitianus, dragging their mutilated bodies through the streets of the city.³³⁶ In the aftermath of this explosion of violence, there were arrests, trials, a fevered atmosphere of conspiracy and investigation.³³⁷ Teasingly, Ammianus interrupts his account with a digression on the eastern provinces. When we find the thread again, it is with his commander, Ursicinus, being summoned

³³¹ *ibid.*; apparently before he set out early in 354 (AM 14.10.1).

³³² AM 14.7.10.

³³³ Below, 157.

³³⁴ AM 14.7.11-12.

³³⁵ *ibid.*, 13-14.

³³⁶ *ibid.*, 15-16.

³³⁷ *ibid.*, 18-21.

back from Nisibis (his presence there another hint of trouble on the frontier) to preside over the trials of those who had been arrested, all the while communicating with Constantius, warning him of what was going on.³³⁸ Ammianus later pretended outrage that Ursicinus was regarded with suspicion, but his ambiguous role in the events of 354 should give us pause before accepting that as yet another manifestation of the suspicious mind of Constantius.³³⁹ The awkwardness with which Ammianus insists Ursicinus had no legal experience (though as *magister militum* he would have had jurisdiction over cases involving troops) betrays a certain tension.³⁴⁰ A grim succession of tortures and executions followed.³⁴¹

It was the unprecedented and anarchic murder of his officials, and the brutal reprisals afterwards, which finally led to the fall of Gallus – nothing more sinister or complex. The Caesar really had thrown the east into turmoil, imprisoned many, tortured some, and executed others: Ammianus was not exaggerating. It might have been possible to walk Gallus back from the precipice, when his misdeeds were of a relatively limited compass, but what could Constantius do, when he had murdered a prefect and a quaestor? As we have seen, the emperor was remarkably attached to his servants, reliant on a tight-knit group of advisers whom he trusted – to kill them was not simply to disrupt government, it was to attack the way that the emperor governed. Besides that, it is worth dwelling on the precise context of Gallus' activities. Antioch had been Constantius' *de facto* capital for nearly a decade, had been physically remodelled by him and his court, had helped to sustain the war in Syria. In a way quite unlike any other place, the emperor was intimately familiar with the city, knew its leading citizens, understood the way it worked. These were Constantius' people and as the news trickled back of what Gallus had done now, one cannot help but wonder if it struck Constantius personally in a way that turmoil in Trier would not have. When he arrived at Milan, the emperor worked gradually to summon the Caesar back. It was a complex task: Ursicinus, whose loyalty, chief

³³⁸ AM 14.9.1.

³³⁹ AM 15.2.1. Thompson, 1947, 44 was sceptical of the idea that Ursicinus was viewed with suspicion, but Blockley, 1980, 473 defended it.

³⁴⁰ Jones, 1964, 488-9.

³⁴¹ AM 14.9.3-9.

inquisitor of Gallus as he had been, was uncertain, had to be extracted first.³⁴² It took time and not inconsiderable effort to get the Caesar to move. He was gradually coaxed out of the East and there were nervous moments as troops on his line of march hinted that they might be willing to serve him – it was easy, it turned out, to exploit the prestige of the Flavian name, harder to control who might use it.³⁴³ Scattered indications, on which Ammianus puts the most sinister possible interpretation, suggest that his fate was not yet sealed.³⁴⁴ At Poetovio, he was arrested, taken west, and then interrogated about the deaths at Antioch – his failure to produce any answer beyond the reedy claim that his wife was to blame proved fatal.³⁴⁵ The emperor condemned him to death and he was executed like a common criminal.³⁴⁶ He was twenty-eight.

In the aftermath of Gallus' fall, Ammianus alleges that there were grisly reprisals by the always-suspicious Constantius. As before, he speaks vaguely of the emperor's savagery, of widespread execution and torture, but his specific examples are of three acquittals – Libanius would later use the inquiries instituted at Antioch as a model of imperial mildness.³⁴⁷ Gallus' uncles, Rufinus and Cerealis continued in favour, the former still prefect for a time after his nephew's demise, the latter honoured with the consulship in 358.³⁴⁸ His brother Julian was favoured by being brought to Comum, near Milan, and then allowed to go to Athens.³⁴⁹ If anything proves the specificity of what had happened to Gallus, it is the treatment of his three closest relatives in its aftermath. Constantius continued to govern cautiously in the west, to put his faith in officials who had served his brother, or the usurpers, almost ostentatious in his commitment to reconciliation. Perversely, this had deeply unhappy consequences.

The usurpation of Silvanus at Cologne in 355 is a well-worn episode – it could hardly be otherwise with the detailed testimony of Ammianus, eye-witness and conspirator. The historian

³⁴² AM 14.11.2-5.

³⁴³ AM 14.11.6-16.

³⁴⁴ *e.g.* AM 14.11.14.

³⁴⁵ AM 14.11.19-22.

³⁴⁶ AM 14.11.23.

³⁴⁷ AM 15.3.1-2, 15.2; Libanius, *Or.* 19.40.

³⁴⁸ *pace PLRE* 'Rufinus 25', Bleckmann, 1994, 64-5, AM 15.3.9 shows he continued in office sometime after the fall of Gallus. *CLRE*, 250-251.

³⁴⁹ AM 15.2.8.

presents Silvanus' usurpation as a product of the poisonous atmosphere of the aftermath of the civil war and he has found influential supporters: 'it was a case of suspicion actually bringing about what was suspected'.³⁵⁰ Others have taken this view as the starting point for what happened, but recast it in more historicist terms, moved away from Ammianus rhetorically, but not substantively. So ethnic animus between Franks and Romans is made the root cause, or the restive nature of the troops, pushing Silvanus to the fatal moment, or a systematisation of the tensions this episode revealed, so that this 'blatant and disastrous example of court intrigue' teaches us about the problems Constantius faced in managing his generals.³⁵¹ Silvanus himself has been pushed to the fore, a calculating figure, relying on widespread discontent with the regime of Constantius, the support of the troops, and the pretext provided by intriguers against him to launch his bid for power.³⁵² Much emphasis has been put on the ways in which the biases of Ammianus may have obscured the episode.³⁵³ More extravagant reconstructions have detected wheels within wheels, argued that Ammianus 'quite deliberately obscured the truth', that Silvanus perhaps never attempted usurpation at all, and was the victim of the machinations of Ursicinus.³⁵⁴ At the back of this, as so often, is a view of politics in which decisive action and perfect information do much of the explanatory work, in which coins (specifically the failure to mint them) become the bedrock of all reconstruction. The usurpation spread like wildfire, 'as a host of ... officials, loyal to Silvanus, implemented all the procedures necessitated by a change of regime'.³⁵⁵ Silvanus did not mint any coins, so he cannot have usurped.³⁵⁶ Ursicinus and his men could not have avoided being informed of what had happened at Cologne, so their plan to pretend they were unaware of the coup 'makes no sense whatsoever'.³⁵⁷ Something else must, therefore, have been going on, something which Ammianus concealed.

There is in fact a crucial aspect to the affair which the historian allows us to see only obliquely: it had its origins not in Constantius' suspicion, but in his attempts to conciliate western

³⁵⁰ Mathews, 1989, 37, *cf.* Nutt, 1973, 89, Frakes, 2012, 102.

³⁵¹ Ethnic animus: Balducci, 1947. Troops: Boer, 1960. Systematisation: Blockley, 1980.

³⁵² Conti, 2016, esp. 235-40.

³⁵³ Hunt, 1999 is much the most subtle treatment of this theme.

³⁵⁴ Drinkwater, 1980, 572. Endorsed by Barnes, 1998, 18-19.

³⁵⁵ *contra* Drinkwater, 1980, 571, there is no evidence Silvanus had taken over large tracts of Gaul (including, 575, Trier) – Ammianus implies the opposite.

³⁵⁶ *ibid.*, 574-5 hints at this. Hunt, 1999, 47, and Conti, 2016, 233-4 are rightly sceptical.

³⁵⁷ Drinkwater, 1980, 571.

elites, and it revealed not his paranoia, but the way that his unfamiliarity with the west could be exploited. It is of course well known that Silvanus was the victim of a plot at court, but the plotters are only rarely and briefly brought into discussion of the events that followed and it is sometimes said we cannot really know anything about them.³⁵⁸ Their motives look uninteresting, because this is meant to be a story about pervasive suspicion and most historians who look at the plotters regard them as basically substitutable: if it had not been them, it would have been someone else. The idea that of course Constantius should have known what they were up to, that of course he was familiar with their enmities, is simply assumed, a consequence of that falseness of perspective which the jagged opening of Ammianus' history gives us.³⁵⁹ The idea that the entire west was in turmoil removed, the actions of the plotters suddenly look much more interesting and important. Two had been senior figures in the government of Constans: Eusebius 'Mattyocopa', formerly *comes rei privatae*, and Sextilius Agesilaus Aedesius, who had been *magister memoriae*.³⁶⁰ The third was the new praetorian prefect, Lampadius, who, as we saw, probably also had a background in the government of Constantius' dead brother.³⁶¹ He was alleged to be the orchestrator of the scheme, which he hoped would win them consulships.³⁶² Silvanus was the great object of their ire, but they had other targets, men implicated in the letters they forged from the Frank, ones in which he expressed imperial ambitions (a fatal sort of purple prose): Ammianus mentions one Tuscus Albinus, who was probably a relative of Nummius Albinus (cos. 345).³⁶³ If feuding at court was indeed the origin of the whole Silvanus affair, then it was feuding at the court of Constans which was to blame – the conspiracy bubbled up because Constantius had kept so many westerners in government. It is possible that some bitterness about events of the civil war lay behind the argument: Silvanus had, of course, been a lieutenant of Magnentius. His enemies are not to be found in the administration of the usurper and one wonders if they resented the high position now given to someone who had so

³⁵⁸ As Blockley, 1980, 482. Hunt, 1999, 48-9, is quite right to see Ammianus as trying to insinuate that Arbitio was to blame.

³⁵⁹ Above, 142.

³⁶⁰ Above, 81; *PLRE* 'Aedesius 7'.

³⁶¹ AM 15.5.4. Zosimus 2.55.2 adds one Picentius; he suggests they were conspiring against Gallus, but it seems likely he has simply confused the two episodes.

³⁶² McLynn, 1996, 327 suggests not consulships, but invitations to the consular games for that year were the reward. I cannot squeeze this from the Latin: there are textual issues in the passage, but V's *consolatum* is obviously *consulatum*, which has a remarkably constrained sense (see *TLL* IV.573.15-576.24).

³⁶³ Above, 77. *PLRE* 'Albinus 2'.

profited from disloyalty. The forged letters which incriminated the general were given to Constantius by Lampadius, who exploited his access to the emperor to find him alone, and no doubt put the worst possible spin on them – the Augustus looks more conspired against than conspiring. An emergency conference of the *consistorium* followed and furious argument raged about what to do.³⁶⁴ The narrative which follows – one of few moments where we have the recollections of an eyewitness at court as a crisis unfolded – highlights the uncertainty, the imperfection of information, and the pervasive doubt which characterised such events. There is little here of the speed and decisiveness which historians have been so keen to detect in other, less well-documented crises. It is immediately noticeable that commanders with Frankish names (colonels, plausibly, of Gallic regiments) were on the side of Silvanus, ranged against the western bureaucrats.³⁶⁵ Throughout all this, Constantius was dealing with men whom he did not really know, whose baffling and arcane feuds and grudges were all new to him – only Arbitio and Eusebius were old comrades and their prominence in events may well reflect that. The Silvanus affair is not a story of a paranoid emperor, whose darting suspicions could be exploited, but of one who was unfamiliar with the political world he was attempting to manage and whose ignorance could be exploited.

The plot fell apart when the forgers were too bold and a letter fell into the hands of the man (Malarichus) who had allegedly sent it, causing an almighty uproar.³⁶⁶ The conspirators were not punished (though some were tortured in questioning), something perhaps explained both by Constantius' desire to continue conciliating western elites and by the web of family connections which linked Lampadius to Lollianus.³⁶⁷ By then it was too late to put the genie back into the bottle, and Silvanus ended up declaring himself emperor as a route to saving his own life – his purple robe stitched together out of bits of cloth from the standards.³⁶⁸ Tellingly, Constantius turned at this moment of crisis to Ursicinus, an eastern general, and the troops he had brought with him from

³⁶⁴ AM 15.5.5-6.

³⁶⁵ *ibid.*

³⁶⁶ AM 15.5.9-12.

³⁶⁷ AM 15.5.13-14.

³⁶⁸ AM 15.5.15-16. As pointed out by Boer, 1960, 107.

Antioch.³⁶⁹ He was offered a chance to redeem himself after his involvement in the fall of Gallus. The small band which Ursicinus led (Ammianus among them) hastened to Cologne, where it found the usurpation far advanced.³⁷⁰ They feigned adherence to the new emperor, and Ursicinus dined with him, while Silvanus complained that he had not yet been made consul.³⁷¹ Meanwhile, Ursicinus' subordinates bribed some troops, who attacked Silvanus the next morning, dragging him from a small room where he had taken refuge on the way to a Christian service and butchering him.³⁷² In the aftermath of the usurpation, there were reprisals, but Ammianus names only four victims: Poemenius, the man who had led Trier against Decentius, and three *comites*, Asclepiodotus, Lutto, and Maudio.³⁷³ Others, Laniogaisus and Remigius for instance, are noticeable by their absence from the list of the proscribed. Silvanus' son was spared by the emperor – no small gesture.³⁷⁴

What the episode of Silvanus revealed, then, was that Constantius, newly ensconced as emperor in the west, was extremely vulnerable to the intrigues and conspiracies of men whom he did not know that well and who had complex embittered relationships, the product perhaps of the divided court of Constans, or the brutal civil war. Official pronouncement tried to pin everything on Silvanus, to make him a lonely usurper – the regime can hardly have been keen to probe the viperous pit of western politics too closely.³⁷⁵ The attempted coup suggested that trying to apply the model of government he had fashioned in the east – a small circle of dependable allies – to a western context where he did not really know many of the individuals and had not weighed their service over long years, was perhaps naive, born of an admirable desire to avoid recriminations after civil strife. Perhaps it even suggested that the two political cultures of the empire which we saw in Chapter I were harder to reconcile than one might have expected. In the aftermath of the affair at Cologne, Constantius turned to trusted eastern officials to run the west for him.³⁷⁶ Ursicinus stayed on as commander in Gaul, where Honoratus, one of the few people to have emerged from the rule of Gallus

³⁶⁹ AM 15.5.18-19.

³⁷⁰ AM 15.5.25.

³⁷¹ AM 15.5.28.

³⁷² AM 15.5.30-31.

³⁷³ AM 15.6.4.

³⁷⁴ Julian, *Or.* 1.49a.

³⁷⁵ e.g. Julian, *Or.* 1.48c.

³⁷⁶ Cf. Pietri, 1989, 152-3.

with his reputation enhanced, was made praetorian prefect.³⁷⁷ The emperor offered the prefecture of the city of Rome to Anatolius, a native of Berytus and friend of Libanius, who declined it (becoming instead prefect in Illyricum a little later).³⁷⁸ Constantius ultimately appointed Leontius, who had been Gallus' *quaestor*.³⁷⁹ We suddenly find eastern officials as western governors or *vicarii*.³⁸⁰ This was a noticeable change from his actions in 353 and 354, and (as we will see) he continued throughout the rest of his reign to rely on easterners to keep the west in line.

Constantius Maximus Augustus

'So, after a long interval, after nearly 70 years, the administration of the state was restored to one man', was Aurelius Victor's remark on the aftermath of the death of Gallus.³⁸¹ The historian had calculated very carefully, reaching back to 284, when, between the death of Carinus and the proclamation of Maximian as Caesar, Diocletian ruled alone, and carefully distinguishing Constantius, who was in law sole ruler, from his father, who had been so only in fact. It was a truly remarkable moment, and even the insult of Athanasius, that 'having destroyed three emperors – Vetrano, Magnentius, and Gallus – he immediately set himself up as the leader of impiety', contains a grudging acknowledgment of Constantius' achievement (and a healthy dose of the patriarch's customary misrepresentation of the facts).³⁸² It had taken Constantine nearly twenty years of civil strife, much of it started by him, to finally achieve absolute power. His son, who had never sought such an opportunity to rule the west, had managed to conquer it in only three. It is hardly surprising that his panegyrists began, tentatively, to move Constantius a little further out of his father's rhetorical shadow and suggest that he had even surpassed his achievements.³⁸³ Julian contrasted the 'unlucky old man' (Licinius) whom Constantine had fought with the 'vigorous and flourishing

³⁷⁷ *PLRE* 'Honoratus 2'.

³⁷⁸ *PLRE* 'Anatolius 3', with the important corrective of Bradbury, 2000

³⁷⁹ *PLRE* 'Leontius 22'.

³⁸⁰ *PLRE* 'Martinianus 5'; 'Olympius 3'; 'Alypius 4'.

³⁸¹ AV 42.13.

³⁸² Athanasius, *HA* 74.4.

³⁸³ An aspect perhaps missed by Pietri, 1989.

tyranny' which his son had overcome.³⁸⁴ When Themistius spoke at Rome in 357, during Constantius' triumphal visit, he audaciously claimed that the emperor was the city's second founder, indeed that Constantinople was really his creation as well.³⁸⁵

Panegyric has never knowingly undersold the achievement of its subject, but there was some truth in this boasting. Constantius had achieved something astonishing. Against the odds, through eloquence and through violence, he had overmastered two formidable opponents. He had proved himself a brilliant general, winning the great pitched battle of the middle of the fourth century, and no mean strategist, launching an astonishing assault over mountains and across the seas, an assault at which Magnentius' empire crumpled. It became customary to lament the losses at Mursa, part of an indictment of Constantius which emphasised his failure in foreign war, and his disastrous success in civil strife, an indictment which, as we will see, has suspicious fingerprints on it.³⁸⁶ Mursa was a vicious battle, that is certain, but it is far from clear that that single explosion of bloodletting did more to drain the resources of the empire than the turmoil of tetrarchic civil war had – it seems, in fact, extremely unlikely. In any case, in the aftermath of his victory, Constantius had showed that he was a shrewd politician, one who worked by carefully building consensus and who emphasised conciliation, who tried, as rapidly as possible, to put the empire at ease. It was argued in Chapter I that close study of the 340s revealed, hidden behind the paranoid coward of the sources, an emperor who had many virtues, unflashy ones, it is true, but virtues all the same. He was cautious, judicious, a good general and a conscientious administrator. His conduct in the civil war tells much the same story.

The path which had led Constantius from the eastern frontier in 350 to the precipitous height he occupied at Milan at the end of 354 was a tortuous one and there is much that is interesting and rewarding in picking a way along it. Two broader points, points about dynasty and politics, emerge from the detail. As we saw, the overthrow of Constans tells us nothing in particular about the popularity of the rule of the Flavians, does not detract from the portrait of a stable diarchy in the

³⁸⁴ Julian, *Or.* 1.37b.

³⁸⁵ Themistius, *Or.* 2.43c-d, 40c.

³⁸⁶ *e.g.* Eutropius, 10.12.1; below, 177.

340s. Throughout the war that followed, Constantius made extensive and successful use of his family's name: to win over the troops of Vetranio, to justify his decision to pursue Magnentius at the price of civil war, to elevate his unstable cousin to the throne. Yet, what is striking is not so much the way that Constantius emphasised his hereditary destiny, as the way that both Magnentius and Vetranio exploited the Flavian name. The latter, a daughter of Constantine and a prefect of Constans in his train, obviously attempted to siphon prestige from them, but it is Magnentius whose use of 'Flavianism' (so to speak) is both clearer and more surprising. Odd as it may seem, the man who had overthrown Constans was clearly desperate to integrate himself into his family, keeping their name, ruling in their style, and frantically searching for a Flavian woman whom he could marry, even when one might have expected him to seek a match with one of those powerful senatorial aristocrats so important in the government of the west. Flavian rule had become the framework of empire, and even at a moment of chaos and turmoil, no-one seems to have thought seriously of overturning it. It could be modified, new emperors could be included within the ruling family, but throughout 350-353 there was no sense that it could be replaced. The dynastic experiment appeared almost unshakeable. It is equally striking that all of those who struggled for mastery in the early 350s were themselves Christian, presented their rule as Christian, and legislated and governed as Christians: Christianity had become part of the imperial furniture. If there was a hint of tension, then it lay in the parallel crises which Constantius and Gallus had experienced in dealing with their subordinates, crises which seem to have their roots in distinct political cultures, and the struggles emperors experienced in dealing with them. Still, it was only a hint. In 354, the Christian Flavian empire appeared secure, governed as it was by the experienced, but not yet old, Constantius. By 361, he was dead and Christianity was experiencing subtle persecution. By 363, the empire had experienced its first catastrophic reversal against a foreign enemy since the third century and there was not even a Flavian on the throne. One might then think that the appearance of solidity in 354 was only that. That would be wrong, but to understand why we need to turn to the turbulent career of that last and (in his funny way) entirely-characteristic Flavian: Julian.

III

PROLEGOMENA TO JULIAN

Milan, 355

Milan was the *fons et origo* of Flavian power. Before its walls Gallienus had been murdered, victim of a murky conspiracy – his last act (it was averred) to send the insignia of empire to Claudius Gothicus, alleged progenitor of that imperial race.¹ Moving (no great distance) from the realm of propaganda to that of history, it was probably at Milan that Constantius I had been invested with the purple by Maximian in 293.² It was in Milan that Constantine and Licinius had met to cement their alliance by marriage and famously discussed ‘all things which are relevant to the profit and security of the state’.³ It was when he reached the city in 352 that Constantius II had finally had the confidence to bluntly invalidate the legislation of Magnentius.⁴ One can track the fortunes of the dynasty by their fleeting contact with this city, nestled in the shadow of the Alps, the linch-pin of northern Italy, roads streaming out to Gaul, to the Balkans, and south to Rome: ‘Milan, where everything is wonderful: the quantity of wealth, the countless and cultured houses, the eloquent talents of its men and their pleasing manners’.⁵ An earlier panegyrist – describing a tetrarchic conference in the city – had said that ‘the seat of empire seemed to be wherever the emperor had come’: in 355, the emperor returned. Milan was, once again, the centre of the Roman world and once again witnessed the course of Flavian history as it was set.⁶

In 355, Constantius had returned to the city from a victorious campaign against the Alamanni near Lake Constance, a scrappy and brutal affair in which Arbitio had chased bands of the enemy along its southern shore, the army mauled and mauling in the process.⁷ Ultimate victory had come at

¹ AV 33.18-21, 28.

² Barnes, 1982, 60.

³ Lactantius, *DMP* 45.1; 48.2.

⁴ *CTh* 15.14.56.

⁵ Ausonius, *Ordo urbium* 35-7.

⁶ *Pan. lat.* 11.12.2.

⁷ AM 15.4, with a large lacuna just as the action gets going (BAV, lat. 1873, f. 18r); cf. Libanius, *Ep.* 442.1.

a price: ten tribunes and numerous soldiers dead.⁸ The emperor was in the city by July the 6th, legislating to sustain the corporation of bakers.⁹ A flurry of laws followed, a reminder of the monotonous grind of business which the governance of empire brought in its train.¹⁰ Soon, the conspiracy against Silvanus reached its peak, exercising an apparently all-consuming hold on imperial attention, and in its aftermath (as we saw) Constantius struggled to grip the machinery of state in the west. That did not mean that other business politely stopped and waited. There were riots in Rome at the arrest of a popular charioteer and then over an alleged shortage of wine, and only the prompt action of the urban prefect – wading into the crowd to drag the ringleader away – prevented them getting out of hand.¹¹ All the while, Constantius was beset by the problems of the Church (not himself entirely guiltless in these). A council met at Milan, the emperor declaring through gritted teeth that he hoped it might merely communicate to western clerics ‘what in individual <councils> most sensible bishops have decreed with harmonious unanimity’.¹² Unsurprisingly, it dissolved amidst acrimony and accusations of bad faith.¹³ The emperor ultimately lost patience and deployed troops to break things up, Hilary of Poitiers’ description of events conveying slight disappointment that they failed to make any martyrs.¹⁴ In the council’s aftermath, he summoned Pope Liberius to see him. He was spirited away from Rome under cover of night (riots), and a stormy interview followed, rich in recriminations.¹⁵ The Pope was soon exiled, along with several other bishops.¹⁶ The east was hardly quiet either. In Alexandria, the emperor’s agents were trying (once again) to remove Athanasius from his see, the *notarius* Diogenes spending the fruitless months from August to December in this endeavour.¹⁷ Investigations continued at Antioch into the crimes and misdemeanours of Gallus, and all the while the Persians nibbled at the frontier, mostly attacking

⁸ AM 15.4.8.

⁹ *CTh* 14.3.2.

¹⁰ *CTh* 1.5.5; 2.1.2; 6.29.1.

¹¹ AM 15.7.1-5.

¹² Constantius, *Epistola ad Eusebium* 3.

¹³ Sulpicius Severus, *Chronicon* 2.39.2-3; Hilary of Poitiers, *Liber I ad Constantium* 2.3; Barnes, 1993, 117-8; McLynn, 1994, 13-22.

¹⁴ Hilary of Poitiers, *In Constantium* 11.

¹⁵ AM 15.7.6-10; Theodoret 2.16 with Barnes, 1993, 209-211.

¹⁶ Hilary of Poitiers, *In Constantium* 11; Sulpicius Severus, *Chronicon* 2.39.4.

¹⁷ *Historia Acephala* 1.9.

Armenia, but occasionally probing at Mesopotamia.¹⁸ Ammianus was scathing about those in positions of power in the east at the time and their indolence and corruption, but a letter of Libanius suggests they were very active: spies scuttling off to observe Persian movements, troops being shuffled around to deter them.¹⁹ There was trouble on the lower Rhine as well, raiding around Cologne, more serious than normal, and accusations that Ursicinus, now the most senior general in Gaul, was engaged in peculation.²⁰

At the centre of the maelstrom sat Constantius, wheeling now to wrestle with the problems Silvanus had caused, now to berate some recalcitrant bishop, firing off dispatches to Alexandria and Antioch, the empire contained in the pouches of couriers streaming to and from Milan. It is a striking testament to the mass of business he confronted that none of our sources quite captures its variety. Ammianus comes closest, forced on this occasion to introduce a brief digression on matters ecclesiastical.²¹ Still, his account is dominated by the revolt of Silvanus and its aftermath, other topics whipped through so quickly that their treatment seems almost perfunctory. One would have no sense from the unflattering mentions of the eunuch chamberlain Eusebius in his pages that he had also been engaged in frantic shuttle diplomacy with the Roman Church, trying to convince Liberius to toe the imperial line and depositing gifts in the *martyrium* of St Peter.²² Equally, one would have little idea from those sources which track the twists and turns of Christian controversy that the emperor was struggling at the same time with incipient war on two fronts, the rule of half an empire which he hardly knew, and the humdrum business of day-to-day administration. Passionately as Constantius wished to finally deal with Athanasius – ‘there is no triumph, not even that against Magnentius and Silvanus, so dear to me as this: that that wretched man be removed from the affairs of the Church’ – he was far from the only problem the emperor confronted.²³ It is hard to convey the way that he must have turned from dealing with Silvanus, to interviews with bishops, to reading

¹⁸ AM 15.13.

¹⁹ Libanius, *Ep.* 430.7.

²⁰ AM 15.8.19, 5.36.

²¹ AM 15.7.6.

²² *e.g.* AM 15.3.2 vs. Athanasius, *HA* 36, 37.1.

²³ Theodoret 2.16.

reports that Athanasius was still resisting: one can list what he was doing, but one cannot quite evoke the intensity of his activity.

Sketched against such a background, the trials of Constantius' cousin and last male relative appear almost trivial – one among many problems and by no means serious. After Gallus' fall, he had been summoned to Milan, as questions were (not unnaturally) asked about his contacts with his brother.²⁴ Ammianus talks of the 'engine of false accusations' being turned on him, and much was later made of the peril from which he had barely escaped, but he had time on his journey to stop at Ilium and engaged in a leisurely tour of its sights, which suggests his orders were rather less urgent than is sometimes made out.²⁵ When he got to Milan, he spent six months lodged on Lake Como, not (perhaps) the most unpleasant place to pass the time.²⁶ He had a single interview with Constantius and was taken under the wing of the empress Eusebia, who treated him kindly – it is not hard to see why she, untainted by the events of 337 or 354, was asked to engage with the unhappy young man.²⁷ At length, he was allowed to return to the east and planned to visit his mother's property, but the regime grew worried at the revolt of Silvanus and parked him in Athens.²⁸ From there, he was swiftly summoned back to Milan in the autumn of 355, weeping profusely as he left the city of Athena – from the moment he returned, Constantius seems to have been meditating on whether to give him some share of imperial power.²⁹ He tried to keep out of the society of the court – bitterly resenting the way his beard was clipped, his clothing changed to the cloak which marked imperial service – and wrestled with his overactive conscience about what he should do next.³⁰ In the palace, arguments raged about what to do with him and Eusebia dispatched friendly missives, encouraging him to write to her.³¹ Discussion dragged on for some time, drawn out by those who feared a repeat of what had

²⁴ AM 15.2.7-8. *contra* Vanderspoel, 2013, there is no evidence Julian went to court before this, or had any kind of imperial career. His case (esp. 329) rests on a misunderstanding of Julian, *ET* 259d-260a, which refers to his summons to Milan *after* Gallus' death.

²⁵ Julian, *ELF* 79.

²⁶ AM 15.2.7; Julian, *EA* 274a. *cf.* Athanassiadi, 1981, 45 'solitary confinement'.

²⁷ *ibid.* and 273a.

²⁸ *ibid.*, 273 b, d.

²⁹ Julian, *EA* 275a; AM 15.8.1-2.

³⁰ Julian, *EA* 274c; 275C-277a.

³¹ AM 15.8.3; Julian, *EA* 275b.

happened with Gallus, but as autumn turned to winter the emperor's resolve remained fixed.³² On the sixth of November, before the assembled troops, Constantius II created his second Caesar. As the troops roared their approval, he was taken up into the emperor's carriage, muttering a line from Homer to himself.³³ Julian had arrived on the world stage.

Approaching Julian

Julian hides under the spotlight. From the 330s until the 350s, much, on occasions everything, is obscure, and then suddenly, almost precisely at the point Julian became Caesar, our sources cast a flood of light onto events – the glare is almost blinding.³⁴ There is suddenly a tidal wave of contemporary evidence: laws, letters, panegyrics, inscriptions, orations, invectives, satires. We can trace not only what Julian said about what he was doing, but how Libanius, how Gregory of Nazianzus, how the city council of tiny Brescello in Emilia-Romagna understood it.³⁵ This in itself is remarkable, but what transforms the study of Julian, what makes it not only better-evidenced than the reigns of those who ruled before and after him but fundamentally different, is the importance he assumed in ancient historiography. Hyperbole seems almost insufficient: Julian simply towers over the fourth century. He dominated the influential lost account of Eunapius of Sardis: 'my story is carried to the one towards whom it was borne from the beginning, and he compels us to linger fondly on his deeds, as though afflicted by some love for him'.³⁶ Zosimus, compiler of the scrappy *New History*, aspired to be comprehensive in his brevity on Julian: 'since it is fitting that we not tear apart the arrangement [*sic*] of our history, we will relate each event concisely at its appropriate time, and especially those which others thought should be omitted'.³⁷ Ammianus too was self-confessedly an admirer, and his sixteenth book (the first of ten devoted to his hero's brief career) opens with a programmatic statement of how he will handle Julian's extraordinary achievements, an account

³² AM 15.8.2-3.

³³ AM 15.8.15-17.

³⁴ The sources are surveyed by Bowersock, 1978, 2-11.

³⁵ Below, Ch. VI.

³⁶ Eunapius, *ES* 5.

³⁷ Zosimus 3.2.4.

which ‘will almost stretch to being material for panegyric’, teasing the reader who would be warned against that genre by the work’s closing words.³⁸ Even the ecclesiastical historians Socrates and Sozomen each devoted a whole book to Julian’s reign and sped thence to their fifth-century termini.

In trying to understand Constantius and Constans, or even Magnentius, the problem is the paucity of evidence, the difficulty of penetrating behind what their enemies said they were doing and arriving at a juster estimate. With Julian, there is certainly no shortage of material and no difficulty in discovering what he and his regime thought was going on. The problems are almost the opposite, of managing the huge mass of sources and of reading Julian’s own self-fashioning with critical eyes. We need a method for organising and understanding the material and the period it describes – to use a late-antique metaphor, the historian is like a wrestler, struggling to find a grip. In pursuit of that goal, in pursuit of an historical Julian, an enormous quantity of scholarly effort has been expended from Bossuet onward: a rolling barrage of books, articles, edition and commentaries.³⁹ No survey save an exhaustive one could track all the twists and turns of this endeavour, so it might be better to think about ways of thinking about Julian. In more recent work, two broad tendencies might be detected, or perhaps it might be better to say that two sets of lenses have generally been deployed. The first approach might be characterised broadly as ‘cultural’. It attempts to read Julian’s *corpus* of work as an organic whole, to ask what it tells us about the emperor, and perhaps from there to try and understand his reign as an expression of his ideas – a neat continuum running from thought to action and back. So, Bouffartigue exhaustively catalogues Julian’s mental library: his influences, what he cited and had not read, and what he had read, but not cited.⁴⁰ Or, R. Smith sets out to analyse ‘the religious and philosophic interests and attitudes disclosed in Julian’s writings, and to consider their bearing on central aspects of his public action as emperor’.⁴¹ Or, more recently, Susanna Elm tries to put Julian in dialogue with Gregory of Nazianzus, to see them both as participants in a dialectical struggle over how to correctly govern the Roman world, and with what religious ideas – the emperor

³⁸ AM 16.1.3; 31.16.9; Kelly, 2008, 318-321.

³⁹ See, *inter plurima alia*, Braun, Richer, 1978 (vol. II).

⁴⁰ Bouffartigue, 1992.

⁴¹ Smith, 1995, xvi.

enacting a vision of how to rule, one for which approval was hardly universal.⁴² The idea is summed up in the natural collocation which titles a fine recent collection of essays about Julian: *Emperor and Author*, culture and command closely allied.⁴³ The emperor was what the emperor wrote.

The second approach might be seen as ‘psychological’, tying together the personality which can be extracted from the works, and using that to analyse Julian’s life and reign. The historian aims at an almost clinical assessment, one which can play an analytical role in historical argument, allowing one to find ‘those traits of character which may explain the actions and decisions of a monarch’.⁴⁴ Glen Bowersock’s study of the emperor is the most obvious and influential example of this strain of thinking, a work which begins its analysis with a chapter on ‘The Personality of the Emperor’ and proceeds to ask ‘what sort of person was Julian?’⁴⁵ Bowersock concluded that he was under-sexed, an ascetic revolutionary in the mould of Lenin or Mao: ‘He tried to reshape the world according to his personal vision, and that vision vanished with him’.⁴⁶ Polymnia Athanassiadi tells the story of Julian’s life as a series of challenges, internal and external, and how they shaped the emperor and were shaped by him: ‘His was the divided personality of a man who lived between two ages, and in whose career we can just as clearly his debt to the ancient world as his claim to citizenship in the new’.⁴⁷ This, she says, is a ‘dangerous journey through the labyrinth of Julian’s inner development’, ‘a conscious effort to evaluate Julian’s character’ – every page betrays a vision of what he was like, promises a ‘magic key’ to unlock his psychology.⁴⁸ Klaus Rosen draws out a story of spiritual doubt and uncertainty, dramatically resolved in favour of the old gods when Julian learnt of his cousin’s death in 361, and truly believed – the awful prelude to his abortive religious transformation.⁴⁹ It would be wrong, of course, to imply that similar approaches presuppose similar conclusions, that Smith and Athanassiadi agree about Julian’s philosophical inclinations. Equally, it would be wrong to suggest that these two routes to understanding Julian are mutually exclusive: if

⁴² Elm, 2012, *e.g.* 1.

⁴³ Baker-Brian, Tougher, 2012.

⁴⁴ Bowersock, 1978, 12.

⁴⁵ Bowersock, 1978, 12-20, *cf.* xii.

⁴⁶ Bowersock, 1978, 12; at 118.

⁴⁷ Athanassiadi, 1981, at 231.

⁴⁸ *ibid.*, v, vi, 55.

⁴⁹ Rosen, 2006, *e.g.* chapter I: ‘Wer war Julian’.

anything, they bleed into each other, something pithily conveyed by the subtitle of Athanassiadi's work, *An Intellectual Biography*. Julian the psychological case-study is framed by Julian the ascetic philosopher, and the emperor as man of culture is based on a reading of his idiosyncrasies – personality and literary persona are almost inextricably linked, and man and moment merge into one.

These approaches have much to commend them and have immeasurably deepened and broadened our understanding of the emperor. Both, in a sense, are an attempt to discover a general truth about Julian and apply it to specific incidents – to find that grip and use it to master the material. They are not, however, without weaknesses. Both are rooted in the exceptionally rich literary legacy which comes to us under Julian's name, and they both make certain – not unreasonable, but generally untested – assumptions about what that body of work is and what it can tell us about the emperor. The most important of these is that, while the boundaries of Julian's literary *corpus* are policed and occasionally some work at its edge is kicked out or brought in, what is left after philological scepticism has completed its trimming is all the emperor's own work.⁵⁰ Yet, confronted by texts under the name of almost any other Roman ruler, we would not assume that they were necessarily the scribbles of his own hand. When we read in one of Constantius' letters to Alexandria a clever riff on the city's history (the citizens virtuous because they remember their founder's virtue; the Augustus favourable because he must outshine Alexander's favour), we do not immediately assume that the emperor himself was behind it.⁵¹ Instead, we congratulate the secretary who turned the phrase in his attempt to persuade the Alexandrians to accept George as their bishop. We treat his work, no doubt rightly, as the product of an imperial machine – it reveals what his government wished to be thought, but it is not necessarily in the form in which the emperor himself would have expressed it. When it comes to Julian, however, historians behave very differently. He too wrote to Alexandria, to rebuke the citizens for their murder of George (historical allusion not having proved as persuasive as we might hope in encouraging good behaviour), and we find in his letter a line from the tragic poet Melanthius (probably extracted from Plutarch). Because this is Julian, this quotation is dutifully

⁵⁰ The assumption is most lucidly expressed by Smith, 1994, 9-15; Elm, 2012, 332. Policing: *e.g.* Nuffelen, 2002; Bouffartigue, 2005; Aceto, 2008.

⁵¹ Athanasius, *AC* 30.1.

analysed for what it might tell us about his literary culture.⁵² Why we should treat these two very similar pieces of imperial prose, dispatched to the same city, with similar themes and characters, so very differently is never explained.

Most things ‘written’ by emperors (including, often, though not always, his speeches) were not compositions over which they had slaved – it could hardly be otherwise, faced as they were by a daily tidal-wave of papyrus.⁵³ We have no extant work by Julian which predates his appointment as Caesar and he himself noted that this was a moment of transition: ‘Barred doors, doormen, the hands of slaves searched, lest one should convey to me a little message from friends, strange servants.’⁵⁴ Like Constantius, all ‘Julian’s’ works are part of an imperial *corpus* and, as his complaint makes clear, one of the things which marked an emperor off from a mere citizen was that he did not have private correspondence in any meaningful sense: what he wrote and what was written to him was filtered through official channels. This was, of course, simply necessary, for the emperor was far too busy to really enjoy the leisured pace of life which the gentleman of letters expected: ‘always encircling business throttles me’, as Julian himself complained.⁵⁵ After his elevation at Milan, he was everywhere accompanied by secretaries, whose ubiquity swims into view on the very rare occasions when he had to write with his own hand.⁵⁶ Libanius might praise the speed with which he dictated, so fast that copyists struggled to keep up, but after 355 they were omnipresent.⁵⁷ As Athanasius revealed when he obfuscated over whether he had communicated with Magnentius, only the secretaries really knew what had been issued in the name of a public figure and could confirm or deny that such and such was an authentic letter. Emperors were especially vulnerable:

⁵² Julian, *ELF* 60.378d; cf. Plutarch, *De cohibenda ira* 453E and *De sera numinis vindicta* 551A. For analysis, e.g. Bouffartigue, 1992, 251-2, in a discussion of his general lack of interest in tragedy; cf. Trapp, 2012, 113-4. Harries, 2012a, 121 assumes Julian wrote such ‘official’ letters himself.

⁵³ In general, Millar, 1977, Chapter V, esp. 203-6.

⁵⁴ Julian, *EA* 277B.

⁵⁵ Julian, *ELF* 80.

⁵⁶ e.g. *ELF* 28.382b.

⁵⁷ Libanius, *Or.* 18.174.

... for there are forgers who have often mimicked your even imperial hand, and the mimicry will not prove the validity of the letters, if those who usually write such things do not testify in their favour.⁵⁸

Julian might have agreed:

As for the number of letters and petitions to which I have put my signature (for, just as my shadow follows me around, so these also go along with me everywhere), what need is there now to reckon up the number of such matters?⁵⁹

Julian is different, one might riposte, and there is plenty of truth in that. He was certainly heavily invested in the idea of his own culture, something nicely brought out by Libanius' praise of his literary abilities in his address to the emperor on his consulship (363).⁶⁰ Julian boasted to the Antiochenes of his inky fingers, could play the required erudite games, bemoan the fact that his own letters were 'full of a great deal of humbug, and much nonsense, and I for my part often blame myself for making them longer and being a babbler' (of which, of course, he meant not a word).⁶¹ Yet, it is always possible to overrate quite how atypical he was: Constantine's *Oration to the Assembly of the Saints* is quite as idiosyncratic as anything his nephew ever wrote, and there is plenty of richly talkative material in the letters which Constantius II fired off periodically to Alexandria. Julian's orations are more workmanlike than some commentary on them would perhaps suggest, and one can well believe Libanius when he claims that the emperor dashed them off at a furious pace in the long-winter evenings.⁶² Other things about his works which initially seem distinctive – their range or the praise they attracted from contemporaries – are far from unique. Constantius II had some claim to high culture, and one does not even have to listen to Themistius describe the emperor's love of and support for philosophy (for which, understand Themistius) to find evidence of it.⁶³ See the care with which Ammianus suggested the opposite:

⁵⁸ Athanasius, *AC* 11.2: πλαστογράφοι γὰρ εἰσὶν, οἵτινες καὶ τὰς ὑμῶν τῶν βασιλέων χειρὰς πολλάκις ἐμμήσαντο, αἱ οὐχ ἡ μίμησις παρέχει τοῖς γράμμασι τὸ κύρος, ἐὰν μὴ καὶ οἱ τὰ τοιαῦτα γράφειν εἰωθότες μαρτυρῶσι ταῖς ἐπιστολαῖς. *cf.* Libanius, *Or.* 18.132.

⁵⁹ Julian, *ELF* 98: Ἐπιστολαῖς δὲ ὅσαις ὑπέγραψα καὶ βίβλοις (ἐπόμενα ὥσπερ σκιά μοι καὶ ταῦτα συμπερινοστεῖ πανταχοῦ) τί δεῖ νῦν πράγματα ἔχειν ἀπαριθμούμενον;

⁶⁰ Libanius, *Or.* 12.92.

⁶¹ Julian, *Misopogon* 339b; *ELF* 40.

⁶² Libanius, *Or.* 18.178. As Athanassiadi, 1981, 61 saw (arguing from different premises); *cf.* Smith, 1994, 34 on his limited schooling; 62-79 on *Or.* VI 'wholly derivative in its arguments and confused and rambling in its overall exposition', 143 '... a certain scepticism about the intellectual level of Julian's philosophizing would seem to be in order'; *cf.* 191 on the *CG*, 192 'utterly derivative'.

⁶³ As *e.g.* Themistius, *Or.* 3.45b.

He was an assiduous striver after learning, but, as he was without rhetorical skill because of his faint talent, having passed over to versifying, he in no way obtained the reward due his effort.⁶⁴

To discredit ability rather than deny it is to concede that it might be there. Constantius also had a reputation for oratory, and not the mannered kind which sophists displayed to governors, but that which moved men at moments of great importance.⁶⁵ Even Aurelius Victor, no friend to the emperor, but obsessive in tracking imperial culture, conceded that he was ‘skilled in the elegance of literature and in his gentle and pleasant manner of speaking’.⁶⁶ So Constantius, like Julian, found admirers for his literary abilities; like Julian, he wrote speeches and some verse. Ammianus’ gibe at his poetry might even be thought to suggest that it was technically demanding, rather different to the playful ditties of his successor.⁶⁷ We have a much more circumscribed body of material from him – though there are plenty of laws and letters – but there are enough texts issued in his name to allow us to probe the extent of his literary culture, if we wished so to do.⁶⁸

As a working assumption, the idea that Julian’s literary output was mediated through others and that some of it (not least the letters he wrote as Augustus) probably owed very little to him personally, is much more likely to be correct than a belief that everything which circulates under his name was carefully drafted by him.⁶⁹ For many of his works, the real risk is that we will treat them differently, not because they are different, but because they are Julian’s and that we will assume that what is effectively a problem of transmission (that we have Julian’s letters, but not Constantius’ poetry) is an historical insight (that Julian was cultured in a way Constantius was not). At the very least, the burden of argument is on those who would treat ‘Julian’s’ writings differently to those of any other emperor. They ought to be more critical than Libanius, praising him for his mastery of oratory, philosophy, and poetry, or at least apply to such statements the scepticism with which they

⁶⁴ AM 21.16.4: *doctrinarum diligens affectator, sed, cum a rhetorice per ingenium desereretur obtunsum, ad uersificandum transgressus nihil operae pretium fecit.*

⁶⁵ Above, 125-6.

⁶⁶ AV 42.23.

⁶⁷ e.g. Julian, *ELF* 168 on beer.

⁶⁸ e.g. the elaborate *Demegoria* for Themistius. cf. Elm, 2012, 48; cf. Teitler, 1992.

⁶⁹ As, rightly, Trapp, 2012, 108-9, though caveated, 110; Harries, 2012a, esp. 129, but for laws alone, and in a limited sense.

would greet Themistius discoursing on the philosophical Constantius.⁷⁰ Richly revealing as the work on Julian's compositions has been, it may in fact have (inadvertently) told us more about the culture of the average *notarius* than the emperor himself.

That assumption that the emperor's writings are all his own work is a cornerstone of the second approach to Julian: the psychological.⁷¹ To this is added the separate idea that we can (so to speak) read the soul through the page, an idea which transforms the historian into an intellectual physiognomist, parsing Julian's words to divine his character – like the soldiers at his elevation, gazing at his face for clues about his nature.⁷² That one might be able to reconstruct an imperial personality is a tempting prospect indeed, and few who have studied Julian, even those who have developed or deployed a violent animus against him, have avoided the feeling that they know him. The underlying assumption, invariably unargued because it is assumed to be obvious, is that the things Julian says in his letters, speeches, and diatribes are what he really thought, and grant us more or less unmediated access to his 'private world'.⁷³ To believe this, of course, is not to claim that what he thought was the truth of any given situation. Historians have not been slow to point out inconsistencies or misrepresentations, though these too are often rooted in the emperor's character: 'his spiritual life equipped him to dissemble with confidence', *e.g.*⁷⁴ Rather, the claim is that by close attention to Julian's writings, we can write something approaching a psychological study – we can judge what sort of person he was. Out of such judgements, historical argument is made. So, for instance, Glen Bowersock thinks that Julian's personal austerity 'equipped him for the single minded pursuit of his goals', that, in other words, his career was in part a product of his personality.⁷⁵ A crucial and revealing feature of that austerity was the emperor's avoidance of 'sexual entanglements', his 'aversion to sex', for which he 'had no use'.⁷⁶ Underlying that view is the emperor's own remark that he would not have minded if any of his letters to his wife were made public (so chaste were

⁷⁰ As *e.g.* Libanius, *Or.* 12.92.

⁷¹ *cf.* Pack, 1986, 18-24.

⁷² AM 15.8.16.

⁷³ Bowersock, 1978, 10.

⁷⁴ *ibid.*, 18.

⁷⁵ *ibid.*, 20.

⁷⁶ *ibid.*, 15, 20, 18, 72. *pace* Bowersock, 1978, 15, Julian's wife did not die in 355, so he was perhaps not 'abstinent' for the seven years to 362 (101)

they).⁷⁷ That claim by Julian is understood as a bit of psychological self-analysis, an honest or at least parsable statement of what he was really like. From a concatenation of such comments we are meant to arrive at a judgement of Julian's character, and from that judgement analyse his rule: 'his reign bore from the start the clear imprint of his character'.⁷⁸

Yet, a moment's thought should give us pause before rushing into this sort of analysis. Julian made the claim about his marital dealings in a letter he wrote in 362 – his seventh year on an imperial throne, long after he had ceased to have private correspondence in any meaningful sense. It was sent to his uncle, also called Julian, who had recently been made *comes Orientis*.⁷⁹ It covered a variety of matters of public business: the receipt of previous communications, the erection of new columns at the temple of Apollo at Daphne, how to handle a difficult customer called Lauricius, and the question of with what estates the emperor would reward his uncle. Its tone is certainly chatty and warm, and Julian begins with an apology for not writing and protestations that he has only the works of Plato and Homer with him (his uncle had evidently accused him of having his head in a book). That should not obscure the fact that this is basically a communication between an emperor and his servant, in their capacities as emperor and servant. It is not clear why we should treat it as different in kind to an extract from one of Constans' letters preserved in the *Theodosian Code* – the variance of expression, of wording, of formality between the two are certainly revealing, but they are revealing in the first instance about Julian or Constans' style of government, not about Julian or Constans. They are imperial communications, and just as an emperor's words were mediated through the panoply of government, so mediated that he might never realise he had uttered them, what he was like was much too serious a question to be left up to the vagaries of reality. When Constantius II told the Alexandrians that they should accept George as their bishop:

Would that all in the city together might hang upon his words, as though they were a sacred anchor, so that we would have no need of the knife or cautery against those maimed in their souls!⁸⁰

⁷⁷ *ibid.*, 15. Julian, *ELF* 80.

⁷⁸ Bowersock, 1978, 80.

⁷⁹ See *PLRE* 'Iulianus 12'.

⁸⁰ Athanasius, *AC* 30.7: εἴη δὲ κοινῇ πάντας τοὺς κατὰ τὴν πόλιν ὥσπερ ἱερᾶς ἀγκύρας τῆς τούτου φωνῆς ἐξηρτηθῆναι, ἵνα μὴ τομῶν ἢ καύσεων δεηθῶμεν κατὰ τῶν τὰς ψυχὰς λελωβημένων.

he was not saying ‘I am a devout follower of George with an interest in medical imagery’ – his government was warning people to shape up or ship out. Policy, not personality, is as much as we can expect from such communications.

It should hardly need stating that, for our purposes, emperors do not have personalities: they have public images. The two are related, no doubt, but they are not the same. It may be that Constans was the sober zealot of his panegyrists’ imagination or the drunken debauchee of Magnentius’ propaganda, but we cannot really know, and speculation is more likely to obscure than reveal the truth. Keeping that in mind, it is worth revisiting Julian’s remark about his letters to his wife, which comes up in the course of discussing Lauricius.⁸¹ The cause of the dispute between Julian’s uncle and Lauricius is not quite clear, but the latter appears to have insulted the former, and part of his assault was saying that Julian the *comes* had published some letters from his imperial nephew. The emperor defused this row by pointing out: ‘I have never written anything to you, nor to any other man, which I do not wish to be set before all in public’.⁸² The remark about letters to his wife was a garnish for a more general one: what he had written reflected well on both him and his uncle and was fit for public consumption. The emperor’s letters presented to his subjects a side of him he was perfectly happy for them to see: ‘if the letters were a reflection of the real goodwill we have towards each other, why would I wish to hide this or conceal it?’⁸³ The works which Julian has left us contained representations of the emperor which he and his supporters would wish to see communicated to the world: they were an aspect of imperial self-fashioning. We cannot simply read, then, from statements we find in Julian’s works to an understanding of what he was like and from there divine what he was doing or why he was doing it. His ‘personality’ is a phantasm, one of the more successful public-relations exercises of late antiquity.

⁸¹ Almost certainly *PLRE* Bassidius ‘Lauricius’.

⁸² Julian, *ELF* 80.

⁸³ *ibid.*

Imperial Histories

If we cannot grasp, however roughly, Julian's reign by seeing him as a primarily intellectual figure, at the centre of debates about how to govern the Roman world, or by using his writings to paint a portrait of the individual and then analysing his actions against that background, how can we begin to understand him? It might be better to take his voluminous works for what they actually are, the writings of an emperor, engaged in the messy business of politics, and constantly seeking to justify and communicate what he was doing: to analyse it, in other words, as we would the public statements of any other political figure. That is remarkably easy, because the material we have tells us masses about Julian's career – not for him the menacing allusivity of Constantine's letters and speeches. Instead, plenty of specifics: names, places, self-justifications. As Zosimus explained to any reader thinking of perusing all those poems and histories which had Julian as their theme:

It is open to anyone who wishes to grasp everything he achieved <to do so> by reading his speeches and letters, from which especially it is possible to grasp everything he did in the whole world.⁸⁴

We might, in other words, exploit what is really atypical about Julian: the fact that he wrote his own history.

To understand Julian, or to begin to understand him, we can turn to one of his shorter, but most interesting works: the *Letter to the Athenians*. This remarkable document unfurled for its readers a history of the past quarter-century and in so doing told Julian's own story. It was framed as a plea for the Athenians to assess the justice of his cause and, of necessity, a report of his conduct: 'for I wish no man to be in any way ignorant of my affairs'.⁸⁵ Naturally, it was full of flattery of Athens, starting with a carefully wrought evocation of the city's glorious past, describing Julian's profuse weeping when he was forced to leave it in 355, and concluding with an apparently heartfelt wish that Athena's city always have emperors who will love her.⁸⁶ Throat cleared, Julian starts his account of events in 337, with the dynastic slaughter which followed the death of Constantine,

⁸⁴ Zosimus 3.2.4: πάρεστι δὲ τῷ βουλομένῳ συλλαβεῖν ἅπαντα τοῖς λόγοις ἐντυγχάνοντι τοῖς αὐτοῦ καὶ ταῖς ἐπιστολαῖς, ἀφ' ὧν ἔνεστι μάλιστα τὰ κατὰ πᾶσαν αὐτῷ πεπραγμένα τὴν οἰκουμένην περιλαβεῖν.

⁸⁵ Julian, *EA*, 269d-270a; at 270b.

⁸⁶ *ibid.*, 268a-269d; 275A; 287d.

something which neatly allows him to remind the reader that he is a Flavian, a man of imperial stock (a subtle insinuation of his right to rule).⁸⁷ Constantius is fingered as the murderer of all of Julian's family – he himself would have been killed, but was saved by his youth. He goes on to twist the knife by saying that he has heard his cousin regrets what happened and blames on it both his childlessness and his failure in the Persian wars (alleged).⁸⁸ Julian then recounts his upbringing in the company of Gallus, the cruel isolation which Constantius inflicted on them, confined in a remote farm in Cappadocia.⁸⁹ In his telling, the massacre was programmatic and foreshadowed the treatment of Gallus at a later stage, when the incorrigibly jealous and suspicious Constantius stripped Julian's brother of his imperial status and then his life, something which he had plotted to do from the start.⁹⁰ He is forced to concede his brother's faults, but roots these too in Constantius' actions, the consequence of Gallus' 'upbringing in the mountains'. Julian had only escaped a similar brutalisation because the gods had kept him from it through philosophy.⁹¹ He makes heavy weather of the barbaric treatment of his brother (worse than a common criminal, for he was not even allowed to make a defence of himself), before explaining that Constantius had acted in this way to give pleasure to his eunuch chamberlain (Eusebius), and rams home the density of family connections which linked the two branches of the Flavian family: Constantius murdering in one stroke his cousin, his brother-in-law (twice over), and the father of his niece.⁹² In the aftermath, Julian himself had fallen under suspicion and had only been saved from execution by the gracious empress Eusebia – as was only right, for he had hardly associated with his brother, and barely even communicated with him.⁹³ And had Julian mentioned the wicked fashion in which Constantius had confiscated his family's property?⁹⁴

He moved on to narrate his appointment as Caesar. He had been on his way home from the vipers' nest of the imperial court, when a plague of sycophants had stirred up intrigues in Illyricum

⁸⁷ *ibid.*, 270c.

⁸⁸ *ibid.*, 270d-271a.

⁸⁹ *ibid.*, 271b-d.

⁹⁰ *ibid.*, 272b.

⁹¹ *ibid.*, 271d-272a.

⁹² *ibid.*, 272d.

⁹³ *ibid.*, 273a.

⁹⁴ *ibid.*, 273b.

and Gaul and caused Constantius to panic. He had eventually summoned Julian back to Milan, though he notes that (again because of the eunuch) they had only met twice before.⁹⁵ As intrigue swirled at court, Eusebia was once more his main protector, shielding him a little from the arrogance of the courtiers, arrogance which would later turn into suspicion and jealousy.⁹⁶ Julian already suspected that Constantius was going to plot against him, but consented to associate with the murderer of his whole family.⁹⁷ Resident in one of the suburbs of the city, he was haunted by visions and by doubts, resolving eventually and with a certain fatalism to entrust his fortune to the gods.⁹⁸ When he reluctantly agreed to be made emperor, he was treated with suspicion, his condition akin to slavery and his fear of death constant.⁹⁹ He could not even associate with old friends, for he knew any acknowledgement of their connection to him would bring disaster.¹⁰⁰ Constantius then sent him to Gaul, where again he was the victim of the emperor's inveterate suspicion: watched more closely than the barbarians. Everything was warped by fear he would revolt.¹⁰¹ His almost pathetically subordinate position was rubbed in at every opportunity, Constantius declaring that 'he was not giving the Gauls an emperor, but a man to carry his own image to them'.¹⁰² In his first winter, he was in desperate straits, powerless to assemble or direct troops. Constantius' suspicion continued to be the dominant influence over events, depriving one general of command, and causing others to treat Julian with contempt. He stuck loyally to his brief, seen and not heard unless some obvious catastrophe loomed.¹⁰³

When Julian was eventually given some responsibility, the results were dramatic – far more impressive than Constantius had expected. Gaul had previous writhed under the Alamannic jackboot – the inhabitants lived in fear, a not so subtle index of the failures of Constantius.¹⁰⁴ Julian changed all that. He recovered Cologne, smashed a barbarian army at Strasbourg, and humbly rendered the

⁹⁵ *ibid.*, 273c-274b.

⁹⁶ *ibid.*, 274b-d.

⁹⁷ *ibid.*, 274d-275a.

⁹⁸ *ibid.*, 275a-277b.

⁹⁹ *ibid.*, 277a.

¹⁰⁰ *ibid.*, 277c.

¹⁰¹ *ibid.*, 277d.

¹⁰² *ibid.*, 278a.

¹⁰³ *ibid.*, 278a-d.

¹⁰⁴ *ibid.*, 278d-279b.

glory (and his royal captive Chnodomarius) to Constantius, who had returned from a pleasant Danube jaunt in the vicinity of the Quadi and Sarmatians.¹⁰⁵ Julian dwells on the way that his spectacular victory ('perhaps news of so great a battle has reached even you', he blushes) had offered him the opportunity to boast, to parade his prisoner through all the towns of Gaul, and how he had instead modestly done his duty.¹⁰⁶ In his second and third years in charge, his success continued: more cities recovered, and a shameful treaty with the Franks abrogated, over the opposition of the prefect Florentius.¹⁰⁷ Such cowardice was characteristic of Constantius II, 'too much accustomed to pay court to the barbarians'.¹⁰⁸ Anyway, the lesson he wished the reader to take was that he had been a fantastic success in Gaul: he had thrice crossed the Rhine, recovered captives, taken prisoners from his victories, and sent to Constantius reinforcements.¹⁰⁹ Julian provided not a detailed narrative of events, but rather a set of broad lines of interpretation for others to follow and his main point was simple. Gaul had been restored, and he had acted as an exceptionally loyal subordinate:

I call Zeus and all the gods who watch over cities and protect our family as witnesses of my disposition and good faith to him, that I have been such to him as I would choose my own son to be to me.¹¹⁰

Julian had always honoured and respected his cousin, and Constantius could only make up absurd accusations against him. This showed Julian's naive good faith in serving the murderer of his family – how much more seriously the emperor took trifling matters than the slaughter of his relatives!¹¹¹ Julian had even treated his cousin with respect after being made Augustus (first reference).¹¹²

A theme, always in the background, now strides into the spotlight: the incompetence and corruption of the servants of Constantius, 'utter rascals' as Julian calls them.¹¹³ He was in a perilous position, for if anything went wrong (and it surely would) the blame would fall on him, but he

¹⁰⁵ *ibid.*, 279b-d.

¹⁰⁶ *ibid.*, at 279c.

¹⁰⁷ *ibid.*, 279d-280c.

¹⁰⁸ *ibid.*, 280b.

¹⁰⁹ *ibid.*, 280c-d.

¹¹⁰ *ibid.*, 280d: Μάρτυρα καλῶ τὸν Δία καὶ πάντας θεοὺς πολιοῦχοις τε καὶ ὁμογνίους ὑπὲρ τῆς ἐμῆς προαίρεσεως εἰς αὐτὸν καὶ πίστεως, ὅτι τοιοῦτος γέγονα περὶ αὐτόν, οἷον ἂν εἰλόμην ἐγὼ υἱὸν περὶ ἐμὲ γενέσθαι.

¹¹¹ *ibid.*, 281.a-c.

¹¹² *ibid.*, 281c.

¹¹³ *ibid.*, 281d.

actually had little control over what was done from day to day.¹¹⁴ He had one good officer, Sallust, but he was under the emperor's suspicion precisely because he was good – Julian assured Constantius that he would try to work with the others, but begged him for written guidance on what he wished him to do.¹¹⁵ In Gaul, these sycophants – Pentadius, Gaudentius, Paul 'the Chain' – swarmed around him like flies, sent by Constantius to attack him.¹¹⁶ He took away Sallust, and replaced him with one Lucillianus. At the same time, Julian fell out with the prefect Florentius, because of the latter's avarice, and the servants of Constantius conspired to turn the always suspicious emperor against Julian. He, jealous of his Caesar's success, resolved to remove most of the effective troops in Gaul.¹¹⁷ This led to crisis and Julian contemplated abdication – a subtle *recusatio*. He waited for Lupicinus (the *magister militum*) and Florentius, both absent, to return to him, but as he did, discontent spread rapidly among the troops, furious at their withdrawal and the mistreatment of Julian.¹¹⁸ Constantius' servants, ignoring the Caesar's pleas to slow down and think, sped up troop withdrawals, and dictated the route by which they would march (against Julian's advice): their winning argument was that any other course of action would only further arouse the emperor's suspicions.¹¹⁹ The soldiers arrived (the location – Paris – is not specified) and Julian greeted them, urging them to continue loyally to their destination – an anonymous letter, full of bitterness and accusations against Constantius was in circulation. He swears a terrible oath that he had no inkling of what they were planning. Before he knew it, the troops were surging round his palace, demanding to make him emperor (though he delays as long as possible saying that that was what they wanted). He battled to prevent this, but (fortified by a sign from heaven) was forced to give in, and let the soldiers put a golden collar on his head in place of a diadem: 'I was exceedingly ashamed, even overcome with shame, if I should not seem to have faithfully served Constantius to the end'.¹²⁰ The emperor's friends plotted against Julian

¹¹⁴ *ibid.*, 281c.

¹¹⁵ *ibid.*, 281d-282b.

¹¹⁶ *ibid.*, 282b-c.

¹¹⁷ *ibid.*, 282c-d.

¹¹⁸ *ibid.*, 282d-283b.

¹¹⁹ *ibid.*, 283c-284a.

¹²⁰ *ibid.*, 284b-d; at 285a.

and he had not taken the threats seriously, but had (his good faith revealed) saved them from the anger of the soldiery.¹²¹

Julian draws the letter to a close, his account less full and more allusive as we enter the difficult period of negotiation and civil war. After his elevation as Augustus, he was more than reasonable to Constantius, refusing to sign himself as anything but Caesar in letters to him. He had been the voice of moderation, beseeching the troops in Gaul to stay there, and asking only for ratification of their outburst of enthusiasm. The regiments themselves had written to Constantius urging him to peace.¹²² To no avail: his cousin had unleashed the barbarians on Gaul (Julian had seen the letters ordering their attacks), massed troops in Italy, and prepared supplies for war: ‘these are not words, but plain actions’.¹²³ Constantius was refusing to settle by treaty and, though he had promised Julian his life was safe, ‘of my honour he makes no mention at all’.¹²⁴ In any case, the faithless Constantius could not be trusted: ‘I think that, as the proverb has it, his oaths ought to be written in ashes, so trustworthy are they!’¹²⁵ ‘These persuaded me, these seemed to me just’, he says, summing up the reasons for his actions; his object was the welfare of the state and the freedom of all mankind, but especially the Gauls, whom Constantius had twice betrayed to the barbarians.¹²⁶ Julian, even now, would welcome reconciliation, though he held out little hope of it – he had no option but to pursue this course, for his alternatives were to risk everything in battle, or to be overwhelmed in Gaul.¹²⁷ ‘These thoughts,’ he finishes, ‘men of Athens, I have recounted to my soldiers and I am writing them to all Greek citizens in common.’¹²⁸

The *Letter to the Athenians* packs far more into its narrow frame (a mere 4,500 words) than one might expect – its early claim to simply be a statement of widely-known facts is misleading.¹²⁹ What are we to make of it? Since the materials for Julian’s career subject are so fantastically rich, the

¹²¹ *ibid.*, 285a-d.

¹²² *ibid.*, 285d-286a.

¹²³ *ibid.*, 286a-b.

¹²⁴ *ibid.*, 286c.

¹²⁵ *ibid.*

¹²⁶ *ibid.*, 287a.

¹²⁷ *ibid.*, 287b-c.

¹²⁸ *ibid.*, 287c.

¹²⁹ *ibid.*, 270b.

Letter has tended to lurk in the background – no one who has read Ammianus’ thrilling narrative needs Julian’s account, or so the story goes.¹³⁰ Elm, however, has brought recent and welcome attention to the *Letter*.¹³¹ She turns it into a remarkably high-minded missive, one which sets out ‘the divinely authorised legitimacy of Julian’s claims to sole rule’, low politics subordinate to lofty ideals.¹³² She sees it as part of an elite discourse about how to manage the Roman world, a discourse which can in her hands become remarkably cosy.¹³³ The *Letter* is considerably earthier than that. To understand it, it is important to remember its context, to evoke very precisely the circumstances in which it was written.¹³⁴ In 361, as winter and civil war closed in, Julian was trapped in the Balkans. His gambit, a sudden descent on the east while Constantius was occupied elsewhere, had always been bold – ‘incautiously and rashly, o emperor, you have given up yourself with a few men to another’s portion’, the captive general Lucillianus pithily explained – but, worse than a crime, it looked now like a mistake.¹³⁵ Aquileia had just declared for Constantius and threatened to cut off Julian’s lines to Gaul.¹³⁶ He had sent back a stream of forces to besiege the city, but he had few enough men to begin with and his army was stretched thin – he was well aware that the gateway to Italy had resisted numerous sieges.¹³⁷ To the east, the *comes* Marcianus was massing troops in Thrace and intended to advance on the pass of Succi, the choke-point which marked the extent of Julian’s advance.¹³⁸ His bid for supreme power appeared to be faltering, and (as we saw with Magnentius) momentum was crucial to such endeavours. Spectacular as his descent on the Balkans had been, he had yet to convince any senior officials or any large body of troops to desert to him, and we can just detect rumblings of discontent among Julian’s senior officers.¹³⁹ Spring would bring with it Constantius II, leading his undefeated army, grimly seasoned in foreign and civil war, while Shapur, on whom Julian had

¹³⁰ cf. Bowersock, 1978, 6. Humphries, 2012, offers a subtle treatment of the letter’s themes and argument, noting its (75) comparative neglect. See in general, Labriola, 1975.

¹³¹ Elm, 2012, 61 ff.

¹³² *ibid.*, 75.

¹³³ *ibid.*, 75-80.

¹³⁴ cf. Humphries, 2012, 79-81, though he underplays the desperation of Julian’s position.

¹³⁵ AM 21.9.8.

¹³⁶ AM 21.11.

¹³⁷ AM 21.12.1-2.

¹³⁸ AM 21.12.22.

¹³⁹ Below, 263.

probably been counting to keep his cousin pinned to the east, had suddenly turned timid.¹⁴⁰ All appeared ready for a brutal contest and the echoes of the previous civil war – an uncertain usurper in the Balkans, the emperor marching in winter to face him – are unmistakable. Everyone knew how that had ended, Julian included: ‘for if he (sc. Constantius) should prevail now by weight of numbers, it will not be his deed, but the result of the multitude of his soldiers’.¹⁴¹ In any case, men had found his dash to war inexplicable: the Senate at Rome wondered aloud why he had not shown greater respect for the man who had made him.¹⁴²

As he teetered on the edge of defeat, Julian fired off a series of letters: to Athens, Corinth, Sparta, to the Roman Senate and the armies in Italy, ‘setting out’ as Zosimus puts it ‘the causes of his own arrival’.¹⁴³ The letters were (quite openly) his side of the story, documents for public consumption which explained why he had plunged the Roman world into chaos and unleashed civil war. He was frantically trying to shore up his position – the result is a panicked and necessarily mendacious attempt to rewrite recent history. This, in other words, is not just civil war propaganda; it is desperate and inventive civil war propaganda. The *Letter* is an *apologia* which is subtle in the twists and turns of its narrative, but stark, even crude, in its overall argumentation. It circles around two figures, imagined as almost polar opposites: Julian, the faithful Caesar, and Constantius, the faithless Augustus. Julian sketches an awful picture of an empire suffering under a plague of sycophants, innocent men (himself not least amongst them) accused by those intent on stirring up turmoil, the history of the age the story of the paranoid style in imperial politics. In this desolation, Julian’s own career was a rare point of light – he was almost puppyish in his loyalty, saintly in his patience and in his desire to aid Constantius. In contrast, his cousin had always hated him, had always been plotting to kill him, thus the civil war was both inevitable and hardly Julian’s fault. This is not a rumination on the principles of paideic government: this is an attempt to fling as much mud as possible. It is far from clear how much of this, if anything, Julian ‘believed’: he was soon writing to friends that he had merely meant ‘to terrify <Constantius> and to lead <public> affairs into

¹⁴⁰ AM 21.13.8, 16.

¹⁴¹ Julian, *EA* 287b.

¹⁴² AM 21.10.7. Condemned by Athanassiadi, 1981, 83 as ‘glacial snobbery’.

¹⁴³ Zosimus 3.10.3-4.

equitable cooperation', that his cousin, his 'brother' 'was what he was', and that he hoped the earth would lie lightly on him.¹⁴⁴

This was certainly not a vision offered to the Athenians alone. Julian hoped to exploit the city's nature as university town, to use all those students scurrying home to disseminate his message to the wider hellenophone world.¹⁴⁵ His other epistolary broadsides seem to have been similar in style. Ammianus' description of Julian's letter to the senate – 'a harsh and abusive speech, making against him <accusations of> certain disgraceful acts and crimes' – certainly makes it sound similar to the *Letter to the Athenians*.¹⁴⁶ The fragment we have of the *Letter to the Corinthians*, with its reference to Helena as the 'wicked stepmother' (an interesting variation on the vilification of one side of the Flavian family), would also seem to have covered the same ground. Libanius (who had read it) describes its composition 'when you had unwillingly embarked on war', the main theme of the missive to the Athenians.¹⁴⁷ There are other contemporary witnesses as well.¹⁴⁸ In 362 in Constantinople, the new consul Mamertinus delivered a speech in praise of Julian – thanks for the honour done him by his new dignity.¹⁴⁹ Of course, this was not simply a statement of the imperial point of view, the orator ventriloquising the emperor (for one thing, Julian's Latin was probably not good enough).¹⁵⁰ Mamertinus, amidst the delicate work of saying nothing at some length, must have been keen to show off his learning, mark his position in Julian's government, and his favour in the emperor's eyes. He is more allusive and less direct than his master, and there are fewer specifics – no names and dates, except those from the rich store of myth and history. It is worth remembering that his was not the only speech delivered in Constantinople at the time – the emperor himself had either recently, or was just about to deliver an oration to the senate there.¹⁵¹ In any case, with the civil war over and Constantius dead, the urgent need of the winter of 361 to explain and narrate Julian's path

¹⁴⁴ Julian, *ELF* 28; he wrote the letter himself (no secretaries available). *cf.* *Or.* 8.241d for the sense of ὀμλία; *ELF* 33.

¹⁴⁵ Julian, *EA* 270b.

¹⁴⁶ *AM* 21.10.7.

¹⁴⁷ Julian, *ELF* 20.

¹⁴⁸ *cf.* Humphries, 2012, 86-7 who acknowledges parallels, but places more emphasis on difference.

¹⁴⁹ In general, Blockley, 1972a; Gutzwiller, 1942.

¹⁵⁰ *AM* 16.5.7; Thompson, 1944; *cf.* Smith, 1994, 13, n. 49, Bouffartigue, 1992, 408-411; Rochette, 2010 is more generous.

¹⁵¹ Libanius, *Or.* 12.70.

from Paris to Naissus was gone, or at least less pressing. Still, the first speech of a new regime in the dynastic city offers us an unparalleled insight into what we might think of as the talking points of Julian's government as it settled in.

Much of what we find in Mamertinus is remarkably similar to the material in the *Letter to the Athenians*. Here too, we see a Constantius who was a monster of suspicion, a man who hated in Julian precisely those things he should have loved, whose jealousy drove him to loathe his cousin, and who plotted against him.¹⁵² Julian's triumphs and virtues are sketched as briefly and emphatically as in his own words, and they are said to have inflamed Constantius against him, related to him by his wicked servants to stir his resentment.¹⁵³ Julian's dilemma is elegantly outlined: success raised suspicion, but he could hardly fail on purpose.¹⁵⁴ He was trapped by the conditions his cousin had imposed on him. Gaul, when he took it over, was said to have been in a ruinous condition, its rulers corrupt and incompetent.¹⁵⁵ Throughout his time there, he was pursued by 'the open arms and hidden plots of lethal enemies'.¹⁵⁶ The neat collocation, associating Constantius' conspiracies against Julian with the barbarians he defeated, is made more emphatically by allusion to Constantius' stirring up of the tribes against him.¹⁵⁷ Why was the emperor so wicked towards his own cousin? Well, some answer might be found in the corruption and fawning of the servants he employed, 'most degenerate men' (*perditissimi*).¹⁵⁸ He was under the influence of women (wives?) and eunuchs, whose physical nature particularly disgusted Mamertinus.¹⁵⁹ Hardly surprising, then, that his regime had neglected culture, favoured lucre instead – exactly the kind of bias that might lead it to neglect Athens, one might note.¹⁶⁰ Even small quirks of presentation are common to Mamertinus and the *Letter to the Athenians*:

Mamertinus, 6.2	EA 269d
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¹⁵² *Pan. lat.* 3.3.2-3.

¹⁵³ *ibid.*, 4.3-5.2.

¹⁵⁴ *ibid.*, 5.4.

¹⁵⁵ *ibid.*, 4.1-2.

¹⁵⁶ *ibid.*, 27.2.

¹⁵⁷ *ibid.*, 6.1.

¹⁵⁸ *ibid.*, 19.4.

¹⁵⁹ *ibid.*

¹⁶⁰ *ibid.*, 20.

... <i>calcata regum capita superuolans, in medio Illyrici sinu improuisus apparuit.</i> ...flying over the trampled heads of kings, he appeared, unlooked for, in the middle of Illyricum.	... εἴ τις ὥσπερ δι' ἀέρος ἱπτάμενος διὰ τῆς γῆς ἐβάδισεν ἀμηχάνῳ τάχει καὶ ἀτρύτῳ ῥώμῃ... (sc. The Athenians pay no attention to) whether a man, as though flying, has passed through the world with impossible swiftness and unwearied strength.
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The Danube might be thought to deserve most of the credit for the swiftness of Julian's approach, but panegyrists and polemicists knew better.

Mamertinus reveals what is hinted at elsewhere: that the story Julian spun for the Athenians in the desperate winter of 361 was not a one-off, but something like the official version of his career, the theme of orators on grand occasions. The emperor was certainly keen in general to explain and justify his actions, to make his side of the story known. As he travelled along the Danube, he read out to the towns and garrisons on his route the letters which Constantius had (allegedly) sent to the barbarians, encouraging them to rise up, and contrasted this treachery with his own efforts on the state's behalf – his object was, avowedly, to encourage defections to his side.¹⁶¹ Libanius pictured him firing off letters not just to Athens, Sparta, and Corinth, but to all the Greek cities, keener to show he was in the right than to win a victory and fitting his missives to the places to which he sent them.¹⁶² His concern to put his case did not vanish when he became sole ruler of the Roman world, and he continued to attempt to shape the historical record. Writing to Prohaeresius, the Christian sophist whom he much admired, Julian promised source material if he was planning to write a history of his 'return', as he ambiguously termed it.¹⁶³ The nervous way in which Julian tried to divine whether the sophist really was going to write history, or pursue rhetoric, might suggest a broader concern with keeping an eye on alternative versions of what had happened. Julian certainly perused accounts of his expedition into the Balkans and wrote to criticise those whom he felt had got it

¹⁶¹ Libanius, *Or.* 18.113.

¹⁶² Libanius, *Or.* 12.64.

¹⁶³ Julian, *ELF* 31. cf. McLynn, 2014, 132, Watts, 2006, 64-7 for differing views of the letter.

wrong.¹⁶⁴ Fragments, attributed to Julian, survive in the *Suda* and describe the Hercynian forest, the point from which the Danube is navigable, and which he must have seen for the first time when he began his descent into Illyricum.¹⁶⁵ They speak to the wealth of lost material which he produced to describe and justify his actions.

A Julianic inheritance?

So what? One might reasonably object: historians have never operated under the illusion that Julian was an objective witness to his own achievements, completely even-handed in his treatment of men and events.¹⁶⁶ In any case, the sources for the last pagan emperor are so rich that we do not have to rely solely on his own words: we can engage in proper *Quellenforschung*, using Ammianus, for instance, to contextualise and guarantee what Julian says and *vice versa*. Almost all approaches to Julian are predicated on the simple, indeed obvious, premise that we have lots of independent accounts of his career.¹⁶⁷ Simple, obvious, but misguided, for the massive body of material written about Julian has his fingerprints all over it.¹⁶⁸ Libanius, sole preserver of a fragment of the *Letter to the Corinthians* was obviously acquainted with Julian's civil war missives: he also knew the *Letter to the Athenians*.¹⁶⁹ His familiar friendship with Julian at Antioch, his links with men in his government, his own partiality for the emperor all guaranteed his access to such information.¹⁷⁰ He was far from a passive recipient of it, though, and when he sent Julian his first speech in his honour (*Or.* 13) he actively solicited more materials from him.¹⁷¹ His lengthy funeral oration for Julian (*Or.* 18) abounds in citations of the emperor's works, and he was clearly an eager reader of whatever flew

¹⁶⁴ Eunapius, *ES* 16. Accepting Blockley, 1981-3's emendation (*ad loc*). See Janiszewski, 2006, 116-9 for alternative proposals.

¹⁶⁵ *Suda*, X.473.

¹⁶⁶ e.g. Bowersock, 1978, 60; Athanassiadi, 1981, 85-6; Humphries, 2012, 75.

¹⁶⁷ Articulated by Bowersock, 1978, 4, 10.

¹⁶⁸ The most detailed treatment of Julian's literary afterlife, is by Célérier, 2013.

¹⁶⁹ Libanius, *Or.* 18.115.

¹⁷⁰ Libanius, *Or.* 1.119-132.

¹⁷¹ Libanius, *Ep.* 610.

from Julian's pen.¹⁷² He averred that after the emperor's death it was only by perusing these that he could find any comfort.¹⁷³ Even aside from the influence of the rhetorical artillery of his speechifying, Libanius was an important transmitter of information about Julian to others, promising to send to those who asked letters from the emperor.¹⁷⁴ Eunapius too was well acquainted with Julian's *apologiae pro adventu suo* and speaks in awed terms of how:

... he himself was impelled by the greatness of what he had done to describe his deeds; he delivered not a straightforward composition, but, unbidden, an accurate and brilliant encomium of himself, praising these same deeds in letters to many men.¹⁷⁵

He knew of an account by Julian of one of his battles, probably his victory at Strasbourg, which he regarded as so brilliant as to render his own efforts to describe the same almost superfluous.¹⁷⁶ The mere fragments of his work reveal that he had read widely in Julian's writings.¹⁷⁷ He also had access to a *memorandum* prepared for him by Oribasius, Julian's close friend and personal physician, which described the emperor and his career.¹⁷⁸ The good doctor, we might note, had accompanied Julian to Gaul and was instrumental (it was said) in 'overthrowing the tyranny of Constantius'.¹⁷⁹ In any case, as the author of a (rather unflattering) biography of Libanius, Eunapius almost certainly knew the sophist's speeches and letters.¹⁸⁰ Since he had discussed him in his history of Julian, he had probably glanced at the rich material which Libanius offered for any historian of the 350s and 360s.¹⁸¹ As went Eunapius, so goes Zosimus, who (as we have seen) knew Julian's works and praised them, with particular attention to those letters sent in the course of the civil war.¹⁸² Ammianus is, as ever, more elusive in his allusivity: one cannot rule out the possibility of autopsy, or the opportunities which Rome offered for interviews with the actors of any drama.¹⁸³ We can lay out some broad guidelines

¹⁷² Libanius, *Or.* 18.198 (the *Misopogon*), 178 (*Contra Galilaeos*), 86 (*Consolation for the departure of Sallustius*), 157 (*Against the Cynic Heracleios* and *Hymn to the Mother of the Gods*) and so on and so on. Wiemer, 1995, 162-6 for extensive parallels between the *EA* and Libanius, *Or.* 12.

¹⁷³ Libanius, *Or.* 18.303.

¹⁷⁴ Libanius, *Ep.* 1264.5.

¹⁷⁵ Eunapius, *ES* 16: εἴ τις ὥσπερ δι' ἀέρος ἱπτάμενος διὰ τῆς γῆς ἐβάδισεν ἀμηγάνῳ τάχει καὶ ἀτρυτῷ ῥώμῃ.

¹⁷⁶ Eunapius, *ES* 7.

¹⁷⁷ Eunapius, *ES* 19 (*Against the Cynic Heracleios*); 28 (Julian's letters).

¹⁷⁸ Eunapius, *ES* 5; *PLRE* 'Oribasius'.

¹⁷⁹ Julian, *EA* 277c; Eunapius, *VS* 7.35.

¹⁸⁰ Eunapius, *VS* 16.

¹⁸¹ Eunapius, *VS* 16.9.

¹⁸² Above, 176.

¹⁸³ In general on Ammianus and Julian, see now Ross, 2016. On his engagement with Julian's works, Sabbah, 1978, 293-320.

though – his account of the events of 361 places a good deal of emphasis on Julian’s apologetic letters, and he had read, or at least knew the contents of the one dispatched to the senate.¹⁸⁴ There are hints that he knew more. As he describes the thoughts and resolutions of Constantius in late 361, Ammianus puts into his mouth a long speech to the troops, explaining and justifying his actions.¹⁸⁵ This is tantalisingly close to being an inverted version of the *Letter to the Athenians*, compressed no doubt, but approaching the same topics in the same order from the opposite perspective.¹⁸⁶ Ammianus certainly knew Julian’s works well, speaking in warm, if vague, terms of his orations and letters, and he had (for instance) read Julian’s letter to the Alexandrians on the murder of George their bishop sufficiently closely to misrepresent its contents.¹⁸⁷

It is hardly surprising to find Libanius, Eunapius, Ammianus, and Zosimus reading Julian’s works, professed admirers of him as they were. Socrates and Sozomen, ecclesiastical historians and cataloguers of the martyrs Julian had made, did not share their attitude. Yet, both of them drew on the emperor’s own words for much of what they said about him. Socrates knew of his measures in favour of the Novatians and exiled bishops, perhaps evidence of reading his rescripts – he had certainly read the law on Christian teachers, for he quotes a portion of it attested nowhere else.¹⁸⁸ The third chapter of his third book is our only source for the long letter from Julian to the Alexandrians on the murder of Bishop George.¹⁸⁹ He also knew Libanius’ funeral oration for Julian, with its long and detailed account of his career, based in part on the emperor’s own words – it was his principal source for the emperor’s reign. At the close of his account of the period from 361–363, Socrates refuted (at considerable length) its claims about its subject as inconsistent with the life and character of Julian.¹⁹⁰ Sozomen had access to still greater range of Julian’s letters: to Arsacius, high priest of Galatia, to the Bostrans (a condemnation of their bishop Titus).¹⁹¹ He hints at the existence of others, one to the inhabitants of Cyzicus for instance is suggested by his detailed account of Julian’s dealing with the

¹⁸⁴ Above, 184.

¹⁸⁵ AM 21.13.10–15.

¹⁸⁶ Cf. Kelly, 2008, 255; Blockley, 1972a, 446–7.

¹⁸⁷ AM 16.5.7; 22.14.2 for the *Misopogon*; 22.11.11 for Julian, *ELF* 60.

¹⁸⁸ Socrates 2.38.23, 3.1.48, 3.12.17.

¹⁸⁹ Socrates 2.3 = *ELF* 60.

¹⁹⁰ Socrates 3.22.10–23.

¹⁹¹ Sozomen 5.16.5 ff. = *ELF* 83; 5.15.11 ff = *ELF* 114.

city.¹⁹² He also knew and made much of Libanius' eighteenth oration, concluding his chapter on Julian's death in Persia with two long quotations from it.¹⁹³ Even Julian's detractors had their eyes fixed on his words as they unfolded the tale of his life and reign.

Given all this, it should hardly come as a surprise that we find the main outlines of Julian's own, self-serving, account of his career in almost all of that rich body of material with which we started this account of him. So, most sources speak of the events of 337 as programmatic, as the fundamental point in the history of Constantius and Julian, for which the Augustus alone was solely responsible – a presage both of how he would rule and how he would treat his cousin. Libanius uses Constantius' bloody history as his introduction to Julian's time as Caesar, and, if his inspiration were not already obvious, even alludes in the same passage to the *Letter to the Athenians*' description of the emperor's tearful departure from Athens.¹⁹⁴ Socrates and Sozomen followed him.¹⁹⁵ We of course lack Ammianus' account of the great massacre, but in his obituary of Constantius he made much of it as the first step on a path which would lead the emperor to exceed the cruelty of Caligula, Domitian, and Commodus: 'at the start of his reign he utterly extinguished all connected to him by blood and descent'.¹⁹⁶ Eunapius found the story so arresting that he dealt with it twice over, pausing in his *Lives of the Sophists* to re-narrate the events which had followed Constantine's death.¹⁹⁷ In his earlier historical work, he had apologised to the reader for telling the tale of Constantius' 'plots' against Julian twice over – the 'great massacre' permeated his account of both emperors.¹⁹⁸ It is thus not surprising to find that in Zosimus the events of 337 form the prologue to the reign of Constantius.¹⁹⁹ For most who turned their minds to the long bloody summer after the death of Constantine, it foreshadowed Constantius' later treatment of Gallus, just as it had in the *Letter to the Athenians*.²⁰⁰ Gallus himself was killed extra-judicially (granted no trial), our sources carefully note, a victim of

¹⁹² Sozomen 5.14.4-10 = *ELF* 55.

¹⁹³ Sozomen 6.1.14-16, 2.1.

¹⁹⁴ Libanius, *Or.* 18.31-2, he had already alluded to that passage at 12.38. *cf.* 13.21, where the suspicious Constantius' meditates on the massacre before appointing Julian.

¹⁹⁵ Socrates 3.1.6-8; Sozomen 5.2.8-9.

¹⁹⁶ *AM* 21.16.8; *pace* Matthews, 1989, 84.

¹⁹⁷ Above, 34.

¹⁹⁸ Eunapius, *ES* 11, *cf.* *VS* 6.26, 7.5.

¹⁹⁹ Zosimus 2.40.

²⁰⁰ Zosimus II.55.3; Libanius, *Or.* 18.31.

Constantius' suspicions and plotting at court – exactly as Julian sketched the scene.²⁰¹ Eusebius, the eunuch chamberlain, was the prime mover behind this tragedy.²⁰² In the aftermath of that, Julian fell under the emperor's suspicion and there was a real risk he would suffer the same fate – Eusebia had saved him and allowed him a brief period of happiness at Athens.²⁰³ When he was called back from there, he was made Caesar, primarily at her suggestion and by her influence – Constantius was always suspicious of him.²⁰⁴

After his appointment, Julian found his way to Gaul, a region utterly devastated by the incursions of barbarians – barbarians whom (as Julian had hinted) Constantius had encouraged to invade.²⁰⁵ Libanius waxed especially lyrical on Gaul's ruin: its cities existed only in name, so Julian seemed in his arrival more like a pioneer colonising a wasteland which the barbarian flood had swept over, than an emperor.²⁰⁶ It was hoped, some said, that this appointment would be the end of Julian, just as his own narrative implied he had been sent to Gaul with inadequate resources and hinted that his cousin wished for his death. In any case, the weight of business which pressed on the empire demanded the appointment of a second emperor. The two ideas, of the scale of the task Julian faced and the chance it would end in disaster, are often linked.²⁰⁷ Yet despite the ruinous condition of Gaul and the pressing threat of the barbarians, Julian was (at first at least) granted no authority to do anything, and was made subordinate to lazy and incompetent commanders.²⁰⁸ Things improved (just as Julian had said) when the indolent general Marcellus was sacked.²⁰⁹ The transformation was dramatic, culminating in that battle near Strasbourg of which Julian made such falsely modest

²⁰¹ e.g. Libanius, *Or.* 13.25, 12.35, 18.24 (alluding, as Julian does, *EA* 272c) to treasonous letters which Gallus had found. *AM* 14.11.1-23 *passim*. Zosimus II.55.1-2.

²⁰² Libanius, *Or.* 18.152, *cf.* Zosimus II.55.2.

²⁰³ *AM* 15.2.7-8; Libanius, *Or.* 18.25-7; Socrates 3.1.23-4; Sozomen 5.2.19.

²⁰⁴ *AM* 15.8.3; Zosimus 3.1.2-3; Libanius, *Or.* 12.21.

²⁰⁵ Libanius, *Or.* 13.24, 12.48; Eunapius, *ES* 6; *AM* 15.8.1. Libanius, *Or.* 18.33-5, *cf.* Socrates 3.1.26; Sozomen 5.9.20.

²⁰⁶ Libanius, *Or.* 13.23-4.

²⁰⁷ Libanius, *Or.* 18.36-37 (*cf.* Socrates 3.1.30 Sozomen 5.2.22), *cf.* 12.40 (weight of business) 42-3 (desire to sabotage Julian); Eunapius, *VS* 7.34; Zosimus 3.1.1, 3. *AM* 15.8.1 (weight of affairs) 16.11.13 (current rumour that he had been sent to Gaul to die).

²⁰⁸ Libanius, *Or.* 18.42 (*cf.* Socrates 3.1.27; Sozomen 5.2.21); Eunapius must have said something similar (*Suda*, E.1771 may be a fragment of him; so Blockley, 1981-3, fr. 16.2) for the idea is in Zosimus 3.2.2; *AM* 25.4.25 *specie Caesaris missus*.

²⁰⁹ Libanius, *Or.* 18.48 (Socrates 3.1.32; Sozomen 5.2.21-2); *AM* 16.7.1.

mention, and which later sources put at the centre of their accounts.²¹⁰ Ammianus and Libanius are our most detailed narratives of that campaign, and are remarkably close on certain key points. They agree that an initial plan, to combine two armies against the barbarians, was thwarted by the cowardice of Barbatio, Constantius' general.²¹¹ They both note that Julian, confronted by the enemy, bravely refused to engage at once.²¹² They both dwell on how afterwards, with becoming modesty, he dispatched Chnodomarius, a royal captive, to Constantius – it was his duty to win triumphs, not to claim the credit for them.²¹³

Just as in Julian's own narrative, it is after his famous victory that our sources turn their attention to the corruption and incompetence of the generals and administrators around him in Gaul. Of this, the praetorian prefect Florentius was the prime example – venal (a man 'who knew how to steal'), manipulative, and without any redeeming features.²¹⁴ In the aftermath of a particularly vicious row, Julian was deprived of the advice of Salutius, his only able and benign official (a friend too). Constantius, suspicious and manipulable as ever, removed him either to appease Florentius or as a simple act of sabotage.²¹⁵ That was entirely characteristic: for all his time in Gaul, Julian was under the malign gaze of his cousin, whose natural enmity was whipped up by wicked counsellors. Ammianus' description of the sycophantic atmosphere of the court, of flatterers praising Constantius for victories he had not won and ringing in his ears the bells of suspicious gossip, is justly famous, but the vision is not his alone.²¹⁶ Eunapius pithily expressed the theme:

For the Roman Marius called his rival Sulla a wild beast twice-over: a fox and a lion. He used to say that he feared the fox more. No lion was near Constantius, but there were many foxes who circled around him, making the Caesar uneasy.²¹⁷

Prominent in this mischief were wives and eunuchs, under whose thumb Constantius writhed.²¹⁸ This plotting reached its climax in Constantius' decision to recall troops from Gaul, on flimsy pretexts – a

²¹⁰ Libanius, *Or.* 18.49-62 (*cf.* 12.46); Zosimus 3.3.3; AM 16.12.

²¹¹ Libanius, *Or.* 18.50-51; AM 16.11.3, 14.

²¹² Libanius, *Or.* 18.55; AM 16.12.9-12.

²¹³ Libanius, *Or.* 18.66; AM 16.12.66, 70 (for Constantius taking the credit).

²¹⁴ Libanius, *Or.* 18.84-5, at 18.84; AM 17.3.

²¹⁵ Libanius, *Or.* 18.85; Zosimus 3.5.3.

²¹⁶ AM 16.12.67-70, 17.11.1-4.

²¹⁷ Eunapius, *ES* 12: 'Ο μὲν γὰρ Ῥωμαῖος Μάριος τὸν ἀντίπαλον Σύλλαν διπλοῦν θηρίον ἀποκαλῶν, ἀλώπεκα καὶ λέοντα, μᾶλλον ἔφρασκε φοβεῖσθαι τὴν ἀλώπεκα· Κωνσταντίῳ δὲ λέων μὲν οὐδεὶς παρῆν πολλὰ δὲ ἀλώπεκες κύκλῳ περιτρέχουσαι διεθορύβουν τὸν Καίσαρα.

decision reached out of envious rage at Julian's achievements, rage which (in Ammianus' vivid words) burned him.²¹⁹

Loyally knuckling under, the Caesar did his best to keep the delicate situation under control, though he lacked the advice of his prefect and *magister militum*.²²⁰ He was in an impossible position, forced to choose between two equally unpalatable options: destruction by the enemy if he agreed to the withdrawal, death at Constantius' hands if he did not.²²¹ Always keen to follow his cousin's instructions, 'he kept silent and had submitted' in Ammianus' collocation.²²² He did counsel against the route proposed for the removal of the troops, but his advice was ignored.²²³ That road led, of course, to Paris and it was there, as a result of the blundering insensitivity of Constantius' men and much against Julian's will, that the Caesar became Augustus – his reluctance and diffidence is lovingly narrated – as he was forced to choose the lesser of two evils.²²⁴ Beforehand, that anonymous letter full of recriminations against Constantius had been seen.²²⁵ Julian had done everything to prevent this, even meeting the troops as they arrived and trying to encourage them to cheerfulness – both Ammianus and Libanius are suspiciously keen to make clear that this was a customary action, just as he had.²²⁶ After his proclamation, Julian was plotted against (as he himself had claimed) by the servants of Constantius, to whom he was remarkably merciful.²²⁷ The reluctant emperor was given comfort by heavenly visions which suggested that he was right to do as the troops demanded.²²⁸

He was in an impossible situation, for he could hardly stuff the imperial genie back into the lamp. Even if it had been possible for him to renounce his new status, that offered little hope of

²¹⁸ AM 21.16.16.

²¹⁹ Libanius, *Or.* 18.90-91, 12.58; Eunapius, *ES* 13; Zosimus 3.8.3; AM 20.4.1-2, *cf.* Libanius, *Or.* 12.57.

²²⁰ AM 20.4.9.

²²¹ Libanius, *Or.* 18.94; AM 20.4.6.

²²² AM 20.4.4.

²²³ Libanius, *Or.* 18.96; AM 20.4.11.

²²⁴ Libanius, *Or.* 18.97-9, 12.61; AM 20.4.9-14; Zosimus 3.9.1-2.

²²⁵ AM 20.4.10 claims to quote its words.

²²⁶ AM 20.4.12; Libanius, *Or.* 18.97.

²²⁷ Libanius, *Or.* 18.100-102; AM 20.4.19-22.

²²⁸ Libanius, *Or.* 12.59; AM 20.5.10.

safety, for Constantius' oaths were worthless.²²⁹ Still he did his loyal best. Negotiations followed, but Constantius was impossible to deal with, willing only to compass solutions which involved Julian's destruction and the ruin of his friends and associates.²³⁰ Julian had dreaded what would happen when the implacable Constantius, always hostile to him, heard the news: he was confident that he would never accept his elevation, but determined to be reasonable throughout the tense exchange of embassies.²³¹ His cousin was so angry when he received Julian's letters that the latter's ambassadors feared for their lives.²³² He called in the barbarians against Gaul, unleashing them on fellow-Romans.²³³ Julian was tortured by doubts about what to do, balancing in his mind whether to continue to negotiate or go to war, aware that Constantius was both a frequent victor in civil strife and a blood-stained friend, the murderer of Gallus.²³⁴ As long as there was any hope of peace, Julian strove mightily to avoid conflict, but when it became clear that Italy was being readied for civil strife, barbarians unleashed against Gaul, and that Constantius meant to destroy him, he was forced to fight.²³⁵ By the time he was in Illyricum, he believed that Constantius could never be brought to treat for peace.²³⁶ He waited for his cousin, who was intent on acting the part of Creon to him, and sought comfort in the entrails of animals and the flight of birds as presages of the uncertain future.²³⁷ It certainly does not sound as though he was sure he was going to win.

The degree of overlap between later accounts of Julian's career to 361 and what he himself had claimed in the course of civil war is astonishing. Remarkably specific details crop up in both the *Letter to the Athenians* and later sources, details which it is hard to see as anything other than indicative of the influence of Julian's writings. In setting the scene for his own appointment, Julian swiftly delineates two outbreaks of imperial suspicion, stirred by sycophants.²³⁸ One was the Silvanus affair, but the second case he mentions is more obscure, more interesting for present purposes. Julian

²²⁹ Zosimus 3.9.3.

²³⁰ Libanius, *Or.* 18.106; Zosimus 3.9.4.

²³¹ AM 20.8.2-4.

²³² AM 20.9.2. *cf.* Zosimus 2.9.4.

²³³ Libanius, *Or.* 18.107 (Sozomen 5.2.23; *cf.* Socrates 3.1.38). AM 21.3.4 primly notes that this was only rumoured.

²³⁴ AM 21.1.2.

²³⁵ Libanius, *Or.* 12.62.

²³⁶ AM 21.10.7.

²³⁷ Libanius, *Or.* 18.120 (Creon); AM 22.1.

²³⁸ Julian, *EA* 273c-d.

speaks of an affair near Sirmium, featuring men named Africanus, Marinus, and Felix. He leaves the details vague, but it involved a false accusation that they were contemplating revolution, and he implies that it was a well-known tale. Not coincidentally, one suspects, when Ammianus was seeking to illustrate the unchained and bloodthirsty suspicions of Constantius after the death of Gallus, when informers ‘harassed the limbs of the whole commonwealth through chance evils’, he discusses precisely this case.²³⁹ It is the only concrete instance of his theme. Involving, as it did, clear treasonable talk and concluding ambiguously (the text is lacunose, the outcome uncertain), it is a less clear-cut instance of paranoia and vindictiveness than he or Julian implies.²⁴⁰ Ammianus has not simply copied what Julian said: for one thing, his account is much more detailed. What he has done, however, is mimic the placement and the presentation of the tale which Julian had offered, and drawn from it the same lessons. That is revealing. In a similar way, incidental details from the *Letter to the Athenians* surface throughout the tradition, allowing us to trace the influence of Julian’s writings. Both Ammianus and Libanius are curiously keen to relate that Julian was first crowned with a soldier’s necklace, or collar, just as he had emphasised (the lack of a diadem acquitting him of preparation, one imagines).²⁴¹ The *Letter to the Athenians* speaks of 45 cities in Gaul whose walls had been dismantled – Libanius reproduces the number.²⁴² Julian speaks of how he was sent to Gaul with only 360 soldiers (there was an army already there), and sure enough Zosimus reproduces that exact figure.²⁴³ Given the famous mutability of numbers in transmission, such coincidences are striking. His lost communications have left an impress too. Zosimus describes those 360 soldiers as men who ‘knew only how to pray’, and says he is quoting the emperor’s own words.²⁴⁴ Libanius describes how Constantius gradually stripped Julian of his soldiers, until he left him men ‘only able to pray’.²⁴⁵

²³⁹ AM 15.3.3.

²⁴⁰ AM 15.3.7-11; 16.8.3.

²⁴¹ AM 20.4.18; Libanius, *Or.* 18.99.

²⁴² Julian, *EA* 279a; Libanius, *Or.* 12.48.

²⁴³ Julian, *EA* 277d; Zosimus 3.3.2. Cf. Libanius, *Or.* 12.44, 18.37.

²⁴⁴ Zosimus 3.3.2.

²⁴⁵ Libanius, *Or.* 18.94. As suggested by Bidez and Cumont, *ELF* 25a.

A Way Forward?

In 361, Julian made his case to the citizens of Athens, provided map of the difficult and controverted territory that was the history of the Roman Empire from 337 onwards. For nearly a century thereafter, everyone who covered the same ground followed the route he had marked out. One cannot claim, unfortunately, that ‘his works did not infect the tradition which grew up around him’.²⁴⁶ Julian said that the massacre of 337 was a single explosion of violence, for which Constantius was responsible (alone) and which explained their dealings thereafter – posterity believed him. He said that his cousin was a monster of suspicion, and later sources are full of windy rhetoric about his paranoia. He said that Gallus was a not-quite-innocent victim of that paranoia, and we are frequently told of the miseries he suffered at the hands of Constantius. Julian said he was made Caesar largely thanks to the kindness of Eusebia, and her good offices are dutifully reported in later accounts. He hinted he was expected to die, and much is made of how Constantius hoped he would hewn down by some Alamannic axe. He said he had triumphed in Gaul: panegyrics of his victories fill the pages of Ammianus and Libanius. He said he had not wanted to be made Augustus, had tried to negotiate, and had not wished for civil war, and accounts of 360 to 361 go out of their way to exculpate him. With an almost grim determination, our sources reproduce not only some of the specific facts which Julian adduced in support of his cause, but the framing he provided for understanding them – everywhere we look, his ideas prevail. It is particularly striking that while the vision he had offered was not uniformly adopted, does not appear in all its glory everywhere, there was no alternative to it. Faced by Julian’s claim (mediated through Libanius) that Constantius had sent him to Gaul to die, Socrates and Sozomen could only resort to flat contradiction – that (they said) was hardly plausible (and they were right).²⁴⁷

²⁴⁶ Bowersock, 1978, 4.

²⁴⁷ Socrates 3.1.30; Sozomen 5.2.22.

Julian's account was avowedly partisan, a statement of his motives and actions issued in the course of civil war – it is transparently shaped to suggest certain conclusions. He did his best to disseminate it, but not even he can have expected quite the success he enjoyed. The overlap of later accounts with the *Letter to the Athenians* (only one, we might note, of dozens of similar missives) is quite astonishing and yet largely uncommented on. It is possible that the obvious fact, acknowledged by all of them, that Ammianus, Libanius, and Eunapius favoured Julian has obscured the precise journey on which their favour took them or that interest in style and allusion has occasionally overtaken the history of ideas. What close investigation reveals is that all detailed accounts of Julian's rise derive their intellectual architecture from his civil-war manifestoes. They frame the history of the period around that polarity he had originated: Constantius a suspicious monster, Julian a put-upon but loyal subordinate. That opposition was vital, because it allowed one to tell a story in which Constantius was the unfailing villain and Julian the plucky hero. What close inspection of that massive body of source material with which we started reveals is that Julian's ideas permeate it, that claims he had made to justify his bid for supreme power are sedulously repeated through it, that, in other words, our source material, for all its bulk, is Julian's version of history. This is rather worse than a case of simple partiality. A proper account of Julian needs to acknowledge that. It is not a matter of simple disbelief in what Julian says, or what later accounts took from him, but of acknowledging the ends he had in mind when he wrote, of asking how this or that idea or anecdote furthered them. It means treating Julian for what he was – a ruthless politician who climbed to supreme power through usurpation and civil war, and lied about doing so, because a softer light made his actions more understandable. A proper account of Julian demands that we probe his actions and motivations with the same sceptical eye that disbelieves Constantine when he rants, or Constantius when he dissembles, that we not treat their relative as different because he was cultured, or because we think we know him. A proper account of Julian needs to be truly critical.

IV

A NEW CAESAR

Back to Milan. Julian was swiftly married to the last surviving sister of Constantius, Helena, a woman probably a decade his senior.¹ After these hasty nuptials, he and the Augustus set out together from Milan, heading south, through Pavia, and on to the road which led west out of Italy.² Somewhere on the way to Turin, at a spot marked by two columns, Constantius turned back.³ Julian, and his famously meagre escort, went on, crossing the Alps in the dead of winter.⁴ He arrived at 'Vienne, rich with Alpine farmers' to an ecstatic welcome, a moment which became a fecund source of later myth-making, when either a blind woman prophesied he would restore the temples, or a rustic crown conveniently landed on his head.⁵ It was not very far to have gone into Gaul – even Constantius in 353 had made it to Lyon – but Julian paused in its comfortable surroundings, far from the din of battle or the intrigue of court.⁶ Vienne was an old Christian city, a congregation there already in the second century and a bishop sent to the council of Arles in 314 – Julian and his wife probably celebrated Christmas there.⁷ There were other, less pleasant, aspects to imperial Christianity, of course, and Julian was caught at the time in the fallout from Constantius' push for ecclesiastical uniformity in the west, as the conference at Milan had conspicuously failed to bring the consensus for which he had hoped. After a council at Béziers in spring 356, Hilary of Poitiers, a Gallic bishop who abhorred the theological views of prelates influential at court, was exiled and there was violence at Toulouse, as its bishop Rhodanius was driven away, leaving a trail of beaten priests and flogged deacons.⁸ Julian was, in some way, asked to superintend Hilary's exile, and the bishop claims in an address to Constantius that 'your most religious Caesar Julian ... has endured from

¹ AM 15.8.18; Barnes, 1982, 43.

² AM 15.8.18; BA 39.

³ AM 15.8.18.

⁴ Libanius, *Or.* 18.40.

⁵ AM 15.8.21; Libanius 18.41 *cf.* Socrates 3.1.29. Ausonius, *Ordo urbium* 75.

⁶ Julian did not leave until a little before the 24th of June 356, when he arrived at Autun (AM 16.2.2).

⁷ Eusebius, *HE* 5.1.3; Arles (314), *Subscriptiones*.

⁸ Hilary, *In Constantium* 2; Barnes, 1993, 141; in general, *idem*, 1991, 129-40. Hilary, *In Constantium* 11; Barnes, 1991, 134.

wicked men more insult in my exile, than I have suffered injury'.⁹ Whatever Hilary meant by this (and it is far from obvious), Julian was clearly at once sucked into the messy business of ecclesiastical politics – there is some irony in the last pagan emperor spending his first months wrestling with clerics.¹⁰ Not that that paused other imperial duties: on the calends of January 356, Julian assumed his first consulship, amidst (no doubt) fanfare and speeches, and then, as spring turned to summer, set out up the Rhône towards Autun.¹¹ He would return half a decade later, to attend his last church service (Epiphany), seek hopeful omens, and prepare for civil war.¹² Vienne thus neatly bookended the five years which Julian spent in Gaul, the years which made his reputation, and ultimately propelled him to supreme power.

Mission?

Why was he there? Julian's very appointment almost seems absurd, an impossible twist introduced into his tale by some narrator who has lost control of the story. His father had died in the turmoil of 337 and his brother had recently been executed for bringing chaos and terror to the east, so (as courtiers had argued at Milan) precedent was against him.¹³ Constantius, whose style of government tended to the ruminative rather than the hasty, might have been expected to avoid so swiftly repeating the experiment of having a Caesar. Even if he were minded to share the burden of empire, Julian had little to recommend him. He had no experience of anything except rhetoric and philosophy and, much as contemporaries like Aurelius Victor still cherished the ideal of a philosopher king, these were not obvious qualifications for rule.¹⁴ Libanius' account of Julian's life before his appointment makes him sound rather like the indolent but scholarly younger son of some nineteenth-century titan of industry, as he is shipped around the schools and universities of the Greek

⁹ Hilary, *Liber ad Constantium* II 2.

¹⁰ *pace* Barnes, 1993, 153, 227 (*cf.* Smulders, 1994, 131; Beckwith, 2005, 34-5), there is no reason to think from this that Julian actually attended the council of Béziers, especially if Barnes, 1991, 135 is right about its date.

¹¹ AM 16.1.1.

¹² On his presence there in 360/1, below, 255.

¹³ Above, 165-6.

¹⁴ AV 15.3, read *sapientis*.

world, studiously avoiding the traditional Flavian destiny and pursuing ever higher education.¹⁵

When his second panegyric of Constantius arrived at court, with an elaborate *captatio benevolentiae* partway through, wherein Julian called himself ‘a laughable and ignorant sophist’, it is hard not to imagine a little snickering in the *consistorium*.¹⁶ Contemporaries of his at Athens claimed (at least in retrospect) to have known that their shambling, shuffling, stuttering, comically-fidgety fellow-student was a wrong’un.¹⁷ His travels put him in contact with occult circles and by the time he came to Milan in 355 he was nursing the awful secret that he had abandoned his ancestral Christianity. At least one servant knew and courts have never been noted for their ability to keep confidences.¹⁸ On any reckoning, Julian was an unlikely emperor. He, and those who followed his account, knew this, knew also that Constantius’ appointment of him was a stumbling block in any attempt to paint that emperor as inveterately suspicious of his cousin. In 361 the elevation of Julian made Constantius look unwise, but not unkind or hostile to Julian – his benefactor rather than his nemesis. To explain it, a set of stories which overlapped and interacted are introduced by our sources. Zosimus, with splendid verve, heaps up these explanations, making Constantius, depressed by the ruinous state of the empire, appoint Julian at Eusebia’s urging: either he would do well and the credit would belong to Constantius or he would be killed.¹⁹ Others were more selective, but the same tangled mass of explanations keeps intruding and has dominated the historiography.²⁰ Little of it deserves any credence.

Julian was not appointed as part of an elaborate and convoluted plot to do away with him – Socrates had it right when he bluntly declared ‘but I do not know if those who say such a thing speak the truth’.²¹ Had he wanted to kill his cousin, Constantius, never noticeably backwards in stabbing forwards, would surely have just done that: a few loyal men, a quiet island, and a veil of silence. He hardly lacked ruthlessness or determination when it came to dealing with threats. What he would not

¹⁵ Libanius, *Or.* 18.11-30.

¹⁶ Julian, *Or.* 2.79c.

¹⁷ GN 5.23.

¹⁸ Julian, *EA* 277b. Smith, 1994, 180-189 for a sensitive discussion of Julian’s conversion.

¹⁹ Zosimus 3.1.1-3.

²⁰ e.g. Bowersock, 1978, 31, 33; Athanassiadi, 1981, 52-3; Smith, 1994, 3; Matthews, 1989, 18-19, 87; Drinkwater, 2007, 20.

²¹ Socrates 3.1.31.

have done is summon Julian to Milan, keep him in attendance on the court for some time, proclaim him Caesar, marry him to his sister, send him to Gaul, and then leave him there for five years, waiting for something. Such would be a plot worthy of a Bond villain in its rococo inefficiency.²² The idea is transparently in the service of Julian's agenda in 361: designed to prove that he had had no choice but to go to war against a man who had always plotted against him. Similarly, saying Eusebia was behind Julian's elevation shifted the credit away from the emperor and suggested that he was weak, perhaps too biddable when it came to his wife – all points germane to the theme of the *Letter to the Athenians*. It is certainly not implausible that Eusebia was involved in the discussions which led up to the Caesar's appointment, or that she was interested in and concerned for his welfare when he was at Milan. She, a girl when the crisis of 337 had occurred, was a more obvious avenue of approach to Julian than her husband, who had only met him twice anyway.²³ Constantius' regime was not shy about advertising the empress' virtues or her role in the governance of empire: the diocese of Pontica was renamed Pietas in her honour (a charming touch) and Julian delivered a panegyric rich in her praises, especially her influence on her husband.²⁴ In that speech, he offered his own experience as an illustration of her beneficent influence and credited her both with smoothing his relationship with Constantius in the aftermath of Gallus' fall and with soothing his worries about becoming a Caesar.²⁵ All of which is to say that Eusebia's influence was part of the story of what had happened at Milan in 355 – it is just unlikely to be the whole. She generally worked in concert with her husband. When, for instance, Liberius was condemned to exile, Constantius had attempted to provide money for his expenses, but the pope spurned the offer. At once, the empress offered the same sum.²⁶ She was using her status – imperial without being the emperor – to pursue the course her husband had set. Her role in Julian's appointment may well have been similar: adjunct, not advocate.²⁷

²² cf. H. Drake, 2012, 39.

²³ Above, 178.

²⁴ AM 17.7.6; Julian, *Or.* 3.115a *e.g.*

²⁵ Julian, *Or.* 3.118a-b, 123a-c.

²⁶ Theodoret, *HE* 2.16.27.

²⁷ cf. (penetratingly) Tougher, 1998.

The idea that Gaul's devastation drove Constantius to send Julian there, seems more plausible.²⁸ It obviously served Julian's agenda in 361, for the more disastrous the situation in 355, the greater his achievement looked – the worse, the better. In the background lurked the idea that all this was Constantius' fault, for calling on the aid of the barbarians. Still, the crisis was not conjured out of thin air as Julian scribbled his missive to the Athenians. There had been serious trouble on the Rhine in the course of the civil war of 350-353: Trier had revolted, Decentius had been defeated by the Alamanni, and Magnentius had probably stripped the frontier of troops, either for the war in the Balkans or as he desperately tried to resist Constantius in Italy and southern Gaul.²⁹ Silvanus had only recently been suppressed and Cologne, the city which had witnessed his proclamation, had been sacked by barbarians after a long siege. It is tempting to imagine Gaul in chaos, Constantius overwhelmed by affairs elsewhere, and Julian sent to fight fires which the Augustus did not have time to douse. How bad was the situation? In the *Letter to the Athenians*, Julian claims that there were barbarians along the whole course of the Rhine (up to 300 *stadia* from the river), settled near the places they had sacked, that the walls of 45 cities had been destroyed, and that raids sometimes penetrated 900 *stadia* beyond the Rhine, leaving an abandoned wasteland behind them, empty towns and charred fields.³⁰ He swiftly sketches for his readers an impression of devastation and lawlessness, of an entire region as bandit-country, and then says 'when I took over Gaul, it was in this condition'.³¹ Contemporaries followed him and tend to the apocalyptic in their descriptions of the region's ruin.³²

It is worth, however, being a little sceptical about precisely how desperate the situation was. Julian's account sounds very bad indeed, but 300 *stadia* are only 35 miles: not enough to get from the Rhine to Trier, and even the hundred or so miles which he claims were devastated are a thin band of terror set against the vasty fields of France. Julian artfully describes disaster on the fringes of Germany and then insinuates that all Gaul can be collapsed into a few miles on the banks of the

²⁸ e.g. Athanassiadi, 1981, 54 'a devastated land'.

²⁹ Above, 138.

³⁰ Julian, EA 278d=279b.

³¹ *ibid.*

³² Above, 191.

Rhine. Within that strip of devastation, there were certainly problems, but they should not be exaggerated. Julian has padded the number of sacked cities: the *Notitia Galliarum* recognised only fourteen such settlements in the region and his reckoning must have included some rather small places to reach his figure – the reason perhaps why he recovered only 1,000 captives from over the Rhine.³³ Ammianus, who was in the region at the time and had little inclination to play down the difficulties which his hero had overcome, suggests that only seven towns were in the hands of the barbarians – most importantly, Trier, the great linch-pin of the Rhine *limites*, had never fallen.³⁴ The historian's description of his journey to the court of Silvanus does not reveal a Rhineland which had become a hostile region and the greatest threat he and his companions faced was the considerable force the usurper had assembled.³⁵ On that mission, Ursicinus had with him only ten *protectores* and a few tribunes, while Apodemius, who had been sent to Cologne before him, seems to have travelled alone.³⁶ It is hard to believe that these tiny bands of very senior people were sent (on missions of the utmost importance) into what was effectively enemy territory. It was one thing to send a *protector* like Ammianus across the border into a Satrapy to watch Persian movements, quite another to risk a senior commander, his general staff, and some regimental officers in a place Julian would have us believe was a wasteland.³⁷ Ursicinus might have failed to keep things under control in late 355, when Cologne fell, but up to then the situation on the middle Rhine appears to have been reasonably stable. There are even hints that the Romans had maintained a presence on the far bank of the river.³⁸ It is true that in a few cases there is archaeological evidence for devastation which seems to be dated to the 350s, but in general that decade does not mark a sharp moment of transition in rural settlement in northern Gaul and there are clear signs of continued prosperity.³⁹ It would be wrong to paint the Alamanni, the main foe on the Rhine, as merely peaceful farmers, victims of Roman aggression – they were capable of raising serious forces and fighting pitched battles, of overwhelming a Roman

³³ In the provinces of *Belgica prima*, *Germania prima*, *Germania secunda*, and *Maxima sequanorum* (*Notitia Galliarum*; Julian, *EA* 280c).

³⁴ *AM* 16.2.12.

³⁵ *AM* 15.5.24-6.

³⁶ *AM* 15.5.8, 22.

³⁷ *AM* 18.6.20-23.

³⁸ *e.g.* *AM* 17.1.11.

³⁹ van Ossel, Ouzoulias, 2000.

brigade (for instance) which had rashly ventured onto their side of the Rhine.⁴⁰ Still, we should not exaggerate the damage that relatively small groups, drawn from an agrarian society that could hardly afford for many of its men to be away for very long, could do. Comparative evidence suggests that raiding was rather harder work than is sometimes imagined and that it was considerably more difficult to destroy crops and put villages to the torch, let alone catch their inhabitants, than we might expect.⁴¹ Occupation by groups who had moved over the river onto the Roman side was a more serious matter, but it is hard to believe that any vast immigration had taken place in the course of a few short years.

If the situation on the Rhine was not perhaps so disastrous as some suggested at the time, it is also worth pointing out that the relentless focus of our sources on Julian and Gaul and Julian in Gaul has obscured some important points. Rather than being unable to turn and face the problems of the region, Constantius had made them his main priority. He campaigned on the Upper Rhine in 354, 355, and 356.⁴² He sent senior generals with considerable forces to restore the frontier further north.⁴³ At the time, if any devastated region was suffering from a want of imperial attention, it was not Gaul but Illyricum. The 340s had not been quiet there: Constans had spent much of the decade in the region (an emperor's presence on the frontier was rarely a sign of stability) and there are hints in Constantius II's dealings with Vetrano of trouble on the Danube.⁴⁴ The region had then seen not only the regular disruptions and indignities which civil war brought in its wake, but two enormous armies, brawling back and forth across huge swathes of territory for the best part of a year.⁴⁵ While Ammianus occasionally raises his gaze from Gaul to cast a jaundiced eye over the eastern border, we are almost totally ignorant of what was happening on that long frontier from Raetia to the Black Sea in the 350s, but it is worth keeping in mind that Gaul was far from the only problem the imperial government confronted in the mid-350s and certainly not the worst. There was a reason Julian could

⁴⁰ AM 21.3.2-3.

⁴¹ Hanson, 1998. Gordon, 1953, drawing on the author's experience destroying villages in Waziristan, is a useful corrective to overly optimistic views of what even heavily armed raiders could achieve.

⁴² Above, 146, 148, 162-3; AM 16.12.15-16.

⁴³ Above, 148.

⁴⁴ Above, 122.

⁴⁵ Above, 132-6.

afford to spend his first six months in the region hearing the complaints of bishops and trying and failing to sort out their disputes.

The idea that Julian was dispatched to Gaul to salvage a desperate situation has always existed in creative tension with another: that he was a dynastic figurehead for a far frontier, sent to carry round the image of Constantius in a region crying out for an emperor. ‘Creative tension’, because the ideas are more incompatible than is sometimes assumed. If Gaul really had been on the brink of catastrophe, then it is far from obvious how Julian could have helped: figureheads do not (after all) support a great weight and students of philosophy are not generally noted for their bellicose inclinations. Still, the idea has attracted considerable support – a neat explanation of the awkward fact of Julian’s appointment.⁴⁶ It contains within itself two rather different propositions: that Constantius wished to restore Gaul, but could stomach no mere general winning the prestige of its restoration, and that the west was crying out for its own emperor, the state was too cumbersome for one man to govern it alone. Neither has much to recommend it. Much as Ammianus might complain that the Augustus took credit for his Caesar’s victories and much as Julian might try to imply that Constantius had little to be proud of in his military record, it is hard to believe he was really worried about someone else killing a few Alamanni. He was the victor, in person, of the titanic clashes of the civil war: when it came to military prestige in 355, there were none who rivalled Constantius. He was also quite prepared to entrust major military responsibilities to his generals. He had sent Silvanus and then Ursicinus to Gaul to manage the frontier, and if there were any generals of whom he might have been suspicious, then they, servants of Magnentius and Gallus, were surely top of the list. In any case, it is far from clear why (if he was concerned about glory-hungry generals) the solution was to appoint a Caesar. An emperor, even a junior one, was a figure to whom glory would readily flow and about whose future prospects men were more, not less, likely to speculate.

What about Julian as a sort of purpled scarecrow for the western provinces, put there to fool the Gauls into thinking they had a real emperor?⁴⁷ It seems almost intuitive to suppose that absence

⁴⁶ *e.g.* Smith, 1994, 3 ‘imperial figurehead’; Barnes, 1998, 151 ‘figurehead’.

⁴⁷ Bowersock, 1978, 34, 46 was rightly sceptical.

of an emperor caused resentment and that resentment fomented coups, but it is worth testing such easy assumptions. There is no evidence that desire for an emperor near-at-hand lay behind the proclamation of either Magnentius or Silvanus as emperor, and both of them got out of Gaul (or planned to) as soon as they could. Readings of their revolts as symptoms of systematic discontent with Flavian rule have perhaps encouraged the idea that there was some problem to which the appointment of an emperor was a solution, but both usurpations had local and contingent origins, and do not reveal some long-standing Gallic itch that only a Caesar could scratch. It was a simple reality of late Roman life that most regions never saw an emperor, or only very rarely glimpsed one. Most of the time, most places put up with this, and there does not seem to be any correlation between imperial absence and unrest, or Africa would have been a fecund source of usurpers, rather than almost always quiescent.⁴⁸ The calculus of access by geographical proximity seems obvious, but politics worked around it – citizens of the later Roman Empire were no strangers to the embassy and what it could accomplish. More than that, even if Constantius had been worried about the size of the empire and his distance from parts of it, there was no reason for him to send a Caesar to Gaul. He had been in the region in the winter of 353-4, when there would have been plenty of opportunities for local elites to visit him, as he celebrated his *tricennalia* and went out of his way to appease the governing class of the west.⁴⁹ He spent the four years which followed Julian's appointment in Italy, Raetia, or in north-west Illyricum, exactly the same belt of territory in which he had spent the preceding *quadrennium*.⁵⁰ At the time, there was a region which was used to having an emperor's presence and which was suddenly deprived of it: the East. If Constantius had been truly worried that part of the huge state which he was trying to manage might sheer off, then he would have sent Julian to Antioch.

There were, of course, unhappy precedents for dispatch to the East, precedents which loomed large at court in 355, as memories of Gallus stalked discussions of whether to make Julian Caesar. We might exploit that parallelism. The decision to make the older brother an emperor in 351 was shrouded in polemic, but most of the evidence points us to the conclusion that Gallus was being made

⁴⁸ The last usurper in the region had been L. Domitius Alexander in the early fourth century.

⁴⁹ Above, 142.

⁵⁰ Barnes, 1993, 221-3

the heir to Constantius II. Was the same true of Julian? It is tempting to think so. He too had been rehabilitated at that dynastic moment, when Constantius resolved to vindicate in bloodshed the claim that only Flavians could rule.⁵¹ Constantius continued after the death of Gallus to root his right to rule in the Flavian name – Julian, his last surviving male relative, surely had some claim on that.

Themistius, present in Rome for the celebrations of 357, captures the mood:

... and it is through our founder that the Germans and Iazyges do not revel in the labours of the ancient Romans, and the reverend and great name of Rome is not wantonly insulted and utterly obliterated nor handed over to bastard and counterfeit successors, but again comes back to the noble and undefiled blood of emperors...⁵²

Constantius also treated Julian like his brother and swiftly married him to another sister, one who bore the richly significant name Helena. He did not change Julian's own name, as he had with Gallus, but other than that the two cases are remarkably similar. It might reasonably be asked why Constantius was prepared to so swiftly repeat an experiment which had ended in tragedy. By 355, he had few other options. The marriage of Gallus and Constantina had produced only a daughter, while the bloodshed of the recent civil war had killed off any male Flavians who had survived 337.⁵³ Constantius himself was still quite young – thirty-nine in 355 – and had a younger wife, but Eusebia, however, was infertile, incapable of bearing children. Ammianus says she was 'as long as she lived, barren', while Philostorgius speaks of her μητρομανία 'mother madness'.⁵⁴ Constantius appears to have been devoted to her, divorce perhaps unthinkable. Julian was Constantius' only option when it came to heirs. The *Letter to the Athenians* hints at this. When describing his nervous period at Milan, before he was proclaimed emperor, he alludes to an abortive correspondence with the empress, and refers to a response he had drafted, 'an olive branch more than a letter':

'So you may have children to be your heirs, so God may grant you this and other things: send me home by the quickest route!'⁵⁵

⁵¹ Above, 130-132.

⁵² Themistius, *Or.* 3.43b: καὶ διὰ τὸν ἡμέτερον οἰκιστὴν οὐ Γερμανοὶ καὶ Ἰάζυγες τοῖς πόνοις ἐντροφῶσι τῶν πάλαι Ῥωμαίων, οὐδὲ τὸ σεμνὸν καὶ μέγα τῆς Ῥώμης ὄνομα περιύβρισται παντάπασιν καὶ ἐξαλήλπεται, οὐδ' ἐς νόθους μετέστη διαδόχους καὶ παρασήμους, ἀλλ' εἰς τὸ γνήσιον αἷμα καὶ ἀκήρατον ἐπανήκει τῶν βασιλέων.

⁵³ Julian, *EA* 272d.

⁵⁴ *AM* 16.10.18; Philostorgius, 4.7.

⁵⁵ Julian, *EA* 275c: οὕτω παισὶ χρήσαιο κληρονόμοις, οὕτως τὰ καὶ τὰ σοὶ ὁ θεὸς δοίη, πέμπε με οἴκαδε τὴν ταχίστην.

The linking of Julian's appointment and the question of the succession is tantalising. It is worth noting, in this light, that Gaul was where Constantius himself had served an imperial apprenticeship.⁵⁶ At the unhappy conclusion of Julian's relationship with his cousin, there were further indications that he was indeed heir. When it became clear that Julian would not negotiate, Constantius got married (again, Eusebia had died), and his wife produced a child (a daughter): it looks as though an alternative heir was being sought. Finally, as he lay dying, Constantius did in fact make Julian his successor and he did so without apparent opposition. It is tempting to think that this was, in part, because that had been the plan all along.

When Julian crossed the Alps in the winter of 355 he was not being sent because Constantius wanted him dead or because the empress Eusebia had taken a shine to him. He was not in Gaul because its collapse was imminent or to act as the image of his cousin. He was there as the latest hope of the Flavian name, the heir apparent to the vast united empire. That, and it seems to me that alone, explains the appointment of one snatched from 'the peaceful shade of the academy' and 'dragged to the dust of battle'.⁵⁷ If he was the heir, then the things which made him an unlikely Caesar simply did not matter. Of course Julian and Constantius had history, but, if there was to be an heir, there was no option but another Flavian. Of course Julian had little experience of anything but schooling, but that was not a problem – he could certainly learn. As Constantius struggled to grip the western empire, he sent his cousin to learn the *arcana imperii* on the Rhine, preparation for a later and greater destiny. Not even the necromancers of whom Julian was so fond can have foreseen what would follow.

⁵⁶ Above, 28.

⁵⁷ AM 16.1.5.

Mission Accomplished?

From the middle of 356 until the winter of 360, Julian spent his years in a predictable rhythm of summer campaign and winter seclusion, in the triangle of territory with its base on the Rhine and Paris as its apex.⁵⁸ From the faraway Seine (the happiest, perhaps the only, ascetic the Left Bank has known) he scribbled missives to friends, urging them not to fear ‘the Gauls’ lack of cultivation and the winter here’ and saying it was a miracle he still spoke Greek given his barbarous situation – ever performative when it came to *paideia*.⁵⁹ Come spring, he would set out, muster troops and make for the Rhine, where a few months of marching, fighting, and negotiating would follow, the kind of activity which led him to bemoan his lost life of leisurely philosophy.⁶⁰ It was here that Julian made his bones and left those of many others strewn on various battlefields, ultimately finding a reasonably secure footing on which to make a bid for supreme power. He advertised his achievement early and frequently, writing some kind of pamphlet on his victory at Strasbourg, while the *Letter to the Athenians*, offered a brief, compelling, and influential account of his triumphs.⁶¹ All this has helped make Julian’s time in Gaul the least controversial part of his career. Argument may rage over his education policy, furious rows about his philosophical views are not unknown, and there will probably never be agreement about what exactly he was doing at Antioch, but when it comes to his years as a Caesar consensus breaks out: his many virtues were advertised on Rhineland battlefields.⁶² A few rough edges have been knocked off this tale of triumph over the years – every generation ritually repeats Tillemont’s demonstration that Julian fudged his account of the recovery of Cologne, for instance – but its essentials remain intact.⁶³ It might, then seem perverse to devote much attention to it. A comprehensive account would be long indeed, but selective examination of a few crucial episodes in Julian’s *quinquennium* as Caesar paint a different and rather surprising portrait of his achievements.

⁵⁸ See Barnes, 1993, 227, with BA 11.

⁵⁹ Julian, *ELF* 13; 8.

⁶⁰ Julian, *ELF* 8.

⁶¹ Julian, *ELF* 160.

⁶² e.g. Bowersock, 1978, 43; Athanassiadi, 1981, 57 ‘highly successful campaigns’, 58 ‘military success followed military success’; Matthews, 1989, 83 ‘unexpected genius for military and administrative action’; Smith, 1994, 3 ‘a talented and adventurous general’; Elm, 2012, 71 ‘highly successful military campaigns ... forceful leadership and valiant action’.

⁶³ As Bowersock, 1978, 36.

First, 356/7: after a winter and spring spent in wrestling with bishops, Julian cautiously made his way towards the Rhine.⁶⁴ His progress was slow and he did not arrive on the edge of the theatre of operations until summer was well under way: he was still at Autun, allegedly threatened by circling enemies, on the 24th of June.⁶⁵ From there he went up to Auxerre and then Troyes. He took with him heavy-armed troops (*cataphracti* and *balistarii*) and he was travelling through thickly wooded country, to which they were ill-suited: there were a few hairy moments en route.⁶⁶ Finally, he arrived at Rheims, where the troops had mustered for the campaign – two *magistri militum*, Ursicinus (Ammianus with him) and Marcellus (a native of Serdica, possibly a veteran of the army of Vetrano), in attendance.⁶⁷ The army, carrying supplies for a short campaign only, set out east, passed through Decem pagi, and entered the Rhine valley.⁶⁸ This was a dangerous moment; a column could be outmanoeuvred and surprised, all the more so if it was early autumn and there was dense fog. Julian's rearguard was attacked and the enemy only just beaten off.⁶⁹ A bounty was set on barbarian heads and a wave of enthusiasm for slaughter swept the army.⁷⁰ They pressed on to Brumath and met a more substantial enemy force. Julian drew up his army like the horns of a bull, and caught the Germans between the points: they swiftly fled.⁷¹ That appears to have been the last real resistant he faced, and the column sped up the Rhine to Cologne, recently sacked. Its appearance encouraged local Frankish kings to come in and sue for peace. Julian then withdrew through the territory of Trier and came to Sens, there to spend the winter.⁷²

⁶⁴ BA 11 and 18 help one to follow what was going on.

⁶⁵ AM 16.2.1-2; cf. Libanius, *Or.* 18.43. Barnes, 1993, 227, overestimates the speed with which Julian did all of this: he simply cannot have been at Cologne in August if he was still at Autun in June.

⁶⁶ AM 16.2.4-7. cf. Matthews, 1989, 91.

⁶⁷ AM 16.2.8.

⁶⁸ AM 16.2.9-10.

⁶⁹ AM 16.2.10. Libanius, *Or.* 18.45.

⁷⁰ Libanius, *Or.* 18.45.

⁷¹ AM 16.2.12-13.

⁷² AM 16.3, cf. Libanius, *Or.* 18.46. There is some dispute as to where, exactly, Julian spent the winter: Ammianus reads *apud hsenonas* in BAV lat. 1873, f. 27v, though *apud senonas* appears to be secured by 16.7.1. Drinkwater, 2007, 220 and n. 24 revives the suggestion that it was a small place called Senon near Verdun, but Matthews, 1989, 90, n. 16 remains compelling. The unusual spelling, the source of most doubts, may well be a pedantic point, for the form was favoured by the Augustan grammarian Verrius Flaccus (see Festus, s.v. 'Senonas').

What happened next generated enormous controversy, not helped by a considerable lacuna in the text of Ammianus. Julian split his forces up for the winter and at least two of the regiments from the campaign (the *Scutarii* and the *Gentiles*) were not at Sens.⁷³ We vanish into the lacuna and when we emerge we are told that for thirty days, the town was threatened by an unidentified group of *barbari*, who confined the Caesar and his soldiers to the walls, Julian pacing around in fury at his impotence.⁷⁴ Eventually, they departed, reprimanding themselves for their folly in daring to assault a town. It was regarded as a scandal in some circles that Marcellus had failed to provide a relief column and left Julian in apparent danger.⁷⁵ Constantius, whom Ammianus claims had learnt all this by rumour, soon dismissed the general.⁷⁶ He stopped in Milan for an interview with the Augustus, ears ever open to any accusation (we are assured) and vigorously intimated that Julian had ideas above his station, flapping his arms up and down to indicate the Caesar's putative ascent – never let it be said that the imperial court was devoid of amusement.⁷⁷ Julian had sent his eunuch chamberlain Eutherius in hot-pursuit and he swore on his life that Constantius' cousin would always be loyal.⁷⁸ Tantalisingly, Ammianus draws a veil over the *dénouement* of this interview, wandering off into a lengthy account of the surprising virtues of Eutherius (surprising, because eunuch) and then stories of the pernicious suspicion of the emperor as it raged against those around him: the hallmark of an age of denunciations, as Constantius fattened his followers with the marrow of the provinces.⁷⁹ Marcellus found his way back home to Serdica and Julian prepared for the coming campaign season.⁸⁰ Such are the bare bones of Julian's first season on the Rhine: a modest but successful summer campaign and a winter row. Everything seems quite straightforward and (following their ancient models) most accounts skip over 356 in headlong rush to the glorious year 357. Unfortunately, there are complications.

⁷³ AM 16.4.1.

⁷⁴ AM 16.4.2.

⁷⁵ AM 16.4.3.

⁷⁶ AM 16.7.1.

⁷⁷ AM 16.7.2.

⁷⁸ AM 16.7.3.

⁷⁹ AM 16.7.4-10, 16.8, esp. 8.12. Eutherius may well have been Ammianus' source (Matthews, 1989, 25).

⁸⁰ AM 16.8.1.

Ammianus' account of the Caesar's journey from Vienne to the Rhine is thick with menace: spasmodic attacks are a motif, veterans are called out, and troops travel in number; hostile bands lurk in the shadows, circling towns and armies, always threatening to erupt. Who were these *hostes*? It might seem strange to even frame this as a question – they were obviously the Alamanni, were they not?⁸¹ The frontier had been breached, hordes of barbarians had crossed, and Alamannic war bands raided deep into Gaul, or so the story goes. There are grounds for some scepticism. In the *Letter to the Athenians*, when Julian was not (to put it mildly) interested in downplaying the threat the barbarians had posed, he suggested that they had settled up to about 35 miles from the Rhine and were raiding three times that distance into Gaul.⁸² Sens is about a week's journey from the river, Autun even further. If there were really Alamanni in the vicinity of those towns in the depths of winter, then they were very far from home indeed. There is also something suspicious going on in Ammianus's account. He certainly calls the enemy whom Julian faced in Gaul's interior *barbari*, but when he gets closer to the Rhine, he is normally careful to delineate the sort of barbarousness with which we are dealing, to mark the enemy as *Iuthungi*, or *Franci*, or even just *Germani*.⁸³ Those who menaced Sens are conspicuously unidentified – a mere *hostilis multitudo*.⁸⁴ In Libanius, for whom pretty much everyone west of Athens was a beer-swilling barbarian, this lack of specificity would deserve no comment, but in an author as careful and as ethnographically sophisticated as Ammianus, it is a little more noticeable.⁸⁵ In fact, when summarising the discussions of the high command before they set out, Ammianus strongly implies that the Alamanni were found only beyond Decem pagi (about a day's march from the Rhine).⁸⁶ In truth, the only 'textual' evidence that most of northern Gaul was overrun by Alamanni lies not in the folios of Vat. lat. 1873, but in the chapter-headings of Adrien de Valois.⁸⁷

That in itself is revealing, for Valois was no mean analyst of Ammianus. The historian clearly wished his readers to think that there were raiders from the Rhine wintering on the Seine or in

⁸¹ As e.g. Bowersock, 1978, 37-8; Matthews, 1989, 81.

⁸² Julian, *EA* 279a-b.

⁸³ e.g. *AM* 16.2.2, vs. 2.9, 13, 3.2, 17.6.1.

⁸⁴ *AM* 16.4.1.

⁸⁵ Note Ammianus' long digressions on e.g. the Saracens (14.4).

⁸⁶ *AM* 16.2.9; cf. Libanius, *Or.* 18.45.

⁸⁷ Printed by Seyfarth (i, p. 69). On the chapter headings, see Kelly, 2009.

northern Burgundy, without actually saying so, working, as he always did, implication as hard as possible. So who were these enemies in the interior of Gaul? We cannot know for certain, but what we may be looking at is a breakdown of law and order, not a breach of the frontier. Libanius, in a different context, speaks of how the countryside was, as late as 360, beset by deserters from the army of Magnentius, making a living from banditry.⁸⁸ There is also the story of Charietto, the Frank with a robber-band and a penchant for collecting Alamannic heads, ‘barbarian by race and accustomed like them to practice robbery’.⁸⁹ In its current form, the tale is rather stripped of context, but the main theme is that Roman authority had waned in large parts of the countryside: Zosimus is curiously emphatic that Charietto ‘did not have licence to do such things, since no law permitted him to do this’. Local self-help was clearly on the agenda – some vigorously ‘patriotic’, some, we might imagine, not so much. The idea that the *Bagaudae* were back has a certain plausibility. Magnentius had recruited heavily, both in Gaul and over the Rhine, in the run-up to his clash with Constantius.⁹⁰ As his shattered army reeled back from the Balkans and then Italy and as Decentius lost control of the Rhine, it must have begun to dissolve. Some units were evidently taken over wholesale by Constantius; others presumably just vanished.⁹¹ The first inclination of a Frank who had signed up with Magnentius in 350 was probably not to pitch up at the victorious Constantius’ camp, mumble apologies for the death of Constans, and ask if there was any chance of a job. The imperial authorities, it is always worth remembering, were not nice people and they knew where you lived – a career in local crime was perhaps rather safer. Into this combustible mix, we might add the evidence for local revolts, which flared up as it became clear which way the civil war was going, and the fallout from the usurpation of Silvanus.⁹² There were a lot of people in Gaul in about 355 who existed on the fringes of the law. Given the permeability of the Rhine, the fluidity of identities on either bank, and the demands of polemic, it is easy to imagine Ammianus categorising them as barbarians.⁹³

⁸⁸ Libanius, *Or.* 18.104.

⁸⁹ Zosimus 3.7, *cf.* Eunapius, *ES* 10.

⁹⁰ Julian, *Or.* 1.34c-35a.

⁹¹ Above, 149 for the *Magnentiaci*.

⁹² Above, 138.

⁹³ See, *e.g.* the case of Silvanus.

No one wished to admit it, but Julian started out as emperor by wearing a fixed grin around some prelates and then whetting his sword to crush citizens – rebels, but Romans.

What about suspicion? It is here that the episode at Sens is so interesting. The sources make this a tale of incompetence and paranoia. The subordinate Julian was placed in danger because he had dispatched his meagre forces to neighbouring towns.⁹⁴ Marcellus failed to come to his aid, something which Ammianus says ‘must be reckoned to the outrageousness of the situation’ – a nice and absolute generalisation; evidently Julian was furious.⁹⁵ The general (to whom, it is implied, real authority belonged), a man arrogant to fellow Romans and timid in the face of the enemy, fell under suspicion and was sacked.⁹⁶ Marcellus gained an evil reputation from the episode in the Julianic sources, one which the execution of his son for treason in 362 can have done little to discourage.⁹⁷ Yet, it is not hard to justify his decision not to charge straight to the Caesar’s aid. Julian was in a walled town, far from the frontier, with troops. If he did not have as many soldiers as he wanted, then it was his own fault for splitting them up, something he had done to ensure they could be fed over the winter.⁹⁸ When one *multitudo hostilis* learnt Julian was in Sens without many men, they began to lurk around its walls, hoping, perhaps, to be bribed away or to snatch some *prominenti* who strayed too far. Lurking, however, seems to be all that they did – Ammianus conjures an atmosphere of menace, but they never actually attack.⁹⁹ In such circumstances, the Caesar did not feel secure and refused to sally out, but he was not completely cut-off and he stayed in contact with the *magister militum*.¹⁰⁰ He was safe, albeit a little jumpy. It was difficult to move troops in number in the middle of winter, and in any case if Marcellus was inclined to send them anywhere, it was probably towards places closer to the Rhine, where a real threat might emerge, not towards Sens to chase off some bandits. His later complaint that Julian was *procax*, or impudent, suggests that he resented the excitable communications he got from the Caesar – an experienced soldier, he knew what he was doing.

⁹⁴ Julian, *EA* 278a-b.

⁹⁵ AM 16.4.3. *indignitas rerum* is a Livian phrase, e.g. 6.40.1.

⁹⁶ Libanius, *Or.* 18.48; Julian, *EA* 278a-b.

⁹⁷ AM 22.11.2.

⁹⁸ AM 16.4.1.

⁹⁹ AM 16.4.1.

¹⁰⁰ AM 16.4.1.

What then are we to make of Marcellus' dismissal? Ammianus very carefully constructs his account to suggest certain conclusions. We are softened up by an elucidation of Julian's virtues and a quick sketch of court intrigue, envy circling and barking at Constantius' general Arbitio.¹⁰¹ The Augustus then mysteriously learns of Marcellus' misdeeds and sacks him: when he put his side of the story, he was opposed by Julian's advocate, Eutherius, whose virtues are then prominently advertised.¹⁰² Perversely, Constantius' decision to dismiss Marcellus after he had rowed with Julian is turned into an instance of emperor's wicked treatment of his cousin – a near-miss to be sure, but still threatening. This is disingenuous. Imperial itineraries are not often played into Julian's story – there is nothing romantic about route planning – but here, they hint at something interesting. Julian had finished his campaign on the Rhine late in 356 – he can't have arrived at Sens much before December, and he was under threat there for a month. News of what had happened cannot have reached Constantius, at Milan his *de facto* capital, much before the end of January and he had left the city by mid-March – he was on his way to that triumphant visit to Rome which made Ammianus so fabulously grumpy.¹⁰³ Into that constricted frame, we have to fit time for various messengers to stream back and forth and for Marcellus and Eutherius to arrive in northern Italy. Simply put, for the sequence of events to work, not only did Constantius have to fire Marcellus, he had to fire him more or less as soon as the first emissary from Julian arrived at his court, complaining about how mean the general had been. In a situation where it was far from clear who was in the right, it is difficult to think of a more emphatic statement of support.¹⁰⁴ The story of winter 356 looks considerably more nuanced than we might first have thought. So much for suspicion.

This is radical, the degree of manipulation and misrepresentation it implies considerable, so it is worth pointing out one final thing about the campaign of 356. In Ammianus' narrative, and in that of Libanius as well, this is Julian's war – the focus fixed relentlessly on his activities. It is only in passing that we learn its true nature: it was a joint campaign, conducted in concert with Constantius. Ammianus lets this slip as he very carefully constructs his account of the battle of Strasbourg (in

¹⁰¹ AM 16.5, 6.

¹⁰² AM 16.7.5-10.

¹⁰³ Barnes, 1993, 222.

¹⁰⁴ As, rightly, Bowersock, 1978, 40.

357). He was keen to suggest that the troops were full of *ardor pugnandi*, hot-blooded and ready for the fray.¹⁰⁵ In explaining why the soldiers were over-confident, he speaks of how they recalled that the year before they had ranged freely on the far bank of the Rhine, encountering little resistance as Constantius entered hostile territory: the barbarians had begged for peace.¹⁰⁶ At that time, Ammianus explained, circumstances had been different, for the Alamanni had been caught in a vice: the Augustus attacking them through Raetia, the Caesar blocking the far bank of the Rhine.¹⁰⁷ Constantius had then sealed a peace deal with two prominent Alamannic kings, the brothers Vadomarius and Gundomadus, and though Ammianus is keen to imply that it was a dead-letter and that Gundomadus soon died, it is clear the treaty stuck.¹⁰⁸ This was more than the imperial cousins fighting in roughly the same place, a glorified bit of male bonding – this was a joint campaign, a pincer movement in which Julian pinned the Alamanni in place, and Constantius rolled them up. Most of the glory belonged to the senior emperor, who set the seal on his efforts to restore order to the Rhine. That Constantius did invade Raetia in 356 has been noted before, but the obvious implication has not been properly brought out: at first sight, Ammianus has simply disappeared an entire campaign, left the false impression in his earlier narrative that Julian was acting alone, and deliberately distorted what was going on.¹⁰⁹ T.D. Barnes, acknowledging that Ammianus ‘has obscured the cooperation of the two emperors’, nevertheless suggested that his account of the Augustus’ activities may have vanished into an undetected lacuna, which would absolve our author of any charge of misrepresentation.¹¹⁰ Is that plausible? There are two types of lacunae in our sole extant manuscript of the *Res gestae*: gaps left by those who wrote it, and undetected omissions which presumably go back to an earlier stage in the transmission of the text. The gaps vary in size and it seems likely that they reflect physical damage to the archetype of our text, something hinted at by the way that one can often see a second hand adding words at their margins, as though a more

¹⁰⁵ AM 16.12.13.

¹⁰⁶ AM 16.12.15.

¹⁰⁷ AM 16.12.16.

¹⁰⁸ Below, 255.

¹⁰⁹ Joint campaign: Bowersock, 1978, 38.

¹¹⁰ Barnes, 1998, 138. He was perhaps misled into canvassing this possibility by AM 16.8.1 reference to the *castra Augusti*, which is relevant to events in 357, not 356 (as he implies).

experienced scribe had been called in.¹¹¹ None of the marked lacunae in Ammianus' account of 356 are large enough to hide an expedition over the Rhine, and the only two which occur in XVI.2 (3, 8), the tale of the campaign, fall at points where any reference to Constantius would have been out of place.¹¹² Could the equivalent of an entire chapter have dropped out? It is of course impossible to be certain, but subjectively, it seems to me that the story of Julian's activities (XVI.2-3) forms a continuous garment, and if any bifolium went AWOL from a manuscript at some stage, it did so at a remarkably opportune place: the string of discourse particles, *itaque* in the lead, drag the reader on, and everything ruthlessly follows from what has come before. There is also something rather suspicious about the way that, when he does finally and briefly refer to the campaign, Ammianus avoids naming Constantius as its leader, preferring to give only his title – *imperator*.¹¹³ It is also worth noting that all parallel accounts of the events of 356 omit Constantius' campaign. It is not surprising that Zosimus' scrappy summary has not found room for it; it is perhaps more significant that both Julian and Libanius do not mention it. In assessing whether Ammianus has deliberately mislead his readers about what was going on in 356, the case for the prosecution looks rather strong. He certainly had motive – if Constantius appointing Julian was a stumbling block for any attempt to cast him as a monster of suspicion, then appointing him and coordinating a campaign together (something which had never happened with Gallus) is more like a barbed-wire fence.

¹¹¹ *contra* Barnes, 1998, 204 who suggests the lacunae are of random length, see Stover, 2017.

¹¹² AM 16.2.

¹¹³ While Caesars could rarely be referred to as *imperator* (e.g. AE 1904, 73), the title really belonged only to the Augusti (note the care with which Eumenius always speaks of *imperatores caesaresque*, *Pan. lat.* 9.4.1, 17.5, *cf.* 15.2, *cf.* Barnes, 1982, 24-6).

For the campaign of 357, Julian ‘as Germanic threats roared on all sides’ set out to Rheims to muster the troops.¹¹⁴ There, he met Severus, the new *magister militum*, a man who receives a very favourable press in Ammianus and Libanius, but whose origins are almost entirely obscure – he was evidently an experienced general.¹¹⁵ He also encountered his new praetorian prefect, Florentius.¹¹⁶ For his first year in Gaul, it seems likely that his chief minister was Honoratus, one of the few people to have emerged from the regime of Gallus both alive and with his reputation enhanced (he escaped before it fell apart).¹¹⁷ He was not an amateur by any stretch of the imagination, but Florentius was still more senior and more experienced, an old comrade of Constantius whose association with the emperor went back to the 340s. It is hard to read his dispatch as anything other than a vote of confidence in Julian, an attempt to surround him with able and trusted individuals, who would ensure smooth bilateral relations between Augustus and Caesar. That summer, Constantius was making his long-prepared visit to Rome and could not campaign in person.¹¹⁸ The plan, however, was much like that of the preceding year – the general Barbatio (Silvanus’ successor) had been sent with 25,000 men to Augst in Raetia: he and Julian were to coordinate to catch the Alamanni in a pincer movement (*specie forcipis* – the idea is not anachronistic).¹¹⁹ There was work to be done. Gundomadus, with whom Constantius had struck a deal in 356, had been murdered; Chnodomarius, the conqueror of Decentius and sacker of cities, was still at large: he had sought reinforcements from as far away as Metz.¹²⁰ Though we can only dimly perceive it, there was clearly turmoil among the tribes and much enthusiasm for a robust approach to the Romans.¹²¹ After three years of hard fighting in the region, the scene was set for a final showdown.

At its simplest, the tale of what happened next was very simple indeed: Julian ‘set up a monument for a victory which is beyond all exaggeration’, as Zosimus put it, a triumph which was

¹¹⁴ AM 16.11.1.

¹¹⁵ AM *ibid.*; Libanius *Or.* 18.48; *PLRE* ‘Severus 8’.

¹¹⁶ On the campaign: AM 16.12.14.

¹¹⁷ Above, 151.

¹¹⁸ AM 16.10.

¹¹⁹ AM 16.11.2-3, *cf.* Libanius, *Or.* 18.49.

¹²⁰ AM 16.12.4-5.

¹²¹ AM 17.1.13, 16.12.17.

greater than Alexander's over Darius, or (so Ammianus) deserved to be compared to the Punic wars or defeat of the Teutones by Marius.¹²² The battle of Strasbourg was the making of Julian, the proof of his *virtus*, and the foundation of his reputation both at the time and ever after – whatever the disappointments of his reign, of the invasion of Persia, or his ignominious death, he has always been suffused with the glory of that day on the banks of the Rhine.¹²³ The campaign had started less than ideally: *laeti*, barbarians settled by agreement on Roman territory, had raided in some strength towards Lyons and caused a good deal of damage around the city.¹²⁴ Historiography has, perhaps under the influence of Rolfe's too vivid translation, turned these raiders into swift-moving bands, fearsome barbarians, sometimes even making them perform a long march from over the Rhine.¹²⁵ In fact, they must have resided deep in Roman territory, for Lyons was several days march (at least, more like a week or two) from *barbaria*. They rather support the idea that the problems of north-western Gaul were as much those of disorder as of invasion. Julian sent out cavalry regiments to catch them as they returned home, but Barbatio and his adjutant Cella were said to have expressly forbade those they met to watch the roads for the *laeti* as they returned.¹²⁶ Their actions were obviously *contra utilitatem Romaniae*, and that set the theme for the rest of the campaign. Julian was energetic and efficient, Barbatio craven and useless: 'sluggish and a determined critic of Julian's reputation', the faults equal in the eyes of Ammianus.¹²⁷ The Caesar was a blur of activity, menacing barbarians on the Roman bank of the river, sending troops to kill those who fled, rebuilding a fort, and gathering supplies.¹²⁸ In contrast, the *magister peditum* was a disaster: the barbarians raided his camp, made off with booty, beasts, and prisoners, and chased some of them as far as Augst.¹²⁹ Barbatio's only activity during the campaign appears to have been to get in the way: he refused to hand over to Julian boats to cross the Rhine and burnt supplies rather than give them to him.¹³⁰ During a half-hearted attempt to build a bridge of boats over the river, the barbarians floated trees

¹²² Zosimus 3.3.3; AM 17.1.14.

¹²³ As e.g. Bowersock, 1978, 40; Athanassiadi, 1981, 58 'decisive victory'.

¹²⁴ AM 16.11.4.

¹²⁵ Bowersock, 1978, 40.

¹²⁶ AM 16.11.6-7, with 16.11.9.

¹²⁷ AM 16.11.7.

¹²⁸ AM 16.11.8-12.

¹²⁹ AM 16.11.14.

¹³⁰ AM 16.11.8, 12.

downstream to damage them; Barbatio simply gave up and retired, the Alamanni nipping at his heels on the way home.¹³¹ He left the Caesar to face the enemy – their blood-up after deterring such a large Roman army – alone. Certainly, as the Alamannic army approached Strasbourg, and Julian scrambled to complete a fort, things looked bleak. The victory which followed was thus all the more glorious.¹³²

Both Ammianus and Libanius are quick to imply that Constantius, nervous that Julian might be successful, had deliberately sabotaged the campaign, but the true story of the events which led up to Strasbourg was both more complex and more interesting than it first appears.¹³³ We can immediately dispose of the idea that its collapse was something for which the emperor or Barbatio might have wished, even if we grant the rickety-looking premise that Constantius and his servants were actively malicious in their treatment of the Caesar. If there was any year in which Constantius might have been keen to hear of success or at least quiet on the frontiers, then surely 357, with its visit to Rome, was that year. He hardly wished to progress into the city as messengers sweated their horses down the roads of Italy to tell him his army had received a bloody nose on the Rhine. Similarly, Barbatio had only recently been elevated from the position of *comes domesticorum* of Gallus (not a recommendation, perhaps) – it was a quite a leap to go in a single bound from senior officer to one of the most important military posts in the entire empire.¹³⁴ If anyone wanted the campaign to be a success, surely it was the nervous new general. Julian's advocates were swift to accuse him of incompetence, and since he was executed in 359 when treasonable correspondence with his wife was discovered, there were few to contradict them.¹³⁵ Still, it is worth noting that, under rather different circumstances to those which prevailed when he described Julian's career, Libanius had in 355 or 356 praised Barbatio as a formidable general:

The monuments which you have set up from your victories over the barbarians – leading the forces yourself, but following the emperor's fortune – are known everywhere and

¹³¹ Libanius, *Or.* 18.50-51; AM 16.11.8.

¹³² AM 16.12.1.

¹³³ AM 16.11.12; Libanius, *Or.* 18.50.

¹³⁴ AM 14.11.9.

¹³⁵ AM 18.3.1-4.

everywhere admired, and there are hopes that soon you will make more of the same and that going on you will have no need at all of trophies, for you will have no cause to fight!¹³⁶

Flattery, of course, but still revealing. In 358, Barbatio ‘a coward, but lavish with words’ won a signal victory over the Iuthungi in Raetia.¹³⁷ Simple incompetent he was not.¹³⁸ As not infrequently, the idea that others had set out to sabotage Julian looks at least plausible when everything is seen from his perspective, but the moment we try to think through what those others might have wanted or how they approached things, it collapses.

What did happen in 357, then? To answer that question, we need to think about the plan of campaign. This was for a pincer movement, one army advancing from Augst and another attacking from Alsace. A glance at a map reveals how this was supposed to work: the two forces were meant to push the Alamanni towards each other, preventing them from fleeing and gradually concentrating them so they could be defeated.¹³⁹ As Julian pinned them in place, Barbatio would sweep up from Raetia – they would soon be trapped. The whole plan hinged on the two Roman forces working together. If they did not, then it would be possible either for the Alamanni to simply flee, or (more worryingly) to attack first one Roman column and then the other. That risk explains why Barbatio and Cella were so cross when Julian sent units of cavalry haring off after the *laeti*: they were trying to accomplish their main objective. To send cavalry charging off towards the Rhône because some bandits had torched a few suburban villas was, in effect, to remove them from the campaign altogether, and it is not hard to see why Cella ground his teeth and sent the regiments back to Julian. After that, the plan seems to have gone relatively smoothly. We find Julian on the Rhine itself, driving those barbarians on the Roman side onto the islands in its course – he sent troops to ford the shallow summer river and massacre the refugees. The survivors fled to the far bank.¹⁴⁰ Barbatio seems to have been engaged in building a bridge to cross over into Alamannic territory – so far, so

¹³⁶ Libanius, *Ep.* 436.3: τὰ τρόπαια δὲ ὅσα ἀπὸ βαρβάρων ἔστησας ἄγων μὲν αὐτὸς τὰς δυνάμεις, ἐπόμενος δὲ τῇ βασιλείῳ τύχῃ, πανταχοῦ μὲν ἔγνωσται, πανταχοῦ δὲ τεθαύμασται, ἐλπίδες δὲ εἰσιν ὡς αὐτίκα πλείω τε αὐτὰ ποιήσεις καὶ προΐων οὐδὲν δεήσει τροπαίων, οὐδὲ γὰρ μάχης. *cf.* 491.3.

¹³⁷ AM 17.6.

¹³⁸ *contra e.g.* Bowersock, 1978, 41

¹³⁹ See BA 11, 16.

¹⁴⁰ AM 16.11.8-10.

forceps.¹⁴¹ Then something unexplained happens: we suddenly find Julian at Tres Tabernae, building a fort. Ammianus is keen to describe how important this was: the fort had only recently been sacked and it blocked the road into the interior of Gaul. He was also emphatic about how quickly Julian had completed the work and then set about gathering supplies to feed its garrison. In fact, he had even been able to provide 20 days supplies for his army, which given its size (13,000 men) was no small feat.¹⁴²

All this was very energetic, vigorous, and victorious, and a sharp contrast with the sluggish Barbatio. The only hint of something slightly off is Ammianus' almost insouciant statement that Julian had 'turned back' (*conversus*) to go to Tres Tabernae, just as after the battle of Strasbourg he would 'return' (*revertit*) there.¹⁴³ The town, modern Saverne, was a *mansio* on the road to Metz, about 30 miles (a day's forced march) from Strasbourg, on the main road from the middle Rhine to the heart of Gaul: Julian had simply wandered out of the war zone and, even worse than that, had scattered his troops over the countryside, some in rural settlements, some gathering crops.¹⁴⁴ With sudden, almost startling clarity, one sees why the campaign of 357 fell apart: Julian had, no doubt by accident, sabotaged it. In moving away from the Rhine, he had taken the pressure off the Alamanni, who had been able to concentrate their forces against Barbatio – there was a reason they suddenly could 'outrun rumour with extraordinary speed'.¹⁴⁵ They destroyed the bridge he was constructing and gave his army a bloody nose; unwilling to cross against significant opposition, Barbatio gave up on the campaign.¹⁴⁶ One can see at once why it was so important to cast him as a cowardly incompetent and why both Ammianus and Libanius made so much of Julian's achievement in building a fort at Saverne – his activities there were an awkward fact onto which the best possible gloss had to be laboriously coated. It is also easy to understand the angry recriminations which

¹⁴¹ Libanius, *Or.* 18.50, *cf.* AM 16.11.8.

¹⁴² AM 16.11.11, *cf.* Libanius, *Or.* 18.51.

¹⁴³ AM 16.11.11, 17.1.1.

¹⁴⁴ BA 11.I3; AM 17.1.1, 16.11.14.

¹⁴⁵ AM 16.11.14. *cf.* Matthews, 1989, 299-300.

¹⁴⁶ *ibid.*

followed the campaign and the sacking of some of Julian's officers. It was not simply that Barbatio was 'accustomed' as Ammianus put it, to conspire against the Caesar: he had reason to be furious.¹⁴⁷

Julian might have turned the campaign of 357 into a damp squib, but he had still roused the Alamanni to fury. Some kings, bound by treaty to the Romans, had evidently lost control of their young men, who had joined an army which was swelling fast – even though it cannot have been the thirty or thirty-five thousand men later claimed, it was clearly very large, capable of leaving thousands of corpses (the Romans were fond of such counting) on the field.¹⁴⁸ The Alamanni had already repelled a formidable force under Barbatio, and so they were perhaps confident that they could humiliate the smaller one which Julian had assembled, of whose size they were kept informed by a deserter. That was if they even expected to encounter it, for the Caesar's jaunt to Saverne had apparently convinced them that he had left the region entirely.¹⁴⁹ In any case, they sent envoys to warn him to retreat – the land belonged to them, they averred – but Julian imprisoned them.¹⁵⁰ The Alamanni began to cross in force near Strasbourg, and everything was set for a fearsome confrontation.

The Romans started at a significant disadvantage: they were few, they were far from the river, and the enemy had had the better of the campaign so far. It must have taken time for Julian to assemble his forces again (something swept up by Ammianus in a single ablative absolute) and they only set out at daybreak to cover the 21 miles which separated them from the enemy, already partly encamped on Roman territory.¹⁵¹ What followed was a mad-dash to make it to the river, in the heat of summer, over rough country – at noon, Julian paused the troops for an oration, urging that they halt, rest, and then advance on the following morning.¹⁵² This strategy might charitably be called courageous: the Alamanni were clearly still crossing the river as the Romans advanced and delay risked swelling their army.¹⁵³ As Florentius pointed out, if the Romans were going to fight them, then

¹⁴⁷ AM 16.11.15.

¹⁴⁸ AM 16.12.17. Libanius, *Or.* 18.54; AM 16.12.26, 12.63.

¹⁴⁹ AM 16.12.1-2.

¹⁵⁰ Libanius, *Or.* 18.52; AM 16.12.3.

¹⁵¹ AM 16.12.7-8.

¹⁵² AM 16.12.9-12, *cf.* Libanius, *Or.* 18.53.

¹⁵³ Libanius, *Or.* 18.53; AM 16.12.19.

better to do it when they were still assembled, not after they had had a chance to disperse, when the legions might have to chase several forces, some perhaps larger than Julian's entire army.¹⁵⁴ As 356 had shown, it was easy for a Roman force advancing down to the river to be ambushed. One can see why the troops cut Julian off as he warbled about how their 'triumphant eagles and conquering standards' would crush the barbarians.¹⁵⁵ Ammianus tells us that the troops began to beat their shields with their spears to show their 'eagerness to fight' and then invokes a *salutaris quidam genius* which was driving them to action – divine approval for immediate engagement.¹⁵⁶ Elsewhere, however, our author digresses on the ways that the troops conveyed their mood.¹⁵⁷ When they were excited and approving, they struck their shields on their knees (greaved, one hopes); to beat one's spear and shield together was, on the other hand, *irae documentum ... et doloris*. Shouting down their general, grinding their teeth, and showing their obvious disapproval of his plan: the troops had more or less mutinied. Worse than that, the high command, keen to avoid worse disorder and conscious that inaction might well lead to disaster, agreed with them.¹⁵⁸ As battle approached, Julian had, in effect, been deprived of command, and when the army moved forward, it was because a standard-bearer urged it on.¹⁵⁹

The terrible confrontation which followed is doubly unusual: it was rare for the Romans and Alamanni to meet for a pitched battle, and it is rarer still for two contemporaries to have left us detailed accounts of what happened. Nothing can match the drama and vividness of Ammianus' narrative, and there is little point in rephrasing it in repetition. There is, however, one thing particularly worth drawing out. To make sense of the battle, it is vital to understand the way that the Romans deployed; this is difficult, but between Ammianus' vigorous prose and Libanius' sophistic generalities we can just about unpick what was going on. There seems to have been a block of infantry in the centre and cavalry on the right.¹⁶⁰ The general Severus was on the left.¹⁶¹ Julian was

¹⁵⁴ AM 16.12.14; cf. Matthews, 1989, 91-2.

¹⁵⁵ AM 16.12.12.

¹⁵⁶ AM 16.12.13.

¹⁵⁷ AM 15.8.15.

¹⁵⁸ AM 16.12.14.

¹⁵⁹ AM 16.12.18. cf. Barnes, 1998, 152-3, though he makes the decision rather too orderly.

¹⁶⁰ AM 16.12.20-21.

¹⁶¹ AM 16.12.27.

on the right with the flower of the Roman forces.¹⁶² That is important, because at a crucial moment in the battle, just before the two armies met, Julian deserted his position on the right and took two hundred cavalry to the centre. He began to push the infantry forwards, riding up and down the Roman lines to urge them to advance – Ammianus makes much of his activity and interventions.¹⁶³ On the right, abandoned by the emperor (though Ammianus does not reveal that) and with their commanding officer wounded, the cavalry fled and would have swept the infantry with them had they not already been in formation.¹⁶⁴ Julian went off and managed to rally them in dribs and drabs, but the damage was done. The emperor vanishes from the detailed narrative of Ammianus at precisely this point, to reappear only at the battle's conclusion – it is fairly clear he was out of the action.¹⁶⁵ The sources fixate on Julian's dealings with the cavalry, trying to spin virtue out of ineptitude. One can see why.¹⁶⁶

This mattered, because the Alamanni then lapped around the Roman front and flank.¹⁶⁷ There was a terrible moment in which a small band of the enemy, nobles, kings, and soldiers, punched through the Roman line and made for the centre. This was very dangerous – if they could split the formation, then it would collapse and they would win the day. The *Primani* intervened, kept their cool, and drove them back.¹⁶⁸ By now the Alamanni, who had done most of the charging about, were worn out and, though they had driven the Romans back, had left a considerable number of their dead strewn over the battlefield, so reinforcements had to pass their slaughtered comrades as they moved up.¹⁶⁹ On the left, Severus had routed the barbarians, causing panic as it looked like he might turn the enemy's flank.¹⁷⁰ Though both Ammianus and Libanius obscure his role thereafter, it seems unlikely that he stopped.¹⁷¹ Exhausted, demoralised, and confused, the barbarians, broke and began to flee

¹⁶² Libanius, *Or.* 18.54.

¹⁶³ AM 16.12.28-33.

¹⁶⁴ AM 16.12.37-8.

¹⁶⁵ Julian only surfaces again at AM 16.12.55.

¹⁶⁶ AM 16.12.38-4; Zosimus 3.3.4-5.

¹⁶⁷ AM 16.12.42.

¹⁶⁸ AM 16.12.49.

¹⁶⁹ AM 16.12.50; *ibid.* 48.

¹⁷⁰ AM 16.12.27, with Libanius, *Or.* 18.56.

¹⁷¹ Libanius, *Or.* 18.59, even tries to claim the routed right which won the day.

before him.¹⁷² The sequel was gory. The Romans gave chase, butchering as they went – Ammianus vividly evokes the carnage, some dead, some begging for death, some searching for a last glimpse of the light.¹⁷³ Eventually, the Alamanni began to jump into the river to make their escape: some were transfixed with missiles from the bank and many more drowned.¹⁷⁴ Chnodomarius tried in vain to escape, but was soon picked up, along with two hundred of his followers – he was dragged before Julian and abased himself.¹⁷⁵

The Romans had won a famous victory: as they settled in for the night near the field of battle, they counted 247 officers and men dead, and over 6,000 Alamanni killed.¹⁷⁶ They had won in spite of Julian, whose strategic errors had forced them into the battle and whose tactical incompetence had nearly lost it for them, and yet who, quite by chance, emerged from the battle with a glorious military reputation. In its aftermath, the troops hailed him as Augustus, though he rebuked their enthusiasm – one can only imagine Severus, the real author of the Roman victory, grinding his teeth.¹⁷⁷ In describing the battle's aftermath, Ammianus gives us a famous vignette of the court of Constantius, sycophants mocking the Caesar as 'Victorinus', puffing up (*inflabant*) the emperor by their praises.¹⁷⁸ Waxing indignant, our historian works himself into a fury about the way that Constantius took credit for victories he had not won in person, speaking in outraged tones of the way he had tried to obscure Julian's glorious deeds.¹⁷⁹ Read with a sceptical eye, the presentation of standard late-Roman practice (emperors generally took credit for victories won by others) as an instance of Constantius' pathological suspicion is amusing, but it also conceals something important. Confronted by Barbatio, no doubt furious that Julian had sabotaged his first campaign, and probably apprised of what had really happened on the field, Constantius' decision to skip lightly over the truth of the battle looks less like an attempt to deprive his cousin of credit, and more like an effort to smooth over his faults in the interest of harmony. Naturally, Ammianus draws his account of the year to a close by artfully

¹⁷² AM 16.12.51.

¹⁷³ AM 16.12.52-3.

¹⁷⁴ AM 16.12.54-6; Libanius, *Or.* 18.60.

¹⁷⁵ AM 16.12.58-60; *ibid.*, 65.

¹⁷⁶ AM 16.12.62-3.

¹⁷⁷ AM 16.12.64.

¹⁷⁸ AM 16.12.67-8.

¹⁷⁹ AM 16.12.69-70, *cf.* Libanius, *Or.* 18.67.

inserting a passage praising the scale of Julian's triumphs, tempered by a nod to the idea that Constantius meant either for him to die on the field of battle, or to destroy him as he had killed Gallus.¹⁸⁰

Taxes

From the campaign of 357, Julian returned to Paris and to controversy. This was the first year he had spent in the city, and it may have been in that unusually cold winter, when blocks of ice like marble floated by, that his ascetic impulses very nearly led to him dying of carbon-monoxide poisoning.¹⁸¹ He found plenty to occupy his days: preparing for the attack of an invading tribe, he found that the garrisons closer to the river had already seen them off and went back to reading instead.¹⁸² Friends from his Athenian days made the long journey to the edge of the world: Julian sang songs in their honour, still extant in the 360s.¹⁸³ Ammianus makes no mention of any of this. Instead, he offers a detailed account of a furious row between Julian and Florentius over taxes. The prefect spent three campaign seasons and two winters in Julian's company: they did not get on. In 361, as Florentius fled ahead of Julian's advance, it was clearly imperative for the Caesar to do him down, suggest he was corrupt and incompetent – this he did with gusto, part of a broader assault on the integrity of Constantius' servants.¹⁸⁴ It is then no surprise that their relationship plays such a crucial role in accounts of the Caesar's career. Florentius was a man on whose dismerits the sources are unanimous: venal, grasping, incompetent, an instrument of Constantius and his paranoia. Julian's attempts to stand up to him are presented both as clear proof of his virtue and as an early indication of his zeal for reform. Working out what precisely was going on in the winter of 357/8, as Julian cut his teeth in administration, is difficult, for the sources trip over themselves to discredit the prefect and praise the Caesar. Still, it is worth teasing out the twists and turns of Julian's relationship with the

¹⁸⁰ AM 17.1.14.

¹⁸¹ Julian, *Misopogon* 341b-342a.

¹⁸² Libanius, *Or.* 18.72.

¹⁸³ Libanius, *Or.* 18.74.

¹⁸⁴ Above, 179-180.

prefect, for the true story is much more complex than a straightforward tale of virtue's triumph over vice.

First, the account of Ammianus: slippery and disfigured by a lacuna. In this, Julian sets out in the winter of 357/8 to bring some relief at last to the wretched *possesores*, the landowners.¹⁸⁵ Everything is carefully framed to make the coming dispute about the travails of the taxpayer, not the needs of the state and we have been prepared to find in the Caesar's favour since his arrival in Gaul, when we were told that he had reduced the tax burden from 25 *solidi* per *caput* (or unit of taxation) to only seven.¹⁸⁶ Florentius, who had run the numbers, suggested that if there was a shortfall in the *capitatio* it could be made up *ex conquisitis*, from things specially sought out, by which Ammianus seems to mean supplementary levies. Julian would have none of this, province-wrecking as it had often proved, and staked everything on the argument, claiming (apparently) that he would rather die than let it happen.¹⁸⁷ It is clear even in Ammianus' partial account that Julian was intruding into what was very definitely Florentius' competency, when he subsequently produced a careful calculation which apparently showed that the *capitatio* not only sufficed, but actually exceeded what was needed for the *commeatum necessarios apparatus*, the essential supplies.¹⁸⁸ Despite this, Julian was at some stage after this initial row (*diu postea*) presented with some kind of tax-assessment involving an increase, which he refused to sign or even read, hurling it onto the ground instead. Constantius intervened, and, even in Ammianus' scarcely dispassionate telling, all he did was try to persuade Julian to be more respectful of Florentius. On the substantive issue, he appears to have agreed with the Caesar: no supertaxes.¹⁸⁹ Julian even obtained the province of Belgica Secunda as a sort of appanage, his to administer as he wished.¹⁹⁰ This was the beginning, Ammianus says, of the restoration of Gaul.¹⁹¹

¹⁸⁵ AM 17.3.1.

¹⁸⁶ AM 16.5.14.

¹⁸⁷ AM 17.3.2-3.

¹⁸⁸ AM 17.3.4.

¹⁸⁹ AM 17.3.5. cf. Müller-Seidel, 1955, 230; Matthews, 1989, 89.

¹⁹⁰ AM 17.3.6.

¹⁹¹ AM 17.4.1.

Unusually, we can here connect what Ammianus says with a contemporary document: a letter from Julian to Oribasius, written before the emperor's friend and advisor Salutius had left Gaul.¹⁹² In this, he describes rowing with a man (he does not name him) who had often wronged the provincials. The Caesar had turned a blind eye to this before: 'some things I did not hear, others I did not accept, still others I disbelieved, and in several cases I diverted the blame onto his partisans.'¹⁹³ Recently, however, this figure had presented Julian with some *ὑπομνήματα*, which were utterly disgraceful – memoranda which asked Julian to do something, something which affected the provincials. He refused and commented in public that the man would change the memoranda, for they were unacceptable. This caused a phenomenal row and Julian was keen to explain his actions to his medical friend: 'At this point, what was it right for a man who follows Plato's teachings, an ultra of the doctrines of Aristotle, to do?'¹⁹⁴ His concern was for the 'wretched men' who were going to be 'surrendered' (*ἐκδιδόμενους* – the word has a fiscal flavour) to thieves: he contrasted the way that he executed tribunes who abandoned their regiments, with the expectation that he let these robbers go free.¹⁹⁵ The account is simultaneously convoluted and abbreviated, that hallmark of letters, but it sounds an awful lot like a row with Florentius about taxation. The letter is written in the thick of the action, and it is fascinating to see Julian already hurling insults at the prefect, painting him as wicked and greedy. That was not the only thing they argued about, however. When he wrote to Athens in 361, Julian described another row with Florentius in the winter of 357/8.¹⁹⁶ The Caesar had collected a fleet of ships in Britain, which he intended to bring onto the Rhine. To smooth their passage, the prefect proposed to pay 2,000 lbs of silver to the barbarians on the river's course, and Constantius told Julian to accept this unless he thought it utterly disgraceful.¹⁹⁷ Julian did think it was shameful to pay the barbarians for this (as, he implied, would any decent Roman) and so marched against the

¹⁹² Julian, *ELF* 14. The date is tied up with a wish Julian expresses in it: *Τὸν δὲ χρηστὸν Σαλούστιον θεοὶ μὲν μοι χάρισαιντο*. The aorist optative should mean here 'May the gods grant me the noble Salutius!' which I would take to mean 'let me keep him' and demonstrate that the letter antedates his recall, *pace* Bidez and Cumont. Libanius 18.85 puts his departure in the winter of 358/9.

¹⁹³ Julian, *ELF* 14.384d.

¹⁹⁴ *ibid.* 385b.

¹⁹⁵ *ibid.*

¹⁹⁶ Julian, *EA* 279d-280c. *pace* *PLRE* 'Florentius 10', this episode cannot be dated to 358/9 – the order of events and the flow of narrative are in opposite directions.

¹⁹⁷ Bowersock, 1978, 43 makes the subsidy to the barbarians a tribute from them.

Salii and the Chamavi (Frankish tribes who lived on the lower Rhine) and compelled them to beg for peace – these are the campaigns of 358 which fill the pages of Ammianus.

In the crowded and disputatious winter of 357/8, prefect and Caesar clashed repeatedly. The common thread to their arguments was money and two strands can be made out: was the regular tax sufficient for their purposes and how could they ensure that grain ships from Britain had access to the Rhine? It is easy to fall into the assumption that the Caesar was obviously in the right on these issues, the man sticking up for the beleaguered ordinary, decent, tax-paying citizen, while the haughty, venal prefect acted as high-handedly as any arrogant panjandrum ever did, interested only in feathering his own purse.¹⁹⁸ Things may have been a little more complex. The truth of what was going on probably cannot be recovered: late-Roman fiscality will always be a murky topic and after Florentius was declared a fugitive and condemned to death in 361, there cannot have been many who wanted to go through the finer points of Belgian tax law, 358-360.¹⁹⁹ It is certainly not hard to believe that some of Constantius' servants were corrupt or inefficient, and that someone like Florentius, a veteran of the civil war, might have had little sympathy for the Gauls who had funded Magnentius' war machine, or their groans about taxation. Still, as so often in the story of Julian's time in Gaul, it is possible to see other sides to these disputes. Subsidising barbarians to do anything rarely receives a good press in late-antique sources, but there were cases where it clearly made more sense to pay a sum than send out an army. While 2,000 lbs of silver sounds like a fortune, by 361 *praetors* at Constantinople were paying half that annually to fund construction in the city – these were the kind of resources that very well-off private individuals, rather than the super-rich, might muster.²⁰⁰ It was quite a lot of money, no doubt, but can have been little more than a rounding error in the budget of a government routinely sending 40,000 or so men to campaign in Alamannia – it was surely cheaper than dispatching a division to sit on the riverbank and watch the ships sail by. At the very least, Florentius had a case

¹⁹⁸ e.g. Athanassiadi, 1981, 59, 215.

¹⁹⁹ Below, 271.

²⁰⁰ *CTh* 6.4.13.

that Rhine access was worth such sums – it was a matter of judgement, not of obvious rights and wrongs, especially if the Gallic army was normally fed with British grain.²⁰¹

Similarly, in the context of the late 350s, the idea that taxes needed to go up in Gaul does not look as outrageous or disgraceful as Ammianus and Julian would have us believe. For four straight years, there had been military expeditions on the upper Rhine, involving tens of thousands of soldiers. These were not cheap – boots, weapons, food were needed in quantity. The costly and laborious work of reconstruction, new forts and new walls, continued in the background. There was a more general fiscal squeeze at the time. 357 had seen an expensive imperial visit to Rome and Constantius had then rushed off to Illyricum, where trouble threatened.²⁰² It looked as though 358 would see the Romans fighting in Gaul, Raetia, Moesia, and Pannonia at the same time, operations along several hundred miles of the frontier. There were many new demands on the imperial purse at the time and the administration was already struggling to keep the Gallic armies fed and supplied. *Prima facie*, Florentius' view that taxes would need to go up sounds reasonable, all the more so if we combine the two rows which the sources so studiously separate. If supplies from over the Channel could not nourish the Rhine army, then all the grisly and boring work of border war had to be sustained by Gaul alone. Florentius had a strong (almost axiomatic) case that either the subsidy had to be paid, or one had to stomach the possibility of tax rises – if you did not have British grain, then you needed to squeeze the Gauls for whatever you lacked. Like many a frustrated civil servant over the years, he set out some options and it was not his fault if the minister did not like any of them.

We do not, however, have to confine ourselves to theoretical ruminations on who might have had the stronger case. We can just examine the next campaign season. In 358, Julian was waiting in Paris, planning to set out against the Alamanni in July. With grim predictability, he was delayed by the fact that supplies had to make their way from Aquitania (overland) and the slow progress of the wagons foreshortened the campaigning season.²⁰³ Conscious that he was idling away, Julian decided

²⁰¹ Libanius, *Or.* 18.83; AM 18.2.3.

²⁰² AM 16.10.20.

²⁰³ AM 17.8.1, note in particular *veheretur annona*.

on a lightning expedition in May and June.²⁰⁴ He took food for twenty days with him (there may not have been more available) and set out for the north, the mouth of the Rhine, and the world of the Franks.²⁰⁵ After swift campaigns against the Salii and Chamavi (who seem to have thought they were at peace with Rome), he settled in to rebuild three fortresses on the Meuse.²⁰⁶ He filled these positions with the supplies he had brought from Paris, hoping that his men would be able to satiate themselves from the harvests of the Chamavi.²⁰⁷ This was a mistake – the crops were nowhere near ripe. Ammianus makes this all seem like a case of bad luck (‘things turned out in a very different way’), but in truth it is hard to understand the Caesar’s plan.²⁰⁸ The date of the harvest was not some great secret which Julian discovered a little too late: it is basic fact of agriculture in northern Europe that the wheat harvest is in August and early September. It is difficult not to conclude that Julian was hoping naively that something would turn up. If he had more supplies at Paris and did not take them, then he was irresponsible, and if he did not, then Florentius was right that they were short of *matériel*. The troops began to mutiny as they got hungry and abused Julian as an Asian, a deceitful little Greek, an idiot who seemed wise.²⁰⁹ They raged at the wretched death by hunger which threatened and complained that they not been paid for years.²¹⁰ Ammianus draws the reader away from this episode, hardly a comfortable one for Julian, with some commentary which avers that the soldiers’ complaint was true. They had not been paid since 355 at least: no donatives, not even their worthless *stipendia*. Constantius provided no money, Julian had no funds of his own, and his expenditure was tightly controlled.²¹¹ Ammianus produces an anecdote about the Caesar being rebuked by the *notarius* Gaudentius for giving a soldier a coin for a shave.²¹²

This was all a conspiracy, we are told: Julian was barred from making any donatives to the troops in the hope they would resent and ultimately kill him.²¹³ One does not, however, have to look

²⁰⁴ Libanius, *Or.* 18.75.

²⁰⁵ AM 17.8.2-3.

²⁰⁶ AM 17.8.3-5; *cf.* Julian, *EA* 280b-c.

²⁰⁷ AM 17.9.2.

²⁰⁸ AM 17.9.3.

²⁰⁹ AM 17.9.3.

²¹⁰ AM 17.9.4-5.

²¹¹ AM 17.9.6.

²¹² AM 17.9.7.

²¹³ AM 22.3.7.

very far to find anecdotes which suggest Ammianus was being a little economical with the *actualité*. He himself tells us that when Julian was sent to Gaul, Ursulus, the *comes sacrarum largitionum*, had ordered those in charge of the treasuries in the region to give the Caesar what he demanded.²¹⁴ In passing, he mentions eunuchs who were bringing Julian money in the winter of 360, in an offhand way which suggests this was not unusual.²¹⁵ He describes Julian handing out gold to the *agentes in rebus* and other officials.²¹⁶ Libanius too speaks of cash bonuses, in this case for handing over barbarian heads.²¹⁷ When Julian and St Martin had their epochal meeting, it was at a military assembly where the emperor was handing out donatives.²¹⁸ It is fairly clear from all this that Ammianus' claim Julian had no resources was, to put it mildly, rather misleading. There cannot have been an empire-wide halt to paying the army in the period (we would hear about it), and Constantius kept minting gold and silver in quantity (primarily used for largesse to the troops) after 355.²¹⁹ Yet, it is difficult to believe that the statement Ammianus puts in to the mouths of the troops is an outright falsehood. It is hard not to conclude that the problem was confined to Gaul and that Julian did not have enough cash on hand to pay his soldiers. Florentius, it turns out, was right all along: they had run out of money. One can indeed see why the courtiers of Constantius abused Julian as a 'purpled ape ... sluggish, cowardly, suitable for the schoolroom, a man who adorned his inferior deeds with polished words'.²²⁰ The emperor's decision to remove Salutius in 358/9, after he was mixed up in another row between Florentius and Julian, normally portrayed as a sign of malevolent suspicion, looks more like a belated sop to the prefect from Constantius, trying to keep the mean between his argumentative cousin and his exasperated servant.²²¹

²¹⁴ AM 22.3.7.

²¹⁵ AM 20.8.4.

²¹⁶ AM 16.5.11.

²¹⁷ Libanius, *Or.* 18.73.

²¹⁸ Sulpicius Severus, *Vita sancti Martini* 4.1.

²¹⁹ Amply documented in *RIC* VIII, *e.g.* (from western mints only) 220-225 (Arles), 275-9, 295-8 (Rome), 335-7 (Aquileia).

²²⁰ AM 18.11.1.

²²¹ Libanius, *Or.* 18.84-6, *cf.* Julian, *Or.* 8.242a, d, 243b. Athanassiadi, 1981, 69, 70.

Conclusions

So much for specifics. That least controversial portion of Julian's career turns out to be far from straightforward. Our sources are unanimous in presenting it as very successful, the period in which Julian won famous victories, began to flex his muscles in administration, showed first that ascetic desire to reform the Roman state, and present, after the miserable tale of civil war and imperial strife, a sudden an optimistic story of vigour, energy, decency, and victory. It was the argument of the previous chapter that this was a distorted image, warped by the influence of Julian's civil war propaganda and manipulated to suggest certain conclusions. If Ammianus really has disappeared an entire campaign, or our sources have occluded the fact that Julian's first victories were closer to civil strife than foreign war, then their debt to the last pagan emperor is deeper than one of mere affinity. If we strip away the distortions of Julian's propaganda in 361, read the sources against the grain of what he desperately wished to be true, then an entirely different portrait of his time in Gaul emerges.

When Julian crossed the Alps, he came as the heir-apparent to the whole Roman world, the second man in the state. Throughout his time in the region he enjoyed the strong and often public support of Constantius, who looks rather more like the careful and thoughtful emperor we have met before than the monster of paranoia. Julian's record as a soldier was indifferent: by accident and entirely in spite of his own efforts, he escaped with the credit for a great Roman victory. When it came to the business of government, his signal intervention appears to have been misguided, and the gap between his high moral tone and the awkward consequences of the policies he supported is precipitous. In both military and administrative affairs, he managed to row with almost everyone whom Constantius sent to him, and in truth, they were generally in the right on whatever topic he chose to dispute. He was, in sum, a bit of a *medius princeps*, a figure far removed from the ecstatic comparisons of Ammianus or Libanius. As 359 gave way to 360 and Julian, like an earlier and very different Caesar, brooded on revolution in Gaul, it would be best to keep that in mind.

REVOLT AND ITS CONSEQUENCES

Julian had a soft spot for Paris.¹ In general, Gaul was disappointingly barbarous, the inhabitants Greekless and the climate harsh, but the small island town, reached by bridges over the Seine, was a place for which he later evinced a certain fondness.² The river water was sweet and clear, the winters were generally mild, and one could find there the little vital fragments of Mediterranean civilisation which made life bearable – vines and even local figs.³ He spent five long years in Gaul and it was in Lutetia, where he wintered in three of them, that he was most intimately exposed to the region's inhabitants and they to him. Over time and perhaps especially in retrospect, familiarity bred something like affection: the Celts were boorish for sure, but they were not as irritating or as irritable as the Antiochenes and they had been more willing to tolerate the idiosyncrasies of their strange, babbling, fidgety Caesar.⁴ He quite liked some of them personally and even, when it suited him, claimed a special kinship with the Gauls.⁵ As he ruled them, Paris was (for want of a better word) his capital: not the vast orderly modern metropolis but the squeezed little Gallo-Roman *oppidum*, with some Flavian accoutrements (a bishop, for instance).⁶ It was a narrow urban stage for an emperor – never before much graced with their attention – an unlikely place for history to be made. In 360, however, it briefly became the cockpit of the world, as Julian took his first tremulous steps to supreme power.

How did that happen? On first inspection, everything is murky. We have to peel back the shifting mass of rumour and implication which the sources offer. Julian turned his elevation into an accident and cast himself as the unwitting and unwilling beneficiary, guilty, at worst, of vaulting onto a gift-horse whose dentistry he had not adequately inspected. He presents what happened as the unintended consequence of a series of events which embodied everything that was wrong about

¹ *cf.* the interesting study of Casella, 2009.

² Julian, *Misopogon* 340d (*cf.* AM 15.11.3).

³ Julian, *ibid.* 341b.

⁴ Julian, *ibid.*, 342a-b.

⁵ Julian, *Or.* 8.252a.

⁶ *PCBE* IV.2 'Victorinus 1', 1950.

Constantius, his style of government, and his treatment of his cousin.⁷ Ammianus and Libanius follow the route which he marked out with uncanny precision, picking their way over the difficult narrative terrain, gripping the points which he had emphasised.⁸ We are meant to believe that Julian acquired his empire in a fit of absence of mind. It is not hard to see that this self-serving miniature epic, framed in 361 to explain away some awkward facts, is not quite the truth. More insidious is the sense of inevitability which shrouds the episode, the idea that Julian, the rising emperor, and Constantius, the dimming paranoiac, were always going to fall out – as we have seen, there is little reason to think that.⁹ Yet, a more nuanced understanding of Julian's achievement in Gaul and a more sympathetic estimate of Constantius raise new questions: if he was not the paragon of virtue which the sources claim, how did he come to be emperor? Why did the troops whom Julian had so nearly led to disaster at Strasbourg raise him on their shields? Hard on the heels of usurpation followed a civil war which sprawled from the Danube to the gates of Constantinople. At the end of that, Julian found himself emperor. To understand the tumultuous *biennium* which saw the Roman world turned upside down, it is vital to begin with a clear-eyed vision of how it all began on the banks of the Seine. The events of that long winter night on which he was proclaimed Augustus sit at the centre of a maze of questions which are crucial to understanding his career. Finding a route through them is no easy task.

One Night in Paris

In early 360, the *tribunus et notarius* Decentius arrived at Julian's headquarters from the east, bearing orders to withdraw troops from Gaul, responsibility for which was given to Lupicinus, the *magister equitum*, and Sintula, the *tribunus stabuli*.¹⁰ In Julian's telling, this was the moment when the ever present drumbeat of Constantius' suspicion reached its crescendo. His cousin in letters 'full of dishonour for me and threats for the Celts' demanded 'without distinction almost all the most

⁷ Above, 180.

⁸ Above, 192-3.

⁹ As e.g. Szidat, 1997, 65-6.

¹⁰ AM 20.4.2-3, cf. Julian, EA 283c. PLRE 'Decentius 1'.

warlike soldiers', aiming to deprive the Caesar of his army entirely.¹¹ Julian suggests no reason for this beyond inveterate suspicion, but Ammianus and Libanius make clear that they were allegedly intended for the Persian war – a mere pretext.¹² None of these interlocking claims deserves much credence, not that they have always been disbelieved.¹³ Start with context: when the request arrived, everything suggested that the Augustus and heir were cooperating, as they had throughout the mid and late 350s. In 360, Constantius and Julian were to share the consulship for the third time and this had evidently been planned some time in advance.¹⁴ Constantius clearly thought things were harmonious, for he chose 359/60 to finally move back east, after seven years in Gaul, northern Italy, or on the upper Danube.¹⁵ Moreover, he clearly intended to stay there. For most of his reign, Constantius had spent very little time in Constantinople, his visits brief and almost perfunctory.¹⁶ In the 350s, however, we can detect the first stirrings of a revived interest in Constantinople. We find the relics of various saints being transferred there: the Apostles Timothy, Andrew, and Luke.¹⁷ The grain dole (cut sharply after the riots of 342) was restored and the senate hugely expanded, Themistius fishing through the eastern provinces and dragging back great hauls of notables to swell its ranks from 300 to 2,000 (he claimed).¹⁸ The city was given an Urban Prefect (to match Rome) in 359.¹⁹ One has the slight sense that Constantius was planning to settle into this Christian metropolis, stuffed with men who owed their new dignity to his generosity – a comfortable perch from which to run the empire, as he slipped into late middle age. All this is hardly an index of mistrust. In mid-to-late 359, Constantius was engaged in the fiendishly complex business of the Church. Councils met at Seleucia in Isauria and Rimini in Italy, the massed bishops sweating in the long hot summer, as they were not-so-gently shepherded towards agreeing on a creedal formula. In between receiving

¹¹ Julian, *EA* 282d.

¹² Libanius, *Or.* 18.91, *cf.* 12.58; *AM* 20.4.2.

¹³ *e.g.* Vogler, 1979, 51-2; Athanassiadi, 1981, 70-71; Smith, 1994, 3 'increasingly suspicious'; Drinkwater, 1983, 377; Frakes, 2012, 102.

¹⁴ *ICUR N.S.* 5.13309 (21st of January 360).

¹⁵ Barnes, 1993, 223.

¹⁶ Barnes, 1993, 219-224.

¹⁷ *CC s.a.* 356-7.

¹⁸ Themistius, *Or.* 34.13. Interpretation of the passage is (famously) disputed, I follow Skinner, 2008 on the institutional history, superseding earlier arguments. Penella, 2000, 219, n. 19 is an excellent guide to past debate over what exactly Themistius is claiming here.

¹⁹ *CC s.a.*

deputations of bishops, the emperor had campaigned in the Balkans.²⁰ It had taken time and good deal of arm-twisting to arrive at something like consensus. That winter, Constantius had headed back to Constantinople and he was in his father's city as a final council set the ecclesiastical world in order – for the moment, he appeared quite spectacularly to have got his way.²¹ For a man allegedly obsessed with plotting to topple his Caesar, he had plenty else to keep himself busy. As ever, if we can, even for a moment, tear our gaze away from Julian, it becomes hard to believe that he occupied as much space in Constantius' thoughts as he supposed.

Nor was Constantius' demand for troops as extreme as Julian implied when he said that he was to be left without an army.²² Ammianus offers a precision which allows us to unpick the hysterical claims made about the request: Constantius had asked for the *Aeruli*, *Batavi*, *Celtae*, *Petulantes*, and 300 men from every other unit.²³ This was not a tiny force, but it was not the entire Gallic army either. We cannot put together a comprehensive reckoning of Julian's forces, but we can get a sense of some of the regiments he did have: the *Gentiles*, *Scutarii*, *Cornuti*, *Brachiati*, *Reges*, *Primani*, two regiments of *Moesiaci*, some *Balistarii*, *Cataphracti*, and *Sagitarii* (who seem to be specific units rather than generic troop types), along with the four for which Constantius asked.²⁴ At most, if by some miracle we have the names of every unit Julian commanded, he was being asked for perhaps 2/5ths of his field army – more plausibly, Constantius wanted around a quarter of it.²⁵ This was certainly a major commitment, but to withdraw those regiments was not to leave Gaul defenceless in the face of the barbarians. Whatever Libanius and Ammianus claim, the idea that Constantius did need reinforcements is also far from ridiculous. He had spent much of 358 at war on the Danube, fighting with the Quadi, Sarmatians, and Limigantes.²⁶ He had won a series of victories and made the tribes settle, but in 359 he had to return to deal again with the Limigantes: he was

²⁰ Athanasius, *DS* 52.2; Libanius, *Ep.* 125.1.

²¹ See Barnes, 1993, 144-9 for these events, with 223 for his movements; cf. Elm, 2012, 42 ff. esp. 48.

²² Above, 180. *contra* Libanius, *Or.* 18.90, 12.58, followed by e.g. Bowersock, 1978, 46-7, Athanassiadi, 1981, 71. cf. Müller-Seidel, 1955, 227-8.

²³ AM 20.4.2.

²⁴ AM 16.4.1, 12.43, 45, 49, 20.1.3; 16.2.5, 12.7 (cf. *ND Occ.* 7.75, 97, 200). cf. Tomlin, 1972, 266-269.

²⁵ Note that when the *ND* was composed there were 59 units in Gaul *Occ.* 7.64-110, 166-178.

²⁶ Described in AM 17.12-13.

nearly killed in an ambush which led to a fierce battle.²⁷ While this was going on, Shapur was making his most determined attempt since 350 to shake the Roman east. Quite by accident, he ended up spending seventy-three days besieging the fortress town of Amida, losing nearly 30,000 men in the attempt – Ammianus imagines him brooding on the way that, as so often in the past, his army's wounds were more grievous than those of his enemy.²⁸ His grand campaign had yielded him one city and a heap of corpses: he was certain to return. The Romans would need an army to resist him and they had not got off lightly, for the town had been stuffed with troops: seven legions and a cavalry detachment: all lost when the city fell.²⁹ The bulk of these were Gallic in origin, units from the army of Magnentius sent east because Constantius did not trust them. In 359, then, not only did the army in the east need reinforcements, but the obvious place to look for them was Gaul. As the emperor spent the winter building up the strength of the legions, preparing for war in Mesopotamia in the spring, it is easy to imagine him hoping for an infusion of strength from the under-occupied army on the Rhine.³⁰

All this is to say that in 360 there was no dreadful dilemma, no sudden climax of long-nourished tensions. The mood of crisis which the sources evoke, the idea that Julian was in an impossible situation, faced with a menu of unpalatable choices is entirely fictive. That did not mean the situation was entirely without difficulties. Florentius, the praetorian prefect, and Lupicinus, the *magister militum* to whom management of the withdrawal had been entrusted, were both far away from the Caesar. It was no small task to send thousands of men thousands of miles from home to fight on a strange and distant frontier and Libanius imagines the pitiful scene of soldiers' wives and concubines holding children before their menfolk, begging them not to go.³¹ A number of recruits to the army in Gaul were drawn from *barbaria* and some of these at least had received assurances when they signed up that they would not have to cross the Alps – they might reasonably object to being

²⁷ AM 19.11.

²⁸ AM 18, 19, esp. 19.9.8-9.

²⁹ AM 18.9.3-4.

³⁰ AM 20.8.1; cf. Warmington, 1977, 516.

³¹ Libanius, *Or.* 18.95.

sent to the Euphrates.³² It is hard to get a sense of how large an obstacle this really was. Magnentius, after all, had marched huge armies, with plenty of *barbari* in them, down into the Balkans.³³ Julian was, only a year later, to lead a Gallic army towards Thrace and he does not seem to have found the issue a real stumbling block.³⁴ It is certainly easy to see that this could be a problem, but it looks like a fairly minor one – all the more so in 359 when commanders might exercise some discretion over who was sent east.

One thing, however, is clear from Ammianus, who gives the most developed account of the issue: the problem was, in the first instance, confined to the mind of Julian.³⁵ When the request came in, he began to worry that if such troops were made to go east, then in future it might prove hard to attract recruits from over the Rhine. Now, this was perhaps a risk, but it was quite a remote one, both in the sense that it hinged on a series of contingencies and that it lay far in the future. It is easy to see why the officials and soldiers supervising the withdrawal thought it ‘of little importance’ – in the context of 359 it was not very important.³⁶ That was presumably why they found Julian’s subsequent behaviour so baffling: ‘It was my intention that, when I had thrown off every mark of imperial magnificence and power, I would be at leisure and do nothing whatsoever’.³⁷ Ammianus, surely derivative, speaks of how Julian wrote to Florentius that ‘he would hurl down of his own free will the emblems of his imperial power, thinking it glorious to encounter death by an order, than to be assigned the destruction of the provinces’.³⁸ Without the atmosphere of menace which pervades the sources, without the idea that the request for troops was obviously a pretext for something worse, this was a quite extraordinary overreaction. Whatever Julian claimed, the measure did not obviously threaten ‘ruin to the Gauls’ – the whole thing is reminiscent of his behaviour in the storm over taxation in 358, turning an issue on which reasonable people could disagree into a battle for Rome’s soul. He was creating a row out of nothing.

³² AM 20.4.4.

³³ Julian, *Or.* 1.34c-35a.

³⁴ Below, 258 *ff.*

³⁵ AM 20.4.4.

³⁶ AM 20.4.5.

³⁷ Julian, *EA* 283a.

³⁸ AM 20.4.8.

That is what makes the events which followed so intriguing. A letter suddenly materialised, addressed to the *Celtae* and *Petulantes*. It was full of attacks on Constantius and lamentations over the betrayal of Gaul, bemoaning the way that the troops would be dragged to the ends of the earth and have to leave their loved ones behind. It dwelt also on the dishonour which the measure threatened to do Julian.³⁹ This is all highly suspicious – letters do not write themselves, after all. Discontent was not spontaneously bubbling up among the common soldiers – someone was trying to whip them up. The two regiments were in a town near Paris, far from the front but close to Julian, and these were exactly the complaints which he had been making about the withdrawal of the troops, the cocktail of views which he alone seems to have held.⁴⁰ The pamphlet emerged at exactly the moment when Julian had magicked a crisis out of nothing. Ammianus is swift to assure us that when the tract was brought to Julian and read out in the *comitatus*, he pronounced its contents ‘reasonable’ and proceeded to ingratiate himself with the soldiers by granting them the use of the *cursus clavularis* for their journey to the east.⁴¹ Who had written and sent this missive? The case is entirely circumstantial, but surely, the finger of suspicion points at Julian.⁴²

The bureaucrats around the Caesar, Pentadius, the *magister officiorum*, Nebridius, the *quaestor*, and Decentius, pushed for the troops to be sent on immediately, before anything else could happen.⁴³ Which troops, exactly, we might ask? Libanius keeps things general, suggesting with a slightly hysterical emphasis that the entire Gallic army were being sent via Paris, and most reconstructions envisage a huge expeditionary force, slowly unfurling itself into the city.⁴⁴ In fact, things seem to have been on a much smaller scale. In Ammianus’ account, Julian was waiting anxiously for his prefect and general and had begun to make arrangements for the departure of the soldiers, when the anonymous letter materialised in the camp of the *Petulantes*.⁴⁵ It was after that letter was brought to Paris that the decision to move *eos* was taken: that was when Julian granted

³⁹ Julian, *EA* 283b; *AM* 20.4.10.

⁴⁰ Julian, *EA* 283b for their location.

⁴¹ *AM* 20.4.10.

⁴² Its authenticity is assumed by *e.g.* Bowersock, 1978, 51.

⁴³ Julian, *EA* 283c. *PLRE* ‘Nebridius 1’, ‘Pentadius 2’; Decentius, above 236.

⁴⁴ Julian, *EA* 284a; Libanius, *Or.* 18.96. *e.g.* Bowersock, 1978, 48 ‘all the men to be dispatched to the east’; *cf.* Drinkwater, 1983, 382.

⁴⁵ *AM* 20.4.9-10.

‘them’ use of the *clavularis cursus* and ordered them to set out.⁴⁶ So, when ‘the same men arrived’ (*isdem aduentantibus*) at Paris, the logical inference is that Ammianus is talking about only these two regiments turning up.⁴⁷ That matches Julian, who contrasts τὰ τάγματα, the *Celtae* and *Petulantes*, with τοὺς ἄλλους ἀριθμοὺς – it is only the former who arrive in Paris.⁴⁸ Sure enough, in recounting the course of Julian’s elevation, the only unit mentioned by name is that of the *Petulantes*.⁴⁹ In its aftermath, when a plot against Julian was alleged, someone from the palace hastened to the spot where the standards of the *Celtae* and *Petulantes* were located, and when Julian gave an address to the assembled troops the day after his elevation these regiments were the ones which asked him for favours.⁵⁰ The only other soldiers whose presence is mentioned at any stage are the *protectores domestici* – Julian’s bodyguard.⁵¹ That only two regiments were involved casts an interesting light on the argument over the route. All the sources which cover the episode in any detail lay careful emphasis that the choice of this was not made by the Caesar, even claiming he was overruled.⁵² It is not hard to see why – there could be no more signal indicator of his good faith or the utterly unintentional nature of his proclamation than the fact that he had wanted the soldiers as far away as possible. If, however, the only regiments being sent off at once were two garrisoned near Paris, then Julian’s suggestion that they avoid the city on the Seine looks bizarre rather than cautious: he must have known it would be rejected.

As the troops arrived on their journey east, Julian addressed them from his ‘usual tribunal’ in the suburbs of the city.⁵³ The Caesar reminded them of their deeds of valour, deeds they had done with him, praised them, and carefully dripped into their ears the idea that this was all the work of Constantius. He then invited the *procures* of the regiments to sup with him at once and, famed as he was for the austerity of his private life, liberally entertain them – he was careful to omit this detail

⁴⁶ AM 20.4.11.

⁴⁷ AM 20.4.12.

⁴⁸ Julian, *EA* 283b, 283c, 284a.

⁴⁹ AM 20.4.18.

⁵⁰ AM 20.4.20; 5.9.

⁵¹ AM 20.4.21.

⁵² Above, 193

⁵³ Libanius, *Or.* 18.97; Julian, *EA* 284a; AM 20.4.12.

from the *Letter to the Athenians*.⁵⁴ They departed from his table to their camp – it was no accident that they were replete and mourning the loss of so mild a ruler. Magnentius had also found it surprisingly easy to be proclaimed Augustus after a bibulous dinner party. At sundown, the disorder began.⁵⁵ As the troops were drinking and taking their evening meal, their officers moved among them, distributing anonymous notes which detailed how their dispatch to the east was part of a plot against Julian, Constantius intending to gradually strip him of his army.⁵⁶ This roused the soldiers to fury and they began ‘suddenly’ (in Julian’s words) to surge around the palace.⁵⁷ This is all characterised by the sources as spontaneous disorder: *apertum discidium* in Ammianus’ collocation, the troops hailing their commander as Augustus with a fearful din.⁵⁸ There was a flavour of perfunctory ritual to what followed: Julian could not be seen to roll over too quickly; he had to give the impression he did not want this and the troops had to keep insisting that he did. He went to the upper part of the palace, prayed, rested, and made them wait until dawn.⁵⁹ He then appeared before them: they renewed their clamour and ‘with the firmest resolve declared him Augustus’.⁶⁰ He put up a bit more of a fight, remonstrating with them, saying that he would write to Constantius, moderate the demand that they go to the ‘foreign lands with which they were not acquainted’, a doubled edged promise if ever there was one.⁶¹ The troops did not relent – Libanius, keen to emphasise Julian’s coercion, even makes them break down the doors of the palace and drag him out with drawn swords.⁶² Eventually the Caesar felt himself compelled to give in: he was raised on a shield and crowned with a standard bearer’s necklace; this unusual diadem necessary because Julian, of course, had not had anything suitable on hand.⁶³ He promised the soldiers five *solidi* and a pound of silver each.⁶⁴

⁵⁴ AM 20.4.13.

⁵⁵ Julian, *EA* 284b; AM 20.4.13; Libanius, *Or.* 18.97.

⁵⁶ Zosimus 3.9.1, unless this is a mangled account of the earlier letter.

⁵⁷ *ibid.* 9.2. Julian, *EA* 284b.

⁵⁸ AM 20.4.14.

⁵⁹ Julian, *EA* 284c.

⁶⁰ AM 20.4.14.

⁶¹ AM 20.4.16.

⁶² Libanius, *Or.* 18.98, *cf.* Zosimus 3.9.2.

⁶³ AM 20.4.17-18. Julian, *EA* 284d; Libanius, *Or.* 18.99.

⁶⁴ AM 20.4.18.

To understand how Julian came to be made Augustus, it is vital to emphasise the human scale on which everything happened. The situation was almost intimate. When Julian addressed the arriving troops, he was not just performing the part of the orator while vast columns roared past – he was speaking to a couple of thousand men. Many, perhaps most of them, would have been able to hear his stammering Latin. When he invited their officers to dinner, it was not some raucous banquet at which the tribunes alone formed a mob. Julian must have been with the regimental officers, the *primicerii*, *senatores*, *ducenarii* and so on and so on.⁶⁵ If they left dinner melancholy, it seems likely that the emperor had set the mood. Equally, the stage on which this particular drama was acted was minute. Paris was a tiny little city, wedged onto an island in the middle of the Seine, not some vast metropolis like Alexandria, of which the government could easily lose control. When the troops began to stir in their camp in the suburbs, it would have been immediately obvious from the walled town what was going on. It would probably have been possible to bolt the gates and bar the bridges which led to this little *castellum* – it was meant to resist sieges, after all.⁶⁶ The sources work hard to evoke a crowded and chaotic scene, a sort of scrum in which an Augustus emerged quite by chance – the true situation in Paris was quiet, contained, and controlled. Again, the case is circumstantial, but it is hard not to conclude that the officers and men so assiduously courted by Julian were doing exactly what he wished of them.

It looks very much as though Julian was responsible for his elevation as Augustus – not in the sense that he had accepted it when it was dropped into his lap by his fumbling cousin, but in the sense that he had carefully contrived it. He cut a crisis out of whole cloth, whipped up the troops, and arranged a suitable stage in the city on the Seine. There are other hints that Julian usurped power with malice aforethought. If he actually paid the donative which he promised, then he had a good deal of gold and silver on hand for a man who was chronically short of money: just in case, no doubt. He had sent Sintula and some of the troops on ahead from Paris, thus getting rid of the senior officer on the spot, someone Constantius trusted, the man most likely to get in the way of any ‘spontaneous

⁶⁵ Ranks: Jerome, *Contra Iohannem* 19.

⁶⁶ AM 15.11.3.

disorder’.⁶⁷ Sintula’s superior, Lupicinus, was in Britain and Julian soon had a man at Boulogne, preventing people from crossing the channel to warn him – the general returned ignorant of the revolution.⁶⁸ It is quite a way from Paris to Boulogne – several days of hard riding, and we might wonder how Julian had got someone there so quickly as to control the flow of news. All this quietly suggests that Julian had been planning what happened at Paris for some time – at least since that note had surfaced in the camp of the *Petulantes*.

We might even push his machinations back some time before that. The request for troops did not burst out of nowhere, for the idea had been in the air for some time: Julian had some advance inkling of the call for aid which he later claimed to find so outrageous.⁶⁹ What might he have done with such information? For any plot to succeed, the two individuals Julian most wanted out of the way were Lupicinus and Florentius. Lupicinus’ career before his time in Gaul is obscure and, imprisoned by Julian in 361, he got a poor press from Ammianus as arrogant, but he was clearly a formidable soldier: ‘truly warlike and skilled in military matters’.⁷⁰ Florentius was an old and trusted associate of Constantius, a man who could be relied on to take the emperor’s part.⁷¹ In early 360, as events reached a crisis, both were curiously far away from Julian. He made a great show of missing their advice, but he carefully avoids explaining their absence.⁷² Ammianus provides more detail: Lupicinus was in Britain because the Scots and Picts were probing the frontiers and Julian had sent him there.⁷³ No doubt it was simply by chance that the senior general in Gaul, the man entrusted with overseeing the dispatch of troops to the east, was away just as Julian was proclaimed. Florentius was in Vienne gathering supplies, the decision to go there his own, we are assured: he was worried that disorder would attend the withdrawal of the troops.⁷⁴ This is all highly suspicious.⁷⁵ For a man allegedly sure that some storm was soon to break around the Caesar, he seems to have left his family

⁶⁷ AM 20.5.1.

⁶⁸ AM 20.9.9.

⁶⁹ AM 20.4.7, 8.20.

⁷⁰ Julian, EA 281a; AM 20.1.2, 9.9. *cf.* Libanius, *Or.* 1.164.

⁷¹ Above, 50 *e.g.*

⁷² Julian, EA 283a.

⁷³ AM 20.1.2.

⁷⁴ AM 20.4.6, 8.20.

⁷⁵ *cf.* Müller-Seidel, 1955, 228, 235.

in the *comitatus*.⁷⁶ Julian would later go to Vienne on his way to the east, and it is awfully convenient that supplies had been gathered there in advance.⁷⁷ Knowing that some kind of demand was going to come from the east, Julian had managed at the start of 360 to get rid of the two men most likely thwart any revolution.⁷⁸ He must have been planning his elevation in detail from 359, perhaps even earlier. In that long letter to Oribasius which offers an account of the row with Florentius over taxation, Julian describes a recent dream. He had seen two trees in a vast dining room, a great one that lay stretched out on the ground and a small one, flourishing and young. He was in agony that the little one would be dragged off with its fallen neighbour, but a voice reassured him that it was firmly rooted.⁷⁹ It is not hard to work out that the great tree is Constantius, ready to topple over, and the little one Julian. One does not need a Freudian framework for the interpretation of dreams to see this vision as expressing his desire.⁸⁰

What happened Paris was no accident. From 358 onwards, Julian had been meditating on the idea that he might rise to a rather grander position than that which he held, and he chose his moment carefully. In 360, his cousin was finally back in the east, after a *quinquennium* when he always slightly too close to Julian for comfort. The cold war with Persia had again turned hot and, as Shapur massed his armies for another swipe at Roman Mesopotamia, it must have looked as though Constantius would be tied up on the eastern frontier for some time. That war had required manpower on a huge scale in the 340s and the need for reinforcements after the fall of Amida was obvious – they would have to come from Gaul. Julian had found his pretext. He got rid of Lupicinus and Florentius and waited for the request for soldiers to arrive. When it did, he created a storm over nothing, and used that, mediated through an anonymous tract, to stir up some nearby regiments. He carefully contrived to have them arrive at a small and out-of-the-way-town, the ideal stage for what

⁷⁶ AM 20.8.21-2.

⁷⁷ Below, 254-5.

⁷⁸ *contra* Athanassiadi, 1981, 72, they had not ‘washed their hands of the situation’.

⁷⁹ Julian, *ELF* 14.384a-c.

⁸⁰ Some, *e.g.* Barnes, 1998, 144-5, Athanassiadi, 1981, 63-6, Curta, 1995; Elm, 2012, 73-4, have detected further subversive content in Julian’s roughly contemporary *Or.* 2, but *n.b.* the scepticism of Drake, 2012.

happened next, a place where he could manipulate men and events to suit his purpose. What happened at Paris was a carefully planned coup.⁸¹

Negotiations

The immediate aftermath of the elevation was chaotic. Julian acted with private modesty, refusing to wear the diadem or appear in public, and secret cunning: a *decurio* from the palace rushed to warn the troops that there had been a plot against their new emperor, that he was already dead, murdered by those loyal to Constantius.⁸² The soldiers, armed and furious, stormed in, scattering Julian's guards and their commander Excubitor, and demanded to see the emperor in the flesh.⁸³ They were persuaded only with difficulty not to slaughter those allegedly responsible for the plot – a useful act of intimidation.⁸⁴ When the troops under Sintula had returned to Paris, Julian addressed the assembled army – walled round by the cohorts and their banners.⁸⁵ This was a tense moment – Silvanus had found that a determined officer and a few men were all it took to quash a usurpation. Julian need not have worried: the response to his oration was raucous and approving.⁸⁶ A considerable chunk of the army was in Britain, the rest distributed in winter quarters: Julian's position, master of the only real concentration of troops in Gaul, was secure. In the palace, there were whispers that he had made a mistake, that he should revert to being a Caesar, but Julian had consulted the gods and knew that what he was doing was right.⁸⁷ He set about recruiting soldiers (drawing heavily on the bandits whose origin lay in Magnentius' shattered army) and replacing the governors with men on whom he could count, or (in the language of Libanius) 'good men in place of wretches,

⁸¹ Most accounts, accepting some degree of responsibility for Julian, delay any plotting until rather later: See e.g. Bowersock, 1978, 51, Smith, 1994, 4. Athanassiadi, 1981, 72-4, attempts to acquit him of blame altogether (as, for very different reasons, does Drinkwater, 1983, 370-383); so too Matthews, 1989, 94-8. Barnes, 1998, 154-5 is (rightly) more cynical; the sceptical account of Müller-Seidel, 1955, remains convincing.

⁸² AM 20.4.19-20; Julian, *EA* 285b; Libanius, *Or.* 18.102.

⁸³ AM 20.4.21-22; Julian, *EA* 285b-c.

⁸⁴ Julian, *EA* 285c-d

⁸⁵ AM 20.5.1-2.

⁸⁶ AM 20.5.8.

⁸⁷ Libanius, *Or.* 18.103.

ones with culture in place of those who are stupid'.⁸⁸ As he set about the management of his new domain, the prefect Florentius made a leisurely escape from Gaul, travelling with no great urgency to the east.⁸⁹ Without a prefect or a *magister militum*, Julian's grip on power was effectively unchallenged.

Who were these supporters whom Julian so swiftly promoted in 360?⁹⁰ It is obvious that he could not count on the most senior soldier and official in the west – hence why he had got rid of them before that fateful night in Paris. Equally, the bureaucrats and soldiers around him, the 'spies and sycophants' of Constantius, seem to have been distinctly lukewarm about his actions: no obvious support from Pentadius, Decentius, Sintula, Excubitor, and Nebridius. It is less clear who did back him – those nameless captains of the *Celtae* and *Petulantes* who did the dirty work of usurpation. We do not get any real sense of the wellsprings of his support until the very eve of civil war, when Ammianus gives us a quick round up of his appointments.⁹¹ What he reveals is very interesting. Julian made one Flavius Sallustius praetorian prefect.⁹² He was perhaps a Spaniard, had been a *vicarius* on several occasions (probably under Constans), was certainly a pagan, and was already old in 363.⁹³ He was a career bureaucrat, one who had never quite made it to the top of the greasy pole, and, to judge by his name, had humble origins. As *comes sacrarum largitionum*, he chose one Claudius Mamertinus, whose speech of thanks to Julian dances delicately around his own lack of experience in government and who too was relatively elderly.⁹⁴ As *quaestor*, he chose Iovius, an old comrade of Magnentius.⁹⁵ In the army, he promoted Nevitta, a barbarian who as recently as 358 had been merely the *praepositus* of a troop of cavalry.⁹⁶ His other *magister militum* was one Iovinus, of whose career before 361 we are entirely ignorant.⁹⁷ He built a lavish mortuary church at Rheims,

⁸⁸ Libanius, *Or.* 18.104 (*cf.* AM 20.5.9).

⁸⁹ AM 20.8.21.

⁹⁰ *cf.* Delmaire, 1997, 116-8. The evidence for Julian's support flowing from opposition to his cousin's ecclesiastical policies (Brennecke, 1984, 360-7; Barnes, 1993, 153-4, 1998, 82; Elm, 2012, 54) is so thin as to be non-existent.

⁹¹ AM 21.8.1.

⁹² PLRE 'Sallustius 5'.

⁹³ ILS 1254; Libanius, *Or.* 17.22; AM 23.5.4.

⁹⁴ PLRE 'Mamertinus 2'. *Pan. lat.* 3.17.1-2.

⁹⁵ PLRE 'Iovius 1'.

⁹⁶ PLRE 'Nevitta'.

⁹⁷ PLRE 'Iovinus 6'.

decorated with a poetic inscription still extant into the tenth century, and he may well have come from the town – he is the only identifiable Christian.⁹⁸ As *comes domesticorum*, Julian appointed one Dagalaifus, whose name speaks to roots across the Rhine and whose career before 361 is again a mystery.⁹⁹ He had previously made Anatolius, probably an easterner in origin, Greeked at least, his *magister officiorum*.¹⁰⁰ We can add a few names (and they are little more than names) to this list, the mysterious *comites* Libino and Immo, Philagrius, a *notarius*, and Aprunculus, a Gallic orator and prier into entrails.¹⁰¹ What is immediately striking about this group of men is that they came from the western, especially the Gallic, margins of the ruling class, old men who had never quite made it in public life, young officers who had yet to command their first regiment. We might wonder whether more of them than Iovius had had some connection with Magnentius. They were not a particularly impressive, particularly senior, or particularly experienced body of men.

In the sources, the rest of 360 was a long and agonisingly slow period of phoney war, pointless negotiations dragging on when everyone knew that Constantius could never accept what his cousin had done and would soon work to destroy him, as he had always intended.¹⁰² The year's only function was to be an historical dead end, a pause before Julian leapt to supreme power. That is how it has generally been treated: just as events had led inexorably to what happened at Paris, logic dictated that civil war would soon follow.¹⁰³ Read against the grain, however, and with the knowledge that what had happened at Paris was no accident, a very different portrait of the tense period which followed Julian's proclamation comes into focus. Having contrived to make himself Augustus, Julian rejected or sabotaged every attempt to find some negotiated solution. Far from rubbing his hands with ill-disguised glee at the prospect of another civil war, Constantius worked

⁹⁸ Flodoard, *Historia Remensis ecclesiae* I.6. *pace* Matthews, 1975, 419 he must have built the church (*sedem vivacem moribundis ponere membris*). In general, Pietri, 1970, 443–453, though there is no evidence he was a convert (447).

⁹⁹ *PLRE* 'Dagalaifus'.

¹⁰⁰ *PLRE* 'Anatolius 5'. *pace* Jones, Ammianus' *libellis ante respondentem* suggests a rather more humble post than *magister libellorum*.

¹⁰¹ *PLRE* 'Libino', 'Philagrius 2', 'Immo', 'Aprunculus'.

¹⁰² *e.g.* Libanius, *Or.* 18.106.

¹⁰³ *e.g.* Bowersock, 1978, 55, 56 ('unavoidable civil war'); Smith, 1994, 4; Szidat, 1997, 67; Drinkwater, 2007, 257; Elm, 2012, 53–4.

patiently to find some kind of compromise. As 360 drew to a close and the empire edged to the brink of catastrophe, most of the blame could be laid at Julian's door.

The coup's timing was impeccable. When Julian was raised on that unsteady shield at Paris, it was still winter: the pulse of news and rumour had slowed. Early in the year, Shapur unleashed another assault on the Roman east, before Constantius could get to the region.¹⁰⁴ The campaign was more modest than in 359, no exotic central Asian tribes throng the pages of Ammianus, but in some ways it was more successful. In the course of two bloody sieges, Shapur managed to take both Singara and Bezabde, destroying five legions in the process, before being repulsed at Virta.¹⁰⁵ His losses were, as in 359, considerable, but it was clear that Constantius would be tied down in the east for some time. The Persians had garrisoned Bezabde, a forward base perilously close to Nisibis – they would be back. As a stream of messengers threaded their way from Mesopotamia to Constantinople, each carrying some grim report of Shapur's manoeuvres, Julian could pause and think carefully about how he would approach his cousin.

He took his time, so long that he was confident messages had already reached the east informing his cousin of what had happened, before eventually resolving to send Pentadius, his *magister officiorum*, and Eutherius, his eunuch chamberlain, to Constantius.¹⁰⁶ Pentadius was an old associate of Constantius, the *notarius* who had transcribed Gallus' incriminating interrogation, a natural choice for such a delicate mission, but Eutherius, once a servant of Constans, is a more curious emissary.¹⁰⁷ It was he who had gone to the court in the winter of 356 to assure the Augustus that Julian was very loyal indeed, to refute allegations that he had ideas above his station – one could almost believe Julian was mocking his cousin by sending him.¹⁰⁸ This unlikely embassy bore two letters: a private one for Constantius, 'reproachful and caustic', and a public statement of Julian's position.¹⁰⁹ Ammianus had actually examined the latter and purports to give its *sensus*.¹¹⁰ What he

¹⁰⁴ AM 20.6.1, 9.

¹⁰⁵ AM 20.6, 7.

¹⁰⁶ AM 20.8.1-2, 19.

¹⁰⁷ *PLRE* 'Pentadius 2'.

¹⁰⁸ Above, 211.

¹⁰⁹ AM 20.8.18.

¹¹⁰ AM 20.8.18. *pace e.g.* Bowersock, 1978, 52, there is every reason to think the letter a Julianic fragment.

tells us is fascinating, the letter a rehearsal of the themes which would dominate Julian's propaganda in 361. He began by suggesting, slightly elliptically, that he had been faithful, and with greater clarity that he had been valiant and successful – first to the fray and last to camp.¹¹¹ He blamed the soldiers for what had happened: worn down by hard warfare, inadequately rewarded, about to be dragged to the ends of the earth they had done what they had long intended and made their Caesar Augustus.¹¹² When they had surged round the palace at night, he had tried to hide, to calm their spirits, but they had turned violent, threatening to kill him. Reasoning that if he said no, another would be found to take his place, Julian reluctantly agreed to be made emperor.¹¹³ He urged Constantius to trust this account, ignore flatterers, and turn to justice (conveniently identified with what Julian proposed). What he urged was to the benefit of the Roman state and, evoking their hereditary connection, he humbly suggested that he was not so keen that what he proposed be done, as that his cousin approve it.¹¹⁴ Finally, he came to terms: Spanish chariot horses for Constantius and some barbarians, *laeti* or *dediticii*, for service in the *Gentiles* and *Scutarii*.¹¹⁵ The Augustus might appoint Julian's praetorian prefect, if they were 'famous for their deeds and their justice', but everyone else was to serve at his pleasure: it was foolish for him to have servants of whose character and inclinations he was ignorant.¹¹⁶ He would not offer any recruits to the eastern armies: it was simply impossible for Gaul, afflicted by so many calamities, to furnish them.¹¹⁷ He closed by urging Constantius to turn towards harmony, which had often rescued difficult and even calamitous situations, and allowed princes to leave a happy report of themselves to posterity.¹¹⁸

This is a tightly-wound bundle of piety and disingenuity, the *nomina sacra* of mid-fourth century politics dutifully mumbled: Flavian blood, harmony, and the interest of the state. The main focus however is a dry-run for Julian's later attempt to cast what had happened as an accident, one for which Constantius was largely to blame. As to the specific terms he proposed, he was in effect

¹¹¹ AM 20.8.5-6.

¹¹² AM 20.8.7-8.

¹¹³ AM 20.8.8-10.

¹¹⁴ AM 20.8.11-12.

¹¹⁵ AM 20.8.13.

¹¹⁶ AM 20.8.13-14.

¹¹⁷ AM 20.8.15-16.

¹¹⁸ AM 20.8.17. *cf.* Julian, EA 286a.

asking that both his new rank and his independence be acknowledged at once. His cousin was presented with a *fait accompli* and not so politely asked to roll over. Julian would be master of a huge chunk of the Roman world, the ancestral Flavian portion of the empire, lands for which Constantius had poured out blood and treasure in quantity. That was what Julian meant when he claimed he had only asked his cousin to allow 'us to dwell without fear in Gaul, after he had consented to what had been done'.¹¹⁹ One does not have to imagine Constantius as the bloodthirsty paranoiac of the sources to see why he might have reacted with some displeasure to such a proposal. When Eutherius and Pentadius gave him the letter, the emperor, famous for his ability to control his emotions, exploded with rage and told them to get out.¹²⁰ Zosimus even claims that Constantius warned them that if Julian wanted to live, he had better renounce all rank and throw himself on his mercy.¹²¹

It is important, however, not to be seduced by the easy way in which the sources suggest Constantius was completely unreasonable, set already on Julian's destruction.¹²² The ambassadors, after a long and much delayed journey, found the emperor at Caesarea in Cappadocia.¹²³ His decision to set out for the east after he had learnt of what had happened at Paris strongly suggests he was not that worried about Julian's elevation, certainly not enough to abandon the cities of Mesopotamia with Shapur at their gates. Equally, his decision to continue to the east after he had met Julian's embassy, surely means that (for all his anger) he thought their differences could be worked out by negotiation.¹²⁴ Sure enough, when he dismissed Julian's ambassadors, he sent back the *quaestor* Leonas.¹²⁵ He was a trusted servant, who had recently been Constantius' man at the council of Seleucia – this was a serious effort to negotiate with Julian, an attempt, in the jargon of a later age, at high-level bilateral talks.¹²⁶ The terms which he offered stir the sources to tones of wounded outrage: they meant the destruction of Julian, his army, friends and relatives.¹²⁷ In truth, the approach was careful and balanced. Constantius dropped all mention of reinforcements from the west, one of

¹¹⁹ Julian, *EA* 285d.

¹²⁰ *AM* 20.9.2.

¹²¹ Zosimus 3.9.4.

¹²² *contra e.g.* Matthews, 1989, 99.

¹²³ *AM* 20.9.1.

¹²⁴ *AM* 20.9.3.

¹²⁵ *AM* 20.9.4.

¹²⁶ See in general *PLRE* 'Leonas'.

¹²⁷ Libanius, *Or.* 18.106; *cf.* *AM* 20.9.4.

Julian's key demands. He did say that his cousin would remain a Caesar, but there is nothing particularly surprising about that – he was hardly going to legitimise a military coup, but Julian clearly remained his heir. He replaced Florentius as prefect with Nebridius and Pentadius as *magister officiorum* with one Felix, shuffling some other officials around.¹²⁸ Ammianus works himself into a high dudgeon about these shifts in administration, allegedly designed to menace the Caesar, but we might be a little sceptical. Nebridius was Julian's *quaestor* at the time, a native of Etruria who had recently been *comes Orientis* – Julian did actually make him prefect, and may have indicated in advance that he would be acceptable.¹²⁹ Felix was a humble *notarius* and went on to serve Julian after 361 – a rare mark of favour for a former servant of Constantius. They were not old comrades of the Augustus, not like Florentius – they were men with whom Julian could work, was in fact already working. In context, their appointment seems conciliatory. When Leonas arrived at Paris he was received with a marked theatricality. In a field, Julian stood on a raised tribunal and read to the troops the letter which he carried. When he reached its climax, where Constantius said to be Caesar was sufficient, the soldiers and assembled populace roared 'Julian Augustus!' His mission clearly fruitless, Leonas went home with minatory letters for Constantius, while Julian accepted only the appointment of Nebridius.¹³⁰ His position was established: not only had he been able to get a few troops to proclaim him Augustus, but now the 'provincial, the soldier, the authority of the commonwealth decreed' that he held that rank. Soon after, Lupicinus returned from Britain and Julian had him arrested, thus removing the last real threat to his power in Gaul – it was, ironically, alleged that the general threatened revolution.¹³¹ The usurper praised his own self-restraint in not confiscating his property.¹³²

This first round of negotiations had failed, but that is not to say that war was now inevitable: there is no indication that Constantius had fundamentally changed his mind about his cousin. He continued to recognise him as a legitimate Caesar until at least July of 361 and the most nefarious

¹²⁸ AM 20.9.5. *PLRE* 'Nebridius 1', 'Felix 3'.

¹²⁹ AM 20.9.8.

¹³⁰ AM 20.9.6-8.

¹³¹ *cf.* AM 20.9.9, Julian, *EA* 281a.

¹³² Julian, *EA* 281b.

countermeasure Julian could attribute to his cousin was that some grain had been stockpiled at Bregenz.¹³³ He was focused on the eastern frontier. He had managed to secure the allegiance of Arsaces, the king of Armenia, an important ally in the coming contest with Persia, and to build up his forces, before spending the campaign season in a bitter and fruitless effort to recover Bezabde.¹³⁴ He had not started that campaign until it was September, after Shapur had gone home and when it would still have been possible for him to turn his army round to face Julian.¹³⁵ Late in the year, when he must have known that his cousin was unwilling to renounce his new title, he had nearly settled down to continue the siege of Bezabde for the winter, planning to starve the Persians out.¹³⁶ He retired to Antioch, his first visit in a decade, where he spent the winter and spring, reorganised the administration, mourned his dead wife and married another.¹³⁷ Ammianus offers us a few anecdotes of his time there, edged round with menace, as he does his best to imply that Constantius was thinking only of civil strife: he makes much of the dispatch of the *notarius* Gaudentius to North Africa to keep an eye on things.¹³⁸ Yet, throughout the winter of 360/1, Constantius' real concern appears to have been with the eastern frontier. He built up his forces, straining the resources of the provinces to feed his massive war machine, bribing the satraps and kings over the Tigris to support him, and sending lavish gifts to the kings of Armenia and Iberia, in the hope of guaranteeing their allegiance.¹³⁹ When he received word in the spring that the Persians were on manoeuvres, he went to Edessa, closer to the front, massing his forces for a confrontation.¹⁴⁰ If he was determined to launch himself into civil war at the first opportunity, this was a funny way of doing it.

In contrast, Julian's actions are more suspicious. In 360, he attacked the Atthuarii, then swept down the Rhine.¹⁴¹ This looks rather like a last attempt to make sure the frontier was secure. He retired to Vienne, the city where he had begun his time in Gaul, ideally placed not to fight the

¹³³ *P. Oxy.* 4958 *e.g.*; Julian, *EA* 286b.

¹³⁴ *AM* 20.11, at 1-3.

¹³⁵ *AM* 20.11.4.

¹³⁶ *AM* 20.11.24.

¹³⁷ Barnes, 1993, 220-224; *AM* 21.6.4, 5, 9.

¹³⁸ *AM* 21.7.1-5.

¹³⁹ *AM* 21.6.6-8.

¹⁴⁰ *AM* 21.7.6-7.

¹⁴¹ *AM* 20.10.

Alamanni, but to vault the Alps and invade Italy.¹⁴² He spent the winter anxiously weighing whether to continue negotiations or fight, the shade of Gallus haunting his dreams, and he was edging towards violence, driven on by visions that his cousin would soon die.¹⁴³ He celebrated games for his *quinquennalia*, paraded in a magnificent diadem, and sent the remains of his recently deceased wife to Italy – her death a palpable sundering in the relationship between Constantius and Julian. There were rumours that Julian had murdered her.¹⁴⁴ As we would expect of a hungry claimant to the Flavian throne, he continued to profess a public Christianity, ‘so that without an obstacle he might entice all men to favour him’ – he even attended a church service at Epiphany.¹⁴⁵ If there was any desire in the winter of 360/1 to push the empire over the precipice of civil war, then we should probably conclude that it lay in Julian’s camp. What he needed was a pretext.

He found one on the frontier. As we have seen, one of the most important charges in Julian’s sulphurous indictment of his cousin was that he had called in the barbarians against Gaul – this was the proof that he had had no choice but war.¹⁴⁶ The precise circumstances in which he is said to have done this are hazy: with time and distance the devilish scheme grew more and more comprehensive and started earlier and earlier. In 361, however, Julian seems to put it in the very recent past: during the negotiations, Constantius ‘set upon us the barbarians, proclaimed among them that I was a public enemy, and paid them wages that the race of the Gauls might be destroyed’.¹⁴⁷ He had seen, he tells us, the very letters which gave them their orders.¹⁴⁸ Mamertinus speaks of ‘the whole of *barbaria* stirred up against the avenger of Roman liberty’.¹⁴⁹ Libanius echoes these accounts, but singles out one individual who was the particular instrument of Constantius’ perfidy, who had had the audacity to dine with the Roman generals after his raid.¹⁵⁰ This is the much abused Vodomarius, the villain of this act of the Julianic stage play. Discovering what was really going on is delicate work, but from

¹⁴² Above, 199.

¹⁴³ AM 21.1.1-6.

¹⁴⁴ The topic of Libanius, *Or.* 37 (with Cribiore, 2011).

¹⁴⁵ AM 21.2.4-5.

¹⁴⁶ Above, 181. Accepted as genuine by Thompson, 1943, 86 (for Julian can tell no lies!); Bowersock, 1978, 56-7, Athanassiadi, 1981, 75. Drinkwater, 2007, 257-63 is much more sceptical.

¹⁴⁷ Julian, *EA* 286a.

¹⁴⁸ *ibid.*, 286b.

¹⁴⁹ *Pan. lat.* 3.6.1.

¹⁵⁰ Libanius, *Or.* 18.107.

Ammianus' subtly woven story we can just about unpick a rather different version of the Vadamarius affair. In early 361, while it was still winter, a band of Alamanni crossed the Rhine and began to attack the fringes of Raetia.¹⁵¹ Keen to stamp this out before things got too serious, Julian sent the *comes* Libino with the *Celtae* and *Petulantes* to the region.¹⁵² The brigade arrived at Sanctio, modern Bad Säckingen, a little town on the high Rhine, the wooded slopes rising precipitately above it, and began intemperately to chase the raiders through the nearby valleys.¹⁵³ This was monumentally stupid – the terrain, the season, the weight of numbers favoured the Alamanni, and Libino got himself killed along with some of his men, the rest fleeing. This was all very embarrassing for the new Augustus of the West. Around the first anniversary of his elevation at Paris, he had lost a brigade on the Rhine, in precisely the region where his cousin had successfully campaigned in the 350s. Out of crisis, though, opportunity could be coaxed.

Near to Sanctio was the *pagus* of Vadamarius, whose domain is generally put opposite Augst.¹⁵⁴ In the past, he and his brother Gundomadus had caused the Romans trouble and Constantius had campaigned against him in 354, but they had come to terms with him and seem to have been formally made Roman clients.¹⁵⁵ Gundomadus soon died, but Vadamarius stuck doggedly to his treaty: he refused to participate in the Alamannic coalition which fought at Strasbourg and we find him in 359 negotiating peace on behalf of other chiefs, honourably received by Julian.¹⁵⁶ In 361, he was evidently still at peace and had in fact crossed the Rhine to the Roman side soon after the events at Sanctio – he was even invited for dinner by the local military commander.¹⁵⁷ This is not the behaviour of someone who had recently orchestrated a major raid on Roman territory, nor the treatment such a person would receive from the very troops who had suffered in that raid. At the same time as he remained on friendly terms with Julian's new regime, he appears to have been in communication with Constantius. It is crucial to be as precise as possible about what exactly they discussed, for there is a thick fog of rumour which swirls about the story. Ammianus, whose account

¹⁵¹ AM 21.3.1.

¹⁵² AM 21.3.2.

¹⁵³ AM 21.3.3.

¹⁵⁴ On whom see *PLRE* 'Vadamarius'.

¹⁵⁵ Not in 356, as *e.g.* *PLRE*; see AM 14.10.10. 18.2.16.

¹⁵⁶ AM 16.12.17, 18.2.16-18.

¹⁵⁷ AM 21.4.3; Libanius, *Or.* 18.107.

is the most careful, says merely that a letter from him to the Augustus was intercepted, in which (among other things) he said ‘your Caesar has no discipline’.¹⁵⁸ In the light of what had happened at Paris, it is rather hard to contradict the Alaman’s judgement: if this was the most negative thing he said about Julian, then he was restrained indeed in his thoughts. This letter and this letter alone seem to be the only evidence for any shady dealing between the Augustus and the Alamannic chief.

Out of this complex of events Ammianus spins the story that Constantius had ordered Vodomarius to attack Gaul, hoping he would distract the Caesar. This is deeply implausible, an inverted pyramid built on a single line in a single letter, and it is almost painfully obvious that our historian does not believe it. He obfuscates, speaking of how the Alamanni who defeated Libinio ‘had their start’ (*exorsos*) from Vodomarius’ district, rather than saying the king actually led them.¹⁵⁹ He hedges, so that when he tells us Constantius had made him a ‘silent executor of his secret affairs’ he adds ‘if we ought to believe rumour alone’.¹⁶⁰ He carefully arranges his narrative, so that one meets first the raid, second the long relationship between Vodomarius and Constantius, and only then the letter which seems to have constituted the sole and very sketchy proof that what had happened at Sanctio had anything to do with either of them. From that, the most shocking evidence he can provide for collusion is a line which might charitably be called a statement of the obvious. It is that ambiguous tale which is so starkly related by Julian and Libanius as Constantius calling in the barbarians against Gaul. Yet it is easy to see why Julian might have misrepresented these events in 361: they allowed him to cover-up an embarrassing disaster on the Rhine, and they gave him a rhetorical stick with which to beat Constantius. He had Vodomarius arrested and quickly shipped off to Spain, before making a lightning raid into Alamannic territory.¹⁶¹ Julian had his pretext: he was ready for war.¹⁶²

¹⁵⁸ AM 21.3.6.

¹⁵⁹ AM 21.3.1.

¹⁶⁰ AM 21.3.4.

¹⁶¹ AM 21.4.5, 8; Libanius *Or.* 18.108

¹⁶² *cf.* the still convincing remarks of Müller-Seidel, 1955, 237-241.

Civil War

As spring began to reveal the first hints of summer in 361, Julian was at Augst.¹⁶³ He had massed his troops there for the campaign into the territory of Vodomarius and was building river boats in quantity.¹⁶⁴ Confident in his strength and in the justice of his cause, Julian sacrificed secretly to Bellona, and then from a rocky promontory addressed his soldiers.¹⁶⁵ After a rousing speech, the troops, ‘greedy for revolution’, all swore an oath to follow him even to death, an oath *contra Constantium* as Ammianus put it: a declaration of civil war.¹⁶⁶ Only the praetorian prefect Nebridius refused to join in, explaining with quiet dignity that he could not oppose Constantius, a man who had often been kind to him.¹⁶⁷ Julian saved him from the enraged troops and sent him home to Etruria.¹⁶⁸ He gave orders for the march to Pannonia to begin and sent the bulk of his army through Italy and Raetia in two divisions, dividing his forces to make them appear more numerous.¹⁶⁹ Zosimus tells us that 20,000 men went overland, and he kept 3,000 with him to travel down the Danube.¹⁷⁰

Julian had chosen his moment carefully. Constantius was tied down on the eastern frontier, watching for Shapur to make his move. The Rhine was quiet and he would now blame on the nefarious activities of his cousin for any trouble on it. The Balkan provinces were largely empty of troops, stripped of them after the victories of the late 350s.¹⁷¹ 361 was the ideal, if rather unpatriotic, moment for civil war. What exactly was Julian trying to achieve? A haze of confusion surrounds his intentions in the sources, understandably reticent in narrating his motives, and because the civil war ultimately proved abortive it has a rather ghostly presence in the historiography.¹⁷² Julian said a little later in the year that he was fighting ‘for the welfare of the state and the freedom of all men’ and

¹⁶³ AM 21.8.1.

¹⁶⁴ Zosimus 3.10.2.

¹⁶⁵ AM 21.5.1.

¹⁶⁶ AM 21.5.9-10. For the sacrifices, *cf.* Julian, *EA* 286d.

¹⁶⁷ AM 21.5.10-11.

¹⁶⁸ AM 21.5.12.

¹⁶⁹ AM 21.5.13, 8.3.

¹⁷⁰ Zosimus 3.10.2.

¹⁷¹ AM 21.5.7.

¹⁷² Much of the historiography assumes the success of Julian’s campaign: *e.g.* Bowersock, 1978, 58-60 (‘resounding success’); Athanassiadi, 1981, 77-80, 81-2.

spoke of how his options had been death in battle in the Balkans or in Gaul.¹⁷³ Writing to his uncle, very soon after Constantius had died, he said that the gods had ordered him to go east, that he had hoped to terrify his fellow emperor into peace, or to fight him.¹⁷⁴ That makes it sound as though he envisaged a decisive contest with his cousin, and that would certainly suit the oath of loyalty to death which his troops took and Eunapius' claim that he 'gathered his strength to overthrow the tyranny of Constantius'.¹⁷⁵ More concrete objectives are harder to detect. Ammianus suggests that he meant to seize the diocese of Dacia and then see what he might do, while Libanius says that he intended to push on to the Bosphorus.¹⁷⁶ That vagueness may well reflect uncertainty at the time. As he led the empire to civil war, it seems very much as though Julian did not really have a plan for what he wanted to do: he intended to try his luck.

Things started well. Julian moved to the headwaters of the Danube, a short march from Augst. There he embarked and began to cruise down the river – it took him only 11 days to follow its course towards Sirmium.¹⁷⁷ His coming provoked panic and confusion, a sure indication that only one side had seriously been contemplating civil war. Mamertinus evokes the stunned response of the region's populace, like those who had seen the Palladium fall to earth, great crowds assembling to watch him pass.¹⁷⁸ Julian seems to have taken none of the towns and fortresses *en route*, preferring to leave them gawping in his wake, the garrisons undisturbed.¹⁷⁹ His progress was smoothed by bribes, warm words for river cities, liberties and privileges in abundance, as well as by public recitations of the letters Constantius had 'sent' to the barbarians.¹⁸⁰ The administration in the region scrambled to resist him: the prefects, Florentius and Taurus, fled, while Lucillianus, the *magister equitum*, tried to muster the few forces he had near Sirmium.¹⁸¹ Julian, leaving the river near that city, sent a small

¹⁷³ Julian, *EA* 287a-c.

¹⁷⁴ Julian, *ELF* 28.

¹⁷⁵ Eunapius, *VS* 7.34; with Kaldellis, 2005, for the date of this episode, crucially, not before his acclamation, thus undermining the thesis of Drinkwater, 1983, 374 ff.

¹⁷⁶ *AM* 21.5.6; Libanius *Or.* 18.116.

¹⁷⁷ *AM* 21.9.2; Zosimus 3.10.3.

¹⁷⁸ *Pan. lat.* 3.6.3-4.

¹⁷⁹ *AM* 21.9.2; cf. Libanius, *Or.* 18.111.

¹⁸⁰ *Pan. lat.* 3.7.3, 8.3; Libanius *Or.* 18.113.

¹⁸¹ *AM* 21.9.4-5.

column onwards which managed to surprise and capture him.¹⁸² He soon entered Sirmium itself – the populace, when told the emperor had arrived, were surprised to learn it was not Constantius.¹⁸³ Buoyed by the enthusiastic response he had received in the city, an omen that he would be received as a saving star, Julian held chariot races (an imperial statement), before sending troops on to garrison the pass of Succus – he had rendezvoused by now with some of the forces marching through Raetia.¹⁸⁴ He then went to Naissus, a bold appropriation of the ancestral Flavian town, and carried on business at a frenzied pace, making the historian Aurelius Victor governor of Pannonia Secunda and honouring him with a bronze statue.¹⁸⁵ Ever more confident, and believing that he would never make his cousin come to terms, he now wrote to the senate, abusing Constantius, setting out his misdeeds and flaws, and passing on to attack his father, as a man who, he alleged, had advanced barbarians to the consulship.¹⁸⁶ He soon declared Taurus and Florentius fugitives.¹⁸⁷ In his letter, he had called Constantine a *novator*, a revolutionary – it takes one to know one.

In fact, he had done something almost as revolutionary as his uncle: he had come out as a pagan. In so doing, he had shattered the religious consensus which had prevailed in the Flavian empire, that to hold supreme power, indeed even to claim it, was to be a Christian.¹⁸⁸ Ammianus, for reasons which are obscure, delays his public profession of belief in the Old Gods until Constantius was dead and safely buried – the historiography has tended to follow him.¹⁸⁹ It is clear, however, that Julian was quite open about his beliefs long before that: the *Letter to the Athenians* is not only peppered with references to the Gods, giving signs and guidance at crucial moments, but even contains an admission that he had long been pagan and veiled his real views.¹⁹⁰ Libanius states in a matter-of-fact way that Julian ordered temples reopened and offered sacrifices while still in the

¹⁸² AM 21.9.6-7.

¹⁸³ AM 21.10.1; Zosimus 3.10.3.

¹⁸⁴ AM 21.10.2.

¹⁸⁵ AM 21.10.5-6; Kaegi, 1975, 164 ff.

¹⁸⁶ AM 21.10.7-8. Zosimus (3.10.3-11.1), in compressing a narrative which started at Sirmium and ended at Naissus, has transferred Julian's activities from the former to the latter.

¹⁸⁷ Zosimus 3.10.4.

¹⁸⁸ Above, Ch. II *passim*.

¹⁸⁹ AM 22.5.1-2. *e.g.* Bowersock, 1978, 61, though correctly placing the public apostasy at Naissus. *pace idem*, 79 (*e.g.*) I do not think this is confusion on the historian's part; Barnes, 1993, 153.

¹⁹⁰ Julian, EA 277b; Humphries, 2012, 78 downplays the importance of such sentiments.

Balkans.¹⁹¹ Ammianus must have known this, reader of Julian's works that he was, and his account of the moment when Julian revealed his religion is sufficiently vague ('when what he feared had been destroyed') as to be suspicious. He might even allow us, indirectly, to pinpoint the moment at which Julian revealed to the world his true beliefs. He tells us that the emperor, in his letter to the senate, abused Constantine as a 'disturber of ancient laws and of custom received from antiquity'.¹⁹² It is possible that in 361, Julian was vexed by Constantine's reforms to the structure of the state, blamed him for changes in administration which he thought pernicious.¹⁹³ It seems more likely, however, that this is a not-so-veiled reference to his uncle's religious transformation. If so, Julian made a public profession of his religion when ensconced at Naissus, at the peak of his success. Remarkably, in a century keen to paint civil wars as contests between pagan and Christian and a historiography even keener to diagnose religious tensions behind them, the fact that Julian fought in 361 as a pagan candidate for imperial power has almost escaped attention.

Those heady days at Naissus, setting the world in order, were the high-water mark of Julian's success in 361: his remarkable advance had swept all before it. There had, however, been hints that not all was quite as steady as it appeared. In his journey along the Danube, troops and their commanders had avoided joining his flotilla – reserving their judgement. Florentius and Taurus had fled from him rather than desert and Julian was unable to persuade any senior officials or soldiers in the region to support him. Aurelius Victor was the first significant 'defection' to his cause and, while he was a distinguished historian, his highest office before 361 was (perhaps) a post in the *officium* of the praetorian prefect.¹⁹⁴ At Naissus, Julian was busy stuffing members of the local *ordines*, the city councils, with as many codicils of office as they could hold: a reflection of his desire to win them over, but also of his shortage of support in the ranks of the administration.¹⁹⁵ His eagerness to distribute privileges, to tell the Dalmatians they did not have to supply horses, the Epirotes that they

¹⁹¹ Libanius, *Or.* 18.114; cf. *Pan. lat.* 3.9.4.

¹⁹² AM 21.10.8.

¹⁹³ cf. Harries, 2012a, 126-7.

¹⁹⁴ Above, 8.

¹⁹⁵ AM 21.12.23.

would be relieved of taxes, suggests a slight brittleness to his success.¹⁹⁶ The behaviour of Lucillianus is particularly interesting in this light. When he was arrested and led as a captive to the emperor, he did not suddenly develop a hitherto unsuspected fondness for facial hair and a deep interest in Neoplatonism: he told Julian that he had made a huge mistake.¹⁹⁷ There were clearly plenty who agreed with him.

Among them were the officers and men of two legions, along with a troop of horsemen and a cohort of archers, whom Julian had found at Sirmium.¹⁹⁸ Suspicious of their loyalty, he sent them west, trying to get them a safe distance from anywhere they might cause trouble. This was unwise: *en route*, they had time to digest their bitterness and formulate a plan. When they got to Aquileia, they barred the gates and manned the walls: the citizens joined in, and revolt flared up across northern Italy.¹⁹⁹ Ammianus drains the episode of menace by inserting a long digression on the siege and eventual capitulation of the city: we know that Julian is going to be all right.²⁰⁰ At the time, though, things were much less assured. Aquileia was the great bastion of north-east Italy, the place from which Magnentius had hoped to fend off Constantius and from where it might just be possible to block the passes of the Alps and pen the usurper and his army up in the Balkans.²⁰¹ Julian scrambled to control the situation, sending Iovinus and his column, which had just entered Noricum, back towards Italy, while he tried to concentrate the rest of his forces at Naissus.²⁰² Just as he was doing that, Martianus, the *comes* in Thrace, had managed to mass an army from the units scattered through the region and was approaching the other side of the pass of Succus, blocking Julian's advance.²⁰³ A grain fleet had slipped past whatever watchmen Julian had placed in Greece and resupplied Constantinople: even if he could now break through the mountains and descend on the Bosphorus, he

¹⁹⁶ *Pan. lat.* 3.9.1.

¹⁹⁷ AM 21.9.8.

¹⁹⁸ For this and what follows, see AM 21.11.

¹⁹⁹ AM 21.11.3, where *Italicos incolas* implies widespread revolt (*cf.* AM 15.5.24), which the historiography, perhaps under the influence of Rolfe's translation (which inserts a superfluous 'neighbouring'), has generally minimised, *e.g.* Athanassiadi, 1981 who (except 86, n. 181) omits it.

²⁰⁰ AM 21.12.4-20.

²⁰¹ Above, 138.

²⁰² AM 21.12.1.

²⁰³ AM 21.12.22.

would have to settle in to besiege the city.²⁰⁴ Mamertinus describes, in the florid vagueness of panegyric, what sounds like a mutinous mood in the camp of the Caesar. In a few chaotic days, Julian's achievement had collapsed: suddenly his army was strung out from the Haemus mountains to the Alps trying to do too much at once, with hostile forces massing around it. There was a real risk that, as winter closed in, Julian would be trapped in Illyricum, cut off from the natural sources of supplies and reinforcements.²⁰⁵ Keen to steady his tottering regime, Julian began to recruit heavily, to drag in such troops as were in Illyricum from their stations.²⁰⁶ These were, as the revolt at Aquileia showed, unlikely to prove reliable: when the going got tough, it was likely to be only the Gauls who got going. He also appointed Maximus, a member of a senatorial delegation he had intercepted, as prefect of the City of Rome (a transparent bid for the favour of Vulcacius Rufinus) and designated Mamertinus and Nevitta as consuls for the coming year.²⁰⁷ We can wonder how many in Naissus were reassured.

The strategic context had changed as well. As Julian flew through the Balkans, Constantius had been pinned in Mesopotamia, his forces watching Shapur across the Tigris and waiting to see what he would do.²⁰⁸ There was great uncertainty about the enemy's intentions and it sounds as though even the Persians were not quite sure what their plan was.²⁰⁹ Constantius had just begun to feed regiments back to the Balkans, when it suddenly became clear that Shapur would not invade that year.²¹⁰ After two campaigns in which he had conquered cities, but suffered heavy losses, he had probably been deterred by the prospect of facing the considerable Roman force which had massed. Constantius assembled the field army at Hierapolis, leaving behind only Mesopotamia's usual garrison. After a rousing address by the emperor, the huge column began to wind its way back towards Europe, Arbitio, a veteran of the civil wars, and Gomoarius, an old foe of Julian, at its head.²¹¹ In the east, they were sure their emperor would win, and as he left Hierapolis, he was

²⁰⁴ *Pan. lat.* 3.14.5.

²⁰⁵ A worry expressed in AM 21.12.21.

²⁰⁶ AM 21.12.22; cf. Zosimus 3.11.1.

²⁰⁷ AM 21.12.24-5.

²⁰⁸ AM 21.13.1-2.

²⁰⁹ AM 21.13.4.

²¹⁰ AM 21.13.7-8.

²¹¹ AM 21.13.16.

attended by a crowd of local notables, one of whom begged him to send them back the head of Julian.²¹² It was now, as everything around him seemed to totter, that Julian scribbled off those missives to the Greek cities, full of *apologiae* for his actions and abuse of his cousin. At Naissus, he sacrificed endless victims and probed their livers, stared constantly at the flight of birds, and tried any means at all to divine the future.²¹³ Events were closing in – ‘O, I was beyond hope of being saved!’ he said in retrospect.²¹⁴

A Pagan Emperor

Constantius started his march at Hierapolis. He was haunted by dreams of his father, holding a beautiful child: when he took it and set it in his lap, it knocked the *sphaera* which he held out of his hand.²¹⁵ He moved on to Antioch, his speed remarkable and rousing opposition, and from there proceeded west, soon arriving at Tarsus.²¹⁶ There, he fell ill (a fever) but pressed on, confident that the motion of the journey would allow him to shake it off. It did not work – the country was rough, the weather by now starting to turn, the winter rains (heavy in Cilicia) beginning. By the time he reached Mopuscrene he was really ill, the fever burning hotter and hotter, and could not go on.²¹⁷ There, the massive column unspooled into the tiny little *mansio*, the *comitatus* frantic around him, a pregnant wife in tow – no source adequately evokes the chaotic stillness of the scene. It gradually became clear that he was going to die: Euzoius, only recently installed as bishop of Antioch, was summoned and baptised him.²¹⁸ He lingered on for a few days and then, on the 3rd of November, expired on an Anatolian roadside, like Constantine before him – it was, nearly to the day, six years

²¹² AM 21.14.4.

²¹³ AM 22.1.

²¹⁴ Julian, *ELF* 33.

²¹⁵ AM 21.14.1.

²¹⁶ AM 21.15.1-2.

²¹⁷ *ibid.*

²¹⁸ Philostorgius VI.5; Barnes, 1993, 155.

since he had made his cousin Caesar at Milan. He was forty-four, younger than his father and grandfather – by family standards, it was a peaceful death.²¹⁹

As he lay dying, Constantius decreed that Julian was his successor an act of ‘inhuman humanity’ as Gregory of Nazianzus put it.²²⁰ No one in the *comitatus* demurred – even the eunuch Eusebius, great villain that he was in Julian’s eyes, seems to have been clear that there was only one man who could be emperor.²²¹ They sent two *comites*, Theolaifus and Aligildus, to the Balkans to tell Julian that he was called to supreme power, that he must come east. It was a paradox of Constantius’ success that its logic dictated handing it over to a man who had done his best, would do his best, to subvert it. Julian was a rebel, he was a pagan, he had, quite deliberately, usurped the title of Augustus and then plunged the empire into civil war, and in 361 he seemed sure to be defeated. None of that mattered. Struggling to understand what had happened, Gregory of Nazianzus produced a wonderful, resonant interrogation of Constantius:

This great inheritance and ancestral ornament (I mean those who bore Christ’s name), this race which has shone forth in all the corners of the earth, this royal priesthood, augmented by so much toil and sweat – how, in so small and short a space of time did you hand all this over to a public murderer?²²²

Precisely because it was an ‘ancestral ornament’ it had to be handed over to Julian – there was no alternative. Quite unexpectedly, the Roman world had dropped into Julian’s lap.

²¹⁹ For the date see *CC s.a.* 361; *AM* 21.15.3.

²²⁰ *AM* 21.15.2. *GN* 4.35. With Barnes, 1998, 146, I see no need to doubt the reality of this act.

²²¹ *AM* 21.15.4.

²²² *GN* 4.35: Πῶς τὸν μέγαν κληρὸν καὶ τὸ πατρῷον καλλώπισμα, τοὺς ἐπωνύμους λέγω Χριστοῦ, τὸ πανταχοῦ τῆς οἰκουμένη ἐκλάμπαν ἔθνος, τὸ βασιλείον ἱεράτευμα, τὸ πολλῷ πόνῳ καὶ πολλοῖς ἰδρῶσι συναυξηθὲν, οὕτως ἐν ὀλίγῳ καὶ ἁκμῇ βραχείᾳ καιροῦ τῷ κοινῷ παλαιαίῳ φέρων παρέδωκε;

VI

EMPIRE OF THE APOSTATE

Constantinople

On the 11th of December 361, Julian entered his family's city.¹ Theolaifus and Aligildus had found him at Naissus and there delivered the shattering news that his cousin was dead and had, with his last breath, called Julian his heir. Not long before, penned up in the Balkans as events and the armies of Constantius closed in, he had turned to sinister divinations.² It was only now that he truly believed what the entrails had told him. Elated, he almost glided down towards the Bosphorus: through Succia, past the armies massed to destroy him, along the road to Philippopolis, and into Perinthus, on the Sea of Marmara.³ As his route curled along the coastline, the little column (a few thousand men at most) was met by streams of citizens from the capital, and before its walls he was greeted by the Senate.⁴ Surrounded by 'companies of those in arms and those in togas', he entered the city, applause and admiring glances smoothing his path.⁵ Julian had arrived at Constantinople. Soon, his cousin's body, washed clean in death, made its way to the other side of the Bosphorus – the mournful procession led by Jovian, a man with a future at imperial deathbeds.⁶ It had been accompanied by the regiments and Christian rites: angelic choirs were heard as they progressed on from Tarsus.⁷ Julian, a very model of imperial piety, waited on the harbour side for it, head uncovered – he wept openly.⁸ Under the heavy pressure of circumstance and ritual, Julian found himself effectively presiding at a Christian funeral, one marked by all the splendour the Flavian state could muster – the reason, perhaps, that Ammianus and Libanius omit any description of it.⁹ Constantius' body was laid to rest with his father's in the 'famous sepulchre of the Apostles, who indeed both have welcomed and are

¹ AM 22.2.4.

² Above, 264.

³ AM 22.2.2.

⁴ AM 22.2.4.

⁵ *ibid.*

⁶ AM 21.16.20.

⁷ GN 5.16.

⁸ Libanius, *Or.* 18.119-120.

⁹ AM 21.16.20; Libanius, *Or.* 18.119.

guarding that sacred race'.¹⁰ Constantinople, suffused with the glow of his family and their religion, was not Julian's natural territory, something perhaps revealed in the rather frantic way that in 361 he emphasised that he had been born there, loved the city as a mother and wished to honour her.¹¹ He spent time very publicly paying his respects to the Senate, attending their meetings (which he seems to have found rather boring) and pressing the flesh.¹² Embassies flooded in to hail him as emperor, weighed down with the golden crowns which were customarily presented to new rulers – he also summoned a host of old friends to join him.¹³ It was in this delicate context that Julian, very recently a hunted usurper, began to rule the vast Roman world.

Approaching Julian's Reign

Julian was in power for only some seventeen months, a shorter span even than that most ephemeral Flavian emperor, Constantine II. Into that narrow frame, however, is crammed an almost overwhelming array of evidence: we can follow Julian's movements from day-to-day, sometimes even hour-to-hour. We can see him ensconced at Constantinople in the winter of 361/2 as he began to grip the machinery of government. We can march with him across Asia Minor in the spring of 362, the journey elongated by endless stops at temples, Julian turning aside to yet another country shrine, and by the speechifying tedium which attended government by orators, each administrator he met delivering a rotund address.¹⁴ We can sit with Julian in the theatre at Antioch as the populace chanted 'all plentiful, all expensive!', trace the growth of tensions over the long hot summer of 362, and mark the increasingly bitter recriminations of the following winter.¹⁵ It is not just that we have the richly detailed retrospectives of Ammianus and Libanius, there is a flood of contemporary evidence: letters, laws, speeches, inscriptions. In Julian's brief period as Augustus, we have astonishingly, perhaps

¹⁰ GN 5.17.

¹¹ Julian, *ELF* 59; cf. *Pan. lat.* 3.2.3.

¹² AM 22.7.3.

¹³ Eunapius, *ELG* 8; Julian, *ELF* 26-39.

¹⁴ Libanius, *Or.* 18.159, 161.

¹⁵ Julian, *Misopogon* 368c.

uniquely rich material for understanding imperial history, for following the justification and effects of an emperor's actions.

It is worth emphasising at the start that, with the notable exception of Gregory of Nazianzus' pungent denunciations of Julian, almost all that vast body of source material was written either by the emperor himself or by his friends and supporters. They tell us of a truly remarkable reign, cut off too soon, of a very high-minded principate, as Julian raced to solve the problems of the state: reforming the administration here, re-introducing the worship of the gods (but cautiously) there, presenting everywhere a sharp contrast of style and substance to his grim family. These themes could be documented at enormous length, their variations traced in detail, but we get a good sense of them very early in Julian's reign from the speech of thanks which Mamertinus, his new consul, delivered on the first of January 362. The day had begun with the emperor, ever ostentatious in his humility, walking on foot at the ceremony which marked their investiture, and proceeded with games and speeches.¹⁶ In his oration, along with a tendentious account of recent history, Mamertinus gave the audience a glimpse of what the change in regime would mean. Julian, he said, had returned the exiled virtues to the state, brought back eloquence, and restored Philosophy to her throne.¹⁷ Flattery and corruption had been brought to an end and the servile fawners of the previous regime would find no favour in his government.¹⁸ Julian's men would be just, brave, self-controlled, and prudent, for, unlike his predecessors, he respected expertise: in war, in law, in eloquence.¹⁹ Constantius (unnamed) had been under the thumb of eunuchs and wives; they had sold and traded offices to men who in the provinces 'plundered what was sacred, what was profane, paving a road to the consulship for themselves with money'.²⁰ Julian was studiously informal at court, and Mamertinus paints a vivid picture of him plunging through the crowds which surrounded him to greet the new consuls that morning.²¹ He eschewed luxury: the massive buildings, the swarms of courtiers, mobs of servants,

¹⁶ AM 22.7.1-2.

¹⁷ *Pan. lat.* 3.23.4.

¹⁸ *ibid.*, 21.1-2.

¹⁹ *ibid.*, 21.4, 25.4.

²⁰ *ibid.*, 19.4-5.

²¹ *ibid.*, 28.4.

‘fruit out of season, snow in summer, winter roses’.²² No sharper contrast with the ‘cheerful frightfulness and laughing savagery’ of other emperors could be imagined: Julian had restored liberty.²³ It is no surprise that our orator thought him ‘a sort of saving star for the human race’.²⁴ Examples could be multiplied. The overwhelming bulk of such material lends this vision of Julian’s reign a certain authority, and the historiography, much as it has nibbled at the edges of his reputation, has tended to follow it. Julian as valiant and imaginative reformer still stalks the mid-fourth century.

We would not expect an emperor to be a dispassionate witness to his own government, or Libanius, his dinner companion, and Ammianus, a veteran of the march to Ctesiphon, to turn on their hero at the moment he took power. It is hardly surprising that Mamertinus did not begin a speech in front of the man to whom he owed everything by saying that Constantius had had many virtues, his government much to say in its favour. Still, with the knowledge of quite how mendacious the sources could be about Julian’s rise, it is difficult not to look for cracks in the smooth facade which they offer as the story of his reign. The building behind it is not quite so uniform as that impressive construction which is his time in Gaul, his usurpation, and the civil war which followed. That is hardly surprising – for one thing, there was no definitive account of Julian’s reign from his own pen, nothing so focused and influential as the *Letter to the Athenians*. In power, Julian’s goals were more diffuse than they had been in Gaul, his rhetorical needs more varied than in the winter of 361. The sources are freer in their treatment of him, they grip the twists and turns of his thought less tightly – Ammianus, for instance, pads his account with long geographical digressions, rococo illustrations of his learning.²⁵ Yet, we can still see them carefully curating his reputation, doing their best to put the most sympathetic interpretation on his words and deeds. This was ongoing project, one which required the history of his reign to be ‘updated’, to put it politely. We can observe Eunapius, for instance, trying to make Julian a far-sighted prophet of the Gothic disaster, when it is fairly clear that he thought their threats risible, when he thought of them at all.²⁶ We are still dealing with a complex of accounts

²² *ibid.*, 11.2-3, 4.

²³ *ibid.*, 26.2, 30.4.

²⁴ *ibid.*, 2.3.

²⁵ AM 22.8 *e.g.*

²⁶ Eunapius, *ES* 20 vs Libanius, *Or.* 12.78.

which are more apology than analysis when it comes to Julian. We should be very sceptical of what they say.

Amidst such a cacophony of competing voices, it is only possible to pick out a few notes here and there – to begin to understand Julian's reign, one has to be selective. One also has to put it in the correct context, to remember that hero of the sources, the destined emperor, was in reality a much more ambiguous figure – a man with a dubious record in government and war, who had only recently plunged the empire into civil strife and aggressively broken with his ancestral religion. His cousin had, in many respects, been an able and conscientious emperor – more importantly, everyone had expected him to win the civil war. In analysing Julian's reign, it is best to begin by peeling back the way that he dealt with the men who had governed his cousin's empire, then to think about his programme of reform of the state, and the men to whom he entrusted his government. With some sense of what Julian was trying to do and who would help him do it, we can turn at last to that greatest and most bitter 'reform', the return to paganism. No account of the tumultuous career of Julian as Augustus could truly do justice to its complex and variegated nature, but with these pillars in place, it becomes possible to get some critical sense of what happened and what it meant. The portrait which emerges is very different to the image of vigour and virtue which our sources paint – it is rather darker and, on close inspection, Julian's visage is grim.

An Assault on the Governing Class?

The Purges

One can learn a good deal about a regime by close attention to the first measures it pursued, before the weight of business imposed its own routine and the remorseless logic of government set to work. These are the payoffs to old friends and allies, the rewards for faith when all seemed doubtful, and conversely the satisfaction of those grudges which had gnawed at men when they were powerless. Almost Julian's first act as sole Augustus was to convoke a tribunal at Chalcedon, just across the straits from Constantinople.²⁷ This court had completed its grisly work before the year 361 was over – it must have been summoned as soon as Julian entered the city on the 11th of December, perhaps planned long before.²⁸ In the presence of the *Ioviani* and *Herculiani*, regiments which had probably come west with the body of Constantius, a panel of judges set to work. Their actions deserve close attention.

Their task was to try the adherents of Constantius, his 'notorious spies and sycophants', and the roll-call of those sentenced was a who's who of his government.²⁹ His last pair of consuls, the praetorian prefects Taurus and Florentius, were condemned – the one to exile and the other (in his politic absence) to death.³⁰ Another Florentius, the *magister officiorum*, was exiled to the Dalmatian island of Boa.³¹ Evagrius, the *comes rei privatae*, was also exiled, while his colleague in the management of the imperial finances, Ursulus, the *comes sacrarum largitionum*, was executed.³² Eusebius, the much-vilified eunuch, was put to death, while the notorious *notarius* Paul 'the Chain' was burnt alive.³³ Between them, these men occupied the upper reaches of any org-chart we might wish to draw of late-Roman administration. Other, older scores were also settled. Palladius, who had had the misfortune to serve Gallus as *magister officiorum*, was exiled to Britain.³⁴ Apodemius, that

²⁷ AM 22.3.2.

²⁸ AM 22.3.4.

²⁹ Bowersock, 1978, 66.

³⁰ AM 22.3.4, 6. On these two, above, 50.

³¹ AM 22.3.6; *PLRE* 'Florentius 3'.

³² AM 22.3.7.

³³ *ibid.*, 3.12.

³⁴ *ibid.*, 3.3. *PLRE* 'Palladius 4'.

formidable fixer who had been sent to deal with both Gallus and Silvanus, was also burnt alive.³⁵ Some others, evidently in the train of Constantius or retired to Constantinople, were swept up in the flood of judgements: Cyrinus, a former *notarius*, and Saturninus, who had been *cura palatii*, were exiled.³⁶ There was only one acquittal: Pentadius, whose transcription of Gallus' answers before his execution was perhaps balanced by his service as an emissary of Julian in 361.³⁷ A passing line in Libanius suggests that the property of the condemned was confiscated as part of their punishment.³⁸ This must have been a massive haul, for officials so senior were well-rewarded for their service. It surely cannot be a coincidence that one of Julian's first laws as Augustus, passed so quickly that it had already reached Rome and been posted up by the 9th of March, threatened dire punishments to those who had concealed the property of the proscribed.³⁹ At a stroke, the upper ranks of the administration had been overturned, the government of Constantius torn apart, its wealth confiscated. The extent and speed of the process are striking, and such a rapid and apparently vindictive act was unusual in the context of the mid-fourth century. In 353, at the end of a long and bitter civil war, Constantius had been rather more restrained in his treatment of the adherents of Magnentius.⁴⁰

This cannot have been what the men in the *comitatus* had thought would happen when they assented to the dying emperor's wish that his cousin succeed him. It sat ill with the warm reception Julian had received at Constantinople, with his careful attempt to act with dignity at Constantius' funeral. Worse, it was in sharp conflict with his image as a kind and merciful ruler. Julian himself had made much of his clemency: in the civil war, the worst he had done was imprison some men, and he had gone out of his way to save the servants of Constantius from his angry troops.⁴¹ He boasted to the philosopher Maximus, his spiritual guide, that his campaign had seen no man executed or fined, and only some who deserved it imprisoned.⁴² Libanius and Ammianus followed his lead and are

³⁵ AM 22.3.11.

³⁶ *ibid.*, 3.7.

³⁷ *ibid.*, 3.5.

³⁸ Libanius, *Or.* 18.152.

³⁹ *CTh* 9.42.5.

⁴⁰ The extent of the purges is downplayed by Bowersock, 1978, 67, Matthews, 1989, 251 ('well-known mildness'); Athanassiadi, 1981, 118 describes his laws as 'islands of humanity in a sea of cruelty'.

⁴¹ Julian, *EA* 281a-b, 285c-d.

⁴² Julian, *ELF* 26.

quick to paint him as unusually merciful.⁴³ It is no surprise, then, that they do their best to acquit him of any blame for what happened at Chalcedon. Libanius handled the episode gingerly, framing it as a specific exception to his general clemency.⁴⁴ He mentioned only those who had been executed and justified the deaths of Paul ‘the Chain’ and Eusebius by their abominable behaviour. The fate of Ursulus was obviously more controversial, and here he alleged that it was not Julian’s fault at all: it was the soldiers, angry that he had deprived them of donatives. Ammianus was a little more circumspect. The inquiry, he said, acted *vehementius* and some of the sentences were unfair, though some were not.⁴⁵ He particularly deplored the fate of Ursulus and also suggests that he was the unhappy victim of a military grudge – he had insulted the soldiers’ *amour propre* by suggesting that they had not been valiant enough in the defence of Amida.⁴⁶ Wrapping up his account of the proceedings he subtly deflected the blame away from his hero. It was really all the fault of Arbitio, that formidable general and chief threat to Julian’s safety, whom he had put in charge of the proceedings – the other judges were there for show.⁴⁷ This apparent condemnation of the new emperor is really an exculpation of him: it had been unwise to place trust in Arbitio, but Julian was not the one with blood on his hands. The trials at Chalcedon were, it is suggested, an unpleasant but uncharacteristic episode and Julian’s reign moved rapidly on to other things. Such a neatly constructed story has proved hard to resist and the historiography has more or less accepted it, occasionally rationalising it a little by suggesting that Julian cut a deal with Arbitio, or the eastern army, when he took the purple: the purges, the price.⁴⁸

Yet, there are reasons to be sceptical of attempts to distance Julian from what happened at Chalcedon, for he began them in response to criticism at the time. After Ursulus’ execution, the emperor found himself under attack for killing a man who had treated him kindly in the past.⁴⁹ Julian, Ammianus tells us, claimed that he had known nothing of the sentence: it was all the fault of the

⁴³ Libanius, *Or.* 18.121; AM 25.4.8-9.

⁴⁴ Libanius, *Or.* 18.152-3.

⁴⁵ AM 22.3.2.

⁴⁶ *ibid.*, 3.7-8, *cf.* 20.11.5.

⁴⁷ AM 22.3.9.

⁴⁸ Most influentially, Thompson, 1947, 74-8. Bowersock, 1978, 67-8; Athanassiadi, 1981, 114-5; Humphries, 2012, 87; Elm, 2012, 64. Humphries, 2012, 132 rightly sceptical. Elm, 2012, 89, sees them as designed ‘to showcase the philosophical life he considered true’. *cf.* Blockley, 1972a, 449-50 for a more nuanced account.

⁴⁹ AM 22.3.7-8.

soldiers, *militaris ira* the culprit. He also handed over to Ursulus' daughter a portion of her father's property – partial abnegation for his cruelty.⁵⁰ In such circumstances, Julian was hardly a dispassionate witness to what had happened – he had form when it came to blaming the army for doing something he wanted. At roughly the same time as he was apparently unable to save Ursulus from the army, Julian snatched the praetorian prefect Helpidius from its jaws, though he seems also to have sacked him.⁵¹ Libanius and Ammianus are simply repeating a fragment of contemporary imperial self-justification (not for the first time). Before this criticism had bubbled up, no one seems to have felt the need to suggest that the tribunal was doing anything other than carrying out Julian's wishes. In his earliest speech in the emperor's honour, delivered soon after he arrived in Antioch, Libanius merely suggested in a matter-of-fact way that Julian had 'exactd punishment from those whom it was wrong not to'.⁵² Before that, he had gloated to a correspondent that he was writing 'to remind you of those old oracles of mine, in which I prophesied that a time would come to demand accounts and unfasten the belts of office'.⁵³ That does not sound like some awkward episode over which he wished to draw a veil – Libanius was enjoying it all. Julian himself, in what is probably the first mention of the tribunal, before it had completed its work, merely says that accusers had risen up against the 'wild beasts' who had served Constantius and so he had set up a court to try them.⁵⁴ This gossipy, candid letter, which breezily concedes that Julian had not expected to win the civil war and had never really disliked Constantius, is likely to be rather closer to the truth than careful *ex post facto* explanations that it was all Arbitio's fault. It looks rather as though the tribunal was doing exactly what Julian had asked of it.

That neatly matches what is suggested by such details of Chalcedon's work as we can squeeze from Ammianus, who had actually read the *acta*, or formal records, of the trial.⁵⁵ He tells us who the judges were: Salutius Secundus, recently made praetorian prefect, was president, joined by Mamertinus, Arbitio, Agilo, Nevitta, and Iovinus, promoted now to be *magister equitum* in

⁵⁰ Libanius, *Or.* 18.152.

⁵¹ Libanius, *Or.* 37.11; *cf.* *PLRE* 'Helpidius 4'. He was not in Antioch in the summer of 361 (Libanius, *Ep.* 625.5) so *pace* Cribiore, 2015, 45-8 he had presumably gone west with Constantius.

⁵² Libanius, *Or.* 13.42; *Ep.* 736.2 for the date.

⁵³ Libanius, *Ep.* 704.5.

⁵⁴ Julian, *ELF* 33.

⁵⁵ *AM* 22.3.4.

Illyricum.⁵⁶ Of these six, four (Secundus, Iovinus, Mamertinus, Nevitta) were Julian's men, the inner circle of his regime: weighed down with belts of office and consular honours.⁵⁷ Agilo and Arbitio had been generals of Constantius, but they were outnumbered. They also, we might note, soon went into 'retirement', re-emerging only during the revolt of Procopius.⁵⁸ It is tempting to conclude that they were sacked, escaping a worse fate by colluding in the ruin of their comrades. The charges brought against the accused also strongly suggest that Julian was behind them. Ammianus is studiously vague about what exactly the *quaestiones* which Julian set in motion were meant to investigate, but the only specific accusations mentioned relate either to the execution of Gallus, or to the fact that the accused had fled to Constantius in the civil war.⁵⁹ It is easy to see why Julian might have resented both those things – rather harder to understand why Arbitio, that old comrade of Constantius and veteran of the turmoil of the 350s, had strong views about them. The setting too hints at a carefully planned exercise. Chalcedon, just across the water from Constantinople, was more easily controlled than that city, stuffed as it was with troops and home to so many who owed Constantius so much. The *Ioviani* and *Herculiani* had not marched with Julian from Gaul, but they had been the regiments which Magnentius had commanded.⁶⁰ Of course, a decade of war and wastage would have thinned the number who had been at Autun to raise the usurper on a shield, but their presence as the spectators of the incident is tantalising. Julian's army had plenty of men who had taken Magnentius' shilling, some even in very senior positions.⁶¹ They had grudges against Taurus and Florentius which Arbitio did not.

Julian's first act as Augustus was a cold and calculated purge of the top ranks of the civilian administration, an attempt to punish the most important servants of his cousin, as well as to take revenge for the fate of Gallus. Not the least significant indication that this was what he was doing at Chalcedon was that he continued to do the same, long after he had left the environs of the capital and Arbitio had gone quietly into retirement. When Julian reached Antioch, prisoners from far away,

⁵⁶ *ibid.*, 3.1.

⁵⁷ On them, see above 248-9, below 285.

⁵⁸ AM 26.7.4, 9.4.

⁵⁹ *ibid.*, 3.3-6.

⁶⁰ Above, 106.

⁶¹ Above, 248-9.

labouring under their chains, soon began to arrive. Further, equally gruesome trials followed. Gaudentius, the *notarius* to whom Constantius had entrusted the defence of Africa in 361, was executed, along with Julianus, a former *vicarius*, ‘an extreme partisan of the same faction’.⁶² Artemius, the *dux Aegyptii*, a man who had supervised the sharper end of Constantius’ ecclesiastical policy in Egypt, suffered the same fate.⁶³ The son of Marcellus, the *magister militum* who had so accurately predicted Julian’s ambitions, was executed – allegedly he had designs on the throne.⁶⁴ The tribunes of the *scholae Scutariorum*, palatine regiments, Vincentius and Romanus were both sent into exile at the same time on similar charges.⁶⁵ Some of these cases probably reflect tensions or accusations at Antioch itself, but others must have been planned long before – someone had to go to Egypt to arrest Artemius, or to Africa to drag Gaudentius back in chains. All this hints that Chalcedon was merely the most spectacular reprisal at the start of Julian’s reign, just as the fate of Helpidius, Arbitio, and Agilo suggests that others were quietly sacked, without being hauled before some hanging judges. Their fellow general Lucillianus (Gallus’ last *comes domesticorum*) seems to have ‘retired’ after his encounter with Julian in 361 – he re-emerged to serve Jovian.⁶⁶ Gomoarius, the *magister militum* sent to hold the pass of Succus against Julian in 361, performed a similar vanishing act, reappearing with Agilo under Procopius.⁶⁷ We might wonder about men like Honoratus, the first *praefectus urbis* at Constantinople, for whom in the winter of 360/1 Libanius predicted higher office still, but who vanished from history after Julian became emperor – he had served Gallus in 353/4.⁶⁸ Or, we might be suspicious about the way that Leonas, who had been *quaestor* in 361, is lost from sight thereafter.⁶⁹ Other names could be added to the list of the ‘disappeared’. Julian seems to have been determined to root out of office the men who had served his cousin, to have something like a clean sweep at the top of the administration – it is only his carefully-curated reputation for clemency which has ever made it seem implausible that he would do such a

⁶² AM 22.11.1. Gaudentius, above 254; PLRE ‘Julianus 10’.

⁶³ AM 22.11.1.

⁶⁴ *ibid.*, 11.2; cf. *Suda*, Σ.63.

⁶⁵ AM 22.11.2.

⁶⁶ PLRE ‘Lucillianus 3’.

⁶⁷ *ibid.*, ‘Gomoarius’.

⁶⁸ *ibid.*, ‘Honoratus 2’; Libanius, *Ep.* 251.5.

⁶⁹ PLRE ‘Leonas’.

thing. It seems, in this light, rather ironic that it was Constantius who ended up with the reputation as a monster of suspicion, a man whose reign was pock-marked with treason trials.

A proper understanding of what happened at Chalcedon is Janus-faced in its implications. It looks backwards, to the story of Julian's rise and quietly reminds us that every anecdote about Marcellus' incompetence, every story of Florentius' peculation, in some sense justified their fates. When Mamertinus said, days after the tribunal at Chalcedon had concluded its work, that the servants of Constantius were venal, wicked, and incompetent, it may have struck his senatorial audience not as an objective commentary on the past few decades, but a recently invented justification for what had happened across the Bosphorus, by someone who had overseen it. Yet, at the same time, Chalcedon should inflect the interpretation of Julian's reign as Augustus. His first act on the throne was to cleanse the upper ranks of the administration of his cousin's supporters, yet the sources skip lightly over the episode, reproducing Julian's claim that it was not really his idea or his fault. Not for the first time, Julian's history turns out to rest on the tottering foundations of contemporary apologetic, a set of defences which obscured what he was really doing. That should make us wary of his next major act as emperor: it is time to cast dyspeptic eye over Julian's efforts to reform the Roman state.

'Reform'

Central to the image of Julian's regime was the idea that it was restoring and reforming the Roman world, that it had broken sharply with its predecessor in ethic and administration. That theme was established early on by Mamertinus. Libanius, ever attentive to such things, was very soon orating on the reform of the *cursus publicus*, the incorruptible nature of Julian's governors, the end of peculation, and the moderation now visible on the imperial table – men no longer needed to bribe or bow and scrape to eunuchs.⁷⁰ It was how Ammianus summed up Julian's time at Constantinople: 'when he was so very diligently pursuing the reform of civil affairs'.⁷¹ We see this laid out, however, not only in literary texts associated with the regime, but in those most interesting documents of what

⁷⁰ Libanius, *Or.* 13.42-4, 14.3.

⁷¹ AM 22.7.7.

people on the ground understood the government to be doing: inscriptions.⁷² So we find Julian as the *restitutor (publicae) libertatis*, or the *restitutor/propagator libertatis et rei publicae*.⁷³ The different intellectual origins of his government are revealed in inscriptions which call him *magister/princeps philosophiae* or say he ‘rules by philosophy’.⁷⁴ Julian’s personal virtue was emphasised: *virtutum omnium magister*, he was an emperor *pollens omni genere virtutum*.⁷⁵ All over the empire, inscriptions speak of the ‘state restored’, by the *recreator curiarum et rei publicae*, the *templorum restaurator*, the *urbium restitutor*, and the *conservator militum et provincialium*, a man who had relieved the provincials of worry by reforming the *cursus publicus*.⁷⁶ Some of these were reasonably common sentiments – plenty of emperors had been praised for restoring liberty, some more plausibly than others – but most were not, and their sheer number in a rather small corpus is striking.⁷⁷ Julian’s government said it was fixing the Roman state, that the *vitia temporum preteritorum* had been *deleta*, and its subjects took note.⁷⁸ Few have doubted that he pursued ‘Justice and Reform’: ‘there was much to correct and amend’ for an emperor intolerant of ‘luxury, bureaucracy and ceremonial’, set on ‘ending many widespread abuses in the empire’.⁷⁹ When he entered Constantinople, ‘his mind was full of plans for the reorganization of the empire’, his ‘sense of its decadence was acute’, his efforts to eliminate ‘waste and ostentation’ ‘one aspect of reform across a broad front’.⁸⁰

That reform started in the palace and the administration. Under Constantius, we are told, this had been a luxurious den of corruption, where those ‘wild beasts’ around the emperor lurked: a glittering world of sycophancy, flattery, and lies.⁸¹ Julian himself contrasted the frank and free

⁷² The bibliography on Julianic inscriptions is considerable, *i.a.* see Bowersock, 2006; Salway, 2012.

⁷³ Conti nos. 167, 177, 144; 128, 28;

⁷⁴ *ibid.*, 28, 30, 26-7, 34.

⁷⁵ *ibid.*, 26-7; 167.

⁷⁶ *ibid.*, 58-61; 17-18, *cf.* 54; 124; 128; 87.

⁷⁷ Conti, 2004, 39-50 contains a good discussion of Julian’s various epithets and how unusual (or not) they were. He catalogues only 192 inscriptions from Julian’s reign.

⁷⁸ Conti, nr. 73.

⁷⁹ Bowersock, 1978, 66-78; at 66, 71.

⁸⁰ Athanassiadi, 1981, 96, developed at length thereafter (97 ff.); Smith, 1994, 4; *cf.* Harries, 2012a, 128-9; Matthews, 1989, 87; Elm, 2012, 63-4. The vision is fundamentally that of Enßlin, 1923; for some doubts see Goffart, 1970. The fantastic obscurity of Pack, 1986’s style (his conclusion, 379-385 is divided into only two paragraphs; some of its sentences are 20 lines long) unfortunately limited the impact of his careful demonstration that Julian’s image as a fiscal reformer (summarised, 223-4) or friend to the curial (256-9) was greatly exaggerated.

⁸¹ *cf.* Mamertinus, above 268.

atmosphere of his own court with the ‘palatial hypocrisy’ of the recent past, spoke of the greed of Constantius’ friends, and bemoaned the influence of eunuchs.⁸² Ammianus calls the palace a ‘nursery of every vice’, where harm to the state was carefully cultivated, bribery and peculation rife, ‘steep abysses of banquets grew ever higher’, and courtiers greedily eyed spots for lavish houses.⁸³ Libanius gives a fuller indictment of the government of Constantius, which occasionally so closely mirrors Ammianus that it may be the historian’s inspiration.⁸⁴ He whips himself into a rhetorical frenzy about the wrongdoing of those in the palace, especially the *notarii*, who ‘went around as the public enemies of those who possessed anything nice’, ransacking patrimonies, destroying cities, trumping up charges, and demanding dignities for themselves.⁸⁵ He widens his gaze to add a condemnation of the *agentes in rebus*, the ‘eyes of the emperor’, who are characterised as terrifying and violent, speeding round the empire, framing a false accusation here, entrapping a respectable citizen there.⁸⁶ They were like watch dogs who associated with wolves, pillaging what they were supposed to protect and looting far and wide.⁸⁷ Their activities and other corruption had caused the near-collapse of the *cursus publicus* – with disastrous effects.⁸⁸ Ammianus agreed that Constantius had ‘severed the sinews of the public transport system (*res vehicularia*)’, and blamed the movement of bishops in particular.⁸⁹ Back in the palace, Libanius deplored the hordes of cooks, eunuchs, barbers butlers, servants – ‘idle men, good only at eating’.⁹⁰ Ammianus has a particularly outrageous story of Julian summoning a man to cut his hair, and being stunned to find a lavishly dressed and well-remunerated figure appear – he dismissed him, though he would have cause at Antioch to regret the loss of his barber.⁹¹

The contrast of a vigorous and ascetic emperor and a gallery of grotesque courtiers could only be to the advantage of the former and the whole encounter between Julian and the *palatini* is

⁸² Julian, *ELF* 32; *Misopogon* 357b, 352a.

⁸³ AM 22.4.2-5.

⁸⁴ Nb. Libanius, *Or.* 18.130 - Τοιαῦτα δὲ περὶ τῶν πρώτων καὶ μεγίστων πεπολιτευμένους βλέψας εἰς τὴν βασιλικὴν θεραπείαν vs AM 22.4.1 – *conversus post haec princeps ad palatinos*.

⁸⁵ Libanius, *Or.* 18.131-4.

⁸⁶ Libanius, *Or.* 18.135-140.

⁸⁷ Libanius, *Or.* 18.140-141.

⁸⁸ Libanius, *Or.* 18.143-4.

⁸⁹ AM 22.16.18.

⁹⁰ Libanius, *Or.* 18.130.

⁹¹ AM 22.4.9-10.

framed as a sort of moral fable: the prophet in Babylon. No doubt there was some truth in it and it is not implausible that some of the banquets at the court of Constantius had been a little too luxurious and that some of his servants found dipping their paws into the imperial moneybags an irresistible temptation. Still, we might be suspicious of a story which is so readily offered up to us, so agreeably presented.⁹² It is a little hard to square the ostentatious luxury of Constantius' court with his acknowledged personal austerity, something which even Ammianus concede him.⁹³ During Julian's reign and in describing it after his death, Libanius made much of the corruption, ignorance, and wickedness of the preceding regime. At the time, however, his attitude had been rather different. Constantius was praised because 'he knows how to honour the finest thing which the gods have granted to man' – philosophy.⁹⁴ Encouraging an old student to give a warm welcome to an orator, he told him 'longing for this man's eloquence has seized the emperor ... seeing this, let no man think rhetoric is without honour'.⁹⁵ He had worried that a friend was too honest as a governor and risked poverty: praise was good, but he must be careful to avoid 'hunger'.⁹⁶ He wrote to Anatolius, the prefect of Illyricum, of his delight at hearing how he had told the emperor:

... rank will in no way whatsoever rescue any man who does wrong, but even if he is one of those who hands down judgements, even if one of those in a position of power should transgress the laws, I will not allow it to be overlooked.

Constantius had praised and permitted such a policy.⁹⁷ The emperor, he said, was careful to put upright men in power over cities, 'whose good-governance is the safeguard of the empire'.⁹⁸

Inconsistency is not the same as error, but Libanius' flexible attitude should at least make us a little uneasy about his wilder claims. For all the talk of unchecked waste, fraud, and abuse, it is not hard to find the government of Constantius pursuing its own reform measures. In 359, there had been a major effort to reorganise the *agentes in rebus*, to chuck out all those *indignis natalibus et conversatione deterrima*, and ensure that it was only hard work and good references which led to promotion.⁹⁹ This

⁹² Found to be 'basically truthful' by Bowersock, 1978, 72; cf. Athanassiadi, 1981, 97.

⁹³ AM 21.16.5-6.

⁹⁴ Libanius, *Ep.* 434.1.

⁹⁵ Libanius, *Ep.* 63.3-4.

⁹⁶ *ibid.*, 332.

⁹⁷ *ibid.*, 552.6-7: ... τῶν ἀδικούντων οὐδένα οὐδὲν ἀξίωμα ῥύσεται, ἀλλὰ καὶ τῶν δικαζόντων τις, καὶ τῶν ἐπὶ ταῖς δυνάμεσι παραβαίνει τοὺς νόμους, οὐκ ἀνέξομαι ἀμελεῖσθαι.

⁹⁸ *ibid.*, 107.1.

⁹⁹ *CTh* 1.9.1.

was one stroke in a steady drumbeat of laws designed to keep the *agentes* on the straight and narrow.¹⁰⁰ At the time, Libanius had mostly been concerned with the keeping the infant sons of friends enrolled in the *schola* of the *agentes*, with all the perks and prerequisites it brought.¹⁰¹ Another thicket of letters suggests that in 357/8, there was a serious effort to reform the corps of *notarii*.¹⁰² Libanius was then keen to grease the wheels of influence in favour of his friends. Again, hypocrisy and falsehood are not identical, but it does suggest the picture was a little more complex than ‘Constantius bad, Julian good’.

If we strip away the moralising rhetoric which hedges round accounts of Julian’s dealings with the palace and administration, what did his ‘reform’ actually involve? It was in fact very simple: he sacked everybody. He drove out the servants, got rid of the *notarii*, who were lucky to escape with their lives, and sent the *agentes* to bed without their supper, as he had long wished to do.¹⁰³ A generation later, Libanius claimed that Julian had made do with only four *notarii* and seventeen *agentes* (in contrast to the 520 and more than 10,000 then).¹⁰⁴ No doubt he was exaggerating a little, but Julian’s own legislation envisaged that there would be no more than 50 *domestici* (distributed among the *scholae*) in his presence.¹⁰⁵ It is not hard to find *palatini* who had fallen foul of Julian: they crop up anecdotally in Ammianus with alarming regularity. We meet two *agentes*, recently sacked, who offered to betray to the emperor the hiding place of the fugitive Florentius.¹⁰⁶ We encounter a *palatinus*, who had been cast out of the palace and found himself in court before Julian.¹⁰⁷ By 363, Libanius was using the fact that two men had served Constantius and the new regime as a way to introduce them, as though that were not true of the bulk of people in government.¹⁰⁸ This clearing out of the administration took place very early in Julian’s reign, complete by the start of 362.¹⁰⁹ As the troops at Chalcedon were stoking the fires for Paul and

¹⁰⁰ *CTh* 6.29.1-5.

¹⁰¹ Libanius, *Ep.* 362.6-7.

¹⁰² *ibid.*, 358, 359, 365, 366.

¹⁰³ *AM* 22.4.1, 10; Libanius, *Or.* 18.130, 131, 134, 141.

¹⁰⁴ Libanius, *Or.* 2.58, *cf.* 18.135 for ἀγγελίας οἱ φέροντες as the *agentes*.

¹⁰⁵ *CTh* 6.24.1.

¹⁰⁶ *AM* 22.7.5.

¹⁰⁷ *ibid.*, 10.5.

¹⁰⁸ Libanius, *Ep.* 1367.1.

¹⁰⁹ *AM* 22.4 vs 22.7.1 (the 1st of January 362).

Eusebius, Julian was engaged in dismissing the vast bulk of those employed in the central imperial administration. It is hard not to conclude that these were part of the same process: getting rid of the government of his predecessor. Gregory of Nazianzus, at least, was clear-sighted about this:

And it was for this reason that he remodelled the imperial <administration>, first leading away some secretly to death, pushing aside others, not only because they were well-disposed to the great emperor [sc. Constantius], but because they were more well disposed to the greater <emperor> [sc. God], and worthless to him on both counts.¹¹⁰

Gregory was in a position to know: his brother Caesarius was Julian's doctor.¹¹¹ In the palace, it turned out that 'reform' looked quite a lot like the settling of scores. That casts all those tales of debauchery and corruption – stories already being spun on the 1st of January 362, as the sacked *notarii* crept away from the palace – in a rather different light. Regardless of whether they were true, false, or somewhere in between, in 361/2 they were useful to the new regime. Like the stories of Eusebius' conniving, or Florentius' incompetence, they justified what looks rather more like a brute exercise in power-politics than a high-minded attempt to set the Roman state in order. All those charges of puffery and peculation were in the service of an agenda which had objects other than good governance and ascetic administrators.

That should make us think very carefully about some of Julian's other flagship reforms. A detailed examination of these – the attempts to regulate *suffragium*, to limit *aurum coronarium*, to bolster the cities – would fill weighty tomes: several such works already exist.¹¹² Yet, they tend to start from the presupposition that the portrait of Constantius' regime which we get in the pages of Julian and his supporters is pretty close to the truth and that his successor was sincerely trying to sort out genuine problems. If instead Julian's main object when he came to the throne was to purge the administration of those who had supported Constantius, then it becomes possible to take a very different view of what 'reform' really meant. A case study brings this out nicely. Almost as famous as the *Götterdämmerung* of the *bon-vivant* that was Julian's court was his reform of the *cursus publicus*. Much ink has been spilled on the grave necessity of this measure, the abuses from which

¹¹⁰ GN 4.64: Καὶ διὰ τοῦτο μεταποιεῖ μὲν τὰ βασίλεια, τοὺς μὲν θανάτῳ προὔπεξαγαγὼν πρότερον, τοὺς δὲ παρωσάμενος· οὐχ ὡς εὖνους τῷ μεγάλῳ βασιλεῖ μόνον, ἀλλὰ καὶ ὡς εὐνουστέρους τῷ μείζονι, καὶ ἀλυσιτελεῖς αὐτῷ κατ' ἀμφότερα.

¹¹¹ GN, *Ep.* 7; *Or.* 7.11-13; *PLRE* 'Caesarius 2'. *pace* Elm, 2012 *passim*, *Or.* 7.14.2 implies that Caesarius 'retired' during Julian's reign.

¹¹² *e.g.* Pack, 1986, 224-259 on the city councils.

the system suffered, and the nobility of Julian's attempt to sort them out.¹¹³ This was an early 'reform': the first law on it was posted at Syracuse by the 22nd of February 362, so it must have been issued in the winter of 361/2.¹¹⁴ That law has quite a specific object and apparent justification: too many *evectiones*, or permits to use the *cursus publicus*, were being issued by governors and *vicarii*, and the system was exhausted. In the future, Julian would issue 10 or 12 permits a year (written in his own hand!) to the *vicarii*, and praetorian prefects could give two to each governor, to which Julian would add a third so they might report to him. This would certainly have cut down on the number of people using the *cursus* and it is not hard to believe Libanius when he claims that the animals which served it were now luxuriously underemployed.¹¹⁵

What might explain this extraordinary restriction, Julian staying up at night to copy out postal warrants? Despite much effort to portray them as a sort of secret service, the chief duty of the *agentes* was in fact the inspection of the *evectiones* which travellers on the *cursus publicus* bore.¹¹⁶ Now in practice, they could of course do other things as they patrolled the highways and Constantius had certainly used trusted *agentes* in difficult situations, but warrant-watching was their main job. When he legislated on the *cursus*, Julian had just sacked all the *agentes*. Without them, it was much more difficult to prevent its abuse. Sharply restricting the number of available *evectiones* was not a thought-through reform of an important institution: it was a scramble to deal with the consequences of clearing out the administration.¹¹⁷ It did not work. By June of 362, Julian was mumbling in his legislation (at the suggestion of the *comes sacrarum largitionum*) that governors must issue enough *evectiones* to make sure revenue came in promptly.¹¹⁸ By September, he was complaining that even if it was not possible to detain a man who had exceeded his *evectio*, his name should at least be recorded – he found himself forced to define what a 'supplementary post-horse' or *parhippus* was.¹¹⁹

¹¹³ e.g. Bowersock, 1978, 75; Athanassiadi, 1981, 105; Kolb, 1998 though rightly sceptical of any view of this as a fundamental reorganisation of the system.

¹¹⁴ *CTh* 8.5.12.

¹¹⁵ Libanius, *Or.* 18.145.

¹¹⁶ For them as secret service see (e.g.) Sinnigen, 1959. Pharr, throughout his translation of the *CTh* renders *agentes in rebus* as 'members of the secret service' (cf. Rolfe, 1935-40). See e.g. *CTh* 6.29.2 of 355^s. cf. Drinkwater, 1983, esp. 363-7.

¹¹⁷ cf. Kolb, 1998, 355 who disconnects the two measures.

¹¹⁸ *CTh* 8.5.13.

¹¹⁹ *CTh* 8.5.14.

These were the kinds of things the *agentes* would have dealt with before. Ironically, one of the victims of the chaos in the *cursus* was Julian's friend, the philosopher Eustathius, whom the emperor had summoned to see him, and then dismissed when he fell ill – on both occasions he granted him the use of a public carriage and some horses.¹²⁰ The permit for the return never arrived and Eustathius wrote a delicately-wrought thank-you note about how much he had enjoyed his leisurely journey – plenty of stopping for lunch and reading Plato.¹²¹ For all the high-minded talk of the *res publica recreata*, 'reform' looks like it was very much secondary to revenge.

Julian's government

By the end of January 362, Julian had executed, exiled, or sacked a huge number of those who had served Constantius. In the upper reaches of the administration and army, the process was remarkably comprehensive: all the most important administrators and generals were out. In the *officia*, it seems to have been equally thorough: Ammianus criticised Julian (very mildly) for not keeping on the tiny number who had some merit.¹²² There had been a revolution in government. Julian's regime, Mamertinus assured his listeners, would be staffed only with Top Men: the best and brightest, the incorruptible and the exceptional.¹²³ He had a lot to say on the subject and so did Libanius, who exulted to a friend that 'the emperor is ornamented by the nature of those men he has chosen'.¹²⁴ The many virtues of the new ruler's servants were a point of pride to his supporters, a signal that things had changed, that 'barbarians', who 'though they wrote with speed, had no sense at all', were out, and men 'who knew how to speak', men 'filled-full of verse and prose', were now in power.¹²⁵ Julian, it seemed, would govern in poetry. Who were these eloquent fellows, present at the creation of this new golden age? To understand Julian's empire, we need to get some sense of the men to whom he entrusted its government. We can do that, because the extraordinarily rich evidence

¹²⁰ Julian, *ELF* 34-5.

¹²¹ *apud* Julian, *ELF* 36.

¹²² AM 22.4.2.

¹²³ Above, 268. Athanassiadi, 1981, 119 agrees, Julian like a careful jeweller in his selection of men; *cf.* Smith, 1994, 43-4.

¹²⁴ Libanius, *Ep.* 791.2 dated 362/3.

¹²⁵ Libanius, *Or.* 18.158. *cf.* 13.43-4.

for Julian's reign gives us an unusually thick description of the administration. In particular, the gossipy, squabbling, influence-peddling, eloquent letters of Libanius give an insight into the world of the eastern governing class which is quite exceptional.¹²⁶ Any account which tried to analyse Julian's administration *in toto* would be very lengthy indeed – better to be brief and pick out its most important characteristics.

At the heart of government, Julian's men were comrades of Gallic days: his consuls, prefects, and *magistri militum* were veterans of his rise to power. In fact, they were mostly drawn from the men who had been with him at Augst in early 361, just before he had launched his descent on the east. Mamertinus and Nevitta, his first two consuls, praetorian prefect and *magister militum*, had both been there, as had Flavius Sallustius, consul with Julian in 363, whom he had sent back to Gaul as praetorian prefect.¹²⁷ Iovius, the *quaestor*, Iovinus, the *magister militum per Gallias*, and Dagalaifus, the *comes domesticorum*, had also been in the little band which surrounded the emperor at the start of the civil war. Secundus Salutius, the other praetorian prefect, had joined Julian only in the east, to oversee the trials at Chalcedon, but had, of course, been with him in Gaul.¹²⁸ Anatolius, the *magister officiorum*, had been appointed already at Paris.¹²⁹ Helpidius, the *comes rei privatae*, had visited Julian in Gaul before 358 and then returned to the east, to perform various (unspecified) tasks for him.¹³⁰ His colleague in the imperial finances, Felix, the *comes sacrarum largitionum*, had been a *notarius* in Gaul, Constantius' candidate to be *magister officiorum* after the coup.¹³¹ When Julian came to the throne in 361, not only did he remove from power those who had served his cousin – he replaced them with tried loyalists, men who had been with him when all looked most desperate. At the very top, this was a revolutionary government or, at least, a government of revolutionaries.

That raises the interesting problem of who served in the broader ranks of the administration. This is a difficult question, for while the evidence is very rich, it is also diffuse. Libanius and Mamertinus say that Julian's governors were very different men to their predecessors, but neither

¹²⁶ Petit, 1994 catalogued 297 officials known to Libanius (including some from the 380s and 390s).

¹²⁷ *CLRE*, 258-261.

¹²⁸ Above, 248-9.

¹²⁹ Above, 249.

¹³⁰ *PLRE* 'Helpidius 6'. Libanius, *Ep.* 35.3-5.

¹³¹ *PLRE* 'Felix 3'.

offers a detailed account of the changes the emperor made, no equivalent to the precise testimony which Ammianus gives for events on the Bosphorus in the winter of 361/2. To get some sense of what Julian's regime meant more generally, we might start by asking who in it had survived the turmoil of his accession. The list is remarkably short. Domitius Modestus had been *comes Orientis*, the president of treason trials at Scythopolis in 359.¹³² He went on to serve as *praefectus urbis* at Constantinople under Julian. Aelius Claudius Dulcitius had had a long and prosperous career under Constantius, and was proconsul of Asia for Julian.¹³³ Maximus, who had been governor of Armenia in 361, found himself re-employed as the governor of Galatia in 362/3.¹³⁴ Ambrosius, an occasional correspondent of Libanius, still held in 365 the office first attested in 359, though what that was is far from clear.¹³⁵ Ulpianus seems to have governed Cappadocia from 361 through to 363, without intermission.¹³⁶ Iulianus had been governor of Phrygia before 362 and would go on to serve Julian as *comes orientis*, but then he was uncle to the new emperor.¹³⁷ Another kinsman was Procopius, the unhappy usurper, who had been a senior *notarius* (trusted with a confidential mission to Persia in 358), and was a *comes* under Julian.¹³⁸ Discounting relatives, we have a grand total of five individuals who made the transition from the government of Constantius to that of Julian.

Of course, that figure is almost certainly wrong: our sources are not comprehensive, and into a lacuna many a dull and thankless governorship spent judging cases about boundary stones may have slipped. At the margins, there are difficult cases which might change our calculation and which present real problems of reconstruction. A Calliopius with whom Libanius corresponded in the 350s was at the court of Constantius: 'the emperor saves the cities by his victories, but you save the victories by your eloquence!'¹³⁹ A Calliopius was the *consularis* of Macedonia in 362, present in Thessalonica when Himerius delivered a speech.¹⁴⁰ Nothing explicitly links these two ghostly figures – were they the same person? Seeck cautiously pointed out that they could be, Jones silently argued

¹³² *ibid.*, 'Modestus 2'.

¹³³ *ibid.*, 'Dulcitius 5'.

¹³⁴ *ibid.*, 'Maximus 19'.

¹³⁵ *ibid.*, 'Ambrosius 2'.

¹³⁶ *ibid.*, 'Ulpianus 3'.

¹³⁷ *ibid.*, 'Iulianus 12'.

¹³⁸ *ibid.*, 'Procopius 4'.

¹³⁹ *ibid.*, 'Calliopius 2'; he was a pagan, see Conti, nr. 54.

¹⁴⁰ The *titulus* to Himerius *Or.* 39 reveals this; *pace PLRE* it is Himerius, not Julian, who is hastening east.

that they were.¹⁴¹ He may be right, but the name is not so rare that he must be. Yet, even making due allowance for what we do not know and that of which we cannot be certain, the fact remains that at a moment when we are very well-informed about the governing class, we can find only a sprinkling of individuals who charted a course between 361 and 362. Without much explicit evidence, it looks very much as though Julian's vindictive activities at the start of his reign were not confined to the court and the palace.

What united those Gallic *bravados* and these few servants of Constantius? At first sight, very little. They came from different ends of the empire, had had very different careers, spoke, no doubt, different languages. The only thing that they really had in common was religion, or, more strictly, the absence of one religion in particular: Christianity. Only one of them – Iovinus, who built a church at Reims – was certainly a Christian.¹⁴² About the faith (if any) of Nevitta, of Ursulus, of Ambrosius, and, surprisingly, of Procopius, we are ignorant. The rest, however, were all pagan. Mamertinus is relatively coy when it comes to matters of belief in his panegyric, but his disingenuous references to the return of Philosophy from exile and the freedom men now enjoyed to gaze on the stars are revealing enough.¹⁴³ Sallustius was a pagan, and so too was Secundus Salutius, the dedicatee of Julian's hymn to king Helios, and the likely author of the tract 'On the Gods and the Universe'.¹⁴⁴ Anatolius accompanied Julian on an excursion to sacrifice to Zeus at Mt Casius, and Libanius wrote him a cheery note for the journey: 'may you sacrifice with good omens and meet the gods'.¹⁴⁵ He told Aelius Claudius Dulcitius that he felt like bringing a charge against god that he ruled Asia, not Antioch.¹⁴⁶ He wrote to Maximus 'May the eye of Zeus ... carry you through the magistracies to the prefect's throne!'¹⁴⁷ Even more striking than the number of pagans in this odd coalition, is the number of those who had only recently discovered an affection for the old gods. Helpidius had perhaps been converted by Julian when he was in Gaul, judging by the sly way that Libanius had

¹⁴¹ *BL*, 101.

¹⁴² See above, 248-9.

¹⁴³ *Pan. lat.* 3.23.4-6.

¹⁴⁴ For Sallustius, above, 248; Secundus Salutius, see Julian, *Or.* 4, *titulus*. For the tract see Nock's edition, with discussion of authorship at ci-civ.

¹⁴⁵ Libanius, *Ep.* 739.1.

¹⁴⁶ *ibid.*, 278.1.

¹⁴⁷ *ibid.*, 791.4.

written to the Caesar ‘you have been Helpidius’ teacher in these fine things, though he is older than you’ – arts which had made him a better man.¹⁴⁸ Addressing Julian in 362, the sophist described Felix as ‘lately a friend to the gods, who had you as his guide to things divine’.¹⁴⁹ He urged Domitius Modestus to show favour to a mutual friend ‘by those gods you have long admired and with whom you are now in agreement’ – a delicate acknowledgement that his friend’s opinions had recently evolved on the subject.¹⁵⁰ Julian’s homonymous uncle was also a recent convert, to whom in 362 the embellishment of the temple at Daphne was entrusted.¹⁵¹ To get into Julian’s inner circle, or to survive the tumult of Chalcedon, it evidently helped if you were prepared to put a pinch of incense on the altar.

This hints at a wider fact about Julian’s government: there were no Christians in it, or at least, none we can detect.¹⁵² Everywhere we look, his officials were not only pagan, but often ostentatious in their paganism. His *praefectus urbis Romae*, Lucius Turcius Apronianus was a *quindecimvir sacris faciundis*, prepared to drag an accused charioteer from the church in which he had sought sanctuary.¹⁵³ His proconsul of Africa, Clodius Octavianus, was a *pontifex maior*, though that did not prevent him hiding in a priest’s house when out of favour under Valentinian.¹⁵⁴ Volusius Venustus, the *vicarius* of Hispania, father to Nicomachus Flavianus, was surely a pagan as well.¹⁵⁵ Aradius Rufinus, the *comes orientis*, supplicated a god for Libanius’ health.¹⁵⁶ All these were part of a senatorial embassy to Julian at the start of 363, and he appointed them as a conspicuous mark of honour.¹⁵⁷ Their religious uniformity, however, was not atypical, was not some quirk of a delegation dominated by pagans. Iulius Festus Hymetius, the *vicarius* at Rome, had revived a provincial cult.¹⁵⁸ Vettius Agorius Praetextatus, the proconsul of Achaëa, positively collected priesthoods.¹⁵⁹

¹⁴⁸ *ibid.*, 35.3-4. Philostorgius 7.10 for his conversion.

¹⁴⁹ Libanius, *Or.* 14.36; cf. Philostorgius 7.10, Libanius, *Or.* 14.35.

¹⁵⁰ Libanius, *Ep.* 804.5.

¹⁵¹ Julian, *ELF* 80. cf. Philostorgius 7.10.

¹⁵² cf. Haehling, 1978, 537-547, though confined to the most senior figures.

¹⁵³ *PLRE* ‘Apronianus 10’; *AM* 26.3.3.

¹⁵⁴ *PLRE* ‘Octavianus 2’.

¹⁵⁵ *ibid.*, ‘Venustus 5’.

¹⁵⁶ *ibid.*, ‘Rufinus 11’; Libanius, *Ep.* 1374.

¹⁵⁷ *AM* 23.1.4.

¹⁵⁸ *PLRE* ‘Hymetius’.

¹⁵⁹ *ibid.*, ‘Praetextatus 3’.

Alexander, made *consularis Syriae* to punish the Antiochenes, was so zealous that Libanius urged him to moderation: he should not react too harshly if someone recently converted to sacrifice experienced pangs of guilt.¹⁶⁰ A swathe of governors can be picked out as worshippers of the gods: Belaeus in Arabia, Celsus in Cilicia, Memorius, his successor, Entrechius in Palestine and Pisida, Leontius in Palestine, Gaianus in Phoenicia, Atarbius in Euphratensis.¹⁶¹ Gregory of Nazianzus claimed that:

The governorships of provinces were entrusted not to those who were most able, but to those who were most inhuman, and there was one recommendation for rule, apostasy, and one for obtaining gifts from him, that men wished for the worst fate for themselves.¹⁶²

On the evidence of the prosopography and adjusting for the outraged and polemical tone, it is not obvious he was wrong.

In a way, that should not come as a surprise. Julian himself remarked that magistrates ‘are, after a fashion, priests of the gods, for they are guardians of the laws’.¹⁶³ Himerius, who had raced to meet the new emperor in Constantinople, gave there a speech in which he set out the ideal qualities of the governor: ‘let him erect shrines to the gods and let him propitiate the higher power and make it the city’s friend’.¹⁶⁴ In his address to Julian on January the 1st 363, Libanius said quite matter-of-factly that the emperor expected his soldiers to sacrifice – they needed divine protection.¹⁶⁵ In his plea on behalf of Aristophanes, a plea ultimately answered when Julian granted him office, religion was central to Libanius’ case: Aristophanes had been a pagan during the long winter of Constantius’ reign, so he deserved favour now.¹⁶⁶ All that talk of eloquence in government also had a not-so-hidden agenda. Julian, Libanius said, ‘thought eloquence and the rites of the gods to be sisters’.¹⁶⁷ His two most important acts were to ‘advance the gods, and the gods’ greatest gift, eloquence, from

¹⁶⁰ *ibid.*, ‘Alexander 5’. Libanius, *Ep.* 1411.1.

¹⁶¹ *PLRE* ‘Belaeus’; ‘Celsus 3’ (*cf.* Libanius, *Or.* 18.159, *Ep.* 736.1); ‘Memorius 1’ (Julian, *Or.* 7.223b); ‘Entrechius 1’ (Libanius, *Ep.* 901.4, for his special kinship with Julian and Secundus Salutius); ‘Leontius 9’, (Libanius, *Ep.* 1493.4); ‘Gaianus 6’ (Libanius, *Ep.* 1364.9); ‘Atarbius’ (Julian, *ELF* 83).

¹⁶² GN 5.19: αἱ δὲ τῶν ἐθνῶν ἀρχαὶ οὐ τοῖς ἐπιεικεστάτοις, ἀλλὰ τοῖς ἀπανθρωποτάτοις ἐνεχειρίζοντο· καὶ μία ψῆφος ἦν εἰς ἀρχὴν, ἡ παράβασις, καὶ τὸ τυχεῖν τῶν παρ’ ἐκείνου δωρεῶν, τοὺς τὰ κακίστα περὶ ἑαυτῶν βουλευσαμένους.

¹⁶³ Julian, *ELF* 89.296c.

¹⁶⁴ Himerius, *Or.* 41.14.

¹⁶⁵ Libanius, *Or.* 12.90.

¹⁶⁶ Libanius, *Or.* 14.41-3.

¹⁶⁷ Libanius, *Or.* 18.157.

the uttermost dishonour to honour'.¹⁶⁸ Philosophy too was not the dry study of Aristotelian categories: it was what had led Julian from his false beliefs about the divine to the true gods.¹⁶⁹ Without quite saying explicitly that Christians had no place in his government, Julian evidently expected his servants to hold pagan beliefs and to do pagan things: 'the friend of Zeus he thought his own friend.'¹⁷⁰ That there was little room in his government for Christians is something reflected in the sheer density of his religious activity. His palace was a temple, we are told, the garden studded with altars so he could sacrifice, for the weight of public business made it hard for him to go to the temples.¹⁷¹ When he pressed the flesh with city-councillors, he liked to do so in the precincts of the gods, close to their images.¹⁷² He handled judicial business at festivals and sacrifices and had a disconcerting habit of making windows into litigants' souls.¹⁷³ He went everywhere flecked with the gore of sacrifice, for he sacrificed at all times, even (it is said) scorning those traditions which held that particular days were not suitable.¹⁷⁴ In the *Misopogon*, he describes his own punishing ritual round, a whirl of shrines and sacrifices.¹⁷⁵ When he went to the temples, he was accompanied by the majority of those who held office.¹⁷⁶ This was not like Constantius or Constans being surrounded at court by bishops, or processing to church on a Sunday, while pagan prefects discreetly absented themselves—this made it difficult for any practicing Christian to work with Julian. Gregory of Nazianzus was clear-sighted about this: the net effect would be to shut Christians out of public life, 'the assemblies, the agoras, the festivals, and the courts'.¹⁷⁷ To govern for Julian, it seemed, was to share his beliefs.¹⁷⁸

¹⁶⁸ Libanius, *Or.* 18.161.

¹⁶⁹ Libanius, *Or.* 12.33.

¹⁷⁰ Libanius, *Or.* 18.125.

¹⁷¹ Libanius, *Or.* 12.81 = 18.127 (with Smith, 1994, 131-2, cautiously refuting 'Mithraic' readings of the allusions here).

¹⁷² Libanius, *Or.* 18.163.

¹⁷³ *Suda*, I.437; AM 22.10.2.

¹⁷⁴ Libanius, *Or.* 12.80.

¹⁷⁵ Julian, *Misopogon* 346a-c.

¹⁷⁶ Julian, *Misopogon* 344b.

¹⁷⁷ GN 4.96. cf. Bradbury, 1995, 346-7.

¹⁷⁸ cf. Elm, 2012, 65-6 for a Julian with an 'equal opportunity approach'.

To the brink?

Thus, when Julian claims that he was tolerant or when Libanius crows that Christians had expected another persecution, but the high-minded emperor had shunned ‘fire and iron, drowning and burial alive, mutilation and laceration’, we have some reason to be sceptical.¹⁷⁹ In the historiography of emperor and Galilean, two areas have loomed especially large. First, Julian’s attempt to make paganism great again: his philosophical and theological views and the institutional arrangements which he put in place to enact them.¹⁸⁰ Second, his efforts to drive Christian teachers from education and more closely intertwine *paideia* and paganism.¹⁸¹ Both are rich and rewarding topics, but they have perhaps been slightly too much emphasised. It is possible to overrate the importance of intellect to what Julian was doing, to focus too much on the efforts of pagans to warm themselves with the embers of their grandfathers’ passions, and to see the moment as coherent and long-planned, not rushed and chaotic. Equally, we might have heard rather less about Julian’s attempts to regulate eloquence, had education not been so central to Gregory of Nazianzus’ vision of himself, who thus bore this measure by the ‘sophist of wickedness’ especially ill.¹⁸² The broader question of Julian’s engagement with his Christian subjects is fiendishly difficult, the mass of material almost overwhelming, the historiography exhaustive, but recent work has tended to paint a Julian who ‘sought to teach and integrate and not to punish the demented’.¹⁸³ Any full analysis would be kaleidoscopic in its complexity, but we can perhaps think through a few of the ways in which provincials would have felt the tug of their emperor’s religion: the aftershocks of those ‘plain and

¹⁷⁹ Julian, *ELF* 83; Libanius, *Or.* 18.121.

¹⁸⁰ e.g. Bowersock, 1978, 85-8; Barnes, 1998, 155-162. Athanassiadi 1981’s focus is *passim* on Julian’s theological and philosophical views (radical and original), but in particular see 121-160, 181 ff. for his ‘universal *ecclesia*’, focused on his appointment of and hopes for priests. For a sharply contrasting approach (a Julian rooted in the traditional cults), see Smith, 1994, *passim*, e.g. 110-111 on the alleged theurgic inspirations for the ‘church’. Elm, 2012, *passim*, e.g. 106-139 on the orations written at Constantinople, 321-327 on his expectations for priests (a sophisticated Julian, in dialogue with contemporary Christian writings). On his philosophical views, see the papers collected in Schäfer 2008. On institutional matters, the bibliography is vast: see the influential studies of Koch 1927-8; Greenwood, 2017; Nesselrath, 2013 (part II).

¹⁸¹ See AM 22.10.7, 25.4.20. The bibliography is gargantuan (e.g. Bowersock, 1978, 83-5; Smith, 1994, 212-4; Elm, 2012, 139-143), but a few of the most important items are: Pricoco, 1980; Banchich, 1993; Germino, 2004; Goulet, 2008; McLynn, 2014, which seems to me compelling.

¹⁸² GN 4.4 (first mention of the law), 100 (GN a lover of eloquence), 27 (sophist).

¹⁸³ Elm, 2012, 326; cf. Marcos, 2009; Bouffartigue, 2007; Teitler, 2014, 80 ff.

simple decrees' by which Julian tried to 'open the temples, bring victims to sacrifice, and restore the worship of the gods'.¹⁸⁴

First, perhaps, they would have noticed the sharp change in imperial rhetoric. They would have learnt that they were not 'Christians' but 'Galileans' ('for out of Galilee ariseth no prophet') – Gregory of Nazianzus believed Julian had even passed a law ordering them to be called this.¹⁸⁵ They would have heard in Julian's letters how 'through the stupidity of the Galileans almost everything has been overthrown' and that it was necessary for the 'pious' to be shown favour ahead of them.¹⁸⁶ They would have been told that their doctrinal disputes were 'madness', that they were 'impious Galileans, like some disease', or 'hateful Galileans'.¹⁸⁷ They might have heard tell of the *Misopogon*, not without its share of abuse of their faith – knowledge of the tract had made it even to Nazianzus.¹⁸⁸ At Constantinople, they could have watched Himerius, as he said that Julian 'by his virtue has cleansed the darkness which prevented us from stretching forth our hands to the sun'.¹⁸⁹ They might have learnt that the emperor cheerily intended to 'cleanse' the Roman people of the 'stain of godlessness', that he thought their monks ('solitaries') to be greedy for worldly gain.¹⁹⁰ At Antioch, they might have heard Julian describe the Christian empire as the 'cloud of godlessness', Christians as 'crones who wallow amidst the tombs', or Libanius call them 'mere swine'.¹⁹¹ Many in the city must have known that he spent the long winter nights composing a detailed refutation of their faith.¹⁹² They would have learnt that he was furious with them for the disrespect that they had shown him and the gods.¹⁹³ At Alexandria, they could have read that their emperor was ashamed that even one citizen was a Christian, that they had placed themselves 'in willing slavery to those men who have utterly

¹⁸⁴ AM 22.5.2. cf. the brilliantly lucid Smith, 1994, 207-216.

¹⁸⁵ GN 4.76. John, 7.52. See in general Scicolone, 1982.

¹⁸⁶ Julian, *ELF* 83.

¹⁸⁷ Julian, *ELF* 46; 89a, cf. 107, *Or.* 7.224b; 111.

¹⁸⁸ GN 5.41.

¹⁸⁹ Himerius, *Or.* 41.8.

¹⁹⁰ Julian, *Or.* 5.180b, 7.224b. Libanius, *Or.* 18.157 for their composition at Constantinople.

¹⁹¹ Julian, *Misopogon* 343d, 362c; Libanius, *Or.* 12.90.

¹⁹² Libanius, *Or.* 17.18; Smith, 1994, 190-207 for a sensitive discussion of the *CG*.

¹⁹³ Julian, *Misopogon* 356d-357a.

neglected their ancestral teachings'.¹⁹⁴ At Bostra, they would have read that Christians deserved pity, not hatred, that they 'had turned from the Gods to corpses and human remains'.¹⁹⁵

This was not mere rhetoric, the pose of vigorous imperial religion tempered by the reality of administrative indifference. The provincials would have found that the men suddenly ruling over them were all pagans, that the Christian servants of Constantius had crept back home in disgrace. They would have noticed Christian clergy, stripped now of their immunities, being pressed into the city councils and observed that traditional Christian funerals were now prohibited.¹⁹⁶ If they saw the emperor, if they wished, like the large number of Egyptians who descended on Constantinople in 361/2, to petition him, they would have experienced his blood-soaked schedule.¹⁹⁷ Even if they did not, they would have been exposed to images of the gods on imperial portraits, or, as at Antioch, have to watch sacrifices if they went to the races or the theatre.¹⁹⁸ To engage with Julian's regime, even at the margins, was to experience its religion. This passive presentation of paganism, was matched by a more active pressure to adhere to it. Julian said he was repelled by the idea of those who did not truly share his beliefs partaking of the same rites – Christians had to undergo ritual purification before they could join in sacrifice.¹⁹⁹ In practice, however, he turned a blind eye to a little compulsion in matters of religion. He was quite happy to 'encourage' the army to sacrifice and from Constantinople he sent the philosopher Pythidorus as a herald of his pagan restoration, 'to sprinkle every altar with blood'.²⁰⁰ Libanius had to urge Alexander, the governor of Syria, not to use threats and arrests, fetters and flogging to foster devotion at Apamea: 'it is not a festival when a man sacrifices while lamenting and expecting chains'.²⁰¹ He found himself pleading on behalf a friend who was accused of undermining the return to sacrifice, and his letter hints that there were many who had reluctantly gone to the altars and now regretted it.²⁰² Yet, the sophist was not above suggesting to his fellow citizens that it was only a return to the old gods which could assuage Julian's fury with them: 'ceasing this nonsense,

¹⁹⁴ Julian, *ELF* 111.

¹⁹⁵ Julian, *ELF* 114.

¹⁹⁶ *CTh* 13.1.4; Julian, *ELF* 54, 136.

¹⁹⁷ *AM* 22.6.

¹⁹⁸ Julian, *ELF* 48; Libanius, *Ep.* 811.4.

¹⁹⁹ Julian, *ELF* 114.

²⁰⁰ Julian, *ELF* 26; Libanius, *Ep.* 694.6.

²⁰¹ *ibid.*, 1351.4-5.

²⁰² *ibid.*, 1411 esp. 1.

hand over the city to Zeus and the other gods'.²⁰³ That awesome weight of imperial displeasure was not confined to Antioch either. When Julian arrived at Beroea, sacrificed a white bull to Zeus, and then quizzed the municipal senate about their religious views, did he really expect them to speak the unvarnished truth?²⁰⁴ The emperor had been quite clear that there would be favour for cities and men who followed the gods.²⁰⁵ Many, Gregory of Nazianzus suggests, felt the rip-tide of imperial opinion.²⁰⁶ This pressure was not something confined to the literary imagination. All over the empire, we can see cities scrambling to assert their pagan credentials.²⁰⁷ So, when Miletus praised Julian as 'the lord of the land and the sea and every race of men', they were careful to note that they were the 'nurse of Didymean Apollo'.²⁰⁸ Ephesus called him *philosophiae princeps*, while Iasos said he 'was emperor by virtue of his philosophy'.²⁰⁹ Caesarea Philippi honoured Julian (on behalf of the 'Phoenician people') as the 'restorer of the temples'.²¹⁰ This was not a phenomenon confined to the east either: the council of Brescello (in Emilia) winked at his religion in describing Julian as *venerandus*, while that of Thibilis baldly said he was the *restitutor sacrorum*.²¹¹ In Tunisia, a dedication was erected to *Sol invictus* for Julian's health, while in Numidia he was said to be the *restitutor Romanae religionis*.²¹² At Batnae, when the emperor came through, they had rather overdone things, and even he was taken aback by the clouds of smoke from sacrifices, while passing orators told Libanius of the sheer number of sacrifices at Seleucia.²¹³ Cities like Philippi or Thessalonica could exploit the passing through of someone like Himerius to assert their 'Hellenic' credentials.²¹⁴ They were paying attention in the provinces.

Julian's subjects would have been able to detect the change in imperial priorities, the pressure to adhere, watched local notables knuckle under and put up a statue to the new emperor.

²⁰³ Libanius, *Or.* 16.46.

²⁰⁴ Julian, *ELF* 98.

²⁰⁵ Julian, *ELF* 83.

²⁰⁶ GN 4.11.

²⁰⁷ cf. Smith, 1994, 211; in general Greenwood, 2014.

²⁰⁸ Conti, nr. 36.

²⁰⁹ *ibid.*, nr. 26, 34.

²¹⁰ *ibid.*, nr. 18.

²¹¹ *ibid.*, nr. 74, 176. I can find no instance of an emperor before Julian being called *venerandus*.

²¹² *ibid.*, nr. 132, 167.

²¹³ Julian, *ELF* 98; Libanius, *Ep.* 1361.3.

²¹⁴ Himerius, *Or.* 39.6-7, 40.2 *e.g.*.

They might well have felt tendrils of one other imperial measures in particular. On the 4th of February 362, the order was posted up in Alexandria that ‘those things which in earlier times had been taken from them, be returned to the idols and the temple wardens and the public purse’.²¹⁵ Such orders had reached deep into the sticks by the middle of the month, when an inscription from ‘Anz, near Bostra, records the restoration of a temple.’²¹⁶ Julian’s original law does not survive, but it is fairly clear that it involved the return to the temples both of land and of materials taken from the actual physical structures themselves.²¹⁷ As he crossed Asia Minor, he was already ordering his uncle to take whatever columns he needed for the rebuilding of Daphne from nearby houses, and Libanius recalled how at the time ‘a man might have seen pillars being conveyed to the despoiled gods, some on ships, some by wagons’.²¹⁸ Yet, when Julian issued his decree, it was nearly forty years since Constantine had conquered the east – an entire generation had passed in which the spoils of the temples were regarded as fair game, handed out as rewards even.²¹⁹ It should hardly need stating that there were vigorous markets in land and stone, all the more so when the east had seen a building boom in the 340s under Constantius: memories must have faded, ownership changed hands.²²⁰ We might then expect chaos to follow close on the heels of any decree to suddenly restore their possessions to the gods – lots of opportunities for settling local feuds and long-nursed resentments.

Chaos is exactly what we find as we trace the effects of the measure. Throughout 362 and 363, Libanius found himself firing off letters, pleading for special treatment for friends caught up in the process of restitution. In Antioch itself, he advocated on behalf of Theodulus, whose house was under threat of demolition, though he had bought its stone on the open market.²²¹ He had to seek help for Vitalius, who had been acquitted of burning down the temple at Daphne by a panel including Libanius himself, but was still being chased for money.²²² He wrote to Tarsus, to ask for leniency for Basilicus and Aemilianus – he was not asking that they escape payment, merely that it be

²¹⁵ *Historia Acephala* 3.1.

²¹⁶ Conti, nr. 1.

²¹⁷ For estates, see *CTh* 5.13.3, 10.1.8, both measures of Valentinian and Valens.

²¹⁸ Julian, *ELF* 80; Libanius, *Or.* 18.126.

²¹⁹ Above, 67 *e.g.*

²²⁰ Above, 68-9.

²²¹ Libanius, *Ep.* 724.

²²² *ibid.*, 1376.1. *PLRE* ‘Vitalius’.

moderate.²²³ He might have regretted at that stage his earlier praise of Bacchius, the local priest, for confiscating a statue of Artemis for a festival, and urging him to restore the temples.²²⁴ He wrote to Tyre, where an ex-student had been deprived of his inheritance: ‘Tyrians have set on him ... confident not in the laws, but in the current state of affairs’.²²⁵ Libanius several times sent urgent missives to Belaeus, the governor of Arabia, on behalf of Orion, an old friend, who had had to flee Bostra because of accusations that he had taken temple property: his family had also been run out of town, his lands were unploughed, and his equipment stolen.²²⁶ Libanius hints darkly that there were many ‘not discreet, coveting other men’s property by pretending to help the gods’.²²⁷ His appeal had no effect and later letters suggest a city in chaos, where it was open season on those accused of holding any temple property.²²⁸ Much of his advocacy was in the cause of his relatives, Bassianus and Thalassius.²²⁹ Their property in Phoenicia was under threat, where they had been compelled not only to hand over a house built from temple stone, but also pay restitution – there was a risk of discrediting the reform in general, Libanius said.²³⁰ In Euphratensis, their property had been confiscated, and their friends and associates were under threat as well.²³¹ In Commagene, land which belonged to Bassianus’ wife had simply been taken by the man who had originally handed it over.²³² Such evidence is all the more revealing, because Libanius was thoroughly in favour of the measure. He liked hearing from Cilicia of orations on ‘the war of the godless against the shrine’, no doubt attended by confiscations – he always emphasised that he favoured the measure in general, but some specific application had been too harsh.²³³ Just below of the surface of his letters we can detect eastern cities descending into disorder: this was the world turned upside down of which the Antiochenes so stingingly complained.²³⁴

²²³ Libanius, *Ep.* 757.

²²⁴ *ibid.*, 710, 712.

²²⁵ *ibid.*, 828.

²²⁶ *ibid.*, 763.3.

²²⁷ *ibid.*, 763.6.

²²⁸ *ibid.*, 819.3.

²²⁹ *PLRE* ‘Bassianus 2’, ‘Thalassius 2’.

²³⁰ Libanius, *Ep.* 1364.6-7.

²³¹ *ibid.*, 1404.1.

²³² *ibid.*, 1380.

²³³ *ibid.*, 695.2.

²³⁴ Julian, *Misopogon* 360d.

In the end, it was that disorder which would probably have been the most tangible expression of Julian's reformation out in the provinces.²³⁵ In December of 361, there were riots at Alexandria, the bishop, George, and several others, killed, their corpses mutilated and ultimately burnt – Julian confiscated George's property, as though he had been a condemned criminal.²³⁶ This was only the beginning and as a terrible drought gripped the east through 362 and food began to run short, cities slipped into chaos.²³⁷ There were anti-Christian riots at Heliopolis, Gaza, and Arethusa.²³⁸ At Constantinople, Libanius mentions that 'some of those abominable homeless men went mad' – he was probably talking about monks.²³⁹ The disorder had been serious enough to drive the prefect from the city and for the council to dispatch an orator to 'explain' what had happened to Julian.²⁴⁰ At Rome, the Temple of Palatine Apollo mysteriously combusted.²⁴¹ Eunapius implicitly contrasted the peace of Lydia, under the wise sophist Chrysanthius, with the 'hot-headed and fiery way' men built temples elsewhere and did harm to the Christians.²⁴² Churches were burnt at Emesa, Julian himself admits, and in the cities round Antioch temples and tempers rose simultaneously, as the 'tombs of the godless' were torn down with imperial sanction – the citizens went on to attack those who had 'offended the gods'.²⁴³ The violence was not, naturally, all in one direction and Julian expressed mock surprise at what was going on and reproached the clergy in general because they 'dare to throw the multitudes into confusion and to riot, being impious against the Gods and disobeying our edicts, even though these are very philanthropic'.²⁴⁴

The church historian Sozomen clearly wrote his history in part out of the emperor's own letters: he provides a window onto the spreading disorder in the provinces.²⁴⁵ At Cyzicus, the bishop had been thrown out of town, along with a considerable number of Christians – Julian apparently

²³⁵ cf. Bowersock, 1978, 91.

²³⁶ AM 22.11.8-10; Julian, *ELF* 106-7. See the *Historia Acephala* 2.10 for the date, cf. Barnes, 1998, 236.

²³⁷ Julian, *Misopogon* 369a.

²³⁸ GN 4.86. I see no reason to eject Gaza from the text, despite Bernardi's doubts *ad loc.* – Sozomen (5.3.6-7) had probably read a letter of Julian to the Gazans, and such were often an indication of local trouble.

²³⁹ Libanius, *Ep.* 1367.4.

²⁴⁰ *ibid.*, 1368.1.

²⁴¹ AM 23.3.3.

²⁴² Eunapius, *VS* 23.17.

²⁴³ Julian, *Misopogon* 357c; 361a.

²⁴⁴ Julian, *ELF* 114.

²⁴⁵ As Bidez and Cumont perspicaciously saw, *e.g.* Julian, *ELF* 55.

approved.²⁴⁶ He wrote threateningly to Nisibis that, since they were Christians, he would not receive their embassies or set foot in the city.²⁴⁷ He expunged Caesarea from the catalogue of cities, fined the churches, and more or less ordered the inhabitants to rebuild their temples.²⁴⁸ At Didyma, he ordered the governor to torch local *martyria*.²⁴⁹ Sozomen recalled that his convert grandfather and other family members had had to flee from their village, Bethelia near Gaza, because of the threat of violence.²⁵⁰ Antioch, so often the focus of accounts of Julian's reign, with the emperor's own testimony to his row with senate and people, emerges not as unique, but as typical, an unusually richly illustrated example of the tensions which divided so many cities.²⁵¹ Altars had been overturned, the temple at Daphne first cleansed of any taint of Christianity and then famously burnt down – the Great Church closed in retaliation.²⁵² Julian raged at the city council that they had too long indulged the Galileans and Gregory of Nazianzus believed that the Orontes was full of bodies, dumped at night.²⁵³ The atmosphere was febrile.

What was Julian's attitude to all this chaos? He positively encouraged it. After learning what had happened at Alexandria, he wrote a letter to the citizens, very mildly scolding their actions – they had anticipated his own judgement, but he was not going to punish them, offering instead 'the gentlest of reproaches'.²⁵⁴ He took considerably harsher measures against those who had stolen books from the bishop's library than those who had killed him.²⁵⁵ As Bostra teetered on the brink of civil strife, Julian fulminated against Titus, its bishop, because he had written to the emperor, promising that he would keep things in order or at least restrain his flock. The emperor urged the citizens to cast him out, before paying lip-service to the idea that everyone should live in harmony.²⁵⁶ He was only, it seems, happy to intervene in disorder when it gave him a chance to take a swipe at the Christians. So,

²⁴⁶ Sozomen 5.15.4-10.

²⁴⁷ Sozomen 5.3.5.

²⁴⁸ *ELF* 125 collects the evidence. See also the recent exhaustive study of Fatti, 2009.

²⁴⁹ Sozomen 5.20.7.

²⁵⁰ Sozomen 5.15.14.

²⁵¹ On Antioch, see Bowersock, 1978, 94-105; Athanassiadi, 1981, 192-225; Pack, 1986, 301-377; Wiemer, 1995, 269-355 Elm, 2012, 269-335, who (273-281) downplays pagan/Christian tension and emphasises Julian's targeting of Homoian Christians.

²⁵² Julian, *Misopogon* 361b; AM 22.13.1-2; Libanius, *Or.* 50.11, *ELF* 103.

²⁵³ Julian, *Misopogon* 363a; GN 4.92.

²⁵⁴ Julian, *ELF* 60.

²⁵⁵ AM 22.11.11. Julian, *ELF* 106-7.

²⁵⁶ Julian, *ELF* 114.

at Edessa, where the ‘Arians’ were accused of having attacked the Valentinians, Julian confiscated their property and threatened more violent measures.²⁵⁷ It is difficult, in view of all this, to dissent from the judgement of Gregory of Nazianzus:

For what is the difference between prescribing some danger for Christians and appearing to be delighted with those who persecute them and making the showing of moderation a grave accusation? For the will of an emperor is unwritten law, supported by his power, and much stronger than written ones, which have not the help of his authority.²⁵⁸

Without giving an ear to the ecclesiastical historians or the martyrologies, full of black legends (which is not to say they are untrue), or the whispered world of what it was feared Julian might do, we can hear in the background the gentle beat of churches destroyed, Christians run out of town, cities scarred by rioting, and an emperor who was not, perhaps, entirely displeased.²⁵⁹

The Eve of Battle

As the east was wracked by civic strife, Julian sat at Antioch, preparing for war with Persia, while his army (those old friends, the *Celtae* and *Petulantes*) glutted themselves on sacrificial meat and too much wine and charlatans who could read the flight of birds or the future in an intestine hawked their expertise.²⁶⁰ From that vantage point on the Orontes, it is possible to get some sense of what Julian’s rule was like. It is difficult not to be struck by the contrast between the smooth and placid portrait of an age which Libanius and others offer to us, and the chaotic transformation which we can excavate. The sources say that Julian was merciful: he began his reign with a set of trials quite as brutal as anything over which Paul ‘the Chain’ had presided. They say that he was a reformer, a man who set out to fix the problems of the Roman state: in practice, ‘reform’ meant sacking those who had served his cousin and scrambling to deal with the consequences. They say that he presided over a government of serious men, each a model of virtue: in fact, he had imposed a pagan

²⁵⁷ Julian, *ELF* 115; a reason to doubt (*pace* Barnes, 1993, 155) that George of Alexandria was killed by Christian opponents.

²⁵⁸ GN 4.93: Τί γάρ διαφέρει τοῦ κίνδυνον προγράψαι Χριστιανοῖς τὸ τοῖς διώκταις Χριστιανῶν ἡδόμενον φαίνεσθαι, καὶ μέγα ἔγκλημα ποιεῖσθαι τὸ μετριάζειν; τὸ γὰρ βούλεσθαι βασιλέως ἀγραφὸς ἐστὶ νόμος, τῷ κράτει συνηγορούμενος, καὶ πολὺ γε τῶν γραπτῶν ισχυρότερος, τῶν οὐ δυναστεία βοηθουμένων.

²⁵⁹ See Brennecke, 1988, 114-152 for a detailed survey of Julianic martyrs; Penella, 1993; Bouffartigue, 1998, 88-90.

²⁶⁰ AM 22.12.1, 6-7.

administration on the empire. They say that he was not a persecutor: there were no edicts, but churches burned throughout the east. So much for the 'sort of saving star for the human race'. Julian's reign, in sum, was nasty, brutish, and short

CONCLUSION

And just like that, he was gone. Julian left Antioch on the 5th of March 363, offering a cold rebuke to its sarcastic populace, and traced a slow path to the frontier.¹ First, he met the gargantuan force which had mustered at Hierapolis – the huge army, drawn from the entire empire, which was necessary for war with Persia and which Constantius had never quite assembled.² Then, near Callinicum on the 28th of March, he rendezvoused with the enormous fleet he had prepared for the campaign.³ His unwieldy column followed the Euphrates down to Circesium, where they began to cross the Abora at the start of April: it took several days to get the whole army over the river.⁴ They marched on, past the tomb of the unhappy Gordian III, towards the shattered remnants of Dura-Europos, scene of an earlier bout in Rome's wars with Persia.⁵ Somewhere *en route*, Julian addressed his men and was received with raucous enthusiasm.⁶ They soon crossed the border.⁷

The epic disaster which followed is not the province of this thesis: it took too long and is too complex to be adequately included. There is, in any case, a risk of simply restating in less vivid prose the unmatched account of Ammianus, eyewitness and participant. Suffice it to say that Julian and his project died on that campaign – the Roman army very nearly did as well. In some senses, this was the foundational trauma of later-Roman history, the first moment since the 270s that Rome had been decisively humiliated by a foreign enemy – a grim omen of what was to come. At its end, the rule of the Flavian family had ceased – aspiring dynasts, drawn from the crowded ranks of junior officers, were not in short supply. They all kept the name of the dynasty which had so profoundly shaped the Roman world – several of the wiser ones quietly married Constantinian women.⁸ Perhaps it pushes a metaphor too far to say that the House of Constantine had fallen, but portions of it were quietly recycled in later constructions – still it captures something of what happened.

¹ AM 23.2.5-6; Julian, *ELF* 98.

² AM 23.2.7.

³ AM 23.3.9.

⁴ AM 23.5.1.

⁵ AM 23.5.7-8.

⁶ AM 23.5.15-25.

⁷ AM 24.1.1.

⁸ Valentinian married Iustina (see above, 113), and Theodosius their daughter Galla (*PLRE* 'Galla 2'); Gratian wed Constantia, Constantius' posthumous daughter ('Constantia 2').

It is time to draw to a close. This thesis has made many arguments about men and events, both great and small – to recapitulate them all would be repetitious indeed. Some, I hope, open up further prospects for research within the crowded decades of the mid-fourth century. There is still much work to be done in the reigns of Constantius and Constans – the great project of integrating the history of Christian controversy, the story of the growth of the Church, and a realistic vision of their secular rule is yet undone (better, perhaps, unstarted). Magnentius, that bold barbarian who so nearly changed the course of Roman history, is still an enigma, though perhaps no longer one wrapped within a riddle. What he and his supporters were trying to achieve remains frustratingly obscure, but with a keener understanding of the circumstances and course of his rebellion, progress may be possible. Only a portion of the inexhaustible wealth of material which Julian's reign offers the historian has been exploited here: the full extent of his programme of 'reform', the way in which he ruled the west, and the aftershocks of his great project to change the Roman world are still to be fully explored. Equally, some of the conclusions of this thesis might usefully inflect our portrait of the world before and after the turbulent decades on which it is focussed. The Constantine of its opening pages is much less certain, much less missionary, much less Constantinian, even, than he claimed and we have sometimes believed. The reign of Constans – the western empire the preserve of aristocratic Italians – perhaps foreshadows that later-fourth-century world of regional factions and escalating aristocratic competition which John Matthews so sympathetically evoked.⁹

All that remains. Instead, in closing, I wish to touch briefly on two points of slightly broader application: one methodological and one, for want of a better word, theoretical. First, method. It has been a constant note in this thesis that our literary sources are biased and unreliable, or (better) that they reflect the rhetorical and political needs of particular moments, as much as they tell us about what they purport to describe. Bare scepticism, however, is often rather barren, can even be self-defeating. So, it has also been a recurrent argument in this thesis that close attention to official hierarchies, to administrators and officers and where they came from and what they did, give us a way (not the only, or always the best) to get a grip on the literary sources. Prosopography has its

⁹ Matthews, 1975.

flaws, it always runs the risk of (as Momigliano put it) claiming ‘to have irrefutably established the previously unknown phenomenon of family ties’, but it does offer us something real and tangible.¹⁰ It is, perhaps, a little out of fashion, in the Anglophone world, where the monumental but flawed first volume of the *Prosopography of the Later Roman Empire* is sometimes treated as though it were the end of something, rather than its beginning. There is work to be done. Second, theory. Many misunderstandings about the period have their origin in a model, invariably implicit, of Roman political action in which emperors knew what they wanted and set about getting it. I am not so sure and wonder if we have not occasionally fallen under the spell of the panegyrists, subtly lulled into believing that the emperor’s awesome forethought had ordained everything. Throughout this thesis, emphasis has been laid on the contingent nature of so much that happened: on the imperfection of information, the complexity of the situations which rulers confronted, and the difficulty of making decisions amidst the fog of politics. Events overmastered emperors rather more often than they managed to get a grip on them, and I suspect enormous effort and ruthless focus were necessary if the tide of everyday chaos, the endless and conflicting demands of imperial rule, was not to drag them helpless along.

¹⁰ Momigliano, 1954, 354.

LIST OF WORKS CONSULTED

This list is divided into: I) 'Ancient Materials', II) 'Databases', and III) 'Modern Scholarship'. I is further subdivided into: a) 'Coins', b) 'Inscriptions', c) 'Literary Texts' (with a catholic definition), d) 'Manuscripts', and e) 'Papyri'. In II, if a piece in an edited collection is the sole one therein cited, then I provide a full reference for that volume; if the same collection contains more than one piece to which I refer, then that volume receives its own entry.

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<u>Petau</u>	<u>Bidez</u>
Or. 1	I
Or. 2	III [II]
Or. 3	II [III]
Or. 4	XI [IV]
Or. 5	VIII [V]
Or. 6	IX [VI]
Or. 7	VII
Or. 8	IV [VIII]
<i>Ep. ad Athenienses</i>	V
<i>Ep. ad Themistium</i>	VI
<i>Caesares</i>	X
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